

Identity formation, language and migration dynamics

Minorities in the MENA region and
the German diaspora

Edited by

Saloumeh Gholami

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Contact and Multilingualism 10



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Chapter 1

Introduction: Critical issues in migration, language, and identity

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This introduction investigates the intricate connections between migration, identity, and language, addressing significant gaps in existing research. It explores the evolution of identity, moving from classical philosophical ideas to modern concepts such as hybrid and transnational identities. Identity is portrayed as an ever-changing construct shaped by both individual and collective experiences, as well as by the broader forces of globalisation and migration.

A key focus is the critique of migration studies' tendency to prioritise dominant groups, often neglecting the nuanced experiences of minority populations within minorities. This oversight (Esser 2006, Knigge et al. 2015, Welker 2021) limits the understanding of the diverse challenges these communities face.

The discussion highlights the critical role of migrants' countries of origin in shaping their identities. Factors such as political instability, economic hardships, and linguistic diversity are examined for their influence. Through case studies of multilingual families, the text illustrates how heritage language use contributes to educational outcomes and cultural preservation.

Additionally, the introduction critiques the oversimplification of the MENA region's rich diversity. It underscores how systemic discrimination and conflict disproportionately affect minorities, leading to forced migration and the erosion of cultural heritage.

The text also delves into the challenges of categorising languages in migration contexts. By advocating for terms like *heritage language*, it captures the fluid and adaptive nature of language use in these settings. Overall, this introduction emphasises the need for more inclusive and nuanced approaches to understanding migration, identity, and language.



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Migration remains a critical and multifaceted issue that has garnered extensive scholarly attention, particularly in recent years. New developments and ongoing conflicts across the Middle East and North Africa (MENA) region have driven successive waves of migration, with many migrants seeking refuge in Europe. These movements have intensified research interest, resulting in a substantial body of academic work exploring the diverse dimensions of migration.

However, despite this extensive body of research, substantial limitations persist in migration studies, largely owing to the inherent complexity of migration as a phenomenon. Migration is shaped by a nuanced and interwoven mix of economic, political, social, and cultural factors, creating interactions that resist straightforward categorisation and analysis. This complexity poses a challenge for current research to fully encapsulate the diverse experiences of migrants, particularly those of minority groups, whose perspectives are frequently underrepresented in existing literature.

Central to these challenges is the conceptual ambiguity surrounding “identity”, a term often applied so broadly that it risks losing analytical precision. To grasp its complexity, it is essential to trace the evolution of identity from its classical philosophical origins through to its reconceptualisations in modern social sciences. Understanding how identity has been shaped and reshaped in response to historical, social, and technological shifts – particularly within the contexts of migration and language – is critical to deepening the analysis of migrant experiences and the transformative impact of migration on individual and group identities.

1 The evolving complexity of identity: Historical challenges and theoretical layers

In the classical era, especially within Hellenic philosophy, identity was a foundational topic, with thinkers analysing its essential properties to define both commonalities and distinctions. This approach hinged on the idea of *differentia specifica*, a method of categorising entities by their shared and unique traits. Accordingly, two entities (A and B) were deemed identical only if they shared all properties without distinguishing differences; in such cases, their separate labels (A, B) represented mental constructs rather than inherent differences (Windelband 1910). This line of thought by Socrates, Plato, and Aristotle established a foundation for Western notions of personal identity, focusing on intrinsic virtues and characteristics that differentiate individuals.

During the medieval period, at least within Europe, identity was framed by religious affiliation and collective associations such as estate, profession, and lo-

cal community, rather than individual traits. The Renaissance revived interest in personal identity, inspired by classical ideals of human potential and individuality, while the Enlightenment expanded this view to include the individual's role within the emerging nation-state. Social class also became a key identifier, reflecting society's broader structures. In modern times, identity encompassed not only social roles (Tajfel et al. 1971, Tajfel & Turner 1979) but also national affiliations reshaped by industrialisation and globalisation (Brubaker & Cooper 2000).

In the digital era, the concept of identity has become increasingly complex, shaped by the interplay of real-world interactions and virtual personas. Among the collectives influencing group identities, linguistic, religious, and so-called "ethnic" affiliations retain a significant role. The term "ethnic" here refers to social groups sharing a common ancestry, language, religion, territory, or cultural practices, distinguishing them from groupings by gender, profession, or socio-economic status (Peoples & Bailey 2010). As Max Weber highlighted, such definitions rest not on objective criteria but on the group's self-perceived unity (Weber 1968).

Modern social sciences and psychology distinguish between personal identity and group identity. Personal identity can be understood as a continuous process of constructing a coherent self throughout one's life, forming a "vertical dimension" of identity (Erikson 1980). In parallel, individuals navigate the "horizontal dimension" by balancing roles across different groups – such as family, profession, religion, and community (Goffman 1963). While group affiliations may have less influence today, individuals remain distinct from their cultural or linguistic associations, as Jullien observes: "Il faudra donc repenser le rapport du sujet à la culture dès lors que celle-ci n'est pas posée comme "sa" culture" 'It will therefore be necessary to rethink the relationship of the subject to culture as soon as it is not considered as his/her culture' (Jullien 2016: 57, Jullien 2021). Group identities continue to shape self-perception, influenced by external perceptions and interactions.

In contemporary discourse, concepts such as "transnational identity" (Vertovec 1999) and "hybrid identity" (Bhabha 1994, Hall 1990) illustrate how individuals construct identities spanning home and host cultures, particularly in globalised and postcolonial contexts. These frameworks highlight the complex adaptations individuals make when navigating new environments. A notable precursor to such views was the philosopher Hannah Arendt, who noted in *The human condition*: "We can only learn who somebody is or was, if we hear the story whose hero he himself is, his biography" (Arendt 2020, 1998). Poststructuralist

and postcolonial theories extend this notion, suggesting that the “self” is represented through an endless process of construction rather than reaching any fixed essence. Following Derrida’s concept of *différance*, Hall (1990) views identity as an ongoing process of positioning the self within social power structures. Similarly, Jullien asserts that culture itself unfolds within a dynamic tension between plurality and unity: “Je dirai plutôt que le propre du culturel est qu’il se déploie dans cette tension – ou cet écart – du pluriel et de l’unitaire” ‘I would rather say that the specificity of culture is that it unfolds in this tension – or this gap – of plurality and the unitary’ (Jullien 2016: 46).

In contemporary discourse, the term “identity” is often applied too broadly, leading to oversimplification, or conversely, in an excessively narrow sense that limits its inherent complexity. Such narrow interpretations risk reducing identity to rigid, exclusive categories that fail to reflect its dynamic and multidimensional nature (Gholami 2023, Brubaker & Cooper 2000). Identity, rather than being a static or immutable construct, comprises multiple dimensions shaped by diverse factors, adapting continuously in response to changing contexts.

A pertinent example illustrating this complexity is that of Kurdish Jews who immigrated from Iraqi Kurdistan to Israel in 1950 (Shwartz-Be’eri 2000). Their identity weaves together various intersecting dimensions: religious (Jewish), ethnic (Kurdish), national (initially Iraqi and later Israeli), and historical (as post-1950 immigrants). Each layer contributes to a unique, composite identity that defies simplistic categorisation, underscoring the dynamic interplay between these overlapping affiliations and the evolving nature of identity.

2 Emphasis on dominant groups with limited attention to minority populations within minorities

A critical limitation within migration studies, especially concerning the MENA region, is the field’s predominant focus on majority ethnic, religious, or linguistic groups. This dominant-group-centric perspective often oversimplifies the diverse identities of minority populations within broader migrant communities, leading to a lack of nuanced understanding of minority populations within minorities. For example, studies of Iranian migration often foreground Shiite Muslim identity, which, while central, fails to capture the unique experiences of religious minorities such as Jews, Zoroastrians, Christians, and Ahl-e Haqq (Gholami 2023). By neglecting these layered minority identities, researchers risk overlooking the complex cultural and social dynamics that these groups navigate, including how they define themselves in contrast to both their original and host communities.

This focus on dominant groups extends into academic frameworks as well, where many sociological theories inherently reflect majority-group perspectives. Berry's (1997) acculturation theory, a foundational model in migration studies, categorises migrant integration along two axes (community of origin and host society), yielding four main outcomes: integration, assimilation, ethnic separation, and marginality. While influential, this model primarily reflects majority group contexts, often rendering minority identities as subsets of these broader categories without sufficient consideration for their distinctive experiences. Similarly, the Subjective Ethnolinguistic Vitality Questionnaire (Bourhis et al. 1981) measures sociological factors – such as status, demography, and institutional support – within ethnic groups but has often been critiqued for reifying reference categories that may not fully capture minority identities within minorities. Critics like Husband & Saifullah Khan (1982) and Tollefson (1991) argue that such frameworks often embed majority perspectives, limiting their relevance to diverse migrant communities.

Communication Accommodation Theory (CAT), which emerged as a model to explain how individuals adjust their communication styles in social contexts, also highlights challenges in recognising the complexities of minority identities. CAT distinguishes between convergence (adapting to another's communication style), divergence (emphasising distinctiveness), and maintenance (retaining one's communicative style) (Giles 2016). However, understanding how these dynamics manifest within minority groups requires insight into sociohistorical contexts and power imbalances that mainstream applications of CAT may overlook. Consequently, while the model acknowledges social and linguistic adaptation, its application to minority identities requires deeper contextualisation, particularly when analysing interactions within and between minorities.

This volume aims to address these gaps by advancing migration studies to include not only dominant groups but also the nuanced identities within minority populations. By foregrounding multilingualism, cultural networks, and superdiversity – where migrants may constitute minorities even within their homelands – this work seeks to illuminate the layered and intersectional realities of minority identities in migration contexts, offering a more comprehensive understanding of identity and integration beyond conventional frameworks.

3 The problem of overlooking countries of origin in migration studies and identity formation

A fundamental problem in the field of migration research is the predominant focus on destination countries, which often overshadows the crucial role played by countries of origin. Factors such as economic conditions, political instability, social dynamics, and cultural traditions in migrants' homelands significantly influence identity formation. However, these factors often receive insufficient scholarly attention, despite their undeniable impact. While extensive research exists on assimilation, acculturation, and the various linguistic shifts occurring in diaspora contexts, there remains a conspicuous gap in understanding the rich linguistic and cultural tapestries from which these migrants emerge.

For instance, debates around multilingualism in countries like Germany illustrate this imbalance (Gogolin & Neumann 2009). New assimilation theories (Alba & Nee 2003, 1997) have historically prioritised the acquisition of the host country's language as a measure of social and cultural integration. In this view, maintaining other languages is often seen as detrimental, a notion reinforced by studies like Esser (2006) and Hopf (2005) which base their arguments on the "time on task" hypothesis (Carroll 1963). According to this hypothesis, allocating more time to learning the host country's language results in better language proficiency. PISA studies provide further evidence, showing correlations between the use of a non-majority language at home and academic performance, categorising students based on their migration background (Mullis et al. 2017).

By contrast, the theory of segmented assimilation (Portes & Rumbaut 2001) stipulated a continuous importance of migrants' first languages even after long periods of settlement in the immigration country. Again, on the basis of the international PISA data, Agirdag & Vanlaar (2016) differentiated the analysis of language usage between parents, siblings and peers and showed a positive correlation of L1-usage with the father and educational success. In the same line, Rauch (2019) argued that the trend towards less L1-usage of young people with immigration background in the PISA study does not hold for siblings and friends. On the other side, educational success is not significantly related to less L1-usage inside of the family (137). Only the L1-usage with best friend outside of school exhibits such a relationship (Rauch 2019).

Knigge et al. (2015) tested the influence of L1 proficiency on L2 proficiency of young migrants of Turkish, Russian and Vietnamese background in Germany according to the interdependency hypothesis (Cummins 1979). This influence is shown to be small (6% of variance explained), but significant. In terms of national

background, their data showed an advantage in L2 proficiency of the Vietnamese, followed by the Russian and the lowest by the Turkish speakers, even after control for socio-economic background.

In such a perspective, the longitudinal study of Leseman et al. (2009) in the Netherlands differentiated heritage language and country of origin. It compared children of Dutch, Turkish and Moroccan Berber origin in their dual language development from preschool to primary school, taking into account the socio-economic and cultural background of the parents and the language learning environment at home. This background is, for the Moroccan Berber group, characterised by a very complex linguistic situation. While Tarifit Berber is spoken at home, the official language of Morocco is Modern Standard Arabic, which is also present in the media to some extent. Additionally, Moroccan Arabic is needed in many situations of everyday life, and even French and Spanish are present.

In the Netherlands, media use inside the Moroccan families is multilingual, while the Turkish group only receives input in two languages. Therefore, the impact on vocabulary development in L1 (Berber) is smaller than for the Turkish children. But even in that group, after controlling for Dutch vocabulary knowledge, short-term memory and Raven IQ at age 3, the variance of Dutch proficiency at the age of six years is also explained to some extent by the oral proficiency in the first language at age 3 (albeit with small effect sizes, Leseman et al. 2009). In addition to such studies, it is essential to understand that migration is not just about the destination, but equally about the point of departure. To have a comprehensive grasp of the sociolinguistic implications of migration, it is crucial to delve deeper into the roots of migrants: their hometowns, the languages they speak, the cultural norms they adhere to, and the complexities of their original environments.

4 Oversimplifying the complexity of the MENA region

Another critical issue in migration studies is the tendency to oversimplify the MENA region's inherent complexity. This region is marked by a rich diversity of ethnicities, religions, and cultural practices, each adding layers to its social and political landscape. The coexistence of multiple groups with distinct traditions and beliefs creates a dynamic yet fragile balance of cohabitation, often accompanied by episodes of tension or conflict. A nuanced understanding of these intricacies is essential for any comprehensive analysis of migration from the MENA region, as it reveals the specific cultural, religious, and social forces that shape migrants' experiences and the formation of their identities.

The MENA region has been the site of numerous conflicts and wars, which have disproportionately affected minority populations. These conflicts often result in significant displacement, loss of life, and destruction of cultural heritage, exacerbating the vulnerabilities of these groups. Understanding the particular cultural, religious, and social forces that influence migrants from this region is essential for any comprehensive analysis.

For instance, the prolonged Syrian Civil War has displaced over 10 million people, finding refuge in Turkey, Lebanon, Jordan and Europe, many of whom belong to minority groups like the Kurds, whose experiences of war and displacement are intertwined with the unique socio-political status of regions like Rojava. Similarly, in Northern Iraq, ISIS's genocide against the Êzîdi community in 2014 reveals how sectarian and ethnic conflicts disproportionately impact vulnerable groups, prompting forced migration and exacerbating cultural erasure (Schmidinger 2019). In Turkey, after the Suruç bombing in 2015, armed conflict started again in Kurdish areas of East Anatolia after a period of "Kurdish opening" of the Erdoğan regime. Political protest in Iran in 2022 started when a young woman of Kurdish origin, Mahsa Amini, died after having been arrested by the religious morality police (Kazemzadeh 2023).

In Afghanistan, decades of conflict have entrenched divisions among Pashtuns, Tajiks, Hazaras, and Uzbeks, with each wave of regime change impacting these communities differently. The Taliban's recent re-assertion of Pashto dominance is but one manifestation of how ethnic dynamics shape migration patterns and individual migrant experiences (Ahwar 2023). The constitution of 1964 declared Pashto and Dari as official, but only Pashto as the national language. Other languages such as Uzbek, Turkmen, Baluchi and Nuristani were labelled regional languages. During Soviet military intervention and civil war, ethnic issues grew in importance. The first Taliban regime (1996–2001) led to the dominance of the Pashtuns (Nawid 2012). After the US-led intervention in 2001 and the reconstruction of a Democratic regime, the balance between different groups was reestablished (Schetter 2005). When civil war started again, particularly Pashto-speaking provinces suffered.

These dynamics are not restricted to regions with intense conflict but also extend to areas like Morocco, where the (Berber) community in the Rif Mountains has experienced cyclical marginalisation and periods of state repression (Kratichwil 2002). Although the integration of the language into the curriculum was a positive step, recent unrest underscores the fragility of ethnic relations.

Economic instability in the region poses another layer of difficulty for minorities. These groups often face higher rates of poverty, unemployment, and limited access to essential services. The economic marginalisation of minorities not

only contributes to their immediate hardship but also has broader implications for their long-term social and political integration.

Discrimination against minorities, both in legal systems and societal norms, is a pervasive issue in the region. This discrimination can manifest in various forms, including limited access to justice, education, and employment opportunities, and can lead to systemic exclusion and inequality. Examining the legal and social frameworks that perpetuate such discrimination is vital for understanding the challenges faced by minorities.

The phenomena of migration and forced displacement have significantly reshaped minority communities in the MENA region. These movements not only result in demographic changes but also affect the cultural and social fabric of both the communities left behind and those that receive new members. The transformation of minority communities due to migration and displacement is a critical area of study, with implications for cultural preservation and community cohesion. The dynamics of minority issues in the MENA region are further complicated by global and regional factors. International political decisions, economic sanctions, and regional power struggles can have a cascading effect on minority populations, influencing everything from policy decisions to grassroots movements.

In line with the need to avoid oversimplifying the MENA region's intricate sociocultural fabric, Brizić's mixed methods study, *The Sound of Inequality* (Brizić 2021, Brizić et al. 2021) provides a pertinent example of a migration study that addresses the complex conditions of migrants' countries of origin.

The study focuses on narrative-biographical interviews with 115 parents of different ethnic origin from Kurdistan/Turkey in Austria which were conducted in Kurmanci-Kurdish, Turkish and German.¹ The speakers belong to a variety of different ethnic groups: 30 families are Kurdish speakers from central Anatolia, where Kurmanci Kurdish is already used as a kind of lingua franca besides Bedeyni-Kurdish and Caucasian languages. As a second group, 14 Zaza/Kurdish-speaking families from east or southeast Anatolia were distinguished. But also, the remaining 71 predominantly Turkish speaking families from different regions list a variety of other languages and varieties that played or play some role in their environment.

The biographical narratives of the parents are analysed as voices in Blommaerts' sense of the term as "attempts ... to make themselves understood by others... the practical conversion of socially loaded resources into socially loaded

¹The second group of migrants from Serbia will not be discussed here.

semiotic action”. (Blommaert 2008: 427), leading to a typology of four voices, defined as the Resisting, Targeting, Intermediate, and Balancing Voice. While the resisting voice referred to the destroyed Kurdish village as a symbol of group identity and place of belonging in the past, against which the present situation of migration and acculturation is rejected, the targeting voice is about leaving this past behind and aspiring education and better living conditions in migration, taking language loss into account. The intermediate voice, on the other side, emphasises education, and favours the official language of the country of origin, Turkish, without completely suppressing the Kurdish home variety. The actual situation in Austria is perceived as transitional. The balanced voice finally reconciles the variety of origin with a perspective of educational success in the new host country. These four voices correspond to some extent with the socio-economic background of the family and the multilingualism of the community of origin: lower educational background of the mothers corresponds with the resistance and targeting voices, while in half of the balancing voices, the mothers completed at least 10 school years (Brizić 2021). With respect to multilingualism, the families of the intermediate and, to a lesser extent, the targeting voices use at least three and up to six languages, while the balanced and resisting voices restrict themselves to two. In this way, the experiences of multilingualism, discrimination and political oppression in the country of origin shape attitudes, which are still important when bringing up their children in the immigration country Austria.

5 The challenge of accurately categorising and describing languages in migration contexts

The layered difficulties involved in effectively categorising and describing the multilingual realities of migrant populations underscore the need for careful, flexible research approaches that account for both the social meanings of language – considering both emic and etic perspectives – and the fluidity of language use within these communities. In premodern times, different varieties of the same *language* and different languages coexisted in one area under the roof of an Empire with its official language or language of administration. In such a way, Europe during the Middle Ages was multilingual, even inside a territory that was supposed to constitute later France or England. The language of literacy was Latin, while local varieties slowly made their way into written usages such as poetry.

In the MENA region, Arabic, Persian and Ottoman Turkish fulfilled their role of state languages in several Empires, while regional groups still used their own varieties/languages and some vernacular of greater distribution. Language islands played a major role. Many languages of the minorities were characterised by diglossia (Ferguson 1959, 1996), the coexistence of daily spoken varieties of the language and a highly codified, formal written variety differing considerable in lexicon and grammar: Sephardic Jews in the Ottoman Empire spoke Judeo-Spanish, while Hebrew constituted their sacred language. Aramaic Christians in Syria under Ottoman rule spoke varieties of Aramaic and Arabic, while classical Syriac was used in the church. Literacy, however, was not restricted to the high prestige variety, but the lower variety was written as well..

Only from the 19th century onwards did the concept of a national language, encompassing the entire population of a larger region, begin to spread from Europe to other parts of the world, including the MENA region. In modern societies, proficiency in the written standard language has become a prerequisite for all members of society. Over the past hundred years, literacy requirements have evolved from merely being able to sign a document or understand basic instructions to using written language for a wide range of purposes across work, education, and leisure. This literacy may encompass not only the official language of the host country but also other languages and varieties used within the migrant community or family.

The idea of language maintenance (Fishman 1995) itself is closely linked to transmitting the written variety of this language at school or in community education, leading to tensions between supporters of the “good” written language vs. the local spoken “dialect”. Otherwise, the official minority language might be only in use in a small intellectual segment of the community, while the majority considers their spoken variety as a source of identity. The use of script and even of orthographic features is closely linked to social processes of accommodation and divergence (Sebba 2007, Jaffe et al. 2012).

It follows from the previous argument, that “mother tongue” in migration contexts is no longer acceptable as a scientific term. But “first” or “family language” and even “language of origin” poses some problems. In the last decades, the term “heritage language” was more frequently used. It describes “... speakers as unbalanced bilinguals who acquired their first, heritage language in the home and whose second language serves as the dominant language of the broader community” (Scontras & Putnam 2020: 152). Heritage languages do not differ from their original languages only by way of (uncontrolled) interference from the contact language used by the matrix society in the host country (Polinsky 2011,

2018). Linguistic practices (including translanguaging, language learning strategies, etc.) are sometimes sustained for long periods of time in migration settings. The (structural, emblematic, semiotic) imprint this leaves on the resultant heritage language is not just an involuntary effect of language contact (and “imperfect” learning) but may be a strategy of appropriation and cultural adaptation.

While heritage, including linguistic heritage, resonates with notions of stable tradition and transmission over long stretches of time. The condition of superdiversity evokes the idea of short-lived, ever-evolving, fragmented and fluid situations and phenomena. In such a way, the trajectories of languages brought to Germany still constitute an open project.

6 Scope and purpose of the volume

This edited volume is based on contributions from the conference “Language, Society & Identity in Diverse Ethnolinguistic Contexts”, which was held in June 2023 in Frankfurt within the framework of the LOEWE research cluster. The LOEWE² research cluster “Minority Studies: Language and Identity” (2020–2024) was an attempt to fill gaps in the field of minority studies. Comprising researchers from Goethe University Frankfurt and University of Giessen it developed an interdisciplinary approach for studying problems of identity formation among minorities.

Aiming to address the five previously mentioned gaps in migration studies, this edited volume embarks on a comprehensive exploration of both historical and contemporary evolutions from the MENA region to the German diaspora. By spanning across time, our approach ensures that the findings are not mere snapshots of the present. Instead, they are grounded in an appreciation of past trajectories, providing a richer context for understanding potential future developments.

From a historical perspective, the focus is on Georgians in Georgia, Azerbaijan, and Iran and Sephardic Jews and speakers of Aramaic varieties in the Ottoman Empire. Regarding immigration in Germany, the studies include Kurds from Iraq and Syria, Pashtu speakers from Afghanistan, and Tarifit-speaking Berbers from northern Morocco.

While some studies concentrate on the linguistic, historical, and social aspects that shape the experiences of these minority groups in their homelands, others address their experiences as migrants in Germany, a country of immigration.

²The acronym stands for: Landes-Offensive zur Entwicklung wissenschaftlich-ökonomischer Exzellenz (State initiative for the development of scientific and economic excellence)

The book delves into the nuanced processes of identity formation among minorities from MENA region, considering the cultural, social, and historical backgrounds that influence these processes. It emphasises the unique experiences of minority groups that are marginalised within their own countries of origin, shedding light on how these internal dynamics influence their experiences and identities upon migrating. With respect to language, the tension between spoken vernaculars (Judeo-Spanish, Kurmanji Kurdish, several Aramaic and Georgian varieties, Tarifit Berber) and prestigious written languages (Hebrew, Syriac, Arabic, Persian, and Turkish), not only in relation to official state languages in the countries where they reside but also within the communities themselves, is crucial. Even the choice of writing systems and scripts plays a central role in these processes.

One of the key objectives of this volume is to shift the focus of migration studies to include a more balanced view of both destination and origin countries. By doing so, it provides a deeper understanding of how migration processes are affected by the conditions in home countries. This includes an examination of how linguistic diversity, historical conflicts, and social stratification in these countries impact the identities of migrants.

Through a collection of essays and studies by various experts, the volume offers a multidimensional perspective on the challenges faced by these minority groups. It aims to provide a more holistic understanding of their identity dynamics, contributing to more effective policies and interventions for their integration and support in both their home and host countries. Therefore, three chapters deal with political and legal regulations in Germany and other European countries concerning linguistic and religious rights of the new minorities.

This volume is an essential resource for scholars, policymakers, and anyone interested in the intricate relationship between migration, identity, language, and literacy, and the socio-political contexts of the MENA region. It serves as a crucial step towards acknowledging and addressing the complex realities of minorities from this region.

7 Overview of the volume

The first part, “Accommodation and interculturality in language acquisition and use”, deals with the intricate dynamics of language transformation, adaptation, and cultural intermingling that result from migration and encounters with diverse cultures. It explores how these communities adjust their language use to blend into new environments and “accommodate” the language preferences of their culture and religion.

The paper “Perceiving communicative behavior as discriminatory: Tarifit and German speakers’ experiences” by Petrou, Boutemin & Palat provides a lens into the challenges faced by the speakers of Tarifit Berber in their communicative interactions. It further reinforces our understanding of the transformative and adaptive linguistic strategies these communities must employ to integrate into new cultural landscapes.

“When words destroy worlds: Online hate speech against religious minorities as harm” by Topidi offers an exploration into the negative side of linguistic diversity and cultural encounter. It spotlights how language, particularly in online spaces, can be used as a tool for harm, targeting minorities including migrant groups. It enhances our understanding of how language use within migrant communities can be influenced by external factors, such as discrimination and hate speech.

The second part, “Heritage language education in Europe with a special focus on non-official migrant languages”, discusses the significance of heritage language education in Europe. It explores the opportunities and challenges faced by both immigrants and host societies in maintaining, teaching, and learning these heritage languages. It lays the groundwork by exploring the legal framework surrounding language rights and obligations for immigrant minorities. It delves into how diversity governance can contribute to the integration of new minorities into the societal fabric, while also respecting and preserving their unique cultural and linguistic heritage.

In Chapter 4, “Heritage language education. A brief legal overview”, Hofmann, Malkmus & Östermann offer an overview of the structure and legal framework of heritage language education programs in the German state of Hesse, as well as in selected regions across Europe. It explores the legislative and practical aspects that shape and define these programs, providing a comparative perspective across different geographical and cultural contexts.

Chapter 5 by Medda-Windischer & Zeba “Linguistic Diversity of New Minorities in Europe: A crossroads of rights and duties” delves into the language rights and obligations of new minority groups, emerging from recent migration flows by leveraging an analysis of legal and policy documents, in conjunction with an exploration of prior literature and empirical studies undertaken in this area. The discussion provides a nuanced understanding of how language rights are perceived and implemented for these burgeoning minority groups.

Koca & Mehlem’s study, “Perspectives of newly arrived Kurdish and Afghan families in Germany on their heritage languages and linguistic situation” perspectives of newly arrived Kurdish and Afghan families in Germany on their

heritage languages and linguistic situation (Chapter 6), provides insightful perspectives on the dynamics of maintaining heritage languages amidst the process of learning official languages within migrant communities, juxtaposing the views of children and their parents at two different points of time.

The third part, “Scripts as markers of identity”, delves into the historical dynamics of how writing systems, or scripts, have not only functioned as media for conveying messages, but as emblematic tokens of cultural and linguistic identity among diverse communities and migrant groups in the premodern MENA region. It undertakes an exploration of how the phenomena of language contact and multilingualism, within the context of migration, have reshaped the evolution of written texts among diverse language communities. This includes the transformation of scripts, the borrowing and integration of words from one language to another, and even the birth of novel linguistic and cultural elements.

“From identity to script, from script to literature: Syriac, Garshuni Arabic and Neo-Aramaic” (Chapter 7) by Mengozzi provides a compelling case study on how scripts serve as essential markers of identity. By tracing the evolution of Syriac, Neo-Aramaic, and Garshuni Arabic scripts, this paper explores how these scripts emerged and transformed over time, reflecting their communities’ evolving cultural and linguistic identities.

Leibiusky’s article “*Me’am Lo’ez of Pirqey ’Avot* by Itzhak Magriso (Istanbul 1753): Scripts, language and identity” (Chapter 8) examines a specific instance of script as an identity marker in the Jewish community of the Ottoman Empire after the crisis of Sabbatai Zevi who claimed to be the long-awaited Messiah. Through the lens of Magriso’s work, it investigates how scripts and language interweave to reflect and shape religious identity.

The article by Pourtskhvanidze & Beridze titled “Script and identity: Alphabets, amulets, and anchors” (Chapter 9) offers a unique perspective on how scripts as well as features of spoken language can serve as emblems of identity within linguistically diverse communities. By focusing on Georgian linguistic islands, the paper provides insights into the pivotal role of scripts in preserving and asserting cultural and linguistic identities.

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Part I

Accommodation and interculturality in language acquisition and use

Chapter 2

Perceiving communicative behavior as discriminatory: Tarifit and German speakers' experiences

Maria Petrou, Hamza Boutemin & Axel Fanego Palat

This chapter explores how North African men in Germany discuss perceived discrimination, focusing on group boundaries and affiliations shaping responses to verbal discrimination. Analyzing a group conversation with three North African and two German-background men, the study examines how linguistic differences, including multilingual use, influence communication dynamics and intergroup relations. Drawing on Communication Accommodation Theory (CAT) and critical intercultural frameworks, it investigates linguistic adjustments and behaviors in multilingual settings.

Findings indicate that group boundaries (ethnicity, language, social status) impact discrimination perceptions and identity negotiations. Despite shared multilingual competence, participants navigate asymmetries in language proficiency, social prestige, and power dynamics, leading to misunderstandings and nonaccommodation that reinforce stereotypes. The study also highlights how stereotypes are contested, adapted, or subverted in everyday communication, with some derogatory terms used as expressions of solidarity.

The chapter emphasizes that nonaccommodation reflects deeper linguistic, social, and power imbalances rather than mere misperceptions. It advocates combining CAT and critical discourse analysis to better understand intercultural communication in discrimination contexts. This dual approach provides a broader conceptual toolkit, offering richer insights into discrimination dynamics and the emotional impact of nonaccommodative behaviors.



1 Analyzing nonaccommodation critically

Our chapter intends to shed light on how group boundaries and affiliations play out in how especially verbal discrimination is perceived, reacted to, and also “put into practice”. We invite readers to reflect on notions of ingroup versus outgroup, their significance for what is said, and how it is talked about in a small group of five men of North African and German backgrounds. North African men living in Germany talk about their experiences of being discriminated against. We draw on a careful analysis of a group conversation among these men, three originally from North Africa and two of German background. Our theoretical interest revolves around the question of how speakers adjust to one another when more than one linguistic code is involved. Intercultural communication is inevitably more prone to misunderstandings and misperceptions. These threaten the functioning of mutual adjustments of linguistic expressions, styles, speech rate, word choice, and numerous other features of (linguistic) communication (Giles et al. 1977).

Communicating across language boundaries implies that at least one party might be placed at a disadvantage if the conversation takes place in the other party’s dominant language. Often this goes hand in hand with asymmetries in prestige, social status and a sense of entitlement to positions of power. However, in our view, we should not frame our analysis simply in terms of “lack of mastery” of different, supposedly clearly delineated linguistic codes in the sense of distinct languages. We should rather keep an eye on the repertoires available in each case. In this respect, the approach differs from the “classical” work on foreign(er) talk (e.g., Zuengler 1991). We consider this to be meaningful and necessary in order to be able to capture precisely those cases in which shared multilingual competence is mutually assumed by the interlocutors, while they apply the various codes differently in order to occupy and claim discursive positions in intergroup communication.

We need to concern ourselves with the question of how groups are constituted and perceived and what their respective significance is for different participants in the discourse. Therefore, we contrast episodes from different contexts, all drawn from the recorded group conversation. In the main episode, a participant perceived inappropriate communicative behavior by an ingroup member in the Rif region (for further details, see 2). Further insight is drawn from brief episodes concerning nonverbal behavior by members of the outgroup, in this case, in Germany. These latter incidents are small but frequent moments at which group boundaries and expectations to be discriminated against frame the perceptions of this study’s participants: other people’s behavior that is interpreted as

a reaction to one's mere presence as a young male migrant. In these cases, it is not exactly clear what the relevant groups for those involved in the encounters are. Whenever groups are named entities, though, their existence has obviously gained sufficient currency to deserve a label – ethnic, linguistic, cultural, socio-economic or other. Being a member of such a group invites inferences about oneself by others based on their general assumptions concerning that group. Stereotyping is a common and, to a considerable extent, necessary feature (Lakoff 1987) when humans construe conceptual categories such as “Arabs”, “refugees”, and others that we find mentioned in the conversation on which this chapter is based. At the same time, these categories are typically contested and not unequivocal – contrary to their general perception. They are constantly appropriated, rejected, adapted or subverted by members of the respective groups. Their labels are employed for banter or as insults, but their offensive potential can be turned into the opposite, e.g., when derogatory words are used as terms of endearment under the right communicative conditions.

Our study deals both with content-related topics as brought up by our interlocutors, as well as with linguistic norms and their application or manipulation by our interlocutors. Our methodology strives to link both aspects. We choose a specific conversation setting: a group interview on experiences of discrimination that we analyze in-depth relying on categories that are inductively identified in the material itself (Kuckartz 2016, Mayring 2016). We identify particular cases in our data that involve instances of non-optimal communication between the interlocutors. These include examples of experiences reported by the interviewees, but also concrete examples from the recorded conversation situation itself. We analyze these instances following a Communication Accommodation Theory (CAT) framework (Giles 2016).

We suggest the following hypothesis: In intergroup communication, nonaccommodation is not only associated with the interlocutors' incorrect perceptions and interpretations that lead to misunderstandings and unintentional deviations from the communicative maxim of accommodation. Multilingual situations are often characterized by asymmetries with regard to the interlocutors' linguistic knowledge of certain codes, with regard to the prestige associated with the codes, but also with regard to the evaluation of the content-meaning of certain topics.

2 Participants in a conversation about discriminatory practices

The experience of being discriminated against was the main topic of the group interview that formed the basis of this contribution. It involved five participants, three of North African background and two from Germany. In addition to the authors Boutemin and Fanego Palat, two young North African men, Hilal and Lamin,¹ and a German student, Marcus, participated in the interview. Hilal and Lamin were the main protagonists of the conversation that we recorded and analyzed. Hilal and Lamin are from Nador and speak Tarifit (“Rif Berber”), an Amazigh variety used mainly in the Rif area in Morocco (but with a substantial number of speakers across European countries due to migration). Lamin self-identifies as a Darija-Tarifit bilingual due to his upbringing in a mixed family (Lamin [00:04:23–00:05:00]). Hilal describes himself primarily as Berber-speaking,² but has an excellent command of Moroccan Darija, too (Hilal [00:06:28–00:06:40; 00:16:04–00:16:10]).

The participating researchers’ role was to keep the conversation going. The other three participants were asked to tell us about their experiences. Of them, only Marcus – a linguistics student – had received some information prior to the meeting concerning the fact that we were interested in topics related to experiences of discrimination, but also in the way these would be talked about. He had been instructed to steer the topic towards experiences of discrimination, either by contributing examples himself or by asking the Tarifit speakers about theirs. The three non-researcher participants were explicitly invited to discuss the key theme among themselves and to ask each other questions whenever they did not understand or simply wanted to comment.

¹For the participants, excluding the authors, we assigned pseudonyms to keep their identity anonymous.

²When speaking German, Hilal commonly (although not exclusively) refers to his first language as “Berber”, sometimes as “Tamazight/Amazigh”, and occasionally as “Berbisch”. The designation “Berber” is regarded as pejorative by many members of the community, who therefore oppose its use. The variety spoken by Hilal and Lamin is Tarifit, i.e., Riffian. Like in other varieties of the language, Tarifit speakers refer to their language simply as “Tamazight” in their own language. In that sense, “Tamazight” (or [the masculine form] “Amazigh”, when used as an adjective in English) is equivalent to what is often referred to as “Berber” in academic literature as well as in popular discourse. Note that the label “Tamazight” is ambiguous in that it refers to the larger family of linguistic varieties (“Berber”), but also in a more specific sense to a smaller group of varieties used mainly in parts of the Central Atlas mountains. Therefore, we decided for the use of Tarifit, but use other terms according to speakers usage in the conversation, when we quote or paraphrase them.

German was the language used in that conversation, which lasted about two hours in total. Our objective was to create data that could be analyzed on two different levels. On the one hand, we were interested in hearing these young men's stories. Are there recurrent topics? What matters to them? How do they deal with experiences of exclusion and othering that – we assume – all of them will have made? On the other hand, we wanted to obtain data that would tell us about power in language by looking at the conversation situation from a linguistic point of view. For that reason, it was important to us to have a mixed group, with two researchers of different language backgrounds, as well as “native” speakers of German and Tarifit among the participants. How would these differences play out in terms of accommodation and adjustment of one's behavior in a group with different competencies in German? Do their ways of speaking attest to underlying expectations concerning language skills and communicative competence of the others?

Key sequences from the conversation include an episode of a police check during a holiday stay in Nador, Hilal's northern Moroccan hometown. Hilal experienced what he considers inappropriate communicative behavior by a policeman whom he perceived as a linguistic and ethnic ingroup member. He describes the incident, which is then commented on by Lamin. Moreover, the use of derogatory ethnic or social group labels is worth looking at. This ranges from Marcus's explanations concerning examples of pejorative terms that were used – insultingly or provocatively – in his presence and challenged him as a German individual to the subverted use of such labels among members of an ingroup.

Why do we focus on sequences in which the interlocutors deal with (verbal) experiences that they perceived as discriminatory? The reason is that, in these cases, different perceptions of such situations are likely to trigger strong emotional reactions and possibly dissent. In such situations, communication is no longer perceived as adequately aligned according to convergence principles of CAT. When speakers gain the impression that adjustment mechanisms are malfunctioning or, more significantly, wilfully violated, they will develop a strong sense of difference, possibly even adversity. The discussion of such experiences in a group conversation is an important stimulus for creating a metapragmatic conversation. Examples include instances in which Hilal and Lamin evaluated particular situations differently.

3 Conceptual tools for the analysis of nonaccommodation

3.1 Interpretive strategies between CDA and CAT

Our attempt at analyzing this conversation is informed by two rather different approaches. On the one hand, we rely on input from CAT; on the other hand, we try to understand what happened during the conversation through an interpretation that draws on the tenets of critical discourse analysis (CDA) as proposed originally by Norman Fairclough (1995, 2013) and Ruth Wodak & Meyer (2009). Without aiming at a full-fledged contrastive evaluation of these perspectives, we do hope to contribute to a bigger question that challenges both, albeit in different ways. In terms of its central concepts, CAT draws on social psychology: human categorisation and group membership are crucial; so are notions of asymmetry, bias and linguistic dominance. All of these are necessary to understand the dynamics of the conversation we held (both in terms of contents and manner). It is important to bear in mind that CAT as a theoretical framework is not a uniform, entirely formalized theory. It may, at times, be challenging to identify its tenets without making it look overly categorical. As a matter of fact, as a theoretical framework, CAT is fairly adaptive and takes into account the significance of sociohistorical contexts, social settings, cultural contexts with their possibly malleable group affiliations and construal mechanisms of identity that allow for multiple group membership. Nonetheless, it is also important to delineate CAT as a conceptual approach from an entirely open-ended deconstruction or critical approach in sociolinguistics.

A key dimension is the question of to what extent individual identity is perceived (both by the individuals “under investigation” as well as by those analyzing the data) as linked to membership in a group that exists outside the categories established in and through discourse. CAT suggests that social communication is dynamic and that interlocutors’ identities and group memberships may shift and vary in salience both across interactions and within a conversation, (e.g., depending on the topic of the conversation, interpersonal communication can shift to the intergroup level). Central to CAT are notions of ingroup- versus outgroup-communication implying that groups exist as fairly stable, easily identifiable and clear cut bounded categories. How does this relate to notions of fluidity of such categories, fuzzy boundaries, changing loyalties?

CAT and CDA are comprehensive theoretical frameworks. Both pay attention to a broad range of possible features and contextual aspects affecting how meaningful communication evolves in practical interaction. CAT tends to place more emphasis on how communication works as a collaborative effort (or where it

fails to do so) in actual dialogues and conversations. Critical discourse analysis highlights power asymmetries established, but also possibly subverted, in actual conversation.

There is a broad overlap between both frameworks, enabling us as a team of authors to communicate despite different backgrounds in terms of academic disciplines and, accordingly, distinct familiarity with the frameworks and their methodological implications. Our joint venture has, therefore, also been an exercise in testing the compatibilities of both approaches or – where we would find significant differences – the potential benefit of drawing on both contrastively.

Both approaches are deeply data-driven and empirical. All three authors did close readings and re-readings of the conversation, before discussing the material and our respective interpretations. In these discussions, we did not always agree on how to interpret what was going on during the recorded conversation.

The “double-faced” character of language as, on the one hand, our most significant tool and, on the other hand, something that imposes itself upon us and guides us towards different ways of thinking is mirrored by the question of what a relevant group is (as a conceptual, analytical category in CAT, but also beyond). Groups exist as cognitive models, and as such, they are strong, lasting, and seemingly clear-cut (despite being commonly contested). Human beings behave according to their ideas of what possible categories exist and matter. In that sense, accommodation and nonaccommodation are clear mechanisms targeting discernible entities.

With the appearance of what Eckert (2012) labels as the third wave in sociolinguistics, attention was drawn increasingly to mechanisms of stylization and the indexicality of linguistic markers, accompanied by the recognition of how significant language ideologies are in everyday verbal practices (Kroskrity 2010, Spitzmüller et al. 2021). Levon & Mendes (2016: 6–7) warn against an instrumental notion of agency (= “doing linguistic identity”) while recognizing the significance of stance, agency, and the opportunities they afford to speakers to position themselves through ways of speaking. This implies that our linguistic behavior constitutes group membership rather than being a direct function of it (for an in-depth discussion of language and agency, see also Duranti 2005). Where these approaches and CAT meet is the acknowledgement of the significance of human agency, always bearing in mind that agency does not necessarily mean premeditated behavior. CAT concerns itself specifically with how speakers adjust to one another, be it consciously or not. While CAT is not a formal theory, but an adaptive theoretical framework, it offers a somewhat standard conceptual and terminological toolset. These notions have gained currency among those working within the framework, but others may not be equally familiar, which is why we

deem it important to dedicate some space to preparing the theoretical ground in terms of CAT before delving into the concrete examples drawn from the recorded group conversation.

3.2 Speech adjustments and failure to accommodate

Sociolinguistic work has established that the way people interact with each other and the way they adjust their speech depends on “who speaks what language to whom and when” (Fishman 1965). Social variables interacting with each other in complex ways play a significant role, as they shape speech, language and communication (e.g., Chambers 2003, Eckert 2018, Ferguson 1959, 1975, Fishman 1965, Goffman 1964). As Goffman (1964: 133) stated, “[i]t hardly seems possible to name a social variable that doesn’t show up and have its little systematic effect upon speech behavior: age, sex, class, caste, country of origin, generation, region, schooling; cultural cognitive assumptions; bilingualism and so forth”. Group membership is one of those social factors that does not only involve determinants, such as age, gender or ethnicity, but also, as Fishman (1965: 68) argued, is closely related to socio-psychological variables. Depending on the situation, people may belong to different groups changing their register or switching to another language accordingly. The desire to belong to a group or gain acceptance from it also influences speech behavior. Additionally, factors such as interactants’ expectations, motivations and perceptions affect their speech and communicative adjustments (Beebe & Giles 1984, Giles et al. 1991). This implies that interactants not only may adjust their communicative behavior to their interlocutors unconsciously and automatically but also consciously and intentionally (Dragojevic et al. 2016; see also Gasiorek 2016b for a concise overview of research investigating individuals’ awareness of the adjustments they make).

One of the assertions of CAT is that speakers’ adjustments are guided by cognitive and affective motives (Gallois et al. 2005). Cognitive motives concern comprehension and may be associated with needs and desires to communicate effectively: Speakers may converge to the recipients’ speech characteristics or communicative behavior to facilitate comprehension (Dragojevic et al. 2016, Gallois et al. 2005). For instance, in intergroup communication between native and non-native speakers, native speakers may simplify their vocabulary and syntax (Petrou & Dragojevic 2024, Zuengler 1991) to aid understanding. Similarly, speakers may maintain or diverge from their interlocutors to enhance communication (Dragojevic et al. 2016, Gallois et al. 2005). For example, a speaker may diverge from an interlocutor who speaks overtly fast by speaking slowly to urge them to do the same (Brown et al. 1985 as cited in Dragojevic et al. 2016). Divergence may also

serve as a strategy to signal the need for the interlocutor to adjust their speech to better suit the context (Gallois et al. 2005). Additionally, it may be intentionally applied to make a conversation problematic or to deprive (some of the) interlocutors of understanding, for example, by engaging in code-switching (Gasiorek 2016a, Dragojevic et al. 2016) or by changing the code (Petrou 2023). As mentioned earlier, CAT posits that, in addition to cognitive motives, adjustments are also made based on people's affective motives. These are related to negotiating personal and social identities. Particularly, CAT proposes that people regulate social distances through communication in order to establish positive personal and social identities and reach social approval (Dragojevic et al. 2016, Giles et al. 1991). This can be accomplished by converging to one's communicative behavior "to appear more similar and thus more likable" (Gallois et al. 2005: 126). People may also seek to differentiate themselves from others positively. This may happen when they compare themselves to others and find, or even create, dimensions that they perceive as better than those of others (Tajfel 1974). Distinctiveness is accomplished by maintaining or diverging from their conversational partner (Gallois et al. 2005: 126, Dragojevic et al. 2016). For instance, native speakers may switch their register from standard to a dialectal variety when communicating with non-native speakers, not only to make communication problematic but also to mark their distinctiveness from outgroup members (see example 7 in Petrou 2023: 140). Another example of this "psycholinguistic distinctiveness" (Giles et al. 1977) provides the sociolinguistic situation in northern Cyprus. Cypriot Turks maintained their Cypriot Turkish dialect, which is now a prestigious variety, to differentiate themselves from settlers from Turkey in the northern part of Cyprus in light of cultural differences (Kizilyürek & Gautier-Kizilyürek 2004, Petrou 2023).

CAT approaches communicative adjustments not only from the perspective of the speaker but also from the perspective of the recipient. Recipients experience communicative adjustments as *accommodative* when they perceive them as appropriately adjusted *relative* to their needs and as *nonaccommodative* when they experience them as inappropriately adjusted *relative* to their needs (for a recent study, see Petrou & Dragojevic 2024). Recipients may perceive nonaccommodative interactions and speakers as *overaccommodative*, i.e., they are perceived to exceed the required level of adjustment, as *underaccommodative*, i.e., they are perceived to undershoot the required level of adjustment, or as *counteraccommodative*, i.e., they are experienced as to be "psychologically dissociative" (Couland et al. 1988: 32). While accommodative adjustments are positively evaluated, nonaccommodative adjustments are negatively evaluated. As discussed in Section 4, negative evaluations are associated with ascribed motives (Gasiorek & Giles 2012). In intergroup communication, recipients are more likely to ascribe

negative motives to conversational partners who are seen as outgroup members and positive motives to conversational partners who are ingroup members (Gasiorek 2016a). Most interactions with the “sense of “us” and “them”” (Gallois et al. 2018: 308) are intergroup. In fact, interpersonal communication may quickly switch into intergroup (e.g., Gallois et al. 2018) or “be infused with group identities” (Dragojevic & Giles 2014: 30). In our episodes, the ingroup component is strong, and the sense of “we” and “they” prevails. With these conceptual tools in mind, we can delve into the first case, an episode that relates Hilal’s experience with a person that he considered a member of the same group as himself, on the basis of their assumed common linguistic background as speakers of Tarifit.

4 Speaking about nonaccommodation: a conversation

4.1 Angered by nonaccommodation: a police encounter in the Rif

What follows in this section is an example of divergence or nonaccommodation within one’s own group. There are at least two aspects that we deem interesting about this particular incidence.

First, it serves to scrutinize notions of boundaries between groups. This question is of immediate significance for our chapter, because one of its objectives is to contrast views that need to assume linguistic communities as fairly stable categories and, thereby relatively strict notions of group membership with other views that assume more fluid boundaries, agency in sociolinguistic choices and actual construal of linguistic communities by means of language (use), rather than their extra-linguistic existence pre-determined through factors outside language.

Second, the episode is of particular interest because two of the participants in the group discussion that we arranged, Hilal and Lamin, differ as to how they assess the situation. Hilal, who narrates this episode as a personal experience during a holiday stay with the family in the Moroccan Rif region, felt discriminated against by a member of what he perceives as his own speech community, North African Tarifit speakers. Lamin’s attitude is more distanced; he is not personally involved and is calm, in contrast to Hilal, who was noticeably angry when talking about the incident. The episode is, therefore, not only interesting for what it reports on but also for the situation it brings about in the group interview.

Hilal shares an incident that happened to him in his northern Moroccan hometown Nador. Nador’s population is mostly Tarifit-speaking – like Hilal – and has grown rapidly over the past fifty years, largely due to migration from rural areas in Morocco’s northeastern L’Oriental region. Hilal told us that a policeman

from Nador stopped his car. The conversation between both took place in Moroccan Arabic, known as Darija, as the policeman did not accommodate Hilal, who initially communicated in his “mother tongue”, a variety of Berber called Tarifit. The policeman diverged from him by communicating solely in Darija. As we do not know who initiated the dyadic conversation, it is possible that it was Hilal who initially diverged: probably, the policeman addressed him in Darija, and Hilal replied in Tarifit. Regardless of which of the two scenarios transpired, the individual who adjusted his communicative behavior towards their conversational partner was Hilal:

Und dann habe ich ihm gesagt ja, auf Arabisch die ganze Zeit. Am Anfang habe ich meine Muttersprache [gesprochen], weil ich bin so, weil ich rede meine Muttersprache, ich habe Tarifit gesprochen, er antwortete [dar]auf mit Arabisch.

‘And then I said to him, yes, in Arabic the whole time. At first it was my mother tongue that I [used], because I am like that, because I talk in my mother tongue, I spoke Tarifit; he answered in Arabic.’ (Hilal [00:15:55–00:16:18])³

As the extract above shows, Hilal said that he initially spoke in Tarifit “because I speak my mother tongue”. We could posit that his *initial orientation* (Dragojevic et al. 2016), directed by his perceived social identities regarding the policeman, was that the latter would be a speaker of Tarifit like Hilal himself. When he was asked by Axel how he knew that the policeman was able to speak Tarifit, Hilal replied that he knew for sure that the policeman spoke Tarifit when he communicated in Tarifit with another policeman who arrived at the scene later:

Kam sein Kumpel auf einmal kommunizieren sie auf Tarifit. Und das war für mich Diskriminierung. Habe ich gesagt: „Warum hast du nicht mit mir jetzt auf meine Muttersprache gesprochen?“ Er sagte zu mir: „Nein es gibt Gesetze und wir müssten uns an Regeln, nicht Gesetze, Regeln.“

‘Then came his mate, and suddenly they communicate in Tarifit. And that was clearly discrimination in my view. So, I said, “Why didn’t you talk to me in my mother tongue just now?” He said to me, “No, there are laws and we need to abide by the rules, not laws, rules.”’ (Hilal [00:16:35–00:17:14])

³All translations by the authors.

Perhaps there were indeed instructions or rules that policemen should use the Arabic language during their duty interactions with civilians. It is also possible that the policeman used Arabic to indicate that he belonged to or had a preference for the Arabic-speaking group in order to (positively) differentiate himself from Hilal in terms of status – him being a law enforcement agent, Hilal, a mere civilian. We posit that the conscious use of Darija served different affective functions: it regulated the social distance between the two – Arabic reinforced their different status, the effect of which could be the discouragement of Hilal from communicating in a way that might have been inappropriate in the given context.

Although Hilal had a good command of Moroccan Arabic, he experienced the use of Darija as “discrimination”, a clear case of counteraccommodation directed against him. On the other hand, Lamin, who grew up in a mixed family, one parent being Arabic, the other Tarifit-speaking, perceived the use of Darija differently. Just like Hilal, he was convinced that the policeman could be expected to be a speaker of Tarifit in the local setting in the Rif region. However, Lamin gives another reason for why the policeman spoke Darija instead of Tarifit. He considered him simply more open-minded about the choice of language: *Sie sind offener halt* ‘They [referring to the policemen] are simply more open’ (Hilal [00:17:43–00:17:46]). Then, Hamza skeptically noted that if the policeman had been open-minded, he would have talked to Hilal in Tarifit. Hilal agreed fervently and added that the policemen intended to provoke him. He assumed that this was due to instructions from their superiors. This indicates that Hilal inferred negative motives for the language choice of the policeman. To Hilal’s inferred motives, Lamin responded with astonishment: *Warte, er ist Berber, er redet mit seinem Kollegen Berberisch, und dann provoziert er einen Berber?* ‘Wait, he is Berber himself, he talks Berber with his colleague, and at the same time provokes a Berber?’ (Lamin [00:18:35–00:18:43]).

What can we learn from this episode? Overall, the situation does not seem particularly noteworthy at first sight: a policeman stopping a car whose driver did not follow a valid traffic rule. There is more to it, though, because of how the dialogue unfolds. We need to bear in mind that all we know about the incident, we have learned through Hilal’s narration. Yet, even with this likely bias in mind, there are several points we can draw. Some of them concern the construal and perception of speech communities and group identities within the episode narrated by Hilal; others concern the meta-pragmatic assessments and the contrast between Hilal and Lamin in this regard. Let us look at these in turn.

It is important to ask who initially set the scene. Hilal was stopped by the policeman, who must have addressed him first – presumably in Darija – so we can

assume that it was Hilal who “switches” first. While Hilal blames the policeman for not speaking Tarifit to him, we need to bear in mind that Hilal first pushed for a “language reset”, changing to Tarifit when the policeman addressed him. If Hilal had reacted in Darija, the course of the conversation and the outcome – a fine (?) – would have been largely the same, albeit with no indication that the linguistic construal of the respective identities, language choices or other verbal behavior were an issue. Had Hilal reacted less defiantly in Darija, he would still have felt discriminated against. In fact, that is exactly how things turned out: eventually, he gave in and used Darija, complaining in hindsight that everyone has to talk in Darija and not Tarifit.

There is an interesting twist to this. Hilal, who would appear as more prone to navigate different registers, alluding to group membership in different ways, turns out to rely on a much stricter categorization scheme than the policeman. For Hilal, being a speaker of Tarifit is a central feature of people from his native region. In practical terms, Tarifit is used widely, and Hilal can certainly expect a local policeman to be conversant in that language – even before this is confirmed by the policeman talking to a colleague in Tarifit. Identification with a speech community builds an ingroup/outgroup scenario that is taken for granted, perceived as natural and not drawn into question by Hilal. Irrespective of the policeman’s rigorous attitude, his norm-enforcing function and his entire presence linked to state authority, he can be argued to be much more fluid in terms of linguistic belonging than it appears at first.

Of course, the policeman may have chosen Arabic in order to render the encounter formal, distancing himself from Hilal through this nonaccommodative kind of behavior. This is Hilal’s assumption, which he clings adamantly to. It may be the case that Hilal misjudged him in assuming that everyone would rely on their native language as the central identity-construing property, and, consequently, the primary and dominant language to choose in any encounter with an unknown interlocutor in public space. After all, it is perfectly conceivable that the policeman simply used one of several codes, here Darija, automatically for no particular reason, when he addressed a driver who had infringed a traffic rule. Ultimately, considerable uncertainty remains in this respect.

Communication-related research has suggested that people’s communicative behaviors can carry varying interpretations. This is because different recipients may perceive the same communicative behavior differently (e.g., Dragojevic et al. 2016; see also Gallois et al. 2016). People’s perceptions are partly influenced by factors including sociocultural norms and cultural communicative repertoires. As the literature on CAT points out, nonaccommodative strategies are typically defined by recipients’ perceptions (Gasiorek 2016a). How recipients react to nonac-

commodative strategies is determined by the way they interpret the speakers' motives (Gasiorek & Giles 2012).

In this regard, it is noteworthy that Hilal and Lamin assess the situation differently. It is impossible to tell who is right or wrong; that is simply not a substantial point here. More interesting, as it turns out, is what both read into the situation and how they discussed it during our conversation. According to Lamin, the policeman did not necessarily have any intention to discriminate against Hilal through his choice of language. Hilal's and Lamin's differing views may appear to align with their respective stance towards matters of Berber identity, with Hilal perceiving the situation as threatening to his ethnic identity (Bourhis & Giles 1977 for a discussion of relevant mechanisms), and Lamin not sharing this perception, perhaps due to his mixed background.

On a meta-pragmatic level, we may wonder what Lamin intended to achieve when he made those few remarks that he contributed after Hilal had told his story. Are they intended to soothe Hilal while depicting himself as a mediator? Or are they a power mechanism, positioning himself as the more worldly-wise, rational person of the two during our group conversation? Given that Lamin grew up in a family of mixed language backgrounds, this may have been an attempt at portraying himself as someone who defies straightforward ethnic categorization and handles situations of potential conflict better. While Lamin and Hilal differ in how they interpret the police episode, both tell us many stories about incidents in Germany that they experience in a very similar way.

4.2 Microaggression and verbal assault: conventionalized nonaccommodation

In the Moroccan scenario, the relevance of belonging to a particular group and the need to establish which construal of outgroup versus ingroup communication participants in the discourse rely on Hilal's encounter with the policemen (and the differing interpretations by Hilal and Lamin). In contrast, the situation that Hilal and Lamin experience as male North African migrants in Germany appears more obvious. In a sense, one could logically suspect that any kind of boundary work establishing significant categories is somewhat less significant under the circumstances. When social categories such as "member of the host community" versus "(im)migrant" are taken for granted, it might look like there was not much need to establish them discursively. However, even when such categories appear objectively, fairly clearly, and significantly, individuals keep drawing attention to them in discourse. Their obviousness does not render discriminatory acts towards marginalized groups less common. To the contrary, discrimination based

on a categorization of people into – arguably obvious – groups and communities with alleged social identities is common.

Hilal experienced discrimination in Morocco, as he told us, but certainly in Germany, as well – not only from members of the host community but also from individuals who – just like him – had immigrated to Germany. In particular, he recounted an incident (Hilal [00:02:50–00:03:10; 00:07:17–00:10:00]) in which a young man from a central European country asked him to go “back to Africa” (Hilal [00:03:09]). Such experiences cause emotional strain: Hilal described that he felt attacked (*angegriffen*; Hilal [1:41:13–1:42:10]) and voiced that “after a month this was still in my head” (Hilal [01:41:34–01:41:44]). Such kind of discriminatory behavior – a verbal assault – is definitely aggressive. It is hard to imagine how such an offense should occur unintentionally.

Hilal’s reaction is interesting in that it contains more than just anger. Hilal explained in some detail (Hilal, with short interjections by Lamin and Hamza [01:40:40–01:45:45]) that it was his dream to be in Germany and when someone discriminates against him on the grounds of “not belonging” (Hilal [01:42:30–01:42:52]), he feels greatly disappointed and dejected. He points out to us that how he feels about or responds to discrimination depends on various factors. These include the way people verbalize their discriminatory attitude. It also matters who discriminates – are these immigrants themselves, or not? Moreover, Hilal mentions mistakes on his part as a reason that could trigger discriminatory offenses against him, insinuating that there could be reasons that could at least partly justify discriminatory behavior (Hilal [01:43:50–01:44:40]). Where such “reasons” are absent, Hilal states, discriminatory behavior makes him sick:

Wenn jemand jetzt zum Beispiel mich nur wegen AUSsehen und der Sprache oder Hautfarbe diskriminiert, da, da bin ich krank.

‘If someone discriminates, for example, based only on the appearance or the language or the skin color, then I am, then I am sick.’ (Hilal [01:45:01–01:45:14])

Lamin agreed and added:

Manchmal musst du nicht mal was machen, also als Ausländer mit so’ner Hautfarbe, auch wenn du... also meist sind das die Älteren, wenn du auch nur so vor Supermarkt, zum Beispiel, guckt, sieht dich, das Erste, was sie macht, die Tasche nach vorn.

‘Sometimes you do not have to do anything; that is, as a foreigner with such a skin color... most of the times it is the elderly, when you

are in the supermarket for example, she looks, sees you, the first thing she does, the bag to the front.’ (Lamin [01:45:14–01:45:32])

To this, Hilal reacted vividly, stating that he experienced this every day. To this incidence, we want to linger for several reasons. First, because people do not only communicate verbally; communication is also nonverbal. Nonverbal cues, such as clothing and appearance, inform interactants about their interlocutors’ group memberships and social identities (e.g., Giles & Maass 2016, Keblusek et al. 2017). What Hilal and Lamin regularly experience due to their physical appearance is in line with findings of other research dealing with experiences reported by immigrants/non-native speakers living in Germany (Petrou 2023, Petrou & Dragojevic 2024).

Both Hilal and Lamin – as members of the same group of male North African migrants – perceive and evaluate the action of moving the handbag in front in the same way, very negatively. Interestingly, members of the host community doing this action did not communicate anything to Hilal and Lamin straightforwardly (for perceptions that were not directly communicated but inferred, see Petrou & Dragojevic 2024). Yet, Hilal and Lamin coincide in how they feel about such situations, as being perceived as a potential threat by outgroup members. Through the lenses of CAT, this could be another incident experienced as nonaccommodative, specifically nonaccommodative in terms of emotional expression or even as counteraccommodative. It can be concluded that due to prejudice based on appearance, members of the host community underaccommodate the affective needs of people with darker skin color influenced by stereotypes they hold about groups of people having specific characteristics. This kind of communication – even if in this case, it is indirect and nonverbal – that ignores or hurts the feelings of the “other” can be perceived as psychologically dissociative and hostile, thus as counteraccommodative.

Other explanations for what Hilal observed – an elderly woman quickly grasping her handbag – are possible. She may have acted for some reason other than fear of being pick-pocketed by a foreign-looking young man. It might simply have been coincidental. Nevertheless, the significance of such incidents should not be downplayed. Both Hilal and Lamin give several examples and stress that it happens every day. The apparent mismatch between judging such incidents as banal, on the one hand, and their frequent experience and perception of hostility, on the other hand, are reminiscent of the debates around microaggressions.

Research on microaggressions has been criticized on the grounds of its subject matter being too evasive. There is a genuine dilemma at work in that case. When those who are affected by microaggressions on the basis of belonging to a particular group, e.g., migrants, point this out to non-migrants, they are typically

met with skepticism. This is an inherent feature of microaggressions. Outsiders, i.e., members of the larger host community, tend to assume that such perceived aggressions in the form of verbal assaults or invalidations are being misunderstood, exaggerated and blown out of proportion by those affected. Often, this is accompanied by the assumption that the latter are overly sensitive.

The dilemma is that those relying on stereotypical notions, even if inadvertently, are not usually questioned about their actions or utterances. Lamin and Hilal both tell us about such experiences. Both are aware of many situations in which they felt they were being perceived as a potential threat by outgroup members. These situations are usually not drawn to the level of conscious consideration by the outsiders, in other words, the perpetrators, let alone being addressed explicitly. If, exceptionally, they are, the exculpatory mechanisms – as mentioned above – serve to save one's face. It is much more common for matters to remain implicit and unaddressed. For those targeted by such microaggressions (including entirely unintended acts or utterances that demonstrate implicit categorizations and notions of alterity) this means that they have to deal with the situation choosing from among a small range of options. Possible reactions include downplaying it, ignoring it, dealing with one's anger silently – but only very marginally confronting the other about it. What's more, even if such situations were to be addressed explicitly between those involved, with an intent to clarify matters, this would not undo the boundary between these groups that are assumed as real, natural distinctions by their respective members. If anything, it would enhance them.

In summary, we see that boundary work, often rather inconspicuous yet powerful in establishing societal fault lines, is also at work in settings where the differentiation between groups appears as obvious as in the case of North African migrants in Germany. What constitutes in- and outgroup communication is not a given; it follows pervasive mechanisms in communication and interaction at large. Hilal and Lamin describe this quandary as deeply saddening – sickening, even. The subtle incidents like someone grasping their bag in the supermarket leave little room for addressing this; being coerced to remain silent about it explains what Hilal and Lamin describe as saddening or sickening. With explicit aggression, the kind of verbal assault that must necessarily be understood as intentionally offensive, matters look a bit different. Looking at named categories of groups, including those labeled in very derogatory terms, is another component of what constitutes experiences of discrimination. We turn to them in the following section.

4.3 The substance of verbal offense: ethnophaulisms and endearment

As indicated above, inter-group communication triggers social comparison driven by the desire to differentiate oneself positively from outgroups. Ingroup favoritism may lead to ascribing unfavorable traits and characterizations to the outgroup. In fact, Keblusek et al. (2017) speak about commonly occurring derogatory labels or ethnophaulisms, which they describe as linguistic markers of hostile attitudes toward the outgroup. Derogatory labels are used to belittle and attack the reputation of outgroups. This is commonly achieved by drawing on features associated with the outgroup that are perceived as negative, in contrast to highlighting aspects deemed positive about one's own social identity, for example, in terms of religious beliefs. For instance, Christians and Muslims may apply terms such as "heathens and infidels" to one another, depicting the respective other group of people as nonbelievers (Keblusek et al. 2017: 637). Conceptual metaphor and metonymy are common mechanisms through which words acquire new meanings (Murphy 2010). These, also serve as language tools typically used to portray ingroups' perceptions and evaluations of outgroups. Among them food and animal expressions are copious (Keblusek et al. 2017, Haslam et al. 2016).⁴ For example, Americans call French people "frogs", French call English people *les rosbifs* 'the roast beefs' and Italians "*les macaronis*" (Data from an interview with a French-speaking sojourner participant in Germany; Petrou, 2023).

It did not take much effort to prompt the participants in our group interview to tell us some such labels marking intergroup relations, used for members of the outgroup. Marcus explains his reaction to being called *Kartoffel* 'potato' or *Alman* (original Arabic 'German', now borrowed into migrants' varieties of German), or overhearing people using these terms that evoke negatively valued attributes associated with stereotypical Germans, such as being rigid, narrow-minded, smart-alecky, humorless.

While ethnophaulisms in the narrow sense are coined by one group to refer to another and portray its members in a negative light, a different type of abusive language criticizes what is thought of as a disloyal attitude towards the ingroup. In France, Africans who show a decidedly positive cultural or political stance towards France are sometimes labeled as "bounty" by other Africans, based on

⁴Interestingly, food and animals are also used in argot or so-called "secret languages" where ingroups engage in a deliberate change of meaning of words so that they won't be understood by outgroups by applying tools such as metaphors and metonymies – often in correlation with components such as comparison and experience (Petrou 2020). For instance, in Turkish argot *angoraki* (< gr. 'small cucumber; cucumber') denotes 'stupid; stupidly naïve', *kuzu* (tr. 'lamb') denotes for example an 'inexperienced or immature person, young girl' (Petrou 2020).

a coconut-filled, chocolate-glazed candy bar with that name: black on the outside, but white inside (French-speaking sojourner, interview data, Petrou 2023). Keblusek et al. (2017: 639) mention similar cases from North America: “coconut” for Black individuals, “apple” for Native Americans when individuals would associate themselves culturally with the American mainstream, while other members of their alleged ingroup use such labels to express their disapproval of what they regard as cultural betrayal.

We have not really noted any such terms during the interview, and in fact, we have not mentioned them in informal conversations before or after the recording device was switched on. What we did note, however, were several labels that could carry rather different, seemingly contradictory meanings. Connotations of the designation *Araber* (German for ‘Arab’) appear to depend largely on the context in which it is used. There is nothing inherent in the word that would make it offensive as such. In many instances, Hilal, who is usually adamant about being an Amazigh in terms of culture, ethnicity and language, would not object to being called an Arab. In other contexts, Hilal experienced being called an Arab as inappropriate. Pejorative meaning is not an inherent property of the word. It is the assumption Hilal makes about why the label is used to refer to him that affects his reaction to it. Whether it matters or not depends on the intention that Hilal ascribes to those using it. Accordingly, it may work as a hurtful or provocative label, or end up being a moot offense.

Lamin also talks about an ambivalent term. In Tarifit and other Amazigh varieties *aberkán* means ‘black’. Lamin points to his dark complexion and explains how he was called *aberkán* as a young child in school (Lamin [00:23:55–00:24:40]). The label remained and turned into a nickname for him. As such, the term was not used in a demeaning manner despite the negative connotation it carries. This affected him as a child, which he remembers quite vividly. When we talked about how certain terms referring to ethnic groups, social identities or personal properties of a person can turn into abusive language and attain a function as swear words, he would refer to skin color in particular.

Stigmatized groups may use social creativity in various ways to positively influence the way they are viewed. This can be achieved by causing revaluation of negative labels (Galinsky et al. 2013a,b). A well-cited example of this process is the “Black is Beautiful” movement, which was an attempt at changing the negative connotation of Blackness (Galinsky et al. 2013a, Keblusek et al. 2017). Another act of reappropriation is the use of derogative labels by the stigmatized or minority groups themselves, e.g., the use of the term “queer” by some, but by no means all, LGBT+ people.

The playful use of *Kartoffel* or *Alman* (briefly discussed by the participants during the conversation, [00:57:54–00:58:06; 00:01:03–00:01:58; 00:10:00–00:11:18]) in comedy shows, initially and mainly by verbal artists with ties to North Africa or the Middle East, appears to catalyze such use even as an ingroup term at least in a satirical manner or self-mockingly among Germans. (On a side note, Lamin jokingly mentioned Rap and Comedy as the two arenas where being North African might be grounds for positive discrimination in Germany [00:43:23].)

Whether an insult works or fails is context-dependent. This implies, of course, that these terms can depend on which two (or more) people use them. Hilal and Lamin greet each other with a resounding *Hi, du Flüchtling* ‘Hi, you ol’ refugee’ [00:57:23–00:57:53]), which works as a term of endearment among these North African men. The German word *Flüchtling* has become connotated negatively over a relatively short time-span and is often avoided now, using *Geflüchtete**r, a nominalized participle, instead. The non-offensive use of originally offensive terms can be instances of banter among mock-fighting opponents, but also actual terms of endearment that can be used among peers following a seemingly subversive, yet ultimately conventionalized strategy. This has long been known also from other contexts. Upper middle-class men in white collar jobs running into old friends, whom they ostentatiously refer to as “(you) son of a bitch”. Probably not all offensive vocabulary qualifies for use in such situations. The word “son of a bitch” does, which indicates a certain degree of conventionalization despite the fact that the two men would probably assume that their choice of word is an individual thing among them as intimates. The use of a term like “son of a bitch” in such contexts requires the presence of others, a third party, in order to work properly. It is questionable that the men would greet each other like that if they met while hiking in a forest with no other people around. They are part of a performed demonstration of one’s social links, positioning oneself with regard to the other.

Such terms are functionally ambivalent then. Their use as terms of endearment requires a canvas, a place for the projection of playful behavior. A stage. They are performative emblems in a fairly literal sense. This potential for ambivalence underscores the need to move away from dyadically oriented research. Speakers act not only according to their immediate interlocutor’s role in communication; they monitor themselves and factor in ingroup practices, expectations, norms, and aesthetic preferences.

We assume, but cannot be entirely sure, that a performative motivation also underlies what happened to Hilal at his workplace one day. A regular customer shared his negative views on foreigners in Germany. That customer’s xenophobic statement right in front of him as a foreigner, actually addressing him directly

in the conversation, is hard to interpret for Hilal. The customer had always appeared to like him, they had often chatted, they had known each other for a long time. Does this mean, the customer exempts him from the group of foreigners about whose presence he complains? Difficult to imagine because the customer knows Hilal so well, and he can hardly have overlooked the fact that Hilal is a young man who grew up in Morocco. So, is it intended to be provocative? The customer leads Hilal into a discursive double-bind: if Hilal ignored the statement, he'd be complicit; if he started arguing, he'd step into the trap of accepting being associated with that group as a meaningful categorization schema.

Marcus' account of being discriminated against in the student cafeteria failed to spark much sympathy among the other conversation participants. This may very well be an effect of him being the weakest participant in terms of conversational space, impact, and attention that others would accord to him during the recording session. Marcus started the conversation resolutely, telling us about three young men who were trying to jump the queue and called him "Alman" – a term that he experienced as offensive:

Drei Türkischsprachige haben mich als Alman beleidigt, weil, das war halt in der Mensa und die haben sich halt vorgedrängelt, und ich hab halt gemeint, sie sollen da hinten sich anstellen, weil die Mensa halt voll war. Und dann haben die halt gesagt, ja, Scheiß Alman immer so die Regeln beachten, so ... Deswegen ...

'Three Turkish-speaking guys offended me calling me Alman, because, well, that was in the student cafeteria, they jumped the queue, so I am like get into the queue at the back, because the cafeteria was full. And then they are like, yes, fucking Alman always following the rules, like that ... that's why...' (Marcus [00:01:28–00:01:44])

Hilal and Lamin looked at Marcus skeptically. Apparently, they disagreed with Marcus on whether to interpret this as discriminatory behavior. Without explicitly saying anything, they conveyed their impression that this may have been insignificant banter. Marcus relativizes his initially strong statement imbued with genuine anger that one could tell from the tone of his voice. In a loud, but more conciliatory voice, he says:

Ich mein, ok, vielleicht ist es so'n Alman-Ding, dass man so sich halt hintenanstellt, und nicht nur Ausländer und Migranten drängeln sich vor, Deutsche drängeln sich auch vor, ich kenn auch [zu sagen] (unclear) er soll nach hinten gehen und gleich beleidigt werden ... iss schon komisch, eigentlich kennt man das nicht.

‘I mean, ok, maybe it is an Alman thing that one respects the queue, and not only foreigners and migrants jump the queue; I also know [unclear] but ... getting insulted for telling someone to join the queue ... it is weird, usually one doesn’t experience such things.’ (Marcus [00:01:52])

Hilal seizes the opportunity to tell us about his own experiences. He steers the conversation in the direction of a discussion of lexical meaning and etymologies. With regard to what Marcus experienced as an offense, Lamin cuts in: *Aber er ist Deutscher!* ‘But he *is* German!’ (Lamin [00:10:19]), implying that the term is actually neutral in that it simply means ‘German’ in Turkish. By insisting that the term is semantically adequate, he either fails to understand or is unwilling to concede that Marcus’s negative experience is primarily about feeling “pragmatically cornered” in the cafeteria situation: After Marcus had asked the Turkish-speaking men to join the queue, they gave in. Seemingly, Marcus had imposed his will. But the three men managed to make the whole situation about something else than respecting the queue. How was Marcus supposed to react in that situation? If he were to complain about being called an Alman, he would underscore their point – complaining about being called an Alman is very Alman-like behavior. If he were to abstain from reacting to their verbal offense, they would have effectively silenced him.

In the group conversation, we are dealing partly with a kind of common misunderstanding. The speaker’s motives are not understood or interpreted properly. Marcus’s use of modal particles is significant in this regard. He frequently adds *halt* to his sentences, which signals that he is aware of possible objections to his “claim of being discriminated against”, but appeals to the listeners to show sympathy for his position. The modal value of *halt* is complex. There are various layers of meaning to it, and its pragmatic function is not comprehensively captured by this short description. However, it suffices in the current context to make the central point, namely that Hilal and Lamin failed to understand Marcus’s intentions. It is not simply a misunderstanding but involves an instance of failed accommodation. Marcus’s very frequent use of *halt* is also intended to make his way of speaking more accessible, less formal, and closer to an encounter outside the university. The interpretation of modal particles in informal registers is fairly complicated, though, and fails the accommodative strategy he intended to pursue.

This happens against the backdrop of two possible explanations concerning especially Hilal’s, but also Lamin’s reaction. Either they did not understand (then there is no reason to be upset), or their failure to react empathically in a more accommodative way is interpreted as intentional nonaccommodation. Ultimately,

Marcus's explicit attempt at fixing the communicative misunderstanding fails. The topic is aborted; Hilal and Lamin take the stage and turn to their own discriminatory experiences. Marcus takes on a more passive role, a little annoyed and a little disappointed. Later, he remains fairly silent, cautious, and slightly marginalized in the conversation. Being a native speaker of German might have afforded him a communicative advantage. Yet, the framing of the conversation in terms of experiences of discrimination made the situation difficult for him, given his status as "non-migrant". His silence does not figure in the transcriptions. It is, therefore, hard to pinpoint where his reservation is motivated by positive intent to listen to others, politeness, or withdrawal from the thematic thrust of the conversation. At that level, the fact that two of the authors were present as interlocutors but also as critical observers enriches interpretations that would have been more restrained in the case of an analysis based solely on a narrow transcription of the recording. We believe that what Hilal and Marcus experienced relates to the most powerful mechanism behind ethnophaulisms. Their use, together with the strong meaning they carry, came into being in particular sociohistorical contexts. They are obviously offensive, serve as powerful insults and can affect individuals both collectively and on a personal level. Yet, even in our very cursory treatment of explicit derogatory labels, we were able to show that matters are more complex than that. Ethnophaulisms build on what is regarded as the Other's negative attributes, but rather than explaining the Other, they reflect an ingroup desire to differentiate oneself from the outgroup. But they can be subverted, either when individuals adopt them as self-designations among peers or when used in other performative functions, for instance, in staged performances or in conversations across group boundaries when their offensive denotations are canceled by the appropriate social conditions. In fact, their use can enhance social ties because metapragmatically, their potentiality to be used in such contexts signals robust social bonds – running a relatively great risk of miscommunication, though. Jokes may easily fail, humorous provocations can cause misapprehension, and ingroup use of such terms possibly still spark negative feelings among addressees – a fine line.

5 Closing the conversation: nonaccommodation and critical observations on agency

With our chapter, we pursued three main interests. A central descriptive aim was to document an open conversation on experiences of being discriminated against, as narrated primarily by male migrants from North Africa. Secondly, we wanted

to push our methodological approach into a more multilateral conversation in a group. We were hoping for insights to emerge from the fact that the participants would react to each other in more varied ways, given that their constellation was mixed in terms of social identities, cultural and linguistic backgrounds and roles in the research process. Finally, our contribution was motivated by a theoretical concern: our interest in contemplating how CAT and critical frameworks relate to one another, hoping for mutual benefit. Where do we stand with regard to these three aims? In this closing discussion, we shall try to address this question in reverse order – theory, method, data – because we would like to end the conversation by evaluating the voices of those who shared their experiences with us.

A close reading of the group interview that forms the basis of this chapter and its fairly narrow transcription prepared the grounds for a description in terms of the central concepts of CAT. The different episodes that we zoomed in on provide empirical support for CAT. As a heuristic tool, framing the various situations that were narrated by the three young men in terms of intergroup scenarios afforded analytical dimensions that proved useful, such as paying attention to the granularity of identity perceptions (individual or social?), or distinguishing between ingroup versus outgroup interaction. In the narrated events, these categories turned out to be meaningful and could be accessed, although the original communicative situations portrayed in the narrations were not directly observed by us as researchers nor by the other participants in the conversation. This is not necessarily a drawback. In fact, the discussions that followed the narration of individual episodes highlighted the most significant properties relying on ideas and notions that lend themselves to an understanding in terms of CAT, e.g., when Hilal and Lamin disagreed on how to assess particular roles and motives in the police episode. This underscores how intuitive a great number of the proposals in CAT as a conceptual framework are, including the fact that it takes into consideration subjective dimensions. People react to communicative behaviors as they perceive them, which is not necessarily identical to observable communicative behaviors. What's more, perceptions and interpretations of communicative behaviors may differ greatly among interlocutors.

The police episode indicates that how we evaluate social interactions and our conversational partners depends not only on our idiosyncratic characteristics but largely on our group membership and the relevant group to which we believe our conversational partner belongs. This is an important point – alignment does not happen automatically but depends on speakers' expectations, world knowledge and assumptions concerning one's interlocutors. In that sense, group

membership is as much presupposed as it is contested, denied or renegotiated in communicative events.

Communicative needs and desires may call for speech adjustments (e.g., a native speaker adjusting their speech so that they are understood by a non-native speaker; using the right code, e.g., standard variety vs. regional dialect, high/prestige language vs. low language), but they also involve affective needs. Acknowledging affective needs may involve something as simple as responding to a greeting. The policeman's unwillingness to adjust and shift to Hilal's preferred language is a clear violation of Hilal's affective expectation and need, based on what, to him, is a fundamental issue in terms of social identity and belonging, and therefore sparks strong emotional reactions.

During communication, people negotiate personal and social identities. Conversational partners or even "silent speakers" (see the episode in Section 4.2, the bag in the supermarket) often categorize the Other based on stereotypes rather than on actual qualities of an individual – their personal identity – and/or of their group, in other words, their social identity. When that happens, the communicative event is perceived as nonaccommodative, as it does not meet the needs and desires of the recipient; in case of particularly confrontational behaviors (involving, for example, discrimination and hostile communicative practices), as counteraccommodative. It is important to stress that this kind of counteraccommodation does not require the person who causes it to act consciously: Counteraccommodation is not the same as an intentional offense, as illustrated by the pain caused by specific nonverbal reactions of someone to another person's mere presence, based on harmful stereotypes. They are psychologically dissociative. Of the three kinds of interactions that this chapter illustrated, the use of abusive terms and ethnophaulisms appears as the clearest case of such psychological dissociation. Shouting at someone "Go back to your country!" is certainly intentional, hostile, and counteraccommodative. Yet, the use of derogatory language among peers can work differently. Slightly surprising, albeit not uncommon, are instances of allegedly derogatory expressions that do not work as an offense in a particular environment and conversational encounter.

Especially with regard to such apparent dissonances, we believe that a critical analysis of the speech event that we recorded can add significantly to our understanding of additional layers of meaning. The context of a group interview has proved helpful, because any dissonances, incidents of failed communication and nonaccommodation would not simply be reported by an individual interviewee, but also discussed at a meta-level in the group. The relative heterogeneity of the group did not only add different viewpoints as in a panel discussion. It helped a long way in making the conversation natural and meaningful to all participants.

Of course, such a format is not without its challenges. Often, answers were provided that did not respond to the questions asked. Conversational maxims were not always followed. In this regard, our group discussion resembled everyday communication perhaps more than an interview format.

Our decision to form a group of participants who would share some, but differ in terms of other attributes that are significant in terms of identity construal meant that the participants had to increase their efforts in figuring out who would understand what in terms of their respective commonalities and differences. The constellation enabled a conversation of shared responsibilities and a discussion of issues that are relevant to the participants at a meta-level. At the same time, it brought to the fore the emotional impact that the reported incidents of behavior that was perceived as discriminatory had on the participants.

In social interactions, people have expectations, desires and intentions. These influence the way they communicate and the way they interpret communication. All the interactions we had were intergroup, implying a constant game of approval and rejection. Being discriminated against, or rather having the perception that that is the case, has negative consequences not only because social distances are reinforced but also because receivers are called to face situations and behaviors that lead to emotional burden and distress.

Contrary to what one might expect, dealing with the anger that can be caused by nonaccommodation does not necessarily work along an intensity scale from overaccommodation to underaccommodation, all the way to outright counteraccommodation. Even an outright insult, despite its negative intent and the discomfort it causes the addressee, may be easier to handle than other forms of nonaccommodation. The contributions to our conversation by Hilal, Lamin and Marcus all coincide in that they show quite clearly what is most vexing about nonaccommodation and its interpretation as discriminatory behavior: a sense of powerlessness, lack of choices of action, being effectively silenced and thereby having one's agency curtailed.

The context of the group conversation was artificial. Not all of the participants had known one another before. The recording session took place in a somewhat sterile meeting room on the university premises. The participants found themselves in a situation that imposed a generally calm, controlled and respectful interaction. Still, subtle power play in terms of how discursive positions were built during the conversation could be observed. Interestingly, the power asymmetries did not follow the obvious cultural or linguistic boundaries represented by the participants.

Overall, noticeable nonaccommodation did not occur frequently during the group conversation that we recorded and analyzed, probably because of the con-

trived context of data recording in a university setting. So, one may wonder whether the approach of recording speech events in such “semi-natural” conditions is fruitful then. We believe it is because of certain unexpected observations – e.g., nonaccommodation among (arguably) ingroup members according to different levels of proficiency.

CAT proved particularly helpful with regard to those portions of the conversation characterized largely by dialogic interaction between Hilal and Lamin. By then, we had recorded the conversation for about fifteen minutes. Their conversation (mostly a dialogue at this stage) seemed genuine, with interruptions, contradictions, and opposition to what the interlocutor said. It was respectful, though. After Hilal ended the rather monologic narration of his experience in Morocco, the conversational chunks remained fairly long; turn-taking did not accelerate too much. Lamin remains fairly calm but talks back to Hilal, speaking in a more controlled (and possibly therefore closer to standard) way in German. Hilal is angered and trapped by Lamin’s skillful use of a question strategy in order to make his point about the policemen (possibly speaking Darija rather than Tarifit for no particular reason): *Die sind offener [...], können halt beides, Arabisch und Berbisch* ‘They are more open ... they simply know both, Arabic and Berber’ (Lamin [00:17:50]). Hilal insists it is because of the rules that the policeman mentioned and asks Lamin provocatively: *Weißt du, was Regeln sind?* ‘Do you know what rules are?’ (Hilal [00:18:14]). But Lamin turns the strategy around, using a sequence of rhetorical questions himself:

Warte, er ist Berber, er redet mit seinem Kollegen Berbisch, Und dann provoziert er einen Berber? Wegen Regeln von seinem Chef – der ist Araber oder Berber?

‘Wait, he is Berber, he uses Berber with his colleague, and then he goes on to provoke a Berber? Because of rules laid out by his boss? Who is Arab or Berber?’ (Lamin [00:18:37–00:18:52])

Hilal claims the boss is definitely Arab, but Lamin counters, *Also man weiß das im Vorhinein?* ‘Oh, one knows that in advance?’ (Lamin [18:52]), discrediting Hilal’s account forcefully with his rhetorical questions.

At that stage, the conversation is characterized by playful one-upmanship. It is extremely hard to tell whether Lamin’s conversational advantage is linked to a possibly better command of German, to a situational advantage, or to greater communicative skill, which may but does not have to be tied to different degrees of proficiency in German as a language that both of them learned only as adults. Hilal is emotionally more involved because he talks about a personal memory

that caused him pain and because he is arguably more sensitive to discrimination on the basis of being Berber, attested to by his statements and fervor throughout the conversation. In contrast, Lamin remains calm and more detached, which gives him an air of superiority at times. The communicative misalignments that we had expected to find across the Tamazight/German divide occur at a different level between Hilal and Lamin. Both of them apply strategies that are not uncommon in conversations among (especially younger) North African men – being provocative, defying one’s interlocutor, challenging their views in a provocative way, shielding oneself behind apparently innocent questions and sometimes explicit use of excusatory formulae.

Such communicative situations require a dual perspective. Like in this case, it is often hard to tell when we are dealing with (possibly unintended, yet inappropriate) nonaccommodation and when the interlocutors’ statements break conversational maxims of collaboration on purpose. In our case of a contrived conversation in a university setting, certain limitations may have affected the richness of the conversation texture. We hope to have been able to show nevertheless that there is added value in adopting a dual perspective, drawing on CDA and CAT. It is hard to pinpoint where one of the frameworks would work better and prove more beneficial to the interpretation. Given the broad overlap in terms of their general tenets, we believe that remaining somewhat eclectic in this regard adds to the interpretation by broadening our toolset and enhancing conceptual awareness in what is ultimately an ethnographic approach resting on two theoretical pillars.

Abbreviations

CAT Communication Accommodation Theory
CDA Critical Discourse Analysis

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Chapter 3

When words destroy worlds: Online hate speech against religious minorities as harm

Kyriaki Topidi

This contribution is concerned with the ways online hate speech against religious minorities is conducive to harm towards the groups targeted in both individual and collective terms. It considers in particular how language use can operate as an obstacle to identity formation and a force of oppression against religious minority groups, when used as an instrument of violence. Beginning with an exploration of what online hate speech against religious minorities looks like currently, the analysis will initially focus on a socio-technical analytical framework to interpret online hate speech as harm targeting identity formation and as a persisting factor of vulnerability linked to victimhood. Identity as digital practice combined with the impact of online hate on individuals and entire groups will form the key pillars of analysis. Because of the multi-stakeholder constellation relevant for online content moderation linked to hate speech, the role of technology companies will be then considered within broader regulatory efforts that attempt to map, understand and reverse such harm. The concluding remarks will warn against the use of hate speech towards the creation of social consensus on the acceptability of affronts to the dignity of those with different ethnicity or faith. They will propose instead the reconciliation of cultural difference with structural inequality in the digital space as a strategy against hate speech. The contribution finally will emphasize the need for the deconstruction of histories and discourses against religious minorities that are implicit yet pervasive online in order to reduce the harm(s) incurred.



1 Introduction

Hate speech, as a form of public discourse, has been linked to large-scale stigmatization, discrimination and violence against religious minorities across the globe (United Nations 2022).¹ Hate speech, in these contexts, has often operated as a “precursor to atrocity crimes, including genocide” (United Nations 2022).

Online spaces have facilitated the creation and circulation of hateful expressions to the extent even of providing accessible avenues to publicize and disseminate hate crimes in real time (Laub 2019). As a result, hate speech online has known exponential growth in the last years but still notoriously lacks a universal definition. The Council of Europe’s Committee of Ministers Recommendation defines hate speech as “covering all forms of expression which spread, incite, promote or justify racial hatred, xenophobia, anti-Semitism or other forms of hatred based on intolerance” (Council of Europe 1997). The difficulty in adopting a widely accepted definition stems in part from the fact that it is complex, if not impossible, to set normative standards about the use of language deemed harmful to both individuals and society more broadly. This may be especially the case when an act of speech incites or amplifies violence by one group against another. The violence connected to such speech is often rooted in internalized beliefs and attitudes towards minority or minoritized groups. Existing empirical work analyzing, for instance, the use of hashtags online targeting religious minorities reveals violent and extremist tendencies (Aguilera-Carnero & Azeez 2016 on #jihad). More than that, such usage of language online develops further institutionalized forms of racism and discrimination by demonizing entire communities.

The starting point of the present analysis stems from the growing realization that information and communication, along with the technologies that enhance them, have become essential considerations in democratic deliberations (Szakacs & Bogner 2021) and participation in public affairs as well as integration within diverse societies (Law Commission 2018). Addressing two key aspects from a diversity governance perspective, namely that of the formation of the sociocultural identity of minority groups as well as that of their self-perception and perception by others, the discussion that follows will consider the implications of the lack of interculturality in online spaces. This lack will be illustrated through the growth of online hate speech against religious minority groups. The analysis will explore how hateful expressions against religious minorities within online spaces, understood as a separate category of hate speech from a regulatory and normative perspective, within online spaces, create individual and group harm and at

¹Some of the most prominent historical examples include the Holocaust, the Srebrenica genocide in Bosnia and Herzegovina and the Rohingya crisis in Myanmar.

the same time contribute towards the damaging of social cohesion among groups in diverse societies.

More specifically, by reversing the frame of interculturality within language use, this contribution will consider how violent language use can operate as an obstacle to integration and as a force of oppression against religious minority groups. By sharing and spreading expressions of online hate, a dehumanizing process and narratives of unworthiness of citizenship for designated groups and communities are triggered (Oboler 2013, Awan & Zempi 2020). Beginning with an exploration of what online hate speech against religious minorities looks like currently (Allen 2015, Aguilera-Carnero & Azeez 2016), the analysis will initially focus on a socio-technical analytical framework to interpret online hate speech. Identity as digital practice combined with the impact of online hate on individuals and entire groups (in the form of harm) will form the key pillars of analysis.

Within this frame, and because of the multi-stakeholder constellation relevant for online content moderation (Brown 2020), the role of technology companies will be then considered within broader regulatory efforts that attempt to map, understand and reverse such harm (Chetty & Altathur 2018). Their role within platform governance cannot be underestimated, especially when hate “campaigns” become framed as “identity threats” within such platforms, provoking emotional reactions from users that platforms and tech companies then use for business purposes (Hoffmann 2019).

Accordingly, the analysis will engage with the most salient features and principles dictating the regulation of the digital ecosystem where “content is cheap, attention is expensive [and] profit margin is wide” (Grambo 2019). Normatively, it will be argued that the absence of principles such as neutrality, equality/non-discrimination and transparency as crucial components within the socio-technical context of online hate speech reinforce a process that allows (if not encourages) the transformation of attacks against ideas to attacks against persons through words, both in their cultural and physical dimensions.

The concluding part of the chapter will argue in favor of the reconciliation of cultural difference with structural inequality in the digital space. It will emphasize the need for the deconstruction of histories and discourses against religious minorities that are implicit yet pervasive online. Given how social differences shape the kinds of harm experienced, responses to online harm regulation need to account for the cultural/social context insofar as they shape processes of digital belonging of minority groups and their members.

2 Language as an instrument of violence and oppression in digital spaces

2.1 Challenges to the formation of sociocultural identity of minority groups online: The case of religious minorities as victims of hate speech

The internet and the digital space more broadly enhance forms of cultural belonging and self-identification, while creating opportunities for new forms of religious belonging (Campbell 2010). In simpler terms, the online space serves both as a place for creation as well as negotiation of identities (Cocq 2013: 125). Digital representation, in this context, can be understood in line with a more basic conceptualization of representation as “the cultural practices and forms by which human societies interpret and portray the world around them and present themselves to others” (Cloeke et al. 2005: 12), only applied to the digital space. Following this understanding, digital self-representation creates and reflects reality insofar as it reacts to prevailing power relations (Helander 2014: 327). Hate speech disrupts self-identification processes online by causing harm to individuals and/or groups victimized due to aspects of their identity.

As importantly, for some religious minority groups, such as Muslim groups, digital religious environments can also become spaces of empowerment and learning (Bunt 2000). New forms of communication between minority community members and renewed opportunities for believing and belonging often come, nevertheless, at the cost of exposure to considerable and disproportionate amounts of harmful content online.² The digital ecosystem can be, at the same time, also used as part of militant jihad by a sub-group of Muslims in strategic ways, mainly for propaganda and recruiting purposes (Köhler & Ebner 2019: 18).³ In these contexts, online discourses are involved in both reflecting but also constructing social reality. The primary aim in the use of these kinds of discourses becomes to construct idealized perceptions of the in-groups as exposed to existential threat and therefore in need of immediate action.⁴ These kinds of

²See for example de Varennes (2020: para. 21), Faloppa et al. (2023), EU Agency for Fundamental Rights (2023: 35 et seq.). See also Topidi (2019a).

³Common methods to do so involve the use of echo chamber effects, the manipulation of algorithms or the hijacking of popular hashtags to increase polarization online and offline. See Davey & Ebner (2017); Farwell (2014).

⁴It should be noted that this is a common process shared with extreme right-wing groups. See Müller et al. (2022: 205–207); Mischler et al. (2019). The main vehicle to execute these identity management efforts relies on “ideologies of inequality” that encourage exaggerated positive linguistic evaluation of the in-group while providing harsh and negative devaluation of the out-groups.

identity construction processes nevertheless lie outside the focus of the present analysis.

Perceiving the digital space as part of the public sphere creates the possibility of reflecting on the pervasive inequalities among categories of online users, taking particularly into account how one's online presence can amplify messages, opinions or ideas. For religious minorities, religion becomes commonly conflated with race and has produced complex counter-reactions in identity politics terms (e.g. research on transnational Muslim femininity as discussed in Falah & Nagel 2005; Dwyer & Shah 2009; Warren 2018).⁵ Those with visible Muslim identity online are targeted, often repeatedly. Stigmatization, "othering" and stereotyping happen through abusive and provocative language, including offline threats, against the victims and their families. As a result of the effect of such repetitive targeting, the line between the offline and online impact of hate speech becomes blurred for them, especially in connection to intimidation and abuse (Awan & Zempi 2015b: 6). Hostile comments, racist posts, memes and images, often circulated through fake ID profiles, constitute the basic toolbox for hateful online expressions, particularly around "trigger events".⁶ The use of pictures magnifies the range of abuse and suffering of victims online (Awan & Zempi 2015a: 20).

Observing such racist content or being the target of such comments directly invites the inquiry of how online racism is experienced by its victims (Nadim 2023). The conflation between ethnic, religious and racial difference by victims that has been already suggested (Nadim 2023: 5, Garner & Selod 2014) leads to their confusion: In simpler words, it is not always clear to them whether they are targeted on the basis of their religious or ethnic difference. In addition, they experience online hatred on an ethno-cultural basis as inevitable (because it is so widespread), especially for those choosing to make their minority identity visible (Nadim 2023: 9).

Similarly to the offline world, everyday racism is commonly expressed online through subtle and ambiguous experiences of stigmatization (Nadim 2023: 2).

⁵Indicative examples from the British context illustrating the conflation of identity markers, in particular religion and ethnic origin are: "WITH THESE PAKISTANIS WOULD FUCK OFF FOR GOOD"; "Fucking Paki's. Kill them All"; "They all need the lethal injection dirty vile bastards. It is not just paki muslims, all muslims are scum...Bengali muslims, Indian muslims, English muslims etc" (All examples are drawn from Awan 2016).

⁶See for example the #KillAllMuslims twitter hashtag after the Paris shooting in January 2015, targeting the Muslims as a group in reaction to the Charlie Hebdo attacks. The hashtag had been circulated at a low level since 2013 but knew widespread circulation after the 2015 events. The hashtag was later successfully taken over by counter-speakers who moved its focus away from hate (see BBC Trending 2015).

Micro-aggressions, understood as “brief, everyday exchanges that send denigrating messages to certain people based on their group membership” (Sue & Spanierman 2020: 36), particularly affect racialized individuals. They usually take the form of overt abuse online, everyday othering, dismissive discrimination and victim blaming or claiming reverse discrimination by majority group members.⁷ For visibly Muslim users, this signifies that they become cumulatively victimized online in racialized terms (e.g. as “non-white”) while being also considered as “threats” (Bravo-Lopez 2011).

Still, the correlation between hate speech and ethnic minorities is neither a novel nor an exclusively digital occurrence: It has been studied since the 1980s. A study by Greenberg & Pyszczynski (1985) found that perceptions of ethnic minorities are negatively affected by contact with hate speech. More recently, however, hate speech has been linked to the dehumanization of minority groups and found to encourage the physical distancing between groups in society (Soral et al. 2018). Physical distancing inevitably has repercussions for intergroup relations through the development of prejudiced attitudes.

The prevailing hateful nature of speech against religious minority groups such as Muslims online is additionally conducive to the creation of new descriptive norms within online spaces whereby hate against the group(s) in question becomes normalized and as such more impactful (Soral et al. 2020: 4). Against the backdrop of the research thesis that the use of digital media has created the conditions for the normalization of violent language about minorities (Soral et al. 2020), the following section will study the ecosystem of online hate speech production and circulation against religious minorities. Using the diasporic Muslim groups as a case at hand, the effects of online speech on them will be discussed.

2.2 The impact of online hate speech on religious minority groups

A robust body of recent literature has shown the breadth of negative representations of these groups in the case of Muslim minorities in Europe (Awan 2016, Evolvi 2018, 2019, Koo 2018, Moe 2019, Benigni et al. 2017) the breadth of negative representations of these groups but has emphasized less the causes or the impact of such speech from a diversity governance perspective. The latter, which is the lens within the present contribution, raises the question from a socio-legal point of view of how hateful language online can be linked to offline processes

⁷Characteristic examples of tweets that can be construed as micro-aggressions include: “@rushanaraali defending @SadiqKhan record as @Mayorof London I can’t for the life of me think why. Can you?”; “CatSmithMP You still forcing Lancashire non-muslim children to eat halal school lunches for votes?”. Both examples are drawn from Harmer & Southern (2021).

of inclusivity and protection of ethnocultural differences. Religious victimization through online hate speech is built around the deliberate rejection of individual personhood contained in hateful expressions.⁸ These expressions produce anxiety, exclusion, and fear, as well as “shared suffering” for the groups targeted (Walters et al. 2020: 143).

Harm is perceived in the context of the present analysis as “significant emotional distress or physical injury or impairment” but can also refer to affronts to broader societal norms, values and attitudes (Powell et al. 2020: 201). When referring to the use of particular forms of language, it is used to depict other individuals as less worthy by virtue of their religious affiliation and has been used to harass and intimidate victims (Awan 2016: 2). It affects them by marginalizing and demonizing them. In parallel, such harm also defines the experiences of “belonging” within online spaces in terms of inclusion and exclusion for members of ethnic, racial and religious minorities (Antonsich 2010, Yuval-Davis 2006).

In more analytical terms, online expressions of religious prejudice against religious minority groups entail considerable human cost on the victims (Vidgen et al. 2021: 2). For example, in an older 2017 review by Tell MAMA on Islamophobia in the UK, it was found that “fear of victimisation can limit the activity of British Muslims who may avoid using public transport, leaving home, or even leaving their neighbourhoods in which they feel safe” (Tell MAMA 2017: 11). Hateful content additionally affects the mental health of victims, their integration and relations with the rest of society due to their systematic stigmatization.

The impact of harm can be cumulative for certain sub-groups within the minority groups on the basis of age or gender, for instance. Characteristically, women belonging to Muslim religious minorities are affected more heavily by online hate speech. Attacks are extreme and sexualized, creating a silencing effect on them (Ballon & Vikmane 2021). With user engagement connected to vitriolic comments (Wall Street Journal 2018), increase in the usage of platforms leads to increases in targeted advertisement and income for platforms. Such increases, however, come at the cost of digital victimhood, as harmful content has been connected with more use of platforms. Data from the UK, for example, show that Muslim women are systematically victimized to the point where abuse becomes a mundane component of their daily lives (Hargreaves 2015: 33). Verbal abuse is characteristically triggered by the wearing of the hijab or the niqab (Allen 2021: 121), with those wearing them being attacked even more aggressively both online and

⁸See, for example, the online “auctions” organized against Muslim women in India (cf. Nabi 2022). More recently, following the terrorist attack of Hamas in Israel on 7 October 2023, the use of the hashtags #f”islam, #stopislam, #banislam rose by 132% in their use on X (cf. Rose & Davey 2023).

offline. The victims' well-being and autonomy are also affected (Awan & Zempi 2015a, 2016).

Particularly for Muslim communities, Islamophobic content online is also strikingly harmful for their social and cultural capital: It often extends to the offline world in the form of physical violence, discrimination and marginalization (Perrigo 2020). In some cases, such content succeeds in constructing religious narratives that spread fear and anger against religious minorities (Evolvi 2022: 20). These narratives, while initially alternative, through carefully designed social media strategies become mainstreamed and ultimately "normalized".⁹ Depending on the particular context, there is a general tendency within the most-used platforms, such as Twitter (X) and Facebook (Meta), for right-wing populist parties and outlets (or individuals who identify with them), to use their access to large audiences on social media in order to amplify anti-Muslim hate speech.¹⁰

Overall, given the noticeable growth of online hate speech targeting Muslims, by securitizing Muslim communities, online hate speech also sets the basis for serious limitations of the freedom of expression, freedom of association and political participation of vulnerable segments of contemporary European societies (European Commission against Racism and Intolerance (ECRI) 2022: 21). The impact of online hate speech at a group-based level has additional implications: Anti-minority religious online hate speech reinforces group-based divisions and integration processes (Vidgen et al. 2021: 3). In response to targeting and stigmatization, experiences of online discrimination can also contribute to the formation of minority group defensive self-identification mechanisms that are built around "oppositional consciousness". This kind of consciousness can be described as "an empowering mental state that prepares members of an oppressed group to act to undermine, reform or overthrow a system of human domination" (Mansbridge & Morris 2001: 4).

The experiences of such harm remain nevertheless largely invisible, despite being raced, gendered but also classed. This is because the legal definitions of hate speech frame such expressions with reference to a number of common characteristics such as the content, the tone, the nature of the speech, and its targets, but with less reference to its implications.¹¹ Similarly, within regulatory frameworks, recently also adopted at the European level,¹² harm is conceived as a con-

⁹For an empirical demonstration and additional literature references on the question of the type of impact of hate speech on Muslim groups see Schmuck et al. (2017).

¹⁰See the characteristic example of France as discussed in Guerin & Fourel (2021).

¹¹For a fuller legal analysis of the prevailing standards on hate speech see Topidi (2019b).

¹²See only indicatively, the EU Digital Services Act 2024.

sequence of individualized and interpersonal violence but in abstraction of its more sociocultural consequences on inclusion (Gillett et al. 2022). Thus, regulatory solutions may tackle illegal content to some extent but not the legal but harmful types of content.

The efficacy of such legal frameworks is questionable as existing regulatory attempts to reverse harm by prioritizing a vision of content moderation are based on “compensatory individualism” (Walcott 2019). This type of individualism shifts the duty to individual users to regulate their own safety (and visibility) online. In this way, users are asked, for example, to increase the filtering of the content they receive or to undertake identification upgrades to control what they see online. At the same time, platforms and states as co-regulators evade accountability and transparency duties with respect to hate speech. The role of tech companies, however, in allowing for the growth of hate speech is far from negligible.

3 The role of tech companies in spreading hate speech against minority groups

The growth of religious hate speech on social media and major platforms leads to the questioning of how effective policy frameworks and the platforms themselves are in regulating and controlling it. The circulation of harmful content, particularly in the form of hate speech, has been tightly linked in the scholarly literature with the development of extremist language (Awan et al. 2023: 1408). The role of anonymity of hate speakers can be singled out, in this respect, as one of the important factors that weakens any sense of responsibility for or perception of the impact of one’s speech on others (Awan et al. 2023: 1408–1409).

For example, narratives developed about Muslims online present the group as a security threat, a cultural threat or an economic threat (Awan 2016: 9). Visibly Muslim women, in addition, are disproportionately singled out, as mentioned earlier (Topidi 2024).

The aim of this section is to expose the relationship between the digital ecosystem’s governance rules, identity and the social positioning of minority groups online in relation to hate speech and its impact. Inequality, oppression and social injustice are the underlying axes of analysis of the impact of hate speech on religious minorities. Under the pretence of neutrality claimed by both platforms (and legal systems) for a long time, it can be argued that hate speech against religious minorities perpetuates exclusionary policies through the use of online language-engineered violence. In this framework, individuals who either express

themselves hatefully or are the targets of such speech should be considered as actors/agents rather than as mere users. Considering them as actors allows us to reveal the vulnerabilities and eventual resilience of those religious minority groups targeted by hateful expressions (Dale 2005). This labeling is also helpful to illustrate how the digital space does not resolve social stratifications but exacerbates them instead (Zheng & Walsham 2021: 5).

The concept of Galtung's *culture violence* referring to "those aspects of culture, the symbolic sphere of our existence that can be used to justify or legitimize direct or structural violence" (Galtung 1990: 291) is a useful conceptual frame here: Platforms' moderation approaches to the regulation of hate speech against minorities such as Muslim groups contribute to "chang[ing] the moral color of an act from red/wrong to green/right or at least to yellow/acceptable" (Galtung 1990: 292) despite their alleged neutrality within online spaces.

More than that, the prevailing model that platforms use at present to respond to the proliferation of hate speech relies on standard-setting exercises for acceptable speech online. This kind of standard setting is found within platforms' internal community standards/terms of service. Major platforms mention the protection of certain groups based on attributes, characteristics, or categories when explaining their content moderation approaches.¹³ While the language of such rules/standards varies across platforms, there is no specific reference to the protection of minority groups, or any proactive responses to harm that they might experience or have experienced. Rather, all platforms rely on a level of self-reporting and have various rankings on which forms of online violence are worse than others. These platforms, within their terms of service, cover presently, though, the bare minimum of what is required of them by legislative frameworks in force.

Top-down centralized approaches to moderation as framed within terms of service, may reduce hate speech, but at the same time, they can still have a negative, silencing impact on historically marginalized groups. Content removal as well as the ban of users/communities online may also have an immediate impact on harm reduction. Such measures do not address, however, the disruptions to social cohesion and discrimination experienced by minority groups. The lack of transparency in moderation decisions adds a further obstacle to how platforms

¹³ All relevant information related to X's rules can be found at this link: <https://help.twitter.com/en/rules-and-policies/x-rules>. All relevant information related to TikTok's terms of service can be found here: <https://www.tiktok.com/legal/page/us/terms-of-service/en>. All relevant information related to Google's terms of service can be found here: <https://policies.google.com/terms?hl=en-US>.

try to build communities of users based on fairness. Standardized rules of moderation where algorithms (predictably) fail to acknowledge cultural nuance and more sophisticated forms of racism increase experiences of intersectional harm among minority groups in ways that lead to *automated powerlessness*.

In some cases, state regulation becomes an additional layer of normativity (e.g. within the NetzDG in Germany, the Online Safety Act in the UK or the Digital Services Act at EU level). The degree of success of this accumulation of levels of norms remains contested: While on the one hand state regulation may reduce the intensity of hate speech (Andres & Slivko 2023), on the other hand, platforms have the propensity to keep harmful and extreme content online in order to entertain high levels of user engagement and by extension profits from advertising (Liu et al. 2021). This is because hateful expressions have been found to receive higher user engagement (Mallipeddi et al. 2021).

Attempts to regulate online hate speech have highlighted two further important dimensions related to the harm caused to those targeted by them: First, there seems to be a strong connection between offline and online hate. Hateful and harmful content grows “by contagion” as users get exposed to it and normalize it (Beknazar-Yuzbashev et al. 2022). Conversely, lesser amounts of hateful content lead algorithms shaping users’ feeds to less inclusion and reproduction of hate speech. Second, the design of any system of regulation matters: Treating all platform users uniformly within a given regulatory framework creates the incentive for platforms to punish/moderate the content that has comparatively lower impact while showing more deference to higher-impact content. Rather, the type/degree of harm caused would represent a more effective regulatory tool to identify and eliminate hate speech (Andres & Slivko 2023: 3).

When defining harm, in connection to hate speech, platforms tend to adopt limited and subjective definitions of the concept, as already mentioned. Usually approached as physical violence built around notions of danger, harm is represented within platforms’ policies as a narrow, bilateral nexus between a hate speaker and an individual victim, limiting how such harm can be understood in its core and its manifestations (DeCook et al. 2022: 64). And yet the role of platforms within the process of governance of the digital space extends beyond the moderation of content to that of the behaviour of users online. By accommodating racialized and gendered lenses, vulnerable users and minority group members in particular are left without meaningful means of protection online (DeCook et al. 2022: 66).

Fuzzy understandings of harm create the space to exclude minority groups from protection and allow tactical maneuvers from platforms when there is public outcry. Platforms’ understandings of harm are equally non-binding and mal-

leable to different situations (DeCook et al. 2022: 70). Likewise, the hierarchization of harm according to quantitative criteria (e.g., according to the number of times a harmful post has been viewed) is essentializing the more complex ways in which minority group members experience it online. The example of harmful stereotyping online is characteristic: As stereotyping does not necessarily or directly lead to offline violence, it is not considered the focus of content moderation, especially because it is rooted in offline behaviours and social understandings. By removing the cultural context from harm, religious minority groups are exposed to superficial treatment of their digital positionality, often under the pretext that no causal link can be established between online hate speech and offline violence and oppression (DeCook et al. 2022: 72). In other words, the conception of harm is not neutral in its digital dimension, especially when content “moderation can be manipulated to propagate values or cultivate doubt” (DeCook et al. 2022: 75).

Although online hate varies in its circulation across time, context, geography and users, it is worth noting that often a numerically smaller core of extremely active users is responsible for important amounts of such content where the far-right has been very present (Kreißel et al. 2018, Vidgen et al. 2021 for findings in Germany and the UK). This suggests that user-driven approaches to online content moderation should not be excluded, especially in light of the large amounts of content in need of moderation. Community-based moderation models have been additionally explored as an alternative in this direction. They propose to remedy the current uneven distribution of power between platforms and users. By relying on a small and more compact group of individuals to moderate content, these approaches to content moderation nevertheless still presuppose that victims formulate complaints in cases of hate speech (Hasinoff & Schneider 2022).

4 Digital belonging through contextual approaches to hate speech

One of the direct implications of digital harm and victimhood against minority religious groups and their members concerns the interlinked processes of identity building and belonging. The online experiences of vulnerable users, such as minority religious group members that are systematically victimized due to their visible differences, affect their sense of (digital) belonging. *Digital belonging* (Marlowe et al. 2017) is connected to one’s experience in socio-spatial terms between inclusion and exclusion. Such belonging can be critically linked to experiences of hate speech insofar as the latter shed light on how the (un)-making of belonging is performed in virtual environments (Marlowe et al. 2017: 86).

While digital users, often labelled as “digital subjects”, represent “abstractions” of themselves as far as tech companies are concerned,¹⁴ in reality, there has been a wealth of frameworks and discourses that allow us to explore their identity.¹⁵ As identity markers condition identity performance within the internet, they have become necessary to study diversity but also inclusion/exclusion online.

Identity performance online has layers. The shaping of belonging is an inherently intersectional process, related to ethnicity/race, religion, and gender but also literacy, economic status or education level, to name some of the factors. In cultural terms, it is multi-layered and is experienced within specific socio-spatial terms between inclusion and exclusion (Yuval-Davis 2006). The type(s) of identity marker(s) that users put forward as prevailing in each case when expressing themselves online, in circumstances where their identities are multi-layered, depend(s) on the context and content of the digital medium (Pennington 2018: 624). These experiences matter because digital inclusion and social cohesion are explicitly interlinked: Inequality and vulnerability within society is today increasingly conditioned by digital interactions (Marlowe et al. 2017). Digital media and platforms, therefore, tend to reflect and, in some cases, amplify existing social inequalities.

By extension, given how social networks and platforms condition social relationships, identity formation online becomes inseparable from cultural identity (i.e., how one perceives themselves but is also perceived by others) (Cover 2023: 6). The articulation of ethno-cultural identities is additionally of a relational kind: This means that it becomes dependent on the acknowledgement of similarity or difference (Cover 2023: 6). Still, digitization operates against the backdrop of already existing structures of power, hierarchies and imbalances. The deterring use of language, in the form of hate speech, in reaction to digital self-identification processes of minority group members comes at the cost of exclusion from technological networks, considered as “one of the most damaging forms of exclusion” (Castells 2001: 3).

Responses to digital harm issues in regulatory terms, however, are largely technical so far (for example, relying on automated or quasi-automated content moderation tools to prevent/suppress harm), ignoring the social implications of such harmful speech (Gillett et al. 2022, Topidi 2024). By privileging the individual responsibility of users (either as hate speakers or as victims of hate speech) to

¹⁴The abstraction is largely due to the treatment of individual users by platforms and big tech as subjects to which a piece of personal data relates, not as cultural entities. By extension, digital infrastructures adopt in their regard totalizing tendencies, where context and historicity only relate to business-related purposes and behavior (Goriunova 2019: 2–3).

¹⁵See indicatively only Cover (2023).

remain safe from harm, the *datafication*¹⁶ of the circulation of harmful content combined with covert and subjective decision-making on the types of content that can be removed/rendered less visible or searchable online remain ineffective. Characterized aptly as a “surface approach” (Gillett et al. 2022: 8), efforts of platforms and big tech privilege visibility over social change. Typical examples of this approach are the reactive decisions taken by platforms announcing policy updates, conducting stakeholder consultations or those related to the careful release of audits and reports, and the funding of projects in the face of criticism against their responses to harm perpetrated online.

The focus on the removal of individual content suggests that the criteria of recognition and repair of such harm are limited in their perspective and remain largely reactive: Emphasis on numerical thresholds, tiered systems of classification of hate speech or imperfect algorithmic detection tools inevitably lead to the hierarchization of the kinds of harms that merit the platforms’ reactions and attention.

Despite the general reduction of hate speech in some instances, minority groups continue to be impacted disproportionately by centralized approaches to moderation. In practice, hate speech as harmful content creates complex forms of distress (both physical and psychological), marginalization and exploitation of its victims, to name a few (Schoenebeck & Blackwell 2021). Both individual-level and community-level sanctions against harmful content online affect marginalized groups in multiple ways (Gilbert 2023: 23). Therefore, applying content moderation policies without nuance may paradoxically end up eliminating content calling out discrimination, anti-minority speech and oppression while allowing hateful speech par excellence to remain online (Marshall 2021). In such ways, powerful speakers are able to maintain their position in digital ecosystems, while vulnerable speakers are silenced. With racist speech thriving on social media and the evolution of the tactics towards digital harm moving from words to images, emojis and other seemingly neutral practices, it is clear that digital technologies both enable and reshape oppression based on features such as race, religion, gender as well as intersectionally (Matamoros-Fernandez & Farkas 2021: 206). Within this frame, hate speech detection calls for a contextual exercise, where apart from culture, digital interfaces and algorithmic tools, user behaviour plays a crucial role. Overtly abusive, degrading or dehumanizing expressions are only one part of the nexus between digital spaces and structural injustices.

Still, the solution to online hate speech and the harm it provokes does not lie, as big tech companies claim, within content moderation. The latter is a costly

¹⁶Datafication is here understood as “a means to access (...) and monitor people’s behavior” (cf. van Dijk 2014: 198).

and imperfect process but still one that sustains the profit-making profile of tech companies. It is less aligned with the principles of accountability, digital equality and restorative processes on both the individual and collective levels. Removing hateful expressions and occasionally banning hate speakers from platforms for violations of their internal rules are symptomatic of a partial and incomplete understanding of the problem (Salehi 2020).

To remedy the harm caused by hate speech, stakeholders need to account for the multiple axes of domination that prevail within digital spaces. More intersectional approaches to hate speech would reveal the multi-layered oppression experienced by Muslim women online, for example, framed within institutional, structural and political power structures offline (Bivens 2017, Bowleg 2008, Christian et al. 2020, MacMillan Cottom 2020). Given how the online spaces reflect the offline ones, intersectionality can be useful to lay out how online harm and hate speech limit minority (digital) self-representations through a variety of possible constellations including but not limited to patriarchy, white supremacy, sexism, racism, religious prejudice or classism (Topidi & Metcalfe 2024: 44-45). Following Gray's intersectional tech framework, decisions in moderation contexts must account for how religious minorities, along with other vulnerable groups, are adversely affected by uniform guidelines or victimized as visible targets due to their differences (Gilbert 2023: 6). The harm experienced by members of religious minorities requires addressing the victims' needs as they relate to the harmful effects of such speech, while involving the offenders and the communities in the process of restoring social cohesion and the dignity of those harmed. To respond to these systemic and structural shortcomings, design and policies surrounding hate speech moderation require a careful scaling of transparency, accountability and sensitivity to existing matrixes of domination and power differentials (Hill-Collins 1990).

Victims of hate speech are, ultimately, left only with individual resilience remedies to overcome harm caused by exposure to hate speech. Resorting to resistance and resilience strategies, however, suggests the denial of the symbiotic relationship between technology and people in its socio-technical dimensions. At the same time, this denial discards the complex and multiple identities of religious minority group members, especially in the ways that those identities are performed online. The example of Muslim minority women is once more characteristic in this respect: Their faith is used as a targeting mechanism. They are singled out as victims of hate speech due to their visible signs of otherness. Against these attacks, they develop hybrid practices and identities online to bridge their experience of discrimination with the imperative of integration within mainstream (i.e. majority) societies (Mahmudova & Evolvi 2021: 65).

Ultimately, the platforms' language of inclusion, as Hoffmann (2021) argues, has fallen short of providing protection and safe visibility for users. Rather, it is wrapped up in positivist and responsive language that downplays the severity of online harm through limited inclusion. Therefore, the inclusion discourse used by platforms further increases vulnerability which leads to experiences of "data violence".¹⁷ More recent forms of data violence would include the development of surveillance systems that label and classify people in ways that might reproduce structural and symbolic violence towards marginalized groups. Hoffman complicates data violence further by adding algorithmic violence, coined by Mimi Onuoha (2018), to describe how "an algorithm or automated decision-making system inflicts violence by preventing people from meeting their basic needs".¹⁸

5 Concluding remarks: Drawing the barriers of inclusion in digital spaces and the offline world

As offline spaces become blended within online ones and vice versa (Siuda 2021), they create together hybrid spaces constructed around networks which are both decentralized and flexible (in line with Castells's network theory, Castells 2000). These networks are highly dependent on the structures and actions of big tech where an important and constantly growing amount of network-construction takes place. At the same time, it is becoming clearer that Islamophobic online discourses impact offline hate crimes (Levin 2016, Müller & Schwarz 2020). Drawing the two trends together, it can be argued that both online and offline hate speech confirm the internalization of certain cultural discourses propagated, including by some politicians (Burnett 2017). Far-right and populist groups' online discourses function as enabling factors towards the creation of digital ecosystems, reinforcing exclusion (Perry & Scrivens 2018). They do so by promoting narratives of danger and untrustworthiness (Home Office 2020).

Notwithstanding concerning patterns, no strategy, policy or targeted legislative framework that tackles anti-Muslim online harm exists. This may be because the majority of Islamophobic hate crime, including in its digital dimensions, is

¹⁷An example of violence that has been caused by data can be historically reflected in instances where people have been killed because of government storage of data, for example the use of Belgian colonial registration lists of Hutus and Tutsis during the Rwandan genocide.

¹⁸For example, in what Ruha Benjamin (2019) terms the New Jim Code, transportation apps have tracked and coded areas that are most populated by people of colour as "dangerous".

considered “low level” (e.g. verbal abuse) (Allen 2021: 118).¹⁹ Still, the correlation between online hate speech on race/religion with police-recorded religiously aggravated crimes remains positive (Williams et al. 2020), although it is unclear whether online hate speech precedes or follows offline hate crime.²⁰

Understanding the effects of hate speech within digital platforms in the absence of comparable data on their impact on individuals that use them remains a challenge (Democracy and Governance Initiative (DIGI) 2023: 17, Vidgen et al. 2019: 8). Causality between hate speech and hate crimes (i.e. the establishment of a clear relationship of cause between hate speech and specific harms) is also largely missing, especially as online experiences may vary across individuals and the interplay between the offline and the online worlds is blurred (Democracy and Governance Initiative (DIGI) 2023: 20). More clarity on the relationship between hate speech and crimes could enhance the development of social consensus on why reversing hate speech both online and offline represents a worthwhile public policy objective. It could also mitigate the withdrawal and self-censorship of targeted victims from the digital public space.²¹ This kind of clarity is particularly relevant for a number of contexts where hate speech online has been found to be produced and distributed by a limited number of users with the intention to create a distorted representation of public opinion.²²

By neglecting the needs and experiences of the targets of hate speech, but also the socio-technical implications of such kinds of victimhood based on religious identity markets (though not only), inclusion in the digital ecosystem becomes contestable.²³ The ambivalence shown in this respect by both platforms and states ultimately disguises deeper structural processes of division at play among groups based on *de facto* inequalities (Nakamura 2013).

In the end, the effect of hate speech primarily reflects attempts to shape social consensus on the acceptability of insulting people of different ethnicity or faith (Kreißel et al. 2018: 25). This point accords well with speculative findings

¹⁹Far-right, anti-Muslim organizations, such as Britain First, have for example switched their focus on Islamophobia from religion to race in order to “defend” statues and memorials connected to colonialist accusations (Mulhall & Khan-Ruf 2021: 42).

²⁰Other factors such as demographic factors, unemployment rates, etc matter as well (Williams et al. 2020: 112).

²¹See for example in the German context the findings of the GMK (2024), <https://kompetenznetzwerk-hass-im-netz.de/lauter-hass-leiser-rueckzug/>.

²²Indicatively, in a 2018 report, 5 per cent of hateful speech accounts generated 50 per cent of likes for degrading comments in Germany (cf. Kreißel et al. 2018).

²³For more on digital inclusion, linked to both access and use of online spaces, see Candidatu et al. (2019).

that online abuse on mainstream platforms that is serious enough to prompt internal criminal law action is low (Vidgen et al. 2019: 5).²⁴ The prediction of the collective harms at a societal dimension are not easy to quantify either in sociocultural terms. What is, however, already evident is that hate speech of any nature contributes to the suppression of pluralism and inclusivity. In other words, hate speech exposes our societies to a regression of the principles of equality and non-discrimination, including in relation to the protection of minorities and freedom of religion in ways that are threatening to much broader groups than their immediate targets.

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²⁴The findings remain speculative because platforms do not share the amounts of content hosted.

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Part II

Heritage language education in Europe with a special focus on non-official migrant languages

Chapter 4

Heritage language education. A brief legal overview

Rainer Hofmann, Moritz Malkmus & Leonie Östermann

This article provides an overview of the legal framework for heritage language education in the federal state of Hesse, with a special focus on the particularities that may arise with regard to accommodating the linguistic needs of persons with a migratory background, especially of those who wish to learn a non-official language or a language that is considered to be a minority language in their country of origin. The analysis indicates that current legislation does not adequately address the situation of these students. Drawing on good practices identified, e.g. by the Council of Europe's Advisory Committee on the Framework Convention for the Protection of National Minorities, it will be discussed which aspects could be considered (*de lege ferenda*) to design such educational programs in a meaningful way. While not questioning the central importance of acquiring a sound knowledge of the language of instruction, this article argues that students who self-identify as members of certain minority groups and who wish to learn their heritage language, should, under certain circumstances, be given the opportunity to develop this part of their distinct identities, regardless of the formal status of that language.

1 Preliminary remarks

The notion of heritage language education – as is commonly used in other disciplines (Trifonas & Aravossitas 2018: 3) – does not amount to a uniform concept in law. In a legal context, reference is often made to the teaching of “mother



tongues”,¹ heritage languages,² languages and cultures of origin,³ foreign languages,⁴ or minority languages.⁵ While the above terminology encompasses a variety of different educational programs, the following reflections will start by approaching this issue from a linguistic perspective (Mehlhorn 2020: 23, Polinsky 2015: 8) that places the term *heritage language* and its acquisition in relation to its speakers. In this sense, “heritage speakers” can be defined as

individuals who were raised in homes where a language other than the dominant community language was spoken and thus possess some degree of bilingualism in the heritage language and the dominant language (Polinsky 2015: 8).

This diversity, which exists to varying degrees in all European societies (cf. Gogolin 2002, Studer & Werlen 2012), requires the linguistic needs of speakers of non-dominant languages to be adequately addressed in the social environment of the dominant community language. In the field of education, where, according to Cerna et al. (2021: 36), around 12% of students speak a language other than the language of assessment in their home environment, the question arises as to the status to be accorded to these (non-dominant) heritage languages and, in particular, the extent to which states should encourage the acquisition of such languages, alongside a sound knowledge of the language of instruction, which is commonly considered a *conditio sine qua non* for educational success. Providing appropriate answers to these questions seems all the more important given the special relationship between language acquisition and a person’s identity, as illustrated, as illustrated by Edwards (2009), Krumm (2020), and throughout this volume.

When it comes to the organization of heritage language education, three basic models can be distinguished in Europe: The first model, sometimes referred to as the Scandinavian model, is characterized by heritage language programs

¹Cf. Article 3 of Council Directive 77/486/EEC of 25 July 1977 on the education of the children of migrant workers (OJ L 199, 6.8.1977, p. 32–33, European Economic Community 1977); *Modersmålsundervisning*, Chapter 10, Section 7 of the Swedish Education Act (*Skollag*, SFS 2010:800, Swedish Ministry of Education 2010).

²*Unterricht in der Herkunftssprache*, cf. Section 8a para. 3, sentence 1 of the Hessian School Act (*Hessisches Schulgesetz*) in its version of 1 August 1997 (expired on 31 July 1999), GVBl. 1997 I S. 143, (Hessischer Landtag 1997).

³Cf. the French Enseignement Langue et Culture d’origine (ELCO), a program, which has been organized since the 1970s.

⁴Cf. the French Enseignements Internationaux de Langues étrangères (EILE), the successor program, which has been successively replacing ELCO since 2016.

⁵Cf. Article 14 of the Council of Europe’s Framework Convention for the Protection of National Minorities (FCNM, ETS 157, Council of Europe 1995); Article 8 of the European Charter for Regional or Minority Languages (ECRML, ETS 148, Council of Europe 1992).

that are implemented within the personal and financial capacities of the country of residence; a second cooperation-based model relies on bilateral agreements on teaching in the respective official languages, including the financing and secondment of teachers by the partner state or some form of consular teaching; and a third communitarian model leaves the responsibility for teaching heritage languages to the respective communities (cf. Reich 2017: 82, Mehlhorn 2020: 25, Woerfel et al. 2020: 207–211, Hofmann & Malkmus 2022a: 5–12). In the federal state of Hesse, educational policies have led to a mixture of the first and second option, i.e., state-organized and cooperation-based approaches, with the first option gradually being phased out and responsibility for heritage language teaching being increasingly placed in the hands of partner states and their consulates (cf. Köller 2012, Hofmann & Malkmus 2022a: 15–18). This seems problematic, not only because of the need to ensure the quality and neutrality of education, but in particular with respect to the situation of non-official languages.⁶

Against this background, the legal situation of pupils who wish to learn a non-official language or a language considered a minority language in their country of origin, such as Kurdish or Berber, will be discussed below. In particular, the question of whether states are obliged to provide corresponding educational programs will be addressed. This will be followed by some reflections on best practices in minority language education identified by the Council of Europe's Advisory Committee on the Framework Convention for the Protection of National Minorities (ACFC) before concluding with some remarks *de lege ferenda*. Although there is some substantial work on related topics, e.g., by Langenfeld (1998), Schmahl (2004), Medda-Windischer (2008), Gogolin & Oeter (2011), Guliyeva (2013), Palermo (2019), Jacob-Owens (2022), Bayat et al. (2023), the above peculiarities still seem to be an under-researched area of law.

2 Legal considerations

2.1 Domestic law

In principle, the organization of the public school system in Germany falls within the competencies of the federal states (*Länder*) (Article 70 para. 1 of the Basic Law). In the federal state of Hesse, the relevant constitutional provisions for the state school system are set out in Articles 55–61 of the Hessian Constitution. Although there are provisions on compulsory education, educational objectives,

⁶This notion refers to languages that have not acquired official status, even in the states where the corresponding groups habitually reside within the larger population.

religious and ideological denominations, and the teaching of history, the Hessian Constitution remains silent on language teaching in public schools. Consequently, in principle, the matter is left to the discretion of the State Parliament (*Landtag*) (cf. Article 56 para. 7 of the Hessian Constitution).

In August 1997, the Hessian *Landtag* introduced Section 8a para. 3 to the Hessian School Act (*Hessisches Schulgesetz*) (GVBl. 1997 I S. 143, Hessischer Landtag 1997), which stated:

Die Förderung der natürlichen Mehrsprachigkeit erfolgt in der ersten Phase durch Unterricht in der Herkunftssprache, der dem Bedarf und den personellen und sächlichen Möglichkeiten der Schulen entsprechend eingerichtet werden soll. Der Unterricht ist so zu gestalten, daß er zur interkulturellen Bildung und Erziehung beiträgt. In der zweiten Phase kann dieser Unterricht als Wahlpflichtangebot fortgeführt oder die Herkunftssprache als zweite Fremdsprache angeboten werden.

[The promotion of natural multilingualism takes place in the first phase [primary education] through teaching in the heritage language, which should be organized according to the demand and the personnel and material resources of the schools. The lessons are to be designed in such a way that they contribute to intercultural education and upbringing. In the second phase [of school education], these lessons can be continued as a compulsory elective, or the language of origin can be offered as a second foreign language.] (Translation by the authors)

However, only two years later, in July 1999, this provision expired and was replaced by the following transitional provision (Article 3 para. 1 No. 4 of the Act 30 June 1999 (GVBl. 1999 I S. 354, Hessischer Landtag 1999):

Unterricht in einer Herkunftssprache nach dem bisherigen § 8a Abs. 3 des Schulgesetzes kann im Rahmen bestehender personeller Möglichkeiten fortgeführt werden. Dabei sind Schülerinnen und Schüler, die bei In-Kraft-Treten dieses Gesetzes an dem Unterricht teilnehmen, vorrangig zu berücksichtigen.

[Teaching in a heritage language in accordance with the previous Section 8a para. 3 of the School Act may be continued within the framework of existing personnel capabilities. Priority shall be given to pupils who are attending classes at the time of the entry into force of this Act. (Translation by the authors)]

This situation led to the gradual transfer of state-organized heritage language education in Hesse to the responsibility of the countries of origin within the framework of the instruction organized by the consulates. Even if the existing state-organized offers may be continued (*kann [...] fortgesetzt werden*) on the basis of the above-mentioned transitional provisions, the state responsibility for heritage language teaching became a discontinued model (cf. Köller 2012).

Against this backdrop, the Wiesbaden Administrative Court ruled in 2018 that students do not have a subjective right to the establishment of additional capacities for teaching their heritage language (VG Wiesbaden, Urteil vom 13.11.2018, 6 K 1560/18.WI, Verwaltungsgericht Wiesbaden 2018). In the case at hand, the applicant requested to receive heritage language classes at her elementary school in *Kurmanji*, which the Court considered to be a Kurdish dialect.

While the relevant aspects of EU and international law will be addressed below, two observations and one additional remark can already be made with regard to the domestic legal situation: First, the decision of the Administrative Court illustrates that the current Hessian school legislation, as set out in the Hessian School Act and the Regulation on the Timetable for Primary and Lower Secondary Schools (ABl. 2011 p. 653, Hessisches Kultusministerium 2011), does not meet the requirements for establishing a subjective right of pupils to be provided with a specific heritage language course. This is mainly due to the legal design of the relevant provisions, which expressed the legislator's intention not to give rise to any subjective (enforceable) claims and to transform state-organized heritage language education into a discontinued model.

Second, as the Court further states, such a claim cannot be derived from the constitutional principle of equal treatment (Article 1 of the Hessian Constitution; Article 3 of the Basic Law). In its dimension as a right to equal access to school education, the mentioned principle grants a derivative right to participate in existing programs in a non-arbitrary and non-discriminatory manner (*derivatives Teilhaberecht*). Inequalities may be justified – to a certain extent – by reasons of school capacities. In this sense, the Administrative Court considered the different treatment of, for example, Polish heritage language speakers to be justified. Furthermore, with reference to the Federal Constitutional Court's (FCC, *Bundesverfassungsgericht*) established case law (BVerfGE 33, 303, Bundesverfassungsgericht 1972), the Administrative Court pointed out that an inherent positive right to participation (*originäres Teilhaberecht*) in education is limited to the existing capacities and is therefore subject to the proviso of the possible (*Vorbehalt des Möglichen*). According to the Court, this entails that the legislator (and to some extent the school administration) carries the primary responsibility to

decide on the allocation of available resources. Hence, the principle of equal treatment does not support any claim to design state education in a particular way.

Following the decision of the First Senate of the FCC of 19 November 2021 on the so-called “Federal pandemic emergency brake II” (*Bundesnotbremse II*, BVerfGE 159, 355, Bundesverfassungsgericht 2021), the Administrative Court’s interpretation of constitutional equality requirements in education can be considered broadly confirmed. Although the FCC addressed a different set of facts, namely the impact of anti-pandemic measures on school education (cf. Donath 2023), the legal dimensions of the right to education, set out by the FCC, are essentially congruent with the basic line of reasoning adopted by the Wiesbaden Administrative Court.

Third, the question arises as to whether the domestic legal situation should be assessed differently in light of the 2018 amendments to the Hessian Constitution. According to the newly introduced Article 4 para. 2, sentence 1 of the Hessian Constitution, every child has a “right to protection and to the promotion of his or her development into an independent and socially competent personality”.⁷ Given the importance of language acquisition for the development of the child’s own identity, it could be argued that the right to promotion of the development of a child’s personality includes, to some extent, learning her/his heritage language, which should be facilitated by state education. Since, according to the legislative documents (Drucks. 19/5710 p. 2, Hessischer Landtag 2017), the *Landtag* was guided by the Convention on the Rights of the Child (CRC, 1577 UNTS 3, United Nations 1989) when incorporating this fundamental right of children into the Hessian Constitution (cf. Donath 2020), it seems reasonable to assume that the interpretation of this new constitutional provision is informed, to a large extent, by the principles set out in the CRC. This includes, as will be shown below, respect for the child’s cultural identity and language as an objective of the state school system (Article 29 para. 1 lit. c of the CRC). The structure of the Hessian Constitution, in particular the placement of Article 4 para. 2 outside the regulatory context of the state school system (Articles 55–61), does not necessarily contradict this interpretation either. However, in light of the inherent limitations described above, it is doubtful whether a subjective entitlement

⁷See Article 4 para. 2 of the Hessian Constitution as amended by the Act of 12 December 2018 (GVBl. S. 752, Hessischer Landtag 2018): *Jedes Kind hat das Recht auf Schutz sowie auf Förderung seiner Entwicklung zu einer eigenverantwortlichen und gemeinschaftsfähigen Persönlichkeit*. It should be noted, however, that the Wiesbaden Administrative Court has already dealt with questions of the best interests of the child and nevertheless concluded that, from this point of view, no entitlement to the requested language instruction can be recognized, unless there are unreasonable circumstances which seriously impair the best interests of the child.

to the desired language instruction would automatically arise. Even if Article 4 para. 2 of the Hessian Constitution were to be interpreted as linking language acquisition with personal development, the desire to learn a particular heritage language could not be granted absolute priority (in the sense of subjective entitlements) due to the proviso of the possible and the primary responsibility of the legislator to organize school education by specific legislation. Nevertheless, it can be argued that the objective-legal dimension of Article 4 para. 2 of the Hessian Constitution obliges state authorities to take due account of the linguistic needs of these children in their discretionary decisions (alongside the other objectives of the state education system and within the limits mentioned above) and, where appropriate, provide such education within the framework of state-organized schooling.

2.2 EU law

With regard to EU law, it should be recalled that under the fundamental principle of conferral, “the Union shall act only within the limits of the competences conferred on it by the Member States in the Treaties to attain the objectives set out therein” (Article 5 para. 2 of the Treaty on European Union, TEU). In the field of education, Article 165 para. 1 of the Treaty on the Functioning of the European Union (TFEU) emphasizes the “responsibility of the Member States for both the content of teaching and the organisation of their education systems”, while further “harmonisation of the laws and regulations of the Member States” by Union acts is excluded under Article 165 para. 4 TFEU. This means that education policies are largely reserved for the Member States (cf. Guliyeva 2013: 220–222; Garben 2019: 1426 et seq.). Despite this, in 1977 the Council made use of an enabling provision⁸ on the free movement of workers and adopted Directive 77/486/EEC on the education of the children of migrant workers (OJ L 199, 6 August 1977, p. 32, European Economic Community 1977). Article 3 of this Directive provides:

Member States shall, in accordance with their national circumstances and legal systems, and in cooperation with States of origin, take appropriate measures to promote, in coordination with normal education, teaching of the mother tongue and culture of the country of origin for the children referred to in Article 1.⁹

⁸Article 49 of the Treaty establishing the European Economic Community (now Article 46 TFEU).

⁹A similar provision can be found in Article 19 para. 12 of the revised European Social Charter (ETS 163, Council of Europe 1996) or Article 15 of the European Convention on the Legal Status of Migrant Workers (ETS 93, Council of Europe 1977). Cf. Hofmann & Malkmus 2022a: 30–31.

Despite existing implementation shortcomings, Council Directive 77/486/EEC remains one of the few normative bases for heritage language teaching in the EU Member States (cf. Köller 2012, Guliyeva 2013: 221). However, with regard to the present case, the Administrative Court of Wiesbaden, in its above-mentioned judgment (6 K 1560/18.WI), pointed out that Directive 77/486/EEC only applies to children living in a host Member State who are dependants of a worker who is a national of *another* EU Member State and in addition, that it only covers education in the language of origin of an EU Member State, thus excluding immigrants from non-EU countries, such as Morocco, Syria, Türkiye, and several non-official languages. This underlines the limited scope of the Directive (cf. Köller 2012).

Beyond this, and despite various references to “minorities” (Article 2 TEU),¹⁰ or “linguistic diversity” (Article 22 of the EU Charter of Fundamental Rights, European Union 2012), EU law does not provide for any explicit basis to take further legal action in the field of minority rights or minority languages (Toggenburg 2018: 50, Hofmann & Malkmus 2022b). Notwithstanding the EU’s particular interest in minority issues in the context of the accession process (Malkmus 2023a: 304), the Union remains reluctant about its internal minority policy, as recently demonstrated by the setback of the “Minority SafePack” initiative (Malkmus 2024). It is, therefore, unlikely that the legal situation described above will change in the near future.

2.3 International law

In international law, following Henrard (2013: 38 et seq.), for example, a distinction can be made between minority-specific and non-minority-specific provisions in order to narrow down the question under consideration here. The first group of norms includes, *inter alia*, Article 27 of the International Covenant on Civil and Political Rights (ICCPR, 999 UNTS 171, United Nations 1966a), Article 14 para. 2 of the Framework Convention for the Protection of National Minorities (FCNM, ETS 157, Council of Europe 1995) and Article 8 of the European Charter for Regional or Minority Languages (ECRML, ETS 148, Council of Europe 1992). In the present context, the situation of persons with a migratory background, particularly those seeking to learn a non-official language, raises the question of whether they fall within the personal scope of the above provisions at all. From a textual analysis, it is apparent that only the ECRML does not apply *a priori* to the “languages of migrants” (Article 1 lit. a), while the two above instruments are somewhat ambiguous in this respect. Although there is no uniform definition

¹⁰See also Article 21 para. 1 of the EU Charter of Fundamental Rights (European Union 2012).

of the concept of minorities in international law, it is widely assumed in state practice that these persons do not fall within the scope of the relevant treaties, while international expert bodies have adopted more nuanced approaches, seeking to include these groups, where appropriate, on a situation-specific basis (cf. Hofmann 2007: para. 4–5, Malkmus 2023b, Hofmann & Malkmus 2023). In particular, the ACFC is considering, on an article-by-article basis, whether not only so-called “old” or autochthonous minorities but also “new” or allochthonous minorities (i.e. persons with a migratory background) could benefit from the FCNM (Palermo 2019). However, as explained in the ACFC’s 4th Thematic Commentary (ACFC/56DOC(2016)001, para. 79, 83, ACFC 2016), the wording of Article 14 of the FCNM contains an inherent limitation of the right to education or instruction in the minority language to “areas inhabited by persons belonging to national minorities traditionally or in substantial numbers” (Article 14 para. 2 FCNM, cf. Busch 2018: 260–262, Hofmann 2023: 35). Nevertheless, the ACFC encourages states parties to promote the enjoyment of this right

in situations where the conditions are not formally met but where implementation would serve to promote an open society, where multilingualism is encouraged as a reflection of diversity (ACFC/56DOC (2016)001, para. 79, ACFC 2016; Palermo 2019: 24).

A similar approach could already be observed earlier in the UN Working Group on Minorities’ commentary to the 1992 UN Minorities Declaration (A/RES/47/135), which, as a non-binding instrument, aims to specify the rights set out in Article 27 ICCPR (Hofmann & Malkmus 2023: 875). With regard to the right to mother tongue education, the Working Group commented that there would be “no reason” to treat new minorities differently from old minorities if they “settle compactly together in a region of the country and in large number” (E/CN.4/Sub.2/AC.5/2005/2, para. 64, Working Group on Minorities 2005). Furthermore, the UN Special Rapporteur on minority issues (A/HRC/43/47, para. 53 et seq., de Varennes 2020) also supports an inclusive reading of the educational rights of children belonging to non-recognized minority groups to learn their mother-tongue.

Against this background, although the right to heritage language education for new minorities has not (yet) acquired a clear normatively binding status in international minority rights law, it is apparent from the above-mentioned statements that, in certain circumstances, in order to promote linguistic diversity and integration, States may focus less on formal distinctions and consider, where feasible, whether there is a minority that could benefit from the right to heritage language education.

The second set of provisions encompasses the right to education¹¹ and the prohibition of discrimination.¹² Without being able to go into all the details, the following three points should be highlighted: First, under Article 2 of the Protocol to the ECHR, the right to education, as interpreted by the case law of the European Court of Human Rights (e.g. judgment [GC] of 10 May 2001, appl. no. 25781/94, *Cyprus v. Türkiye*, para. 277, European Court of Human Rights 2001; judgment of 14 September 2023, appl. no. 56928/19, 7306/20, 11937/20, *Valiullina and Others v. Latvia*, para. 135, European Court of Human Rights 2023), does not require school education to be provided in a particular language (cf. *Bitter* 2022: para. 14). This reading of the right to education was also adopted by the Wiesbaden Administrative Court (6 K 1560/18).

A more dynamic interpretation could be observed in several opinions of the Committee on Economic, Social and Cultural Rights (CESCR), which, for example, in its observations on Greece (E/C.12/1/Add.97, para. 28, 50, Committee on Economic, Social and Cultural Rights 2004), criticized the state authorities for not providing sufficient education in the mother tongue of the Turkish and Roma minorities (Saul et al. 2014: 1134). It is worth mentioning, though, that the groups to which the CESCR refers in its observations are considered to be long-established minorities within Greece, leaving open the question of whether this would also apply to new minorities. Furthermore, the Committee has been concerned with a situation where a “high percentage” of these children were “not enrolled in school, or drop out at a very early stage of their schooling” (E/C.12/1/Add.97, para. 28, Committee on Economic, Social and Cultural Rights 2004), i.e. where not providing education in such languages could be seen equal to impeding access to education.

On the other hand, the Committee on the Elimination of Racial Discrimination (CERD/C/DNK/CO/18-19, para. 16, Committee on the Elimination of Racial Discrimination 2010) and later the Committee on Economic, Social and Cultural Rights (E/C.12/DNK/CO/6, para. 68, Committee on Economic, Social and Cultural Rights 2019) have been remarkably clear in their criticism of the distinction between children of European origin and other children, as is the case, for example,

¹¹E.g. Article 13 para. 1 of the International Covenant on Economic, Social and Cultural Rights (ICESCR, 993 UNTS 3, United Nations 1966b), Article 2 of the Protocol to the ECHR (ETS 9, Council of Europe 1952), Article 28 para. 1 in conjunction with Article 29 para. 1 lit. c of the Convention on the Rights of the Child (CRC, 1577 UNTS 3).

¹²E.g. Article 26 of the ICCPR, Article 5 lit. e of the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD, 660 UNTS 195, United Nations 1965), Article 14 of the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR, ETS 5, Council of Europe 1950) and Article 1 of Protocol No. 12 to the ECHR (ETS 177, Council of Europe 2000).

in the Danish heritage language education (Hofmann & Malkmus 2022a: 37–38). Therefore, the second observation is that any distinction between official EU languages and other languages must be justified, and purely formalistic reasons stemming from the EU origin appear insufficient. Appropriate reasons for differentiation still appear to be school capacities, availability of accredited teachers and individual demand.

Third, apart from those subjective legal safeguards, States are obliged to take due account of the linguistic needs of children, including the promotion of their heritage language, when organizing State education. This obligation is of an objective nature and arises from Article 29 para. 1 lit. c of the CRC:

States Parties agree that the education of the child shall be directed to: [...] The development of respect for the child's parents, his or her own cultural identity, language and values, for the national values of the country in which the child is living, the country from which he or she may originate, and for civilizations different from his or her own [...].

In this context, the Committee on the Rights of the Child (CRC/C/CHN/CO/3-4, para. 74, Committee on the Rights of the Child 2013b; CRC/C/CYP/CO/3-4, para. 44–45, Committee on the Rights of the Child 2013a; CRC/C/TUR/CO/2-3, para. 58, Committee on the Rights of the Child 2012) has encouraged states parties in the past (regardless of the formal status of the language) to introduce or expand mother tongue education programs where appropriate (Lundy & Tobin 2019: 1137, Schmahl 2020: 303). Interestingly, the Committee does not seem to want to make this dependent on the formal status of a minority or language (Lundy & Tobin 2019: 1137), as the concluding observations on Türkiye suggest:

Unavailability of education in languages other than Turkish and languages of recognized minorities,¹³ presenting educational disadvantages for children of non-recognized minorities whose mother tongue is not Turkish (CRC/C/TUR/CO/2-3, para. 58, Committee on the Rights of the Child 2012).

¹³Due to the Turkish interpretation of the 1923 Lausanne Peace Treaty (and its annexes), these are the languages of religious minorities such as Jews, Greeks and Armenians (Scherzberg 2014: 65). See also the reservation of Türkiye under Article 27 ICCPR.

2.4 Conclusion

It can be concluded that, beyond the right to non-discriminatory access to existing educational programs, there is currently no inherent positive right to education in non-official heritage languages, unless explicitly granted by specific legislation. However, states are required to take due account of the linguistic needs of children who wish to learn such languages as part of their distinct identities when designing language education. Even if this does not give rise to subjective (enforceable) rights, there is an objective obligation to consider whether this desire can be accommodated within existing capacities. This includes, where appropriate, facilitating the teaching of heritage languages.

3 Good practices

Following this interpretation, the present section outlines some good practices from which states could draw inspiration to fulfil the above obligation. The Swedish legislation on heritage language education, as laid down in the Education Act (*Skollag*, SFS 2010:800, Swedish Ministry of Education 2010) and the Language Act (*Språklag*, SFS 2009:600, Swedish Ministry of Culture 2009), may serve as an example (cf. ACFC/OP/IV(2017)004, para. 91, ACFC 2017; Salö et al. 2018; Hofmann & Malkmus 2022a: 5). According to Section 14 of the Language Act, every person whose mother tongue is not one of the national, minority or sign languages shall “be given the opportunity to develop and use [his or her] mother tongue”. Mother tongue teaching (*Modersmålsundervisning*) is therefore part of the Swedish curriculum for the different types of school. For primary schools, for example, this is stipulated in Chapter 10, Section 7 of the Education Act:

A pupil who has a guardian with a mother tongue other than Swedish shall be offered mother tongue teaching in this language if

1. the language is the pupil’s daily language of interaction at home, and
2. the pupil has basic knowledge of the language.

[...]

The Government or the authority designated by the Government may issue regulations on mother tongue teaching. Such regulations may mean that mother tongue teaching shall be offered in a language only if a certain number of pupils want such instruction in that language. [...] (Translation by the authors)

The details of mother tongue teaching are laid down in Chapter 5 of the School Regulation (*Skolförordning*, SFS 2011:185, Swedish Ministry of Education 2011) of the Ministry of Education:

8 § Mother tongue teaching may be organized

1. as a language choice in compulsory school and special school,
2. as the pupil's choice,
3. within the framework of the school's choice, or
4. outside the guaranteed teaching time.

[...]

10 § A principal is obliged to organize mother tongue teaching in one language only if

1. at least five pupils who are to be offered mother tongue teaching in the language wish to receive such teaching, and
2. there is a suitable teacher.

[...] (Translation by the authors)

It should be noted that the Swedish legislation has chosen a dual structure, with some basic legal provisions in the Language and Education Acts, i.e. formal legislation adopted in the *Riksdagen*, and the details further specified by a ministerial regulation, which leaves these details open to change (outside parliamentary procedures). This legislative approach reflects a compromise between the linguistic needs of the children and certain concessions for flexibility and practical reasons, such as finding suitable teachers or reaching the required number of pupils, which can still be major obstacles, especially for less widely spoken languages. This situation certainly leaves plenty of room for debates about the appropriate parameters, also in view of the considerable financial demands. Still, the fact that the teaching of heritage languages is enshrined in a parliamentary act that focuses on those mother tongues that are actually being used (rather than on their legal status) is an added value in itself, even if the details are left to the Ministry of Education (Hofmann & Malkmus 2022a: 5–7, 12).

Another source of inspiration might be the experience of the ACFC, bearing in mind, of course, that there are structural and legal differences between the teaching of heritage languages on the one hand and minority languages on the other. Some models established in a minority context, such as the trilingual school system in two Ladin valleys of South Tyrol, which integrates Italian, German, and

Ladin in the classroom, have proven particularly successful in specific geographical settings where the population consists of distinct minority groups. These models do not seem to be easily transferable to the situation of children who speak various less widespread or migrant languages, as it seems difficult to integrate a large number of additional languages into these kind of models (cf. Carlà 2018: 1109, Vettori et al. 2021: 241 et seq.). For similar reasons, models employing the minority language as the medium of instruction, as identified within the Council of Europe (Prina et al. 2020), are unlikely to be effective for the purposes outlined above. However, the practice of the ACFC on the teaching of minority languages has provided some valuable lessons that may be worth considering here. The first could be seen in the ACFC's proactive approach, which includes making people aware of the educational opportunities available to them, as only such awareness can create demand (ACFC/25DOC[2006]002, p. 26, ACFC 2006; ACFC/44DOC[2012]001rev, para. 71, ACFC 2012). Second, state authorities should create explicit legal bases for (minority) language education, which also pay special attention to the situation of languages of numerically smaller groups (ACFC/44DOC[2012]001rev, para. 70, ACFC 2012). Third, there "should be no mutually exclusive choice between the learning of a minority language or the official language(s)" (ACFC/44DOC[2012]001rev, para. 72, ACFC 2012). In this sense, it is important not to make the acquisition of the heritage language dependent on a certain level of knowledge of the official language. Fourth, minority language education should be included into the mandatory curriculum of public schools and numerical thresholds for the establishment of such classes should be set moderately (ACFC/44DOC[2012]001rev, para. 73–74, ACFC 2012). Finally, and this cannot be overemphasized, there is a significant need for teacher training and teaching materials (ACFC/44DOC[2012]001rev, para. 76, ACFC 2012). In addition, the situation of particularly small minority groups requires special treatment, which may make it necessary either to resort to cooperation-based solutions or to utilize the advantages of digital teaching media in order to create appropriate offers for language teaching (Hofmann 2023: 40). In particular, where the state cannot reasonably be expected to provide classroom-based education – for example, due to low demand or lack of staff – the extent to which such gaps can at least be filled by digital learning opportunities could be further explored (ideally in coordination with the relevant communities). In this respect, the objective duty described above can be understood as a best effort obligation.

Further impetus could be provided by the concept of "plurilingual and intercultural education", which is promoted notably by the Committee of Ministers of the Council of Europe (Recommendation CM/Rec[2022]1, Committee of Ministers 2022) or the Parliamentary Assembly's Recommendation 1740 (2006) on the place of mother tongue in school education (Parliamentary Assembly 2006).

4 Concluding remarks *de lege ferenda*

Although there is currently no inherent positive right to education in non-official or immigrant (heritage) languages, unless explicitly granted by specific legislation, states are required to take due account of the linguistic needs of children who wish to learn such languages as part of their distinct identities when designing language education. Where resources are limited, it may be necessary to impose certain constraints. These should not be made unilaterally at the expense of non-official languages. Instead, programs that are to be designed could take the following points into account:

1. The local population of speakers of a particular heritage language and the resulting demand; and
2. the availability of suitable teachers and teaching materials.
3. Authorities should pursue a proactive approach in order to facilitate access to existing programs.
4. The scarcity of resources may make it necessary to explore new ways of providing an appropriate educational experience for the pupils concerned, for example, by creating networked programs or exploring the benefits of digital media.

The framework for such educational programs could, as is the case in Sweden, be laid down in a corresponding legal basis in the Hessian School Act, which could delegate further details to a regulation addressing the considerations outlined above and allowing for necessary adjustments. In any case, the contributions in this volume have illustrated the need to take due account of the special significance of language acquisition for the development of one's own identity in the school context. Teaching heritage languages in some of the forms described above could make a significant contribution in this respect.

Abbreviations

ABl.	Amtsblatt	GC	Grand Chamber of the
ACFC	Advisory Committee on Framework Convention for the Protection of National Minorities	GVBl.	Gesetz- und Verordnungsblatt
Add.	Addendum	HRC	United Nations Human Rights Committee
appl. no.	application number	ICCPR	International Covenant on Civil and Political Rights (United Nations 1966a)
BVerfGE	Entscheidungen des Bundesverfassungsgerichts	ICERD	International Convention on the Elimination of All Forms of Racial Discrimination (United Nations 1965)
CERD	Committee on the Elimination of Racial Discrimination	ICESCR	International Covenant on Economic, Social and Cultural Rights (United Nations 1966b)
CESCR	Committee on Economic, Social and Cultural Rights		
CM	Committee of Ministers		
CRC	Convention on the Rights of the Child (United Nations 1989)	lit.	<i>litera</i> 'letter'
Drucks.	Drucksache	No.	Number
ECHR	European Convention on Human Rights (Council of Europe 1952)	OECD	Organisation for Economic Co-operation and Development
ECRML	European Charter for Regional or Minority Languages (Council of Europe 1992)	OJ	Official Journal
EEC	European Economic Community	p.	page
EILE	Enseignement Internationaux de Langues Étrangère	para.	paragraph
ELCO	Enseignement Langue et Culture d'origine	Rec	Recommendation
et seq.	<i>et sequentia</i> 'and the following'	RES	Resolution
EU	European Union	SFS	Svensk författningssamling
FCC	Federal Constitutional Court	TEU	Treaty on European Union (European Union 2016a)
FCNM	Framework Convention for the Protection of National Minorities (Council of Europe 1995)	TFEU	Treaty on the Functioning of the European Union (European Union 2016b)
		UN	United Nations
		UNTS	United Nations Treaty Series
		VG	Verwaltungsgericht
		ZP	Zusatzprotokoll

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Chapter 5

Linguistic Diversity of New Minorities in Europe: A crossroads of rights and duties

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Increasing international mobility flows have presented both opportunities and challenges for social cohesion and integration in Europe. Language, as a tool for communication and a marker of identity, plays a pivotal role in ensuring equality of access to education, the labor market, and justice. However, many European states face difficulties in balancing the need for integration with the recognition of linguistic diversity, particularly concerning new minorities arising from migration flows. These challenges have underlined the urgent need for effective governance of linguistic diversity.

This paper explores the governance of linguistic diversity in the context of integrating new minorities in Europe. It argues for expanding the scope of minority rights — traditionally reserved for historical minorities — to include new minorities. This approach addresses gaps in international frameworks, particularly regarding identity and language rights, and fosters a more inclusive diversity governance model. Recognizing and protecting the linguistic rights of new minorities is essential to promoting cohesion and belonging, reducing the risk of alienation and conflict, and avoiding forced assimilation. The paper highlights the dual need for supporting minority languages while maintaining proficiency in a common public language to ensure state functionality and societal integration.

Using an interdisciplinary methodology, the paper combines legal and linguistic approaches to analyse language policies for new minorities. It examines three key areas — education, the labor market, and the judicial system — demonstrating how language rights intersect with societal inclusion and equity, and offering recommendations for balancing diversity and unity in modern Europe.



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1 Introduction

In most European countries, diversity governance has emerged as a complex and challenging issue, currently holding a prominent position in political and public discourse. This is largely due to the increasing number of peoples—especially migrants and asylum seekers—with distinctive identities in terms of language, culture, or religion in urban as well as in more peripheral and rural contexts with varying degrees of permanence. While economic stakeholders and decision-makers generally acknowledge the valuable contributions to the labor force and positive effects on demographic structures, the presence of large immigrant and refugee communities presents complex challenges in the sphere of integration with regard to cultural and linguistic differences, protection of individual and group rights, and the preservation of social cohesion and unity. Identity claims, including linguistic claims, and economic rights however are not separate issues, as diversity claims very often arise precisely in labor and employment environments. Accommodation of diversity and labor market inclusion are indeed complementary and intimately intertwined, thus one cannot be solved without the other.

The right to identity in diversity is also intimately linked to language.¹ Language is not only an important tool to communicate, but also for identity formation; language rights are thus based on a ‘duality of structures’ (Giddens 1984) in the form of the *multidimensionality* and *multifunctionality*: languages as an *instrumental medium* of communication as well as a substantial element for *personal and social identity formation* in the construction of ‘meaning, trust and order’ (Eisenstadt 1995).² In this regard, language has been referred to as a gate and as a tie (Kraus & Kazlauskaite-Gürbüz 2014).³

Given the relevance of both instrumental and identity-related interests in language, the *politics* of language have often represented an ideological, political, and legal arena for linguistic, sociocultural, and political control based on processes of language standardization through selection of a particular language, usually that of the most powerful group, discouraging at the same time the use

¹The Supreme Court of Canada has clarified this point in *Ford v. Quebec* (1988) by saying that ‘[l]anguage is not merely a means or medium of expression; [...]. It is a means by which a people may express its cultural identity. It is also the means by which one expresses one’s personal identity and sense of individuality.’

²See also Vertovec & Wessendorf (2005: 34).

³Kraus & Kazlauskaite-Gürbüz relate this approach to Ralf Dahrendorf’s distinction between options and ligatures, according to which “Options are possibilities of choice”; they provide us with “structural opportunities for choice, thereby offering a template for our individual choices and decisions”. Ligatures, in contrast “are allegiances; one might call them bonds or linkages as well”. Dahrendorf (1979), cited by Kraus & Kazlauskaite-Gürbüz (2014: 521).

of other languages or even varieties (dialects) of the same language in the public sphere, thereby encouraging users to develop loyalty and pride in it (Marko & Constantin 2019).⁴ Indeed, in linguistically diverse settings, individuals face the necessity of choosing an interaction language, often leading to an asymmetrical preference for one language over others. When this process becomes systematic, resembling situations where certain groups consistently yield, it mirrors scenarios of social imbalance (van Parijs 2011). From a multicultural perspective, “linguistic justice” would involve safeguarding the linguistic rights of minority groups, thereby ensuring their ability to use their language in public and preventing the injustice and inequality that would arise if they were forced to shift to another language (de Schutter 2007, van Parijs 2011, Mowbray 2012, Alcalde 2015, Riera-Gil 2019, Gazzola et al. 2023, Medda-Windischer & Constantin 2024).

Language standardization (Costa et al. 2017, Zeba 2020) and the adoption of monolingual/territorial approaches (Barry 2001, van Parijs 2011) – with or without legally declaring the majority language the official language of the state – go hand in hand with the need for standardized public education and literacy demands for the labor force which is thus postulated a ‘normal,’ instrumental requirement. As a consequence, bi- or multilingual education and the use of languages other than the dominant or official language seem to require an exemption from this rule of monolingualism in public education, the economy, administration or politics (Marko & Constantin 2019).

Language policies have thus political and social consequences; they can reinforce or diffuse conflicts, tensions or social unrest between language groups, they accelerate language loss or facilitate language revitalization, and they can be instruments of inclusion or exclusion (Sonntag & Cardinal 2015). Restrictions on language use and barriers in the acquisition of language proficiency may exclude individuals from education, political participation, and access to justice, thus underscoring the critical role of language in societal structures (OSCE HCNM 2017, United Nations Development Programme 2004, Skutnabb-Kangas 2008).

Against this backdrop, this chapter seeks to address the following research questions: How can the demands for linguistic diversity and political unity be reconciled to create a cohesive and stable political community that addresses the legitimate aspirations of minorities, including new minorities?⁵ What public policies should be implemented to achieve this balance between diversity

⁴Sonntag & Cardinal refer to ‘language regimes’ as concerning not only language practices but also “conceptions of language and language use as projected through state policies and as acted upon by language users”. (Sonntag & Cardinal 2015: 6).

⁵On social cohesion, see the seminal study by Putnam (2001), Stolle et al. (2008), Kesler & Bloemraad (2010), Portes & Vickstrom (2011).

and unity? How can the risk of essentializing minority cultures through political mobilization, which might lead to divisive us-versus-them antagonisms, be mitigated?⁶ What strategies can support multiple integration into the country of residence while allowing individuals to maintain identification with the culture of their country of origin or minority group? Further, how can institutional segregation from common institutions or shared societal sectors—particularly the public education system and the labor market—be avoided, thereby preventing socioeconomic downward assimilation into ethnic ghettos and the complete cultural marginalization of minority groups? And finally, how can expanding the scope of minority rights, traditionally associated with historical or *old* minorities, to include *new* minorities originating from migration, contribute to more effective diversity governance and address the gaps in international frameworks, particularly regarding identity and language rights? How might such an expansion foster inclusion and a sense of belonging among minority groups, while preventing forced assimilation and mitigating the risks of resistance and alienation?

Indeed, if it is certain from a human and minority rights perspective that *fundamental human rights and liberties* such as the right to existence, identity in diversity, freedom of expression and association must be accorded to all human beings, it is less certain which are the *specific legal obligations of states* in language matters towards persons belonging to historical minorities and new minority groups stemming from migration. Moreover, these obligations are less clear when they are connected to claims vis-à-vis the state to adopt special measures to ensure appropriate conditions for the preservation and development of group identities.

In the following, this chapter examines language rights and duties for new minorities arising from recent migration flows within Europe by adopting an interdisciplinary approach that integrates legal and linguistic studies. The analysis draws on legal and policy documents, existing literature, and empirical research conducted in this field. The chapter is structured in three sections: the first section provides the basis for the following parts by analyzing the diversity of old and new minorities and their alleged dichotomy; the second section explores the normative framework pertaining to language rights and duties for new minorities, in particular as residence and citizenship are concerned; in the third part three major ambits in which language policies for new minorities have a particular relevance, namely education, the labor market and the law enforcement system, are analyzed. These ambits have been selected on various grounds: education serves as a foundational domain where linguistic skills are

⁶On essentialisation of minorities, see Marko & Medda-Windischer (2018), Vertovec & Wessendorf (2005).

cultivated, cultural understanding is fostered, and opportunities for upward mobility are shaped. The labor market relies heavily on linguistic proficiency as a determinant of employability, workplace communication, and professional advancement, making language a key factor in economic integration. Lastly, the judicial system highlights the importance of language in ensuring equitable access to justice, comprehension of legal rights and obligations, and the ability to participate fully in all aspects of societal life. The chapter concludes with some final remarks concerning future challenges and possible solutions.

Prior to analyzing the various sections comprising the chapter, it is important to provide some terminological clarifications. The linguistic debate has distinguished between ‘migrant languages’ and ‘immigrant languages.’ The former are characterized by a high degree of individual mobility and of local fluctuations in the number of groups, so that a migrant language cannot take root in a given territory. The latter are instead characterized by low degrees of mobility and fluctuations, so that they can influence the “local idiomatic order” (Bagna et al. 2003). In other words, the term ‘immigrant languages’ identify those instances where an immigrant community shows “a long-lasting, if not definitive, migratory project” (Orioles 2007) in a given territory, as well as a manifested will to “maintain their original identity, culture and language” (Orioles 2007, Panzeri 2016). Other authors (Trifonas & Aravossitas 2018) instead have used terms such as, among others, ‘languages of origin’ (Makarova 2014), ‘ethnic languages’ (Saint-Jacques 1979), ‘community languages’ (Wiley 2005), ‘home languages’ (Yeung et al. 2000) or simply ‘mother tongues.’ There is still a debate on the correct use of these terms, as well as on the need to substitute ‘mother tongue’ with a more scientific term such as ‘first language.’ In particular, the CoE has been increasingly using ‘first language’ to refer to “the language acquired first in early childhood, which has a special status for the child as it is acquired as part of its discovery of the world in primary socialisation and is in fact crucial to the success of the child in developing normally” (Byram 2007). Instead, ‘mother tongue’ “includes emotional associations of ideas with ‘family’ and ‘origins’ which ‘first language’ excludes” (Byram 2007). Specifically in the field of education, the term ‘heritage languages’ has been gaining consensus since the 1970s to define in general “language spoken by the children of immigrants or by those who immigrated to a country when young” (Cho et al. 2004), and in particular “the incompletely learned home language arising from the phenomenon of language shift and the switch to the dominant language that is characteristic in the case of immigrants and their descendants” (Trifonas & Aravossitas 2018, Polinsky & Kagan 2007). Because of this process, heritage language speakers are defined as “[...] individuals who have been exposed to an immigrant or minority language since child-

hood, who are also very competent in the majority language spoken in the more widespread linguistic community” (Montrul 2015). Therefore, such a term not only indicates a language spoken by immigrants but also hints at its ‘health condition,’ that is, the level of competence in which it is spoken.

2 Old and New Minorities: Setting the Grounds

In almost all European countries live communities whose members have a distinct language, religion, or socio-cultural practices as compared to the rest of the population and who have become minorities through the redrawing of international borders, having seen the sovereignty of their territories shift from one country to another. These are ethnic groups that have not achieved statehood on their own, for various reasons, and that have now become part of a larger country (or several countries): they are the so-called ‘old minorities’ (Brubaker 2004, Smith 2010, Keating 2002, Mabry et al. 2013, Marko & Constantin 2019). In many, but not all cases, their co-ethnics may be numerically or politically dominant in another state, which they therefore regard as their ‘external national homeland’ or kin-state (OSCE HCNM 2008). Similar to the case of old minorities, in most European countries there are groups formed by individuals and families who have left their original homelands to emigrate to other countries: these are the so-called ‘new minorities.’⁷ In most cases, their reasons are economic, although political reasons play an increasingly important role as well. New minorities thus consist of migrants and refugees, and their descendants, who are living in a country other than that of their origin, on a basis that is more than merely transitional. They encompass multiple variations of situations ranging from acute refugee situations to economic migrants and their family reunification.

It must be acknowledged that the term ‘new minorities’ is subject to difficulties and criticism because it encompasses an enormous variation of situations. The use of the term is intended to refer to ‘distinct’ groups, and it by no means implies

⁷It is important to note that ‘new minorities,’ as any other groupings of people, are communities based on fictitious constructions and narratives, or, following the classic Andersonian definition of national communities, they are “imagined communities” resulting from the “social construction of reality” (Anderson 1983). New minorities then come into existence through processes of group formation in terms of social organisation such as family reunification, economic networks and forming civil and political associations. Commenting on Brubaker’s definition of ethnic groups according to which “[ethnic groups] are collective cultural representation [...] that sustain the vision and division of the special world in racial, ethnic, or national terms” (Brubaker 2004), Marko clarifies that “(w)henever people define this situation as ‘real’ the consequences following from their actions are no less ‘real’ than the ‘existence’ of things (Marko 2018).

a weakening of their status. It aims to offer additional legal tools with which to respond to their specific needs for protection (ACFC 2016, 2001b). Moreover, the term ‘new minorities’ is broader than the term ‘migrants,’ as it encompasses not only the first generation of migrants, but also their descendants, extending to include second and third generations of individuals with a background of migration, many of whom have been born in the country of immigration and who cannot objectively or subjectively be subsumed under the category of ‘migrants.’ Finally, the term ‘new minorities’ emphasizes the diversity of the individuals concerned, as well as their related individual and collective rights, whereas the term ‘migrants’ does not (Medda-Windischer 2017).

Drawing from Laponce’s dated distinction between ‘minorities by force’ and ‘minorities by will’ (Laponce 1960), Walzer regards immigrants as having chosen to leave their original cultures, with the awareness that the success of their decisions depends upon integrating into the mainstream of their new societies (Walzer 1995). In such cases, ethnic diversity arises from the *voluntary* decisions of individuals or families to uproot themselves and join another society. In contrast, Walzer argues, old minorities remain focused on their historic homelands. These groups find themselves in a minority position, not because they have uprooted themselves from their homeland, but because their homeland has been incorporated within the boundaries of a larger state. In most cases, this incorporation was *involuntary*, resulting from conquest, colonization or the ceding of territory from one imperial power to another. Under these circumstances, it is argued, minorities are rarely satisfied with models based on non-discrimination, individual rights and, eventually, integration. As proposed by Walzer, they desire ‘national liberation’ (i.e. some form of collective self-government) in order to ensure the continued development of their distinct culture. This differentiation could be called into question, however, largely because it is debatable whether migrants have truly made a voluntary ‘choice’ to migrate. This applies not only to refugees or those fleeing from wars or natural disasters, but also to ‘labor migrants’ escaping from economic distress.

Also, against an expansion of language rights to new minorities, Kymlicka (1996) argues that if migration is voluntary, this affects the claims immigrants can make in the receiving society, limiting them to polyethnic rights safeguarding cultural and religious practices, not extending to language rights. He acknowledges the difficulty in drawing a line between involuntary refugees and voluntary immigrants, proposing that the only long-term solution is addressing the unjust international distribution of resources, as treating economic refugees as national minorities in a new country may not provide an appropriate redress

for injustices that must ultimately be resolved in the original homeland. Similarly, Patten (2006) contends that requiring immigrants to relinquish their claim on official status for their languages is a necessary condition to secure interests in democratic government and language maintenance. He argues that a commitment by public institutions to officially recognize every immigrant language, along with the languages of established groups, would be crippling to democratic self-government. Therefore, established community members (members of 'national groups') have priority over immigrants in claiming official language rights precisely because they are established. This distinction is evident both at the local and supranational levels, such as within the EU, where national languages, with English increasingly prominent, are celebrated most, regional or minority languages less, and immigrant languages least (Extra 2017).

A crucial issue in discussing language rights is that claims of minorities—old and new minorities alike—are often perceived as a challenge and antagonistic to the traditional model of culturally homogeneous nation states because both groups seek to increase, within this model, opportunities to express their identities and diversities at individual and group level. Moreover, old minorities and new groups stemming from migration are often perceived as 'foreigners' in the state where they live. Members of historical and new minorities, as long as they are not absorbed into the national body through assimilation, are considered – even after generations – as loyal to their kin-state or to the original state whose citizens the first generation migrants had been.

Historically, new minorities stemming from migration have reacted very differently than historical minorities to societies dominated by an ethnic majority. Unlike historical minorities whose cultural traditions may predate the establishment of the state that their members are now citizens of, in general few migrant groups object to the requirement that they must learn the official language of the country of residence as a condition of citizenship (van Oers 2014), or that their children must learn the official language in school. Migrants usually accept that their life chances and those of their children depend largely on the participation in mainstream institutions operating in the majority language (Kymlicka 2001).

Problems related to integration of second and third generations can be quite acute with regard to new minorities, though this also applies to a certain extent to traditional minorities, especially in the case of mixed marriages. The children of second and third generations are in fact subjected to the decisions taken by their parents and their living with two cultures and languages can be perceived either as an enriching experience or, more frequently, as an excessive burden. This is due to the fact that often the second and third generations of new minorities' descendants have less cultural distance from the society of the country

of residence than their parents, but they have not reached a satisfactory degree of integration from a socio-economic viewpoint. In comparison to their parents, their expectations are as high as those of their 'pairs' without a migration background, and consequently, the risk of frustration and alienation from mainstream society may be very high (Alba & Holdaway 2013, Wihtol de Wenden 2015).

In the discussion on minorities and diversity, an ongoing debate is whether the scope of application of international treaties pertaining to minorities that are usually applied to historical, old minorities can be extended to new minority groups stemming from migration (Hofmann 2006, Kymlicka 2007, Medda-Windischer 2017, 2009, Joppke 2010, Jackson-Preece 2010).⁸ The positions in this regard are extremely diversified: among states, some have adopted rather narrow views firmly opposing the extension of minority provisions to new minorities (Council of Europe 1995, 1997), others have instead pragmatically applied some provisions to new groups (ACFC 2001c, 2004),⁹ while others have taken a more blurred position.

Most international bodies dealing with minorities have adopted in this regard an inclusive approach, especially the Advisory Committee on the Framework Convention (ACFC 2016, 2001a, 2002a,b), the European Commission for Democracy Through Law (2007), the UN Human Rights Committee,¹⁰ the UN Working Group on Minorities (Eide 2000), and the OSCE High Commissioner on National Minorities which seems to have extended its mandate to new minority groups stemming from migration (OSCE PA 2004, OSCE HNCM 2006, OSCE HCNM 2006, 2012).

The approach taken by the Advisory Committee on the Framework Convention with regard to new minority groups originating from immigration is particularly relevant in this regard. Due to the significant proportion of non-citizens –

⁸Specifically on language rights for old and new minorities, see, Poggeschi (2013).

⁹In this regard, it has to be noted the proactive position of the Czech Republic that has officially recognized a new minority group as a national minority, namely the Vietnamese community, the third largest minority group in the Czech Republic. With the new status, Czech-Vietnamese receive support from the government's budget to preserve Vietnamese culture, tradition and language. In particular, the official minority status ensures them the right to use Vietnamese language at offices as well as courts, set up Vietnamese broadcast or TV programs, among others; see Kascian & Vasilevich (2013), Trlifajova (2013).

¹⁰The UN Human Rights Committee clarified that the terms of Article 27 ICCPR indicate that individuals designated to be protected need not be citizens of a state party, and that a "State party may not therefore restrict the rights under Article 27 to its citizens alone". The UN HR Committee continues: "Just as they need not be nationals or citizens, they need not be permanent residents. Thus, migrant workers or even visitors in a State party constituting such minorities are entitled not to be denied the exercise of those rights". See United Nations Human Rights Committee (1994). See also United Nations Human Rights Committee (1981).

including migrant workers – in the total population of some countries, the Advisory Committee found that it would be possible to consider the inclusion of persons belonging to these groups in the application of the Framework Convention on an *article-by-article* basis, and noted that the authorities of the countries concerned should consider this issue in consultation with those concerned.¹¹ In particular, the ACFC emphasized that “inclusive language policies should cater for the needs of everybody based on their different characteristics and needs, including persons belonging to national minorities living outside their traditional areas of settlement, immigrants and non-citizens” (ACFC 2016: 24).

It has to be acknowledged, however, that, as it will be further discussed in this chapter, any decision to bring minorities with a recent international mobility background within the scope of application of international and/or national instruments pertaining to minorities is bound to be mainly a political one.

3 Normative Framework on Language Rights and Duties of New Minorities

The discourse around rights and duties in the linguistic sphere of new minorities raises a number of questions, in particular, whether the use of a particular language for either official or non-official purposes is a right or not,¹² and even if we can speak in terms of ‘rights,’ what pragmatic limitations can legitimately be placed on the exercise of language choice. As seen earlier, rights are balanced against other (often relatively abstract) interests such as general societal interests – e.g. requirements of the ‘common good’ or of ‘public policy’ – or more specific

¹¹For instance, in 2007, the ACFC mentioned Turkish *Gastarbeiter* in Germany as a group that could benefit from certain rights covered by the Framework Convention for Protection of National Minorities (FCNM) (Second Opinion on Germany 2007). One year later, it welcomed the appointment by the Department for Intercultural and Integration Affairs of Vienna of ‘a person specifically in charge of dealing with problems facing the Roma, whether autochthonous or those with migrant background’ (ACFC 2008). Moreover, the ACFC pointed out that Austria would need to provide support for the preservation of the cultural and linguistic heritage of Czechs, Slovaks, and Hungarians living in Vienna (ACFC 2008). These minority communities have a historical presence in Vienna, but nowadays they include among their number those who have moved to Austria in recent decades.

¹²One vexing, yet unresolved question concerns whether minority rights have a collective or an individual dimension. As stated by Marko, “[t]hese two forms of rights not only can, but even must be used cumulatively when organising equality on the basis of difference” (Marko 1997, see also Hofmann 1998). Ultimately, the true issue concerns whether the groups that human beings form are free and whether the members of these groups are able to live in dignity, including with regard to the maintenance and development of their identities.

economic or political interests as spelled out as possible “substantive limitations” for state interference in the European Convention of Human Rights or the EU Fundamental Rights Charter (Shuibhne 2002).

Hence, discussing language rights and duties of new minorities refers to the wider debate on *social integration*, that is the focus of this chapter, and *system integration* developed and conceptualized in scholarly literature (Marko & Constantin 2019, Gordon 1964, Berry 1997, Esser 2001).

Language rights and duties of new minorities from international, European and national legislation can be classified around three categories: 1) Language rights necessary to preserve and maintain cultural ties with the country of origin, or that of the parents or minority group in case of second/third generations, and, 2) Language duties (or requirements) which are necessary to be able to communicate and participate in the overall society, and 3) State obligations to protect and to promote both the preservation of the language of origin as well as the learning of the language of the country of residence which is not in every situation identical with the rights and duties under 1) and 2). Just to illustrate this with a not only hypothetical example: Shall parents have a right to home-schooling of their children (under 1) so that children (under the age of 14) would have no right to attend a public school with mandatory learning of the state language as language of instruction?

3.1 Language Rights of New Minorities

International norms dealing with language rights of new minorities are those foreseen, for instance, in the UN Convention of the Rights of the Child that extends the right to education far beyond equality of access to education and includes provisions concerning the development of the child’s cultural identity, language and values of the child’s country of origin.¹³

Most international instruments for the protection of migrants, such as the United Nations’ 1990 International Convention on the Protection of the Rights of All Migrants Workers and Members of Their Families (2003),¹⁴ the Council of Europe’s 1977 Convention on the Legal Status of Migrant Workers (1983) or the EU Directive on the Status of Third-Country Nationals who are Long Term Residents (LTRD) (2003), refer to the teaching of the migrant workers’ mother tongue for their children. These instruments however contain also references to possible requirements of ‘integration’ that include linguistic training in the language of

¹³See, art. 29 (1) (c) of the UN CRC 1990.

the settlement country.¹⁵ Moreover, the aim of the provisions concerning mother tongue tuition is mainly the return of these children to the country of origin of their parents rather than the protection and promotion of their identities.¹⁶ The sole EU legislative measure concerning new minorities' language education is Directive 486/EEC, entitled *On the Education of the Children of Migrant Workers*, which was adopted by the then European Community in 1977. The Directive's scope is limited to children of workers who are nationals of other Member States (MSs) and it aims to ease the difficulties associated with the initial reception and integration of such children into the educational school system of the country of residence. The Directive 486/EEC requires EU Members to ensure, among others, the promotion of the teaching of the mother tongue and culture of the country of origin of such children, along with regular education and in cooperation with the country of origin; and ensure free tuition in their territory, adapted to the specific needs of such children, in particular the teaching of an official language of the settlement State. As said, Directive 486/EEC deals only with the education of children who are EU citizens, and it does not address a substantial part of the challenge posed by most recent migration, namely the education of children who are third-country nationals (Council of Europe and EU Agency for Fundamental Rights 2015).

In general, the role of the European Union in the field of education is limited to supporting and promoting the educational policies of its Member States. The latter retain full control in establishing their school systems and school curricula, provided that they apply the principle of equality and prohibit discrimination. At the EU level, however, the issue of education of children who are unable to speak

¹⁵See, artt. 5(2) and 15(3) of the EU Council Directive (2004); and also art. 14 of the CoE European *Convention on the Legal Status of Migrant Workers* (1977).

¹⁶The COE Migrant Workers' Convention (Art. 15) reads specifically: "The Contracting Parties concerned shall take actions by common accord to arrange, so far as practicable, for the migrant worker's children, special courses for the teaching of the migrant worker's mother tongue, to facilitate, inter alia, their return to their State of origin." See also artt. 1 and 67 of the UN *International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families* (2003).

¹⁶The UN Migrant Workers' Convention is considered the most comprehensive and detailed legal treaty addressing the rights of migrant workers, and it is a treaty that can potentially serve as an important tool for strengthening the legal protection of members of new minorities and contributing to their integration into society. However, this treaty is currently in force mainly among countries of emigration, none of which are EU Member States. As of 11 December 2024, the Migrant Workers' Convention has been signed by 40 countries and ratified by 60, with only seven being CoE Member States: Albania, Armenia, Azerbaijan, Bosnia and Herzegovina, Montenegro, Serbia, and Turkey. See https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-13&chapter=4&clang=_en.

the language of the country of residence has increasingly gained increased attention. The European Commission, in particular, facilitates the exchange of good practices on the integration of new minorities and funds relevant projects across the different levels of education.¹⁷ This is being attributed to the transformation that the EU has undergone in the last years due to the greater mobility associated with the latest enlargements and the large influx of migrants and asylum seekers from non-EU countries (Jacob-Owens 2022, Milano 2023).

3.2 Language Duties of New Minorities

Following the rise of migration in Europe, a growing number of European countries has been adopting norms and regulations providing and/or requiring language tests or courses for residence and, sometimes, even admission to residence, as well as for the acquisition of citizenship.¹⁸

In general, new countries of immigration, such as Greece, Ireland, Italy and Spain, are less concerned about proficiency in the national language than countries which have a longer history of immigration, particularly when these countries are former countries of emigration which in a very short lapse of time have become countries of immigration. The approach in these countries is quite the opposite end of that in countries which have experienced a great deal of family-based immigration and have chosen to introduce a number of language requirements for the issue of many documents for migrants and their families.

With regard to EU legislation, the EU Directive on the Status of Third-Country Nationals who are Long Term Residents (LTRD) (2004) provides that third-country nationals are entitled to the long-term resident status after residing legally and continuously for five years in the territory of a Member State before their application for status (LTRD 2004). The status entitles long-term residents to equal treatment with nationals in a number of areas and enhanced protection against expulsion. As seen earlier, the Directive permits states to impose integration requirements as a condition for acquiring long-term resident status in the first place,¹⁹ and to impose language requirements as a condition for access

¹⁷For an overview of the activities of the European Commission in the field of education for migrants and refugees settled in EU MSs, see the web page: http://ec.europa.eu/education/policy/migration_en

¹⁸For a recent comparative overview see EU Agency for Fundamental Rights (2017), van Oers et al. (2010), Iglesias Sánchez (2009), Jesse (2017).

¹⁹Art. 5(2) LTRD (Conditions for acquiring long-term resident status) provides: "Member States may require third-country nationals to comply with integration conditions, in accordance with national law". and Art. 15 LTRD (Conditions for residence in a second Member State) reads: "Member States may require third-country nationals to comply with integration measures, in accordance

to education and training.²⁰ The integration requirements foreseen in the LTRD have a precise antecedent in the citizenship legislation of some MSs, which require 'integration' to be understood as a result-oriented process proven through language proficiency and knowledge of the country, for instance history, culture, tradition, legal system, Constitution, geography, etc.) in order to obtain citizenship (Bauböck et al. 2006, Acosta Arcarazo 2011).

As of residence permits and integration requirements, Italy, for instance, has introduced an integration agreement that must be signed by a third-country national entering Italy for the first time. According to the law a language test must also be passed in order to obtain the long-term residence permit (Law n. 94 2011). There are exceptions for those who are under 14 years of age and those who suffer from limitations to learning languages due to their age or physical condition (Italian Immigration Act n. 286 2011).

In other cases, such as the Flemish community in Belgium, newly arrived immigrants are required to take an officially provided language course, though the granting of a residence permit is not linked to the course. This is due to the fact that permission to enter the country and the granting of residence permits is dealt with at federal level, whereas the regional level is responsible for integration policies and their implementation (Pulinx et al. 2014).

According to Bauböck, obligatory language requirements for the right to stay in the country of settlement are legitimate only 'when they assume a convergence of public interests and private interests of the immigrants themselves' (Bauböck 2003). Hence, mandatory language courses for adults would be justifiable 'as a form of benign paternalism' (Bauböck 2003). From this point of view, language courses can secure migrants' long-term interests regarding social upward mobility as opposed to short-term interests in earning income in low-skilled jobs leading to forms of 'down-ward assimilation' (Marko & Constantin 2019). However, the legitimacy of defining such interests 'from above,' that is from outside migrant communities, remains questionable (Vertovec & Wessendorf 2005).

As of the acquisition of citizenship, over the past decade, numerous European countries have increasingly mandated language proficiency tests and examinations assessing knowledge of various aspects of the host country, such as its history and traditions, as an essential prerequisite for obtaining citizenship (Acosta

with national law. This condition shall not apply where the third-country nationals concerned have been required to comply with integration conditions in order to be granted long-term resident status, in accordance with the provisions of Article 5(2). Without prejudice to the second subparagraph, the persons concerned may be required to attend language courses".

²⁰Art. 11(3)(b) LTRD.

Arcarazo 2011). Sometimes, the conditions required in order to acquire a long-term residence permit are the same as those needed to acquire citizenship, but in general there has been a transition by which integration conditions to obtain citizenship have gradually also been adopted for the acquisition of permanent residence (Acosta Arcarazo 2011).

For instance, according to the Austrian Nationality Act, it is a precondition for the acquisition of Austrian nationality that the applicant for naturalization demonstrates knowledge of the German language and a basic knowledge of the democratic legal order and the history of Austria and the respective federal state (Austrian Nationality Act 2017). Also in Germany, language is an important requirement for naturalization: the applicant for naturalization has to demonstrate ‘sufficient’ oral and written skills of the German language (German Nationality Act 2016). The ‘sufficient’ nature of the skills can be demonstrated in different ways, such as the participation of the applicant in a language course when applying for a residence permit (Guild et al. 2009). In the UK applicants applying for naturalization must demonstrate that they have sufficient understanding of English (or Welsh or Scottish Gaelic), in addition to sufficient knowledge of life in the UK (UK Nationality, Immigration and Asylum Act 2002).²¹

Exceptions are applied in most countries, generally for mental physical or intellectual diseases or handicaps, or age (for instance, in Austria, UK and Germany) (Guild et al. 2009), but also if the mother tongue of the person is already the language to be tested (Austria and Germany) (Guild et al. 2009).

4 Main Spheres of Life with Language Policy Implications for New Minorities

Language, as previously noted, serves as a pivotal marker of identity and plays a critical role in the construction of identity at both individual and collective levels (ACFC 2012). Beyond its function as an emblem of cultural and personal identity, language is also an essential instrument for facilitating integration into society. Its significance extends across multiple spheres of life, influencing social, economic, and institutional interactions. When considering the relationship

²¹Regarding the command of English for speakers of other languages, this implies “the ability to hold a conversation on an unexpected topic, which is workable, though not perfect, English” (Guild et al. 2009). The main goal of the test is however not to assess the level of command of the English language but rather the knowledge of the candidate about the British society. In the UK therefore the level of command of the English language is only implicitly tested: the UK assumes that by passing the immigration test on the knowledge of British society the applicant has already demonstrated that his command of the language is sufficient (Guild et al. 2009).

between language and new minorities, three key dimensions stand out as particularly significant. First, education represents a critical sphere where language skills are developed, cultural awareness is nurtured, and pathways to social and economic advancement are established. Second, the labor market places a strong emphasis on linguistic competence, which is essential for securing employment, facilitating effective workplace communication, and enabling career progression, thereby making language a central component of economic integration. Finally, the judicial system underscores the vital role of language in guaranteeing fair access to justice, understanding legal rights and responsibilities, and actively engaging in various aspects of societal life. Together, these dimensions underscore the multifaceted role of language in addressing the challenges and opportunities associated with new minorities within contemporary societies.

4.1 Education

While persons belonging to new minorities shall not be discriminated against in their access to education, and, as previously discussed, the UN Convention on the Rights of the Child explicitly extends the right to education beyond mere equality of access to include provisions for fostering the child's cultural identity, language, and the values of their country of origin (Liefwaard & Sloth-Nielsen 2017, Tobin 2019), a broader and more complex issue arises regarding the extent to which these individuals can assert a right for their identity and culture, including their language, to be meaningfully incorporated into the educational process.

If language plays a role in various aspects of life concerning new minorities, education serves as the foundational aspect of language protection and a substantive guarantee for the continuous use of a language. The lack of education in the minority language jeopardizes its transmission between generations, especially considering social and economic incentives, such as broader opportunities and improved social status, favoring the majority language (de Schutter & Robichaud 2016). Furthermore, the process of education has a profound impact, positively or negatively, on a young person's sense of identity. Education has in fact been described as a "powerful instrument for the achievement of social engineering" (Thornberry & Martín Estébanez 2004). Education can help to strengthen and further develop that identity while creating awareness and tolerance of other cultures existing in the same society. Educational policies should therefore combine a focus on the universal values, the practical needs of children thereby facilitating their participation in socioeconomic life, and the respect for their distinct cultural traditions and identities (ACFC 2024).

The political and legal progression from ‘language as a problem,’ to ‘language as a right’ – and to ‘language as a resource’ (Ruiz 1984, Gogolin 1994, Ruiz 2010, de Jong et al. 2016) – is a difficult, hotly contested process. Indeed, states seem to see the granting of language rights to minorities a highly divisive issue and ultimately leading to the disintegration of the state (Skutnabb-Kangas 2008, Vertovec & Wessendorf 2005). As Palermo has rightly pointed out: “Languages of the minorities are often seen as the main threat to the development of the state language, thus something against which the state language must be protected. This often creates a clash between laws aimed at protecting the minority languages and state language laws” (Palermo 2012).

In education there is thus a constant tension between these aspects: How to preserve, on the one hand, the distinctive identity of a minority and, on the other, how to contribute to social cohesion? How far does the teaching of and education in new minorities’ languages lead to the retreat of minority members into their communities or encourages social integration beyond the family?

During the first waves of postwar immigration from postcolonial areas and from southern Europe during the 1970s and 1980s issues of language rights and education for new minorities have been largely dismissed (Twitchin & Demuth 1985, Verma & Bagley 1979, Ager 1996)). However, proficiency in the language of origin of new minorities is increasingly considered to be of great importance for pupils (Eurydice 2009), since it can facilitate the learning process of the state language or language of instruction²² and thus stimulate pupils’ development and participation in various spheres of life. For some students, knowledge of the language of their parents might open up additional opportunities for their educational and professional development and could improve their chances on the job market, although the evidence supporting this assumption is unclear (Pendakur & Pendakur 2002). In addition, knowledge of the language of origin of their parents can contribute to secure the self-esteem and identity of children belonging to new minorities, helping them to preserve and intensify their social ties with members of their community in the country of origin and in the settlement country (Bankston & Zhou 1995, Eurydice 2009, Zhang 2008).

²²As explained by Medda-Windischer (2009): while “the Interdependence Theory based on the concept of Common Underlying Proficiency (CUP) or the integrated source of thought for both languages accommodates the process of skills and knowledge transfer between the two languages”, “the Minimal Threshold of Linguistic Competence conditions the positive transfer of skills between languages by suggesting that it is necessary to obtain a certain secure level of proficiency in both languages in order to be experiencing the benefits of bilingualism”. See Cummins (1976, 1978, 1991, 2000). Some authors have criticized such hypotheses, especially the Minimal Threshold theory, also supporting the idea that the positive effect of bilingualism comes from the learning of a second language and not the maintenance of the mother tongue. See, among others, Esser (2012).

Nevertheless, it is also acknowledged that children who do not speak, read, or write the language of instruction to the level of their peers perform less well in school (Organisation for Economic Co-operation and Development 2001).²³ The Programme for International Student Assessment (PISA) has demonstrated that being of immigrant background still constitutes a disadvantage with respect to school success, putting the responsibility on public schools to establish equal chances for every citizen (Mehlem et al. 2004, Christensen & Stanat 2007). This argument has been defined as the ‘institutionalized reproduction of inequality’ as a factor for new minorities’ underachievement (Marko 2013, Gomolla & Radtke 2002, Vertovec & Wessendorf 2005).

Helping children of new minorities maintain and develop both languages – the state language or language of instruction and the language of the country of origin of their parents – is therefore a worthwhile, though difficult, goal (Christensen & Stanat 2007). Regardless of the different attitudes that lead to education models and teaching methods, finding a balance between the three aims of education, namely universal values, practical needs of the child and respect for distinct cultural traditions and identities, is often described, especially by teachers, as difficult or problematic. The problems range from complications of the teaching assignment and decreased educational quality because of restricted linguistic competences of the children, to difficulties to convince parents and administrations that it is profitable to teach languages of countries of origin of new minorities like Turkish or Arabic, which for many seem to be largely irrelevant to European societies (de Carlo 2005).

Mainstream monolingual ideologies have a particularly strong impact on schools, where teachers are often (more or less consciously) highly skeptical about the advantages of heritage language maintenance. This trend has been confirmed by various studies all across Europe. For instance, in the UK “there is a lack of support in mainstream education for heritage language, which has made it necessary for parents and families to accept full responsibility” (Weekly 2020); this “creates an implied language policy, when one actor does not contribute, it is left to other actors to assume responsibility, in this instance parents, families and communities” (Weekly 2020). Similarly, quantitative studies in Greece “have indicated that a very large number of teachers (48.2%) consider their pupils’ heritage languages a hindrance to the learning of Greek, while another large

²³On educational inequality see, Baysu & de Valk (2012), Heath et al. (2008), Phalet & Heath (2011), Entorf & Minoiu (2005), Levels & Dronkers (2008), Organisation for Economic Co-operation and Development (2006), and on dropout rates, Kalmijn & Kraaykamp (2003).

number stated that the learning of heritage languages should concern the immigrant communities themselves (52.5%)” (Gkaintartzi et al. 2015, Acquistapace 2014).²⁴

Schools, therefore, often see the languages of new minorities as necessary but negative temporary tools while the child is learning the state’s official language (Skutnabb-Kangas 2008). As soon as he/she is deemed in some way competent in the language of instruction, the minority language can be left behind, and the child has no right to maintain this language and develop it further in the educational system, which is usually a one-way mechanism to assimilation.

The perceived burden of teachers to deal with bi- and multi-lingualism reflects an ongoing transformation into a multilingual society. And this process takes place in one of the functional parts of society, the educational system, which has to deal with contrary requests: a state-defined monolingualism and a multilingual reality (de Carlo 2005).

Policies and practices that countries use for language support can be divided into five different categories (Christensen & Stanat 2007):

- Immersion: These programs provide no specific language support. students are “immersed” in the language of instruction within mainstream classrooms.
- Immersion with systematic language support: Students are taught in the mainstream classroom, but they receive specified periods of instruction aimed at increasing proficiency in the language of instruction over a period of time.
- Immersion with a preparatory phase: Students participate in a preparatory program before making the transition to mainstream classes.²⁵

²⁴This attitude can be directly connected to an (often) subconscious process of linguisticism “used to construct some languages negatively as non-resources, even as handicaps, which may prevent children from enjoying the ‘full benefits’ of majority languages” (Nic Craith 2006). It may also be argued that teachers’ formative process is itself embedded in monolingualism so that mainstream pedagogical approaches, adopted even by teachers who are themselves heritage language speakers, (un-)consciously favor a transparent language ideology. Indeed, majority language teachers have a “certain perspective in regard to heritage language maintenance, and the importance of integrating into the majority culture and language” (Weekly 2020, para. 25).

²⁵Several countries have adopted programs to teach young children the language of instruction prior to attending compulsory education. For instance, Germany has such programs for children who were born in the country or came to Germany at a very young age. The Flemish community in Belgium as well as Lithuania, Luxembourg, and Norway provide reception classes to children to equip them with language skills prior to attending compulsory education. In addition, the Czech Republic, Finland, and some municipalities of Sweden offer pre-primary language instruction (Papademetriou 2009).

- Transitional bilingual schooling: Students initially learn in their minority language before teaching gradually shifts to the language of instruction.
- Bilingual schooling *strictu sensu*: Students receive significant amounts of instruction in their minority language; programs aim to develop proficiency both in the minority and the state official language.²⁶

In Europe, most countries offer monolingual programs that provide additional support for second-language learning. The most common approach in primary and secondary school is immersion with systematic language support (Christensen & Stanat 2007). According to Christensen and Stanat, it is difficult to determine the extent to which the different language support programs contribute to the relative achievement levels of immigrant students (Christensen & Stanat 2007). Studies conducted in this field indicate, however, that countries that tend to have long-standing language support programs with clearly defined goals and standards are those with relatively small achievement gaps between new minorities and students from majority groups, or smaller gaps for second-generation students compared to first-generation students (Organisation for Economic Co-operation and Development 2006). In contrast, in countries where new minorities perform at significantly lower levels than their peers from the majority group, language support tends to be less systematic (Organisation for Economic Co-operation and Development 2006).

In terms of language support, EU legislation introduced in the 1970s following the Directive 1977/486/EEC requires MSs, as seen earlier, to provide supplementary language tuition for children of EU migrant workers, in both the language of the country of residence and in their minority language, with a view to facilitate their integration in the country of residence and in their country of origin should they subsequently return (Council of Europe and EU Agency for Fundamental Rights 2015). However, while this seems to offer quite generous and valuable supplementary support to children following their admission to a school in the settlement state, its implementation across different countries has been notoriously patchy and increasingly impractical given the range of different languages to accommodate (Council of Europe and EU Agency for Fundamental

²⁶Some Scandinavian countries, including Finland, Norway, and Sweden, as well as Cyprus, Estonia, and Latvia, offer bilingual instruction, where teachers teach in the new minorities' languages and the language of instruction (Papademetriou 2009). In the United Kingdom, schools have always been able to offer languages spoken by their pupils within the modern foreign languages curriculum, if they so wish. For instance, in the UK a number of schools are offering classes in Polish language and culture (Eurydice 2009).

Rights 2015). Additionally, language education for new minorities frequently intersects with the teaching of foreign languages that are perceived to have high economic value, potentially posing challenges for minority students (O'Rourke & Zhou 2018).

4.2 Labor and Employment

Also, in the field of labor and employment, language is considered to have an eminent role as an instrument to assure the successful integration of new minorities in society. Language is however also relevant to guarantee that the economy of a state functions properly. As for education, language has then a bidirectional dimension or value: a tool for new minorities to integrate and a tool for the economy to function properly.

Considerable research has examined the relationship between language proficiency in the state language and labor market integration. It is acknowledged that new minorities with greater language proficiency in the state language earn more and work in more skilled occupations than those with low proficiency, even after controlling for differences in education and skill associated with language abilities (McHugh & Challinor 2011). In particular, for the highly skilled, language fluency allows new minorities to practice the profession in which they are trained, rather than being downgraded to less-skilled jobs. Finally, for those with low- to mid-level skills, language proficiency is the ticket to better-paying jobs and upward mobility (McHugh & Challinor 2011).

Insufficient knowledge of the state language is in fact one of the main grounds for exclusion of new minorities in the labor market as this factor is so relevant for improving their status and to achieve social mobility. There is however evidence that language competence is often used as a pretext by many employers to exclude some candidates on cultural or religious grounds, in particular Muslims, even if they have been living in the country for 2 or 3 generations (Dechief & Oreopoulos 2012).

Language-based discrimination in the labor market is a salient issue that links language policies and the equality principle. Language proficiency requirements and certification of language proficiency may indeed constitute a disproportionate obstacle for access to certain occupations for persons belonging to new minorities. In this regard, but only as EU nationals are concerned, the European Court of Justice acknowledged that it is legitimate to require a job applicant to have a certain level of linguistic knowledge. However, the Court stated: "the right to require a certain level of knowledge of a language in view of the nature of the post must not encroach upon the free movement of workers. The requirements

under measures intended to implement that right must not in any circumstances be disproportionate to the aim pursued and the manner in which they are applied must not bring about discrimination against nationals of other Member States". (Court of Justice of the European Union 2015).

Various European countries have rather strict state language laws and apply rigid requirements of state language proficiency to access positions in the public service and even jobs in the private sector. In practice, this may lead to direct or indirect discrimination against those who have insufficient command of the state language.

In parallel with this trend, the awareness of the importance of language skills, including languages of new minorities, is increasingly gaining ground in the current economic context. A multilingual and multicultural labor force is indeed considered crucial for economic growth and better jobs, enabling businesses to be more competitive (Huddleston & Wolffhardt 2016, European Network to Promote Linguistic Diversity (NPLD) 2015, Gazzola & Wickström 2016). According to this view, languages, including languages of new minorities, are conceived as an opportunity for growth and prosperity.

4.3 The Law Enforcement System

The use of languages other than the state language in the law enforcement system has both an instrumental and an intrinsic value. Besides ensuring communication with the public authorities, using a language other than the state official in the public realm, shall guarantee, as emphasized earlier, the preservation and promotion of specific identities.

A number of safeguards in this field are set up by the European Convention on Human Rights (ECHR). Under Article 5 (2) ECHR, anyone arrested must be informed promptly and in a language that he/she understands of the reasons why he/she was arrested, so as to be able to seek judicial review of his/her arrest or detention.²⁷ Use of the terms 'arrested' and 'charge' in article 5(2) implies that the text belongs to a criminal law context (Schabas 2015). The information referred to in Article 5(2) need not be related in its entirety by the arresting officer at the very moment of the arrest. Besides, there is no requirement that the reasons be in writing or in any special form (Schabas 2015). This guarantee is applied in many cases of extradition and expulsion (Schabas 2015).

²⁷In *Zamir v. the United Kingdom*, the Commission was of the opinion that free legal aid should have been made available to an illegal immigrant detained pending deportation because of his poor command of English and the complexity of the case (ECommHR 1983).

Human rights standards recognize also minimum guarantees in criminal prosecutions because it is clear that an accused person who is not familiar with the language used by the criminal tribunal is at a particular disadvantage. These guarantees include the right to receive information about the nature and cause of the charge in a language which he/she understands (art. 6 (3) (a) ECHR). This right is operative well before the trial and from the moment when the individual is 'charged' (Schabas 2015, Ovey & White 2006).

The ECHR recognizes also the right of a person charged with a criminal offense to have free assistance by an interpreter if he/she cannot understand or speak the language used in court (art. 6(3)(e)). An evaluation of the linguistic abilities of the person charged with an offense is obviously vital to the application of this provision. Assessing the language skills of the accused person is primarily a matter for the domestic authorities, and, in principle, the ECHR will not intervene in such determinations. On occasion, however, the Court has made its own evaluation (ECtHR 2010). The right to an interpreter applies not only to oral statements at the trial, but also to documentary material in order to have the benefit of a fair trial (Schabas 2015, Ovey & White 2006). The right to a free interpreter only extends to the language used in court: an accused who understands that language cannot insist upon the services of an interpreter to allow him/her to conduct his/her defence in another language, including a language of an ethnic minority of which he/she is a member (ECommHR 1983, 1986, ECtHR 2003).

In addition to human rights norms — the so-called 'hard law' — also 'soft law' can be of assistance to new minorities as in the case of the recent Graz Recommendations on the Access to Justice for National Minorities (OSCE HCNM 2017). However, the decision on whether the scope of application of these recommendations should also be extended to new minorities is bound to be political and therefore it is largely left to the discretion of each country.

5 Conclusions

As international mobility flows continue to increase in Europe as elsewhere to an unprecedented high level, the question of integration through diversity governance reveals unequivocal urgency for most European countries that consider themselves to be rather culturally homogenous and cohesive. As a result, the process of integration of new minorities is seen as an important and urgent strategy to be adopted by most countries in order to retain an adequate level of social cohesion and prosperity (Collett & Petrovic 2014).

In this chapter we have argued that in today's increasingly diverse societies it would be conceptually meaningful and beneficial in terms of diversity governance to consider widening the scope of minority rights traditionally conceived for old, historical minorities, such as those found in the CoE Framework Convention on National Minorities, to new minorities originating from migration. This would fill a still existing gap, especially in terms of rights related to identity and diversity, on which, we have seen, most international instruments on migrants' rights contain only weak and ambivalent references. But the protection of identity and language rights, including those of new minorities, is one of the bases of a veritable process of inclusion²⁸ through which minority groups can develop a genuine sense of loyalty and common belonging with the rest of the population without the threat of being forcibly assimilated in the mainstream society which, as a result, can engender resistance and alienation.²⁹

Accommodating diversity, including linguistic diversity, is a powerful tool to reduce tensions and prevent conflicts; language is an important factor of diversity and identity building at individual and group level, thus some forms of accommodation should be found with all communities in society that speak languages different from the state language. These communities also include new minorities who are increasingly the most relevant diverse communities in contemporary societies.

In addition, cultural attachment to a language other than the official state language neither competes with nor replaces the requirement of skills and fluency in the official language of the country. A common public language is indeed necessary for the state to function and proficiency in the state language is an important tool by which integration is assured (Poggeschi 2013).

It is important to note, however, that in order to spark solidarity and social trust, and thus social cohesion, recognition of diversity is not sufficient: states should also tackle social structures and mechanisms that result in systematic

²⁸In this regard, the OSCE HCNM called on States Parties to include minority cultures and tolerance in the general curriculum in order to increase inter-ethnic understanding and dialogue and to "advance the important goal of sensitizing students to foreign cultures that do not qualify as national minorities, e.g., recent immigrants or refugees resident in the country" (OSCE HCNM 1997). Likewise, article 6 FCMN calls on State Parties to encourage a "spirit of tolerance and intercultural dialogue" and promote "mutual respect and understanding", and the CSCE/OSCE Copenhagen Document invites State Parties to "promote a climate of mutual respect, understanding, cooperation and solidarity among all persons living on its territory, without distinction as to ethnic or national origin or religion" (CSCE 1990). See also European Union (2005), Director-General Justice, Freedom and Security (2010), European Union (2004), OSCE HNCM (2006). Among the vast literature on identity, see Parekh (2008), Guild (2004), Nazroo & Karlsen (2003).

²⁹On the politics of belonging, see Yuval-Davis (2006), Geddes & Favell (1999).

deprivation and exclusion of new minorities from their equal public standing (Balint & Guérard de Latour 2013).

In conclusion, if a country is serious about the integration of new minorities, then it should not oppose the extension of the scope of application of minority provisions, including those pertaining to language rights to them. This would be an appropriate political gesture that underlines the importance of the country's integration policy and sends out a powerful message that populations of immigrants or asylum seekers are no longer seen as the "legal Other" (Acosta Arcarazo 2011)³⁰ but as an integral, though distinct, part of the nation.

Abbreviations

CoE	Council of Europe	MSs	Member States
EU	European Union	UK	United Kingdom
ACFC	Advisory Committee on the Framework Convention for the Protection of National Minorities	PISA	Programme for International Student Assessment
		OECD	Organization for Economic Co-operation and Development
UN	United Nations		
OSCE	Organizarion for Security and Cooperation in Europe	NPLD	European Network to Promote Linguistic Diversity
HCNM	High Commissioner on National Minorities	ECHR	European Convention on Human Rights
LTRD	EU Directive on the Status of ECtHR Third-Country Nationals who are Long Term Residents		European Court of Human Rights

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³⁰In a similar vein, Weiler notes: "Concern for the cultural, linguistic and ethnic integration of aliens may send a signal which accentuates both the otherness of the alien and an intolerance of the dominant culture towards such otherness" (Weiler 1992).

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Chapter 6

Perspectives of newly arrived Kurdish and Afghan families in Germany on their heritage languages and linguistic situation

Mejrema Koca & Ulrich Mehlem

The linguistic situation of newly arrived families threatened by forced migration in Germany after 2015 is characterised by attempts to learn German as the new official language and an unclear status of other languages, which played a role in their earlier lives, such as the heritage language of the family, the official language of the country of origin and other transit languages (Brücker et al. 2016, Panagiotopoulou & Uçan 2023, Panagiotopoulou et al. 2023). While the status of minority languages without official support in European countries and the implications for integration and educational success are an issue of extensive debate (Kristen et al. 2011, Kruse et al. 2012, Kempert et al. 2016), the particular cases of Kurds from Syria and Iraq and speakers of Pashto from Afghanistan are rarely studied. On the basis of semiguided interviews, the project examines the development of attitudes of minority school-age children and their parents from Afghanistan, Syria and Iraq on their different languages and their family language policy in a longitudinal perspective. In the theoretical framework of King et al. (2008) and Darvin & Norton (2015, 2017), their linguistic resources, preferences, ideologies and investments in language learning are analysed. First project results will be presented on the basis of case studies grouped together in a typology on the basis of Brizić (2021).



1 Introduction

In 2015 and 2016, Germany witnessed the influx of more than one million people from the Middle East and the Balkans who fled civil wars in Syria and Iraq, political instability in Afghanistan and persecution of the minorities in Turkey, Iran and other countries. According to official data, the most important countries of origin of 441,899 asylum seekers in Germany in 2015 came from Syria (35.9%), Albania (12.6%), Afghanistan (7.1%) and Iraq (6.7%). In 2016, out of 722,370, 36.9% were of Syrian, 17.6% of Afghan and 13.3% of Iraqi origin (BAMF (Bundesamt für Migration und Flüchtlinge) 2018). Among these, there was an overproportional share of children and young adults. Germany's educational system was not well prepared for such a situation. Although the educational success of the children of migrants who live a long time in Germany remained an issue of debate, the school system had slowly moved from a long tradition of separate classes for learners of German as a second language towards the immediate integration of all children into regular classes, supported by additional measures of linguistic improvement. (Brüggemann & Nicolai 2016). As a consequence of the arrival of many school-age children without knowledge of German, the parallel or at least transitional parallel system of special classes witnessed a revival in all the Federal states of Germany. In these classes, the teaching of German as a second language, reading, writing, and mathematics was the focus. After a period of one year, maximally two years, the newly arrived children were transferred to regular classes (Von Dewitz & Massumi 2017). In the aftermath of these reforms, a discussion started among educational researchers, linguists, teachers, and politicians about the best way to integrate these children: some argued in favor of the parallel or partly integrative system, because language teaching can take the specific linguistic and psycho-social conditions of the students directly into account. On the other hand, language learning is not supported by contact with other children of German language. The model of complete integration into regular classes has the advantage of more intensive informal language contact, but less structured input (Karakayali & zur Nieden 2018, Röhner 2017, 2020).

As an important aspect of this debate, the role of other languages than German in the life of the newly arrived children is considered. Many groups of migrants lived in multilingual societies. They do not only speak one language in the family, but distinguish between the language of a local ethnic community and the official language of the country of origin. A survey of newly arrived migrants in 2016 (Brücker et al. 2016) showed that 76% of Afghanistan refugees spoke Farsi and 20% Pashto, 78% of Syrians spoke Arabic and 20% Kurmanji, 50% of Iraqis spoke Arabic, 37% Kurmanji and 9% Sorani. Languages of third countries where the children lived during their flight may even play a role.

The project on “Linguistic integration of newly arrived primary school children in Germany” as part of the LOEWE research cluster on “Minority Studies: Language and Identity” started with the following research questions:

1. What are the language attitudes of newly arrived migrant families towards their different languages and German?
2. What kind of language policy adopt the families during the first year of their stay?

To answer these questions, we conducted semistructured interviews with children and their parents about their language attitudes and orientations and their situation in Germany immediately after their enrollment in the school and 18 months later. Additionally, the children’s knowledge of German and the heritage language was tested three times with a picture description test. The children spoke Kurmanji Kurdish (3), Pashto (3) and Dari/Farsi (9) as their first languages. Their families came from Syria, Iraq, Iran, and Afghanistan. In the following, we will present some results of interview analysis of Kurdish and Pashto-speaking children and their parents.

The paper consists of five sections: In Section 2, the theoretical basis of the research will be presented. The role of first language(s) in migration contexts, the specific conditions of minorities and newly arrived families and the model of ideology, identity and investment will be discussed. Section 3 deals with the methodology of the interviews, especially with children. Section 4 presents an analysis of 10 interviews with a focus on language attitudes of parents and children at two different time points. The data will be discussed in a comparative perspective on the basis of Norton’s model. A first attempt will also be made to establish a typology that is credited to the work of Brizić (2021). Section 5 will discuss the results and draw some conclusions.

2 Theoretical background: The role of languages brought to Germany

2.1 Heritage, official, literacy and transit languages

In the literature on migration and multilingualism, several terms are used to define a language acquired before the onset of second language acquisition in the immigration country:

- first language (focus on the time of acquisition),
- mother tongue (focus on the person of basic relationship),
- family language (focus on the role of the family for the transmission of a language)
- language of origin (focus on a starting point of an individual's or communities life)
- heritage language (focus on conveying a language from ancestors to descendants),

We will use *heritage language* in the following. The term refers to the first language acquired by an individual who grows up in a family in which the language of the surrounding majority society is not (exclusively) used (Polinsky 2018: 131). Such a constellation also exists in the context of migration – regardless of how far back in time the person arrived.

In the case of linguistic/ethnic minorities a tension between the heritage language and the official language of the country of origin can be observed. In addition, there might be other languages used in other communities living in close contact to the own family. At school, only the official language might be taught as a literacy language. During the flight and prior to the arrival in Germany, the children might have been in contact with languages of other countries: transit languages (Le Pichon-Vorstmann 2020). In order to understand the complexity of such forms of multilingualism, the following paper documents how – in the sense of sociolinguistics and linguistic anthropology – parents and children perceive and evaluate their linguistic practice.

2.2 Importance of heritage languages in theories of integration/acculturation

In the processes of migration, acculturation and integration, heritage languages – at the side of the official language of the immigration country – play an important role. As international studies on educational success such as PIRLS 2016 (Mullis et al. 2017) show, these languages are still spoken in many families at least sometimes (14%), almost always (17%) or exclusively (5%). In Germany, the corresponding figures are 16%, 15% and 1%. On the basis of PISA data for 2012, Gebhardt et al. (2013), confirm a usage of L1 for students in grade 9 of 64% in first generation (migrated by themselves) and 34% in second generation (born as children of migrants).

Studies on language attitudes (Baker 1992) present data on a certain adherence to heritage languages, even for the younger generation (Boos-Nünning & Karakaşoglu 2015, Broeder & Extra 1999), in migration contexts. These attitudes are part of what is called family language policy in more recent studies (King et al. 2008).

Heritage languages may develop differently than in the context of origin, but still reach a high level of proficiency among immigrant groups. Although a strict causality between a high competence in the first and the second language, as it was claimed by the interdependence hypothesis (Cummins 1979), does not exist, a good knowledge of the first language does not exclude that of the second. For children of Russian, Turkish and Vietnamese origin in Germany, Knigge et al. (2015) found a small, albeit significant influence of L1 proficiency on L2 proficiency: 6% of variance of the latter could be explained by the first language competence.

According to the theory of segmented assimilation (Portes et al. 2009, Kristen & Olczyk 2013), the maintenance of the first language may even help in developing a profile of double integration, with respect to the greater society of the immigration country and the community of origin in the categories of Berry's acculturation theory (Berry 1997, Berry et al. 2006). In terms of national background, the data of Knigge et al. (2015) showed an advantage in L2 proficiency in the Vietnamese speakers, with speakers of Russian at the second and speakers of Turkish at the third place, even after control for socio-economic background.

2.3 Research on heritage languages of minorities in migration contexts

The research presented so far refers to migrant groups and heritage languages that are at the same time the official languages of the country of origin. This is not the case for the ethnic and linguistic minorities discussed here: The Kurdish variety of Kurmanji is spoken in Turkey, Northern Syria and Iraq, but is not an official language in Turkey and Syria and only accepted in the autonomous region of Kurdistan in Northern Iraq. Pashto in Afghanistan, although constituting one of the two official languages, is of minor importance in provinces where the majority speaks other languages and uses Dari as *lingua franca*. In Germany, these languages are part of official statistics, but still play only a minor role in teaching (Brehmer & Mehlhorn 2018).

Brizić (2006), Brizić & Hufnagl (2016), Brizić et al. (2021), Brizić (2021) demonstrate for Kurdish migrants from Turkey in Austria how processes of language

maintenance and/or shift of the generation of the parents in Turkey have an impact on the educational success of the children in the migration country. With respect to narrative competence in German however, multilingual and bilingual children do not differ significantly: Maintenance of the first language Kurdish or language shift to the official language Turkish does not lead to differences in narrative competence in German (Brizić 2021: 215–228).

The Moroccan immigrants of Berber origin in Germany (Mehlem 1998) and the Netherlands (Leseman et al. 2009) also constitute an interesting reference point of research. The restricted linguistic input in Berber, measured in a parent questionnaire on language and media use at home, leads to a slower growth in vocabulary and text comprehension, compared to children of Turkish origin. On the contrary, the development of Dutch vocabulary and morphology is more successful in the Berber-speaking group, perhaps due to a greater input in Dutch. (Leseman et al. 2009: 303). But in both groups, after controlling for Dutch vocabulary knowledge, short-term memory and Raven IQ at age 3, the variance of Dutch proficiency at the age of six years is also explained to some extent by the oral proficiency in the first language at age 3 (albeit with small effect sizes, Leseman et al. 2009: 308).

As the case studies on speakers of Kurdish and Tarifit Berber show, minority languages already in the country of origin have specific effects on linguistic and cultural development in migration contexts. However, the results still remain contradictory.

Most of the studies mentioned so far, even if they look at minorities and their languages, deal with migrants families who have been living already for a long time in the country of immigration. The results in linguistic development, language attitudes and use cannot be transferred to the situation of newly arrived migrants who constitute a growing part of the migrant population.

2.4 Language ideology, identity and investment

Language attitudes of parents and children are deeply influenced by language ideologies as sets of ideas attributing prestige and values to languages and linguistic varieties. They are “... dominant ways of thinking that organize and stabilize societies while simultaneously determining modes of inclusion and exclusion” (Darvin & Norton 2015: 72).

These ideas circulate in a given society and are often considered as the natural order of things. In such a way, there is strong pressure in a country like Germany to learn the national language quickly. It is postulated that the German language is the “key to integration” that only leads to acceptance and success (Gogolin

1994). On the other hand, a heritage language can also play a role in an imagined community as a value in itself to be defended against outside pressure. Finally, a national language such as Arabic in Syria or Turkish in Turkey may be identified with legitimacy and ethnic purity.

Language ideologies establish a link between languages and group identities which may play a major or minor role in the development of a child's personal identity. In the life cycle, an individual has to solve different tasks such as the choice of a profession, the foundation of a new family or the adherence to a greater or smaller collective. The choice of a language might play an important role in the shaping of identity.

Darvin & Norton (2015) introduce the term "capital" according to Bourdieu's (1986) theory to identify economic (income, financial resources, professional status), social (networks, relationships) and cultural resources (educational qualifications, cultural assets, cultural skills, including language skills) an individual can mobilize.

The last element of the model, investment, Darvin & Norton (2015) describes all kinds of efforts undertaken by an individual in order to achieve a specific goal. The notion of investment "... accentuates the role of human agency and identity in engaging with the task at hand, in accumulating economic and symbolic capital, in having stakes in the endeavor and in persevering in that endeavor" (Kramsch 2013).

Darvin & Norton (2015) recognizes that, under the conditions of globalization, the spaces in which language acquisition and socialization take place are increasingly "deterritorialized and unbounded". This also holds for the case studies that will be discussed in the following.

3 Qualitative interviews with children and parents: An intergenerational perspective

In order to answer the research questions on language attitudes (1) and the family language policy (2) of the newly arrived children and their parents, semistructured interviews were conducted on the basis of questions dealing with language practices in the family and school experience in the home country, contact with other languages in transit countries and the situation at the beginning in Germany, leading to expectations for the future.

Before delving further into the research design, the question, how to design and conduct interviews in a way appropriate for children has to be clarified. Several studies already address exactly these questions, namely how qualitative in-

interviews especially with children can or should be designed. It has been found that some common methods of qualitative interview design, which were implicitly designed for adult research subjects, do not seem to be suitable for children. Against this background, this study chose a child-specific strategy for conducting interviews, which is also reflected in the design of the guideline. These strategies are mainly based on ideas from Delfos (2008).

There is a tension between a structured interview strategy and a flexibility that allows children to bring in personal views and interpretations. It should be found out, which issues the interviewed persons themselves would like to emphasize (Delfos 2008). Therefore, a mixed form of guided and partially narrative interview was chosen (Helfferich 2009, Delfos 2008). Data analysis is carried out with the help of qualitative content analysis according to Mayring (2010).

The interviews in German were conducted by M. Koca. She was also present during the interviews in Kurdish and Pashto which were administered by field assistants speaking the heritage language of the families on the basis of translated guidelines. The children were interviewed first and in the absence of the parents but with their prior written consent. Parent interviews followed later. If the family did not accept an interpreter from outside, older children occasionally served as translators during the conversations with parents. Such an approach enabled to consider both perspectives independently from one another.

Ethical issues of interviewing particularly vulnerable young children because of their experience of forced migration also were at stake. The project was approved by the Ethics Board of the Department of Education of Goethe University Frankfurt. The careful preparation of all participants and the transparent communication of data protection regulations also contributed to the quality of the interviews. The explanation and signing of a data protection declaration were not only of legal necessity, but also offered the interviewees emotional security and encouraged an atmosphere of trust during the interviews.

The researchers themselves do not claim to leave their own experiences in the field completely outside: One of the researchers had experienced forced migration herself. In her situation, the uncertainty about whether she would be permitted to remain in Germany was a greater burden than the pressure to learn the language, even though she was able to study. The other researcher, engaged in teacher education and the strengthening of multicultural attitudes over a long time period had to critically reflect his approach of defending linguistic diversity as a value in itself.

4 Interview analysis: Five case studies

4.1 Data collection and overview of the sample

According to the aim of the project to focus on newly arrived migrants with primary school children, originating from ethnic and linguistic minorities of the Middle East, it was planned to contact the families via the German schools directly after the enrollment of the children. Due to the Covid pandemic and the closure of schools for long periods in 2020 and 2021, the first families were contacted in 2020 via an organisation running a hostel for refugees. They belong to Kurdish-speaking minorities from Syria and Iraq and had come to Germany as early as 2015 and 2016 (cases 1 and 3).

Only in 2021, a direct cooperation with two primary schools was possible. These schools were running *Willkommensklassen* ‘welcome classes’ according to the transitional parallel model of teaching in the German state of Hesse. 13 children and their families were contacted. These children spoke Pashto (3) and Dari/Farsi (9) and Kurmanji Kurdish (1) as their first languages. Their families came from Syria, Iran and Afghanistan. Out of these, only five cases are presented in this article. At the time of the first interview, they were living in Germany between 7 months and 1.5 years. The following table gives some basic information about the five cases and their languages.

Table 1: Overview of the case studies

	Arrival in Germany	Origin Country	Heritage and Transit Language	Literacy
Z (15 years) Case 1	October 2015	Syria (Kurdish Region, Northern Syria)	Kurdish (Kurmanji), Turkish, Arabic	Turkish, German
N (10 years) Case 2	March 2021	Syria (Kurdish Region, Northern Syria)	Kurdish (Kurmanji), Arabic	German
A (13 years) Case 3	February 2017	Iraq (Sinjar province?)	Kurdish (Kurmanji), Variety Bahdini	Kurdish, German
S (9 years) Case 4	February 2020	Afghanistan	Pashto, Urdu	German
E (8 years) Case 5	February 2020	Afghanistan	Pashto, Farsi	German

Two of the three Kurdish (Kurmanji) speaking families originate from Syria, and one from Iraq. The two Afghan families lived in the provinces of Baghlan

and Jalalabad in Afghanistan and spoke Pashto as their first language. As transit languages, Turkish (case 1: stay in Turkey) and Urdu (case 4: stay in Pakistan) play a role.

The interview analysis is based on two categories: “Reported use and competence of languages brought to Germany” (Section 4.2) gives information on language use and language competence in the family and in the languages learnt at school (literacy). The second category “Cultural identity and attitudes towards family languages towards family languages” (Section 4.3) discusses questions of family language policy: preferences, maintenance and shift.

The following excerpts from the interview transcripts contain passages in different languages according to the choice of the interviewees.¹ Sometimes, statements of children and parents are presented together. In two parent interviews, the children also translated from Kurdish to German and vice versa. These translations were part of the interview itself. The author’s translations in English are always given in single quotes ‘...’. If (translates) is written after the object language, the speakers were immediately translating their utterances for the other party. All utterances were transcribed verbatim and are not corrected for the standard language. The excerpts presented in this article include data of the first and second interviews (18 months later).

4.2 Reported use and competence of languages brought to Germany

4.2.1 Z: Kurdish in Syria, transit via Turkey

Z and her mother and sisters fled from Syria. They speak Kurdish at home. Before travelling to Germany, they spent three years in Turkey, where they all learnt Turkish. In the following, the child describes her use of different languages at home.

- I: *In welchen Sprachen sprichst du zu Hause?*
‘Which languages do you speak at home?’
- Z: *Ähm, Kurdisch und wenn meine Geschwister mich, also manche Wörter nicht verstehen, dann erklär’ ich die auf Türkisch.*
‘Kurdish, and if my sister and brother don’t understand me, well, some words, then I explain them in Turkish.’
- I: *Mhm, und warum auf Türkisch?*
‘Mhm, and why in Turkish?’

¹I = interviewer, MA = A’s mother, FN = N’s father, MN = N’s mother, MS = S’s mother, FE = E’s father, MZ = Z’s mother.

- Z: *Weil, die können nicht so viel Kurdisch, also sie sprechen schon Kurdisch, aber nicht so.*
'Because they don't speak so much Kurdish, so they already speak Kurdish, but not enough.'
(Int 1_Z I, 21–26)

Turkish is used here as a language of mutual understanding between Z and her younger siblings. Due to the long stay in Turkey, they also used Turkish at home. Since their arrival in Germany, the knowledge of Kurdish decreased, at least in the case of the younger siblings. With respect to literacy, the interviewer asks Z about her school experience in Syria.

- I: *So liebe Z, ich möchte dich kurz fragen, in welcher Sprache kannst du schreiben?*
'Dear Z, I would like to ask you, in which language can you write?'
- Z: *Ähm Türkisch und Deutsch*
'Um, Turkish and German'
- I: *Und Arabisch?*
'And Arabic?'
- Z: *Nein kann ich nicht*
'No I can't'
- I: *Und du warst in der Schule in in Syrien?*
'And you went to school in Syria?'
- Z: *Ja hm nur äh bis zweite Klasse isch kann nur manchmal so etwas lesen und kann nur mein Name schreiben sonst nicht.*
'Yes hm only uh until second grade I can only sometimes read something like and can only write my name otherwise not.'
- I: *Und habt ihr dort in der Schule Arabisch gelernt oder welche Sprache gab's da in der Schule?*
'And did you learn Arabic there in school or what language was there in school?'
- Z: *Arabisch und als äh also und Englisch so wie hier*
'Arabic and as uh so and English so like here'
- I: *Hm, aber Arabisch hast du dort gelernt zu schreiben?*
'Hm, but Arabic you learned there to write?'
- Z: *Ja*
'Yes'
- I: *Und jetzt kannst du nicht mehr oder wie ist es?*
'And now you can't write it or how is it?'

- Z: *Äh ich habe vergessen, weil ich war ja in drei Jahre in Türkei... und hier sieben Jahre*
'I forgot, because I was in Turkey for three years... And here for 7 years'
(Int 1_Z II, 1–30)

Z claims Turkish and German as her languages of literacy. Only after directly asked, she speaks about Arabic which was the first official school language in Syria. However, the amount of time spent in school was too short, and later, Turkish and German replaced it completely as written language.

- I: *Ah ok. Und in der Türkei, wie hast du dort hm Türkisch gelernt zu schreiben?*
'And in Turkey, how did you learn to write in Turkish?'
- Z: *Hm, mit Leute die Türken waren, (I: hm) die waren befreundet und ja von den haben wir was gelernt und die dürften in so eine Moschee gehen immer, so in Sommerferien 6 Monate lang und dort habe ich auch gelernt Türkisch zu sprechen. Aber schreiben und lesen habe ich hier gelernt nach Deutschen Buchstaben und so.*
'With people who were Turkish. They were friends and we learnt from them and they were allowed to go to the mosque, in summer holidays for 6 months and there I learnt to speak Turkish. But reading and writing Turkish with German letters I learnt here.'
(Int 1_Z II, 32–38)

It is not clear which form of language lessons the children visited in Turkey, but it was Turkish, not Arabic which was taught there. Interestingly, only the spoken language was practiced there.² In Germany, Turkish still serves as a bridge to acquire new German words, when the girl uses Google Translate to find corresponding expressions to Turkish. Kurdish is not mentioned at all in this part of the interview.

In the second interview, Z was asked which language she felt most comfortable with (*Wohlfühlsprache*). Her answer is as follows:

- I: *In welcher Sprache fühlst du dich wohl, oder welche Sprache sprichst du am liebsten?*

²According to Chiari (2018: 56) such informal teaching for Syrian refugees falls in the first phase of educational policy (2011–2014), in which the Turkish state did not systematically enroll Syrian refugee children in the educational system.

‘In which language do you feel most comfortable? Which language do you like to speak most?’

Z: *äh Türkisch*

‘Turkish’

I: *Türkisch?*

‘Turkish?’

MA: *und Kurdisch auch beide* ‘and Kurdish, both’

I: *Ah ok. Hat sich Türkisch bei dir noch so festgehalten wie damals.*
‘You kept Turkish from that time.’

Z: *Ja* (smiling)

‘Yes’

I: *Ah schön. Wo hörst oder sprichst du noch mit jemand Türkisch aus der Familie?*

‘That’s nice. Where do you hear Turkish, does somebody speak with you Turkish in your family?’

Z: *Ja mit Freunde aus der Schule, mit Geschwister, Cousine usw. auch*
‘Yes, with friends at school, with siblings, cousins, too’

(Int 2_Z, 36–49)

For the girl, Kurdish is not exclusively the language to express emotions. The use of Turkish is not restricted to the greater family, but also includes other children from the new school. Later, she adds that her contact with these children is restricted to school.

4.2.2 N: Kurdish in Syria, transit via Greece

In case 2, the child claims that Kurmanji-Kurdish is the family language even in Germany. In a sentence, mixed with some German, Kurdish is also linked to the origin:

I: *Tu xwisk û brê te bi kîjan ziman qise dikî?*

‘In which language do you speak at home?’

N: *Kurdî*

‘Kurdish...’

I: *Kurmancî-Kurdî?*

‘Kurmanji Kurdish?’

N: *Kurmanji ist* (German: is) *zimanê me ye... Em bi eslê xwe kurden*
(German: Kurds.

‘Kurdish is our language. We have Kurdish origin.’

(Int 1_N, 12–16, 25–29)

N learned some Arabic only during her long stay in Greece (6 years):

- I: *Zimanê din jî dizanî?*
'Do you know another language?'
N: *Ez erebî zanim, zimanê xwe û etwas deutsch.*
'I know Arabic, my native language and a little bit of German.'
I: *Tu erebî kîderê hîn buyî?*
'Where did you learn Arabic?'
N: *Li Yunan.*
'In Greece.'

(Int 1_N, 17–24)

Both parents confirm that Kurdish is their mother tongue (*zimanê dayîka*). As for Arabic, the father gives the following explanation:

- I: *Pistî Kurmancî we kîjan ziman qise dikir?*
'Which language do you speak in addition to Kurdish?'
FN: *Kurmancî û Erebi. Ne zidetir. Ema zimanê me Kurmancî ye. Em texrîben 5, 6 salî bûn me Erebi destpêkir.*
'Kurdish and Arabic. Not much. But our language is Kurdish. We were about 5, 6 years old when we started speaking Arabic.'
MN: *Ne zêde.*
'Not much.'

(Int 1_N_parents, 144–154)

In the family, Kurdish is predominantly used, but also German already plays a certain role, at least for the older children. On the one hand, the parents want the children to speak Kurdish, on the other hand, they can learn some German from them:

- I: *Hûn mal de kîjan ziman dipeyvîn?*
'Which language do you speak at home?'
FN: *Zarokên min bi Kurmancî dipeyvîn. Em jî wan ra Kurmancî dipeyvîn. Em wan ra dibêjin Kurmancî bisteqilin, bila em jî wan bigirin. Yên mezin disteqilin. Min ra jî Almanî disteqilin. Ez wan ra dibêjim wele ez fahm nakim. Dibêjin em dixwazin tû fehm bikî. Yên ke hebin bisteqilin, em hîn dibin.*
'My children speak Kurdish. We speak Kurdish with them. We tell them that they should speak Kurdish. We learn from them. The older children speak. They speak German to me. I say to them that I don't understand. They say that I have to understand/learn it. If people spoke, we would learn from them.'

(Int 1_N_parents, 235–240)

The father also reports on the knowledge of other languages of his children:

I: *Zarokên we wekî din kîjan ziman dipeyvin?*

‘Which other languages do your children speak?’

FN: *Kurmancî dipeyvin. Û Almanî jî dipeyvin. Yê min ê mezin. 4 hebin terin medresê. Ew xwe jî diştexilin. Kecika min a vir jî disteqile. Kurmancî û Almanî. Zimanê Erebi jî dizanin. Ma ne gelege. Fehm dikin.*

‘They speak Kurmanji Kurdish. They also speak German. My daughter, who is here, speaks Kurdish and German. She can also speak Arabic. Isn’t that enough?’

(Int 1_N_parents, 163–173)

While Z’s family was in Turkey, N’s family also stayed a longer time in Greece. But their legal status was not secure. Even worse, the refugee camp was far removed from inhabited areas:

FN: *Li Yunanê jî em avitin colê, kampa colê de bû. Tistek dora me tune bû. Yani car – pênc sala zarok necûn medresakî tistekî. Li colê bû.*

‘In Greece, they threw us into a desert. The camp was in the desert. We had nothing around us. The children couldn’t go to school for four to five years. It was in the desert.’

(Int 1_N_parents, 348–350, 360–62)

They could not get in contact with other people outside the camp. Although the older children were already in school age, they could not go to school. It is not surprising that Greek language did not play any role in their life. By contrast, the situation in Germany is described quite positively:

FN: *Li vî derê texrîben 6 heyvê wan terin medresê, ji xwe re dixûnin, dinivîsinin.*

‘They started school here about 6 months ago. They can read, write.’

(Int 1_N_parents, 350–351, 363–64)

In the second interview, the girl still prefers Kurdish as a language she feels comfortable with (Int 2_N, 29–30). In the new school, however, German is predominantly used, because her friends come from several countries. She does not speak Arabic with other children:

N: *Ja, ich kann auch Arabisch, aber ich rede mit denen nicht Arabisch, weil wir sind nicht Araber.*

‘Yes, I also speak Arabic, but I don’t speak to them Arabic, because we aren’t Arabs.’
(Int 2_N, 55–76)

The father emphasizes the importance of going to school in Germany and learning. He and his wife want to make some progress, too:

FN: *Em gelekî kêfxweş in bi vê çikê, bo zarokê me jî ku diçin mektebê û ji xwe re dielimin û* (I: *Hm* (agrees)) *âh em bi xwe, dixwazim em pêşkevin, ne wek xwe bin.*

‘We are very happy about it, that our children can go to school and learn something. We want to develop ourselves further, we do not want to stay what we were before.’

(Int 2_N_father, 536–537)

4.2.3 A: Kurdish in Northern Iraq

The child originates from the Kurdish part of Iraq, from where she and her mother and sisters fled five years ago. Her father had arrived in Germany shortly before. She still speaks Kurdish³ in the family. Her mother confirms her own perspective on a good competence in Kurdish, although meanwhile proficiency in German is the best.

I: *In welchen Sprachen sprichst du zu Hause?*

‘Which languages do you speak at home?’

A: *Kurdisch*

‘Kurdish’

I: *Kannst du noch eine andere Sprache oder mehrere Sprachen sprechen?*

‘Can you speak another language or several languages?’

A: *ahm, ich spreche ich kann Deutsch, und Englisch lernen wir gerade in der Schule*

‘I speak, I can speak German, and we are learning English at school right now’
(Int 1_A, 7–11)

I: *Hm. Welche Sprache sprichst du mit deinen Geschwistern?*

‘Which language do you speak with your sisters and brothers?’

A: *ahm: Kurdisch eigentlich meistens*

‘Kurdish for the most time in fact’
(Int 1_A, 12–13)

³According to the Kurdish field assistant, it is the Bahdini (also known as Bedini, Behdini, Wehdini) variety of Kurmanji (Haig 2019: S. 287).

With respect to literacy learning, A refers to her school experiences in Iraq:

- I: *Kannst du schon schreiben oder lesen in einer anderen Sprache?*
'Can you already write or read in another language?'
- A: *Früher konnte ich Kurdisch, aber jetzt habe ich es verlernt, weil ich muss so viel Deutsch lernen. Gerade in Unterricht Englisch*
'I was able to read Kurdish, but now I forgot it, because I have to learn so much German. And now, lessons in English'
(Int 1_A 30–31)
- I: *Also Deutsch, Englisch kannst du jetzt schreiben*
'So, German, English you are able to write'
- I: *Ah. Bist du dort zur Schule gegangen?*
'Ah. So did you go to school there?'
- A: *Ja, nur bis erste Klasse dann eh muss ich nach Deutschland kommen*
'Yes, only until the first grade, then I must come to Germany'
(Int 1_A, 48–49)

A was in contact with written Kurdish only during a short time, when she went to school in Northern Iraq. The expression *verlernen* 'forget' may indicate that German as a second language and English as the first foreign language replaced Kurdish as the first language of literacy.

A's mother also does not refer to Kurdish when asked about picture book reading at home. In the following excerpt, A translates the interviewer's question into Kurdish, while A's mother answers in Kurdish:

- I: *Und lesen Sie Ihrem Kind vor oder schauen Sie mit ihm die Bilderbücher an?*
'And are you reading to your child or looking at the picture books with them?'
- A: *Tu ji zarokên xwe re pirtûkan dixwîni?* (translates)
'Do you read books for your children?'
- MA: *Nein, manchmal lesen, schreiben*
'No, sometimes read write'
- I: *In welcher Sprache?*
'In which language?'
- MA: *Deutsch*
'German'
- I: *Auf Deutsch?*
'In German?'

MA: *Aber ich ein bisschen schreiben und lesen Deutsch*

‘But I, a little bit, write and read German’

I: *Und auf Kurdisch lessen sie nicht vor?*

‘And in Kurdish you do not read to them?’

MA: *Meine Kind verstehen nicht*

‘My child does not understand’ (Int 1_A_mother, 192–200)

Picture books are read only in German, because the children (A’s younger siblings) do not understand enough Kurdish: an indication of the withdrawal of Kurdish as a family language even in this case. Unfortunately, A and her mother did not participate in the second interview.

4.2.4 S: Pashto

When interviewed for the first time, the girl S was nine years old. She was born in Afghanistan and speaks Pashto in her family, but she did not learn to write it.

I: *Ĥa, wadrega. Pe kor ke pe kuma žeba ĥabere kawey?*

‘Which language do you speak at home?’

S: *Paĥto bānde.* (translates)

‘In Pashto.’

I: *Ĥa, pa kum žebe ke likel ao lwastel kawelaišey?*

‘Which language can you read and write?’ (Int 1_S, 61ff)

I: *Yani, da paĥto ĥat ĉi da, de bānde pohege?*

I mean, this writing in Pashto, do you understand it?

S: *Da ze wele nišama.*

‘I cannot read that.’ (Int 1_S, 191–194)

The mother provides a more comprehensive reflection on the language use within her family and with respect to S. The children speak Pashto with the parents and among themselves. In contrast to her older sisters, her mother reports that S has some difficulties in language learning. After the introduction of German, these difficulties got even more important:

MS: *Aw os ĉe peke ālmānee raġla žma pe kyal ĉe wār’a ťol gaḍ o waḍ šu. Koma ĥabara kawyi, neema pake ālmāni šeereka kee, že š Puxto šeereka kee ter ĥpela ĥabara m š āta oway...*

‘Now German is added to the mix as well, everything is getting mixed up completely...She says something, half of it is in German and the other half is in Pashto, that’s how she communicates her sentences to me.’ (Int 1_S_mother, 170–173)

Additionally, the mother assesses S's proficiency in Pashto as not very strong. That is why the mother tolerates her mixed use of German and Pashto in the family.

The mother speaks Urdu, English, and some Persian (Dari), and she mentions that her proficiency in Persian is improving, particularly in comprehension:

I: *Nor pa kumo žebo puyegey?*

'What other languages do you speak?'

MS: *Puxto, aw žam Parsi leka hos že haržog oway kedaysee jawab š darkawelayšom, kedayš š ee pe š der na, ko puyegom pa tola.*

'I speak Pashto, I also speak Persian ... but sometimes it takes a while for me to respond if you were to talk to me, I might not be able to respond if it's too much, but I understand Persian perfectly.'

(Int 1_S_mother, 131–135)

In the second interview with the child, which is still conducted in Pashto, she declares German her favorite language:

I: *Pašto? Ok. Te pa koma žaba hušala ye, ya pa koma žaba habare kawal sta hwaḡigi?*

'Pashto? Ok. In which language do you feel comfortable, which language do you like to speak most?'

S: *Zama Deutsch bande habare kawal hwaḡigi.*

'I like most to speak German.'

(Int 2_S 21–24)

At the same time, she reports that Pashto is still often used in the family and with other children at school who do not speak much German (Int 2_S, 46–52).

4.2.5 E: Pashto and Dari

The last case represents another constellation of languages, in Afghanistan and Germany, as well as some kind of openness with respect to different ethnic groups. The boy speaks Pashto (and some German) at home, but he also learned some Persian with the neighbors' children in Germany:

I: *Noro žebo pege? Kum žebe bānde pege kbela de?*

'Do you speak any other languages? Which languages do you speak?'

E: *Paxto bānde... aw pārsi bānde, aw „bisschen“ deucṛ'*

'Pashto... and Persian... and some German'

I: *Hamaḡese pohege, pārsi de le kum jāi na zda keṛ'ai?*

'Where did you learn how to speak Persian?'

E: *Pārsi da dwa hālekāna di lande, hoḡo na me zda keṛ'i*

'I learned Persian from the two boys down here'

(Int 1_E, 29–46)

The multilingual situation of Afghanistan, which seems to show, at least in this case, no hierarchy of the two official languages, finds a continuation even under the new conditions of life in Germany. The father gives additional information in this respect:

In the beginning of the interview, E's father affirms: *Mung moraney žeba paxto da* 'Our mother tongue is Pashto' (E_father, 178f.). In the following, he refers also to the second common language in Afghanistan, Dari:

FE: *Ho, māšumān pa haḡa žeba ham kabere kai, aw bel māš š umān, pe š pārsi ham pohegi, pa pārsi dase pohegi če mesāl menga ham-sāyagān be afḡānestān ke, awḡānestān ke ko tol kalk „gemışt“ žwand kai, Pārsiwānān, š Paxtāne „gemischt“ žwand kai.*

'Yes, the children also speak this language, and they also understand Persian. Persian, so they understand Persian because, for example, our neighbours in Afghanistan. In Afghanistan all the people are mixed, the Persians, the Pashtuns, all mixed.'

(Int 1_E_father, 184–191)

E's father differentiates between the two languages: Pashto is their heritage language, and the children speak Pashto also with mother and father and among themselves (E_father, 247–253). But Persian (Dari) is understood as well, due to the cultural and ethnic blending of Afghanistan. In their homeland, too, there was a mix of Persians (*Pārsiwānān*) and Pashtuns (*Paxtāne*). This statement points to the ethnic diversity within Afghanistan, which proved to be relevant in the context of language and cultural integration. His son can profit from this in his hostel in Germany, where he can understand the Dari-speaking boys.

In the second interview, which is still conducted in Pashto with the boy, he claims that he feels comfortable with both languages, Pashto and German. As the family moved to another district, he still has no contact with other children outside of the school where he only speaks German (Int 2_E 24–34, 45–48).

The father describes more or less the same situation at home as in the first interview: The children speak more Pashto among each other, while he tries to strengthen the use of German also at home. Even Persian is still used with other people from Afghanistan (Int 2_E_father, 51–83).

4.3 Cultural identity and attitudes towards family languages

4.3.1 Z and her mother

The second category is about language attitudes and cultural identity. In the end of the interview with Z, she gives the following statement on Kurdish:

I: *Was würdest du noch sonst, äh, gerne erzählen? Gibt's etwas, was du mir erzählen möchtest?*

'What else would you like to tell me? Is there something you would like to tell me?'

Z: *Also zum Beispiel, äh, in viele Länder, also in Syrien, gibt's keine kurdische Sprache, die müssen in der Schule Arabisch lernen.... Und zum Beispiel meine Geschwister können deswegen nicht so viel Kurdisch. ... Und ich denk', vielleicht wäre gut, wenn auch kurdische Schule gegeben wäre, dann konnte ich mehr über Kurdisch wissen ... und kurdische Kultur und so.*

'For example, in many countries, in Syria, there is no Kurdish language, they have to learn Arabic at school... and, for example, my brothers and sisters don't know much Kurdish because of that. ... And I think maybe it would be good if there was also a Kurdish school, then I could know more about Kurdish ... and Kurdish culture and so about it.'

I: *Ach so, über die Sprache*

'Oh, about the language'

Z: *Mhm. (approving)*

I: *Dass diese Schule auf kurdischer Sprache ist?*

'That this school is in the Kurdish language?'

Z: *Ja, also nur für Kurden.*

'Yes, so only for the Kurds.'

(Int 1_Z, 320–349)

Z argues in favour of the teaching of Kurdish at schools in Germany. As a reason for this, she refers to the exclusion of Kurdish as school language in Syria. The missing Kurdish teaching in the Syrian school is clearly seen in connection with tendencies of language loss in the case of her smaller siblings.

Z's mother, at the end of her interview, as well, expresses her gratitude with respect to our interest in the heritage language Kurdish:

I: And my last question, do you have any question for me? (asked in German)

(Z translates the question and the mother answers in Kurmanji)

MZ: *Na, ez saet xweşbîn dikim. Bibê saet xweş. Bibê am hatine bîrê, em Kurmanc in. Em zimanê xwe nizanin û me ra deng kir.*
'No, I want to thank you. Thank you for thinking of us Kurds, too. We have no way of speaking our language, but she (MK) spoke to us about it.'
(Int 1_Z_mother, 569–576)

Her mother repeatedly emphasises that it is important to her that her children can speak, read and write Kurdish, as it is their language. But she points out that she cannot read and write and has difficulties teaching her children to do so in Kurdish. Nonetheless, she takes a proactive stance, which is expressed as a desire for a “Kurdish school” in Germany: The school is attributed an important role in conveying knowledge about Kurdish language and culture.

In the second interview, the girl identifies herself explicitly with the Kurdish people:

- Z: *JAA: Zum Beispiel wir Kurden. Es gibt sehr viele Kurden auf der Welt, in verschiedenen Ländern, zum Beispiel in der Türkei, Syrien, Irak und die haben halt kein eigene Land und zum Beispiel isch wurde auch in der Schule, wenn isch sage, isch komme also isch bin Kurde, sie sagen immer Fantasieland zu mir. Ja.*
'Yes, for example we Kurds. There are many Kurds in the world, in different countries, for example in Turkey, Syria, Iraq, and they do not have a country of their own. For example, in school, when I say, I come from... I'm Kurdish, they say “fantasyland” to me. Yes.
- I: *Warum?*
'Why?'
- Z: *Ja, weil der Kurde keine eigene Land und keine eigene Sprache haben.*
'Yes, because the Kurds do not have a country and a language of their own.'
(Int 2_Z 212–217)

The girl reports an incident at school where she was derided when saying that she was Kurdish. The expression *Fantasieland* ‘fantasyland’ in German is used to refer to a place that exists only in fantasy, like a fairy tale. In this view, ethnic identity is linked to a state, without a state, no ethnic identity is possible. Z describes such a behavior as discriminating.

When asked about her heritage language in the second interview, the mother admits the importance of German for the future in Germany, even at the expense of the language she loves:

- I: *Wie wichtig ist für Sie, dass Ihr Kind die Herkunftssprache in diesem Fall Kurdisch weiterspricht? Wie wichtig ist das für Sie?*
'How important is it for you that your child still speaks your language of origin, Kurdish in this case? How important is that for you?'

(Z translates the question. Z's mother answers in German.)

- MZ: *Ja isch liebe meine Sprache ama hier alles Deutsch muss Deutsch lernen lesen, wir müssen lesen Deutsch*

'Yes, I love my language, but here everything is German, we must learn to read German, we must read German'

(Int 2_Z_mother, 287–291)

The final statement of the interview underlines again the importance of "remembering our language":

- MZ: *Çiçikê em ser zimanê xwe deng dikin, em xwe dihesin!*

'We are talking about our language a bit, we remember ourselves!'

- Z: *Sie findet es gut, weil sie redet so bisschen über ihre Sprache mit jemand anderem, also das findet sie gut.* (translates)

'She is happy because she can speak about her language with somebody else, she likes this.'

(Int 2_Z_mother, 592–595)

4.3.2 N's father

N's father claims the same right for Kurds to maintain their own language, even reading and writing:

- I: *Zimanê we jî bo we girînge? Zimanê xwe jî hîn bibin, bixûnin, binivîsin.*

'Is your language important for you? To learn, read and write your language?'

- FN: *Ez ci bibêjim. Zimanê me jî mihume, li vî derê em dixwazin li vî zimanê jî hîn bibin. Nivîsandinê, xwendinê. Em jî xwe re li vî derê karekî bikin.*

'How can I say this? Our language is important. We want them to learn our language here. To write, to read. And we can work here.'

(Int 1_N_parents, 436–440)

After being asked about the importance of the language for his children, he concludes with the following words:

FN: *Bo cinsîyeta wan, ji wan re jî muhîme. Ma her kes zimanê xwe bîrnake. Bila zimanê xwe, yê dayîkê bîr nekin.*

‘It is important for their nationality. Nobody forgets his language. One should not forget his language, his mother tongue’

(Int 1_N_parents, 517–523)

The father emphasizes the importance of the heritage language even for his children in the new country. As a reason for this, he refers to the children’s nationality (*cinsîyeta wan*). In the last two sentences, he moves from stating a mere fact to fixing a moral obligation.

In the second interview, the importance of the heritage language is again underlined, but the teaching of Kurdish is not in focus:

I: *Dibêje, âh N, keça te, dibêje, tere di medresê da zimanê Kurdî, yanî yanî mh heye dersê wê tişt?* (translates)

‘She (2nd interviewer) asks, if N, your daughter, goes to Kurdish lessons at school. Do such lessons exist?’

FN: *Na, na, bes bi Almanî.*

‘No, only in German’

I: *Bi Almanî, Kurdî nîne?*

‘In German, not in Kurdish?’

FN: *Na*

‘No’

(Int 2_N_parents, 303–310)

The girl agrees that she would like to read and write in Kurdish, but later she speaks about Arabic, which is practiced in a mosque:

I: *Ja. Okay. Und möchtest du gerne deine kurdische Sprache lesen und schreiben lernen?*

‘Do you want to learn to read and write your Kurdish language?’

N: *Ja*

‘Yes’

I: *Möchtest du das? Okay.*

Do you want that? Okay.

N: *Also, gibt gar nicht, wenn wir lesen auf Kurdisch, sondern gibt auf Arabisch.*

‘Reading in Kurdish does not exist, it’s in Arabic’

I: *Aha diese Kurdisch ist auch arabische Schrift. Meinst du, oder? Kannst du Arabisch lesen?*

‘This Kurdish is in Arabic script, isn’t it? Can you read Arabic script?’

N: *Nein, aber ich lerne.*

‘No, but I learn.’ (Int 2_N 10:21–10:36)

N denies here that Kurdish can be written, but claims that only Arabic has a script. She is supposed to learn this script in the mosque, but up till now they only participate in the prayer:

N: *So eine Moschee und wir beten da. Aber vielleicht können wir da auch lernen.*

‘Such a mosque and we pray there. But perhaps we can also learn there.’ (Int 2_N 11:14)

4.3.3 A’s mother

The mother of the third Kurdish student also wants to maintain the Kurdish language in the family.

I: *Wie wichtig ist für Sie, dass Ihre Kinder Bahdini lernen oder Ihre Sprache lernen? Und lesen, schreiben?*

‘How important is it for you that your children learn Bahdini or your language? And read, write?’

A: *Çima girîng e ku em fêrî axaftin û nivîsandina Kurdî bibin?* (translates)

‘Why is it important that that we learn to speak and write Kurdish?’

MA: *Divê em Kurdiya xwe ji bîr nekin.*

‘We should not forget our Kurdish.’

A: *Sie will nicht, dass wir Kurdisch vergessen, Ja.* (translates)

‘She doesn’t want that we forget Kurdish.’

I: *Das ist Ihnen sehr wichtig, Ihre Sprache?*

‘This is very important for you, your language?’

MA: *Ja*

‘Yes’ (Int 1_A_mother, 359–365)

The mother of the third Kurdish student also wants to maintain the Kurdish language in the family.

I: *Wie wichtig ist für Sie, dass Ihre Kinder Bahdini lernen oder Ihre Sprache lernen? Und lesen, schreiben?*

‘How important is it for you that your children learn Bahdini or your language? And read, write?’

A: *Çima girîng e ku em fêrî axaftin û nivîsandina Kurdî bibin?*
(translates)

‘Why is it important that that we learn to speak and write Kurdish?’

MA: *Divê em Kurdiya xwe ji bîr nekin.*

‘We should not forget our Kurdish.’

A: *Sie will nicht, dass wir Kurdisch vergessen, Ja.* (translates)

‘She doesn’t want that we forget Kurdish.’

I: *Das ist Ihnen sehr wichtig, Ihre Sprache?*

‘This is very important for you, your language?’

MA: *Ja.*

‘Yes.’

(Int 1_A_mother, 359–365)

The mother emphasizes the importance of not forgetting Kurdish. While the official language in Iraq is Arabic and is needed in the administration, Kurdish as a spoken language is more relevant in the family and sociocultural sphere. Although the interview question was translated very precisely into Kurdish here (*ku em fêrî axaftin û nivîsandina kurdî bibin* ‘that we learn to read and write Kurdish’), the mother only gives a very general answer: the language should not be forgotten. This family takes a more defensive stance towards the question of literacy in the family language Kurdish. She does not express specific wishes or measures how the language could be preserved in Germany.

4.3.4 S’s mother (Pashto)

In the case of Pashto, the main argument of the mother is the necessity to be able to communicate with their family. While the question focuses the official language, the answer relates to the family language. She underscores the cultural importance of the language, as it not only serves as a means of communication, but also strengthens the cultural identity and connection of the family. It is evident that the mother appreciates the conveying of the language to the next generation in order to preserve cultural and familial bonds:

I: *Stāso de asle hewād rasmi žeba že ahmyiat lari?*

‘What significance does your official language have in your home country, how important is it for you?’

MS: *der mohema da... ahmyiat lari*

‘Very important... very important part [it plays]’

- I: *Stāso māšum da para rasmi žeba ze ma'nā lari? Yāni māš š um tam že ahmyiat lari š* (translates)
'What role does the official language [of their home country] play for your children, how important is this language for them?'
- MS: *ham dumra ahmyiat lari no... oğoy da para zarur di, zeka če kpel famil sara, kpel koraney sara munga če yaw zay patikigo bayād če hoğoyla puxto warsi.*
'It's exactly the same important thing... They need it because when they are with their family [*fāmil*], together with their family [*koraney*], they have to be able to speak Pashto.'
(Int 1_S_mother, 110–121)

Learning to read and write Pashto in Germany, however, is not an issue here. In the second interview, the mother makes this point even more explicit:

- MS: *Moranay žaba hagha weyli ši, ho dase lustale ba na ši laka či za wem, dase hagha lustale na ši. Zaka če waṛa da.*
'She can express herself in the mother tongue, but she will not be able to read it as I do. She is not prepared for that, because she is still young.'
(Int 2_S_mother, 171–173)

4.3.5 E's father (Pashto)

When talking about language use at home, the father claims to stimulate the use of German, as well:

- FE: *Paxto bānde kabere kawi... ze pe de waḳto ke worta lagiya yem, māle tāso pa kpel mābayn ke pa deuč kabere kawey če tāso deuč xa šši, paxto preda, awgānestān pāte ššu, dalta ko če deuč de neyi zda, der muşşkelāt di.*
'In Pashto... I try to say to them always, that they need to speak German among each other, leave Pashto at the side, Afghanistan is far away, if you don't speak German here, you will have many problems.'
(Int 1_E_father, 253–259)

Already at this stage of the interview, the importance of German is underlined in order to avoid problems, even if the children use it among each other. In the same vein, the father admonishes the children not to watch Afghan movies, but German television programs:

FE: *ze zalerwist sāta dā ta'qīq pe kawma, če ze pe kār ke yem, duy ta ɬilifun kawm, ze worta waym če bel flm, afgānay flm, yā bel ššay bel ššay, dā ššay merawarey, be ġair le deuč na.*

In the first place at school, in the second at home. I'm after them 24 hours a day, even from work I ring them up and say to them, that they should not watch other or Afghan movies, but only German.'

(Int 1_E_father, 272–279)

The father comes back later to the importance of Afghanistan's two official languages, which are no longer important in Germany:

FE: *Moraney žeba moraney žeba i role daġa wa če pe kpel watan ki žwand kai, bāyad či dā dwaɾ'e de zda yi, kana? Aw delta raġlu, delta mung takum ahmiyat ne lari, delta mung ta mohema deuč da.*

'The mother tongue is the mother tongue, so the role that it plays it plays when you live in your home country, you have to speak both languages there, right? But here, here it doesn't play a role for us, here is German important for us.'

(Int 1_E_father, 438–440)

With such a tautological statement, the father reproduces the ideology of the mother tongue, but calls it into question at the same time. The situation in the country of origin where Pashto and Dari are important, is juxtaposed to Germany, where only German is still important.

I: *stāso da pāra žumra mohema da ter źo stāso māššumān ālmāni zda kɾ'i?* 'How important is it for you that your child learns German?'

FE: *Mung ta, le har že na đera mohema da, biqi de de de mohe-myat že nesem derta welay, zexta đera rāta mohema da če de mā māšumān ālmāni š žeba zda kɾ'i.*

'For us it is more important than anything else, I cannot exactly define the importance of this right now, but it is extremely important for me that my children learn learn German.'

(Int 1_E_father, 450–455)

In such a way, the unconditional importance of German and the learning of German is again underlined in the final passage of the interview. The father makes a direct connection between language and culture when asked about the importance of the German language:

- FE: *Pa ālmān ke žwand kaw, demung ko no nor ham delta žwand da no, bāyad de de kalko kultur, kânun, har çi ta ehterâm woku.*
We live in Germany now, our life is here, so we must also respect the culture and laws here.’ (Int 1_E_father, 388–391)

This statement could be understood in terms of an obligation to integration; in any case, instrumental learning motivation is not the primary focus here. In the second interview, this strong preference of German is to some point counter-balanced by a more favorable view on the heritage language:

- I: *Stāso lapāra dā tsomra mohima de če stāso māšom pa moranay žaba ḥabare kawal ta dawām warkri?*
‘How important is it for you that your children learn the heritage language?’
FE: *Monga ghwaru če dwaṛa izda wi, paḥto ao ham deutsch.*
‘We want them to speak both languages, Pashto and German.’
I: *Ao dā stāso lapāra dā tsomra mohima de če stāso māšom hum pa moranay žaba lostal ao likal kawale ši?*
‘How important is it for you that your children can read and write the mother tongue?’
FE: *Da dwaṛa mohima di bayt če moranay žaba di.*
‘Both are very important. It is obligatory to know the mother tongue.’ (Int 2_E_father 6, 152–161)

4.4 Typology of the case studies

The language policies of the five families can be described in the theoretical framework of Darvin & Norton (2015, 2017) as follows.

4.4.1 Linguistic and cultural capital

The children’s first minority language learnt from early childhood onwards, which was Kurdish in three and Pashto in two cases, is complemented quite early by other languages like Arabic (official language in Syria and Iraq) and Dari (second official language in Afghanistan). Only two older girls (Z and A) have school experience in their country of origin, but due to the unstable political situation, the knowledge of the written language got lost. While the speakers of Kurdish emphasize the difference between their family language and the official national language, Arabic, which is no longer important for them and their

children, the Pashto-speaking Afghan families have a more tolerant view of Dari, Afghanistan's second official language.

The younger children also had some access to other languages of the country of origin (Dari in case E), but often the stay in a third country (like Turkey, Greece or Pakistan) had a greater impact. In Germany, Turkish still plays an important role for Z, while E still uses Dari with some friends. The status of the heritage language, still quite stable in early childhood, begins to lose ground, especially in the case of younger siblings (like S, herself a younger sibling, or the siblings of Z and A).

A typical characteristic of many migrant families is the focus on the language of origin in conversation with parents and a greater use of the language of the immigration country among children and their peers (Portes et al. 2009, Kempert et al. 2016). In our data, however, some of the children claim to speak L1 almost exclusively inside of the family. In other interviews, the use of German at home is even encouraged by the parents, such as E's father, who integrates German into his conversations with the children in order to help them to learn it.

4.4.2 Language ideologies

The beliefs of parents and children on their linguistic situation are quite heterogeneous, at least in the first interviews. Relying on different typologies of sociolinguistic orientations of minorities in migration contexts (Berry 1997, Brizić 2021, Brizić et al. 2021), we differentiated three stances, that the families take with respect to the future of their heritage languages:

- Most parents and children consider their heritage language to be a part of their cultural identity that they should maintain (cases 2, 3, 4: Iraq, Syria, Afghanistan). This stance in favor of the heritage language remains defensive: an ideology of cultural identity is claimed, but no investments are proposed. For mother S, learning German represents the dominant reality and Pashto is only a wish. A's mother and N's father repeat the formula of not forgetting the language without taking measures for literacy learning. The stance corresponds to Brizić's "intermediate voice" (Brizić 2021).
- Only Z's family wishes to have a school teaching in the Kurdish minority language (case 1: Kurdistan/Syria). This proactive stance in favor of the heritage language underscores the necessity of investment in order to maintain the language, combined with an idea of dual integration. Learning to read and write in this language is not anymore a mere formula. In Brizić's terms, this is the "balanced voice".

- Some parents fear that maintaining or fostering the heritage language could impede the successful acquisition of the German language or would not be beneficial to the child. In this case, the father opts for a strong investment in the learning of German, combined with an ideology of assimilation, the “targeting voice” in Brizić’s study (case 5: Afghanistan).

The second interviews show some homogenizing processes: In all cases, the idea of maintaining the heritage language gets more important (even case 5), while the proactive stance of case 1 loses ground under the pressure of German and the feeling of discrimination against Kurdish identity.

4.4.3 Investment

While all families adapt themselves to a future in Germany and support their children in the learning process of German, the importance of communicating with the greater family in the country of origin still plays a role. Thus, in most cases, oral communication in the family language still has a social and emotional function, while they do not attribute to their dominant heritage language (Kurdish and Pashto) an “official” status as a written language. The oral use of the language in conversation with the family and people from the country of origin is considered sufficient for the maintenance of a Kurdish or Afghan identity.

Community support, discrimination, and educational opportunities were treated only indirectly in the interviews. In all cases, parents deny membership in or a closer relationship to associations of their migrant community. Contacts with compatriots exist in the hostels in which newly arrived families live. Parents avoid mentioning discrimination, even if they indicate few contacts with people of German origin in their neighborhood. In the cases of newly arrived children (N, E and S), the opportunities for contact with German-speaking children at school, which were described as low in the first interviews, get more important in the second interview when these children were integrated in regular classes.

5 Summary

The analysis of language attitudes and family language policies in newly arrived families of Kurdish and Pashto background in Germany during the first two years of their stay shows the importance of several languages: in addition to a minority language spoken in the family we find influence of the official languages of the country of origin and of transit languages of countries where some families stayed for a longer time. Conflicting ideologies of learning German as fast as

possible and maintaining the heritage language in the family play a role in all families. But while investment in the German school is considered essential by all families, decisive steps to prevent the loss of the heritage language are rare.

Some limitations of this study should be mentioned: In order to establish contact with newly arrived immigrants as soon as possible, the German schools served as the starting point of the project. Therefore, only a small sample of cases with very divergent linguistic and cultural backgrounds could be included. A commonality, however, is a quite late starting point in second language acquisition, similar age, forced migration, and the minority status in the country of origin. The cases are by no means representative of their whole community. For speakers of Kurdish, similar options exist in the literature on other communities (Brizić 2021). For speakers of Pashto, to date, research on language acquisition and attitudes does not exist (but see for Dari-speaking families from Afghanistan: Panagiotopoulou & Uçan 2023, Panagiotopoulou et al. 2023).

In summary, this study contributes to our understanding of the complex dynamics surrounding minority language retention within migrant families in Germany. The diversity in the interplay between language, cultural identity, and integration, as reflected in our case studies, might encourage educators to take into account the different aspirations of children and their parents. The introduction of minority languages as a subject in the German school, opted for in Z's case, may not be an adequate solution for E's family. In any case, more inclusive schooling practices may be helpful for all the children concerned.

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Part III

Scripts as markers of identity

Chapter 7

From identity to script, from script to literature: Syriac, Garshuni Arabic and Neo-Aramaic

Alessandro Mengozzi

The identification and expression of a confessional identity through script have considerable chronological depth in the history of Syriac Christianity. Different communities, belonging to various religious traditions and denominations, have been using variants of the Syriac alphabet over time, to write Classical Syriac as well as other languages. In the present paper two case studies are addressed – Garshuni Arabic and Neo-Aramaic – so as to tackle three related issues in the relationship between script and cultural identity: 1. the use of a traditional script to stress communal identity; 2. the limits and failure of nonnative writing systems; and 3. the roles of the script and print in the development of literary traditions and national feelings.

1 Traditional script and communal identities

1.1 Aramaic languages and scripts

Aramaic is not one language but a sub-group of literary languages and spoken dialects belonging to the Central Semitic group. It is the longest, continuously attested group, from the Old Aramaic inscriptions of the beginning of the first millennium BC until the Neo-Aramaic varieties spoken and written today. Possibly



since its very pre-history,¹ Aramaic is, internally, the most diverse sub-group of the Semitic family. The Aramaic inscriptions of the first millennium BC clearly show regional or local features as far as script, spelling and grammar are concerned. A relatively uniform and standardized form of Aramaic was used as official language in the administration of the Achaemenid Empire, but a wide variety of spoken and written languages were in use, as it continued to be the case throughout the Hellenistic and Roman periods.

Local cultural self-awareness as both a reaction to Hellenistic rule and a result of increasing economic prosperity eventually triggered the rise of new, regional, and largely standardized administrative idioms based on or at least significantly influenced by the respective local dialects of Aramaic, each written in a proper type of the Aramaic script derived from the Achaemenid chancellery ductus. (Gzella 2015: 279)

For the topic that is relevant in the present paper, it is important to notice that throughout the three thousand years of history of the Aramaic languages, dialectal – be it intended as diatopic, diachronic or diastratic – variation has always been and continues to be marked by the adoption of different scribal traditions or, indeed, different scripts.

1.2 The classical Syriac alphabet and its varieties

Classical Syriac is the cultural and liturgical language that defines Syriac Christianity, i.e. a number of churches that were formed originally by Aramaic-speaking communities of Late-Antique Western Asia – historical Syria and Mesopotamia – and later on by communities speaking other languages in Persia and wherever Christianity spread eastwards along the Silk Road and other commercial routes by land and by sea, among peoples speaking Iranian and Turkic languages as well as Chinese in China and Malayalam in Kerala, India.²

The language is a literary variety of Aramaic that developed from the Aramaic language of Edessa, today Şanlıurfa in southeastern Turkey, the capital of

¹Butts (2018: 149): “Aramaic may not ultimately be a genetic branch (and so there are few, if any, shared morphological innovations) but an areal group brought about by dialect convergence (and so there are shared lexical isoglosses)”.

²The volumes edited by Brock & Taylor (2001) and, more recently, King (2018) and Briquel Chantonnet & Debié (2023) are excellent presentations of Syriac Christianity, its geography, history and cultures. Detailed entries and updated bibliography on various topics related to Syriac Christianity are to be found in the *Gorgias encyclopedic dictionary of the Syriac heritage* (Brock et al. 2011 and free, online: <https://gedsh.bethmardutho.org/browse.html>). See Berti (2011) for a picture of the expansion of East-Syriac Christianity along Asian commercial routes in the 8th–9th centuries.

Osrhoene – a buffer state between the Roman and the Sasanian Empires – where various kinds of Jewish and early Christian communities lived and an influential Christian theological school was soon established (Harrak 2011).

One of the variants of the Syriac script, still in use among Syriac Christians of all denominations, has its roots in the monumental script of Edessenian pre-Christian inscriptions, later called Eṣṭrangēlā,³ possibly from Syriac ܐܬܪܢܓܠܐ *serṭā ewwangēlāyā* ‘Gospel writing’ rather than Greek στρογγύλη *strongylē* ‘rounded, round-shaped’. It is a remarkably elegant and clear script, used in the earliest Syriac manuscripts (5th cent. onwards), indeed also for beautiful Gospel lectionaries such as the famous *Rabbula Codex* (6th cent.). Although statistical data are not available, today it seems to be only seldom used for monumental inscriptions and occasionally on title pages of printed books,⁴ but consistently in European orientalist editorial projects such as the series *Scriptores Syri* of the *Corpus Scriptorum Christianorum Orientalium* (Leuven: Peeters) or *Peshitta. The Old Testament in Syriac* (Leiden: Brill).⁵

As a sign of inclusion of the Syrian Christian minorities, the Syriac language is recognized as an official language, together with Kurmandji Kurdish, Arabic and Turkish, in the Autonomous Administration of North and East Syria. It appears in Eṣṭrangēlā script, but West-Syriac vowels (see below), in the official emblem and the flag of the Administration⁶ as well as in the logo of other public institutions such as the Rojava University of Qamishli, northeastern Syria, on the Turkish border. In line with the common use of mainly Syriac-Orthodox Christians living in Qamishli, Serṭo script is also used, e.g., on the gate of the faculties of engineering and Kurdish language and literature (Samir 2019).

In comparison with the monumental character of Eṣṭrangēlā, Serṭo script is more cursive and has its forerunner in the Syriac script used for everyday purposes in documents from the 3rd to the 6th centuries CE.⁷ From the 9th century Serṭo almost completely replaced Eṣṭrangēlā types of script in the scribal

³The term appears in the 9th–10th centuries and is rarely used in Syriac sources. Moreover, it would appear that at least two types of Eṣṭrangēlā were in use in the 5th–6th centuries (Borbone 2021: 220).

⁴See Coakley (2006) for a history of Syriac typography.

⁵See Mengozzi (2015) on the lamentable use of the “wrong font” and the omission of vowel signs in Syriac text editions, even after the introduction of computer-assisted word processors and Unicode standard fonts for all Syriac varieties and systems of vowel notation. It is not only a matter of philological accuracy, but also of respect of pluri-centenary scribal traditions and living cultural identities.

⁶https://en.wikipedia.org/wiki/Autonomous_Administration_of_North_and_East_Syria

⁷See Briquel Chatonnet (2000) on the gradual development from the Edessean script of everyday life to Serṭo, that turns out to have emerged as a regional rather than confessional script.

traditions and practices of West-Syriac communities: Syriac Orthodox, Syriac Catholics and Maronites. East-Syriac Christians, today belonging to the Assyrian Church of the East, the Ancient Church of the East and the Chaldean Catholic Church, used Eṣṭrangēlā for a much longer period and developed since the 13th century their own more cursive form of Eṣṭrangēlā, called Maḏnḥāyā (ܡܕܢܗܝܐ ‘eastern’) and also known as Nestorian according to the heresiological sobriquet by which East-Syriac communities used to be labeled (Brock 1996).⁸

The official recognition of Classical Syriac is relatively well established in the history of modern Iraq, dating back to the minority policy of Saddam Hussein’s regime. In the Constitution of Iraq (Article 4), adopted in 2005, the term *al-suryānīya* is generally interpreted as covering under official recognition Classical Syriac as well as the Neo-Aramaic languages spoken by Christians, usually called *sūreth* by their speakers. As signs of local identity, Eṣṭrangēlā and East-Syriac scripts appear on road signs, billboards and flags in Iraqi towns and villages, especially in Iraqi Kurdistan, where there is a significant population of Neo-Aramaic-speaking Christians.

A variant of the Syriac alphabet similar to Eṣṭrangēlā appears to have been in use among Melkite Christians – i.e., Christian of Greek Byzantine rite faithful to the emperor, *malkā* ‘king’ in Aramaic – in 5th-century Palestine to write a local variety of literary Aramaic, traditionally called Christian Palestinian Aramaic. The script is known as Christian- or Syro-Palestinian. Later (11th–13th centuries), in Syria and on the Sinai, Melkite Christians developed a Serṭo-derived form of yet another Melkite script.⁹

1.3 Systems of vowel notation

Since the first millennium BC, the variants of the so-called Phoenician alphabet employed to write Aramaic, North-Arabian languages as well as Hebrew and, later, Arabic were in principle pseudo-syllabic writing systems. Each letter represented a consonant and the syllables formed by combining that consonant with any (or no) following vowel. The system, however, has never been purely consonantal, except perhaps for languages belonging to the Phoenician group

⁸Recent scholarship has demonstrated that, while Serṭo and Maḏnḥāyā varieties of the Syriac alphabet are easily distinguished from the historical and functional points of view, being associated with the two main branches of Syriac Christianity, the connections of earlier varieties among each other and with Eṣṭrangēlā are far less clear. “The tripartite conception of Estrangelo, Serṭo, and “Nestorian” does not help us understand the development of Syriac writing” (Borbone 2021: 220).

⁹See Schmidt (2015), with bibliography, on Syriac paleography, the history of the Syriac script and its variants; Kiraz (2012: 353–354) on Christian Palestinian Aramaic and its script.

proper. In writing other languages, such as Aramaic, Hebrew and other minor languages belonging to the North-West Semitic group, a few letters were used either to mark the prototypical consonant they represented (the glottal consonants or semiconsonantal glides) or vowels, especially in final position (*ʔalef* and *hē* for final *-a* or *-ā*) or as a result of monophthongization in any position (*yod* for *i*, *e* < *ay* and *wāw* for *u*, *o* < *aw*).¹⁰

In addition to the letters that may represent vowels according to the inherited Old Aramaic system (*ʔalef*, *yud* and *wāw*), a sophisticated and quite effective systems of dots is used in early Syriac manuscripts to disambiguate homographs and/or to tag morphologic features: e.g., the same consonantal string <mlkʔ> with a double dot that indicates the plural form is read ܡܠܟܝܢ *malkē* ‘kings’; without the diacritic sign, it is read as a singular ܡܠܟܐ *malkā* ‘king’.

In the 8th–9th centuries single or pairs of dots, disposed in certain positions under and/or above a letter, unambiguously represented certain vowels as separate graphemes, but they were occasionally used for purposes of disambiguation and not systematically to produce fully vocalized texts. This system possibly inspired and certainly shares basic principles and historical developments of similar vocalization systems, later used by Jews for the Hebrew Bible and by Muslims for the *Qurʾān*.

The history of Semitic vocalisation is the shared history of Christians, Muslims, and Jews in their attempts to preserve the recitation of their holy texts. It is a history of mutual innovations, adaptations,

¹⁰Following Daniels (1990) American scholars and many linguists today prefer to call abjad – from the Arabic name of the alphabet – this kind of prevalently consonantal writing systems and label as “alphabets” only scripts such as Greek and Latin, in which certain letters represent vowels and vowels only. In the Greek alphabet, the vowels are represented by the Semitic letters for glottal /ʔ/ and /h/, the semi-consonants *y* and *w* – i.e., the very same letters that may indicate vowels in Aramaic, Hebrew and Arabic – or the pharyngeals /ħ/ and /ʕ/, Semitic sounds that do not belong to the Greek phonological system. Names as *alpha* and *beta* mean nothing in Greek, whereas they make perfect sense in almost any Semitic tongue – spoken by Phoenicians or Arameans, to start with the Greek contacts in the ancient Near East – being the Semitic nouns of the objects pictographically represented by the original shapes of the letters, to be read according to the acrophonic principle: Ⲁ is an ox head and therefore represents the initial sound /ʔ/ (and soon *-ā*) of the word *ʔalef* ‘ox’; Ⲁ is a *bayt* ‘house’ and therefore represents the sound /b/; and so on. Since forms, phonetic values (consonants as well as some vowels) and alphabetic order are Semitic in origin – “Levantine” as Daniels (1990: 729) writes, being aware of the problem – it is ironical, and indeed Eurocentric, that we do not use the term alphabet to indicate a writing system originally used and developed by speakers of Semitic languages. (Prevalently) consonantal or pseudo-syllabic may be added, when needed, to distinguish scripts based on this system from alphabets that historically derive from them but have letters that indicate only vowels.

and intellectual exchanges over the course of hundreds of years, beginning with the first Syriac relative diacritic dots in the fifth century and reaching its zenith with the absolute vocalisation systems of the eleventh century. (Posegay 2021: 309)

The system of Syriac dots eventually developed as the East-Syriac system of vowel notation, reflecting the eastern pronunciation of Classical Syriac, and was associated with the East-Syriac, Maḏnhāyā variant of the Syriac alphabet (see Figure 1, second line). In the Ottoman period, more or less fully vocalized manuscripts were produced in East-Syriac milieu, especially for liturgical purposes (lectionaries and hymnaries, to support correct reading and choral chanting) and to write texts in different languages such as Sureth (Christian Neo-Aramaic), Kurdish or Ottoman Turkish. Neo-Aramaic texts with no vowel dots are extremely rare and prove difficult to read despite the fact that Syriac and Sureth belong to the same Aramaic language group.

Probably as late as in the 10th century the Syriac vowels as pronounced according to the West-Syriac tradition were written using small Greek letters as supra- or sub-linear graphemes. They were and are used exclusively with the West-Syriac cursive, Serṭo script (see Figure 1, first line). The rare manuscripts and books in which Neo-Aramaic – especially varieties of the Ṣurayṭ/Ṭuroyo group, spoken by Syriac Orthodox Christians in southeastern Turkey – is written in Serṭo are fully vocalized.¹¹

Lately, mainly for scholarly purposes, the two systems of vowel notation (East-Syriac dots and West-Syriac Greek letters) have been occasionally employed in the same document written in Serṭo. However, as Maḏnhāyā and Serṭo scripts, they are firmly associated with the eastern (Assyrian Church of the East and Catholic Chaldean) and the western (Syriac Orthodox, Syriac Catholic and Maronite) scribal traditions respectively and can be considered as signs of the respective cultural identities.

Serṭo and Greek signs for vowel have also enjoyed considerable popularity in European scholarship and typography until well into the 20th century, when they were the default choice for text editions as well as for reference tools such as catalogues, grammars, handbooks and dictionaries. Most of these reference tools are still in use today. The choice of Serṭo was probably favored by the prominent role of “West-Syriac” Maronites in the beginning of modern Syriac (and Arabic) philology in Europe.¹²

¹¹On the history of Syriac diacritics and vowel signs, see Morag (1961), Jones (1998), Coakley (2011), Kiraz (2012: 12, 59–90), Kiraz (2019), and Posegay (2021).

¹²See the selected papers, published in the Lebanese journal *Parole de l'Orient* 47 (2021) and 48 (2022), of the conference The Christian East in the Latin West, Assemani's *Bibliotheca Orientalis* (1719–2019), 300th Anniversary, held in Vatican City and Rome (November 7–8, 2019).

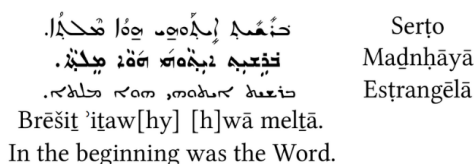


Figure 1: The three main variants of the Syriac alphabet – Serṭo, Maḡnhāyā and Eṣṭrangēlā – showing the opening words of John's Gospel: *Brēšīt 'itaw-wā Melṭā* 'In the beginning was the Word' (Gareth Hughes, CC BY-SA 3.0. Original source <https://upload.wikimedia.org/wikipedia/commons/7/71/SyriacJohn.png>).

2 Garshuni: Phenomenology and function(s)

2.1 Do you speak Garshuni?

Maronites must have originally spoken varieties of Syrian and Lebanese Aramaic and adopted Classical Syriac as a liturgical language. It is not clear when they became speakers of Arabic varieties, as they are today. It is generally thought that in the 13th century Arabic replaced Aramaic for daily use. As early as in the 12th century Serṭo was sporadically used by Maronites to write Arabic short texts and marginal notes, including the official record of the appointment of the abbot of the Monastery of St. John of Khuzbandu in Cyprus. A fine 6th-century miniature was erased to accommodate the text and ensure its eternal memory in the famous *Rabbula Codex*.¹³

The use of the West-Syriac variant of the Syriac alphabet to write Arabic is known as Garshuni, a not unambiguous term of uncertain origin, or Karshuni, as per the Arabic alphabet that does not have a letter for the voiced plosive [g]. Various etymologies have been proposed and the term is sometimes used to indicate a language, an Arabic variety or even an obscure language, as in the Lebanese Arabic idiom *بتحكي كرشوني؟* *btaḥkī karšūnī?* 'Do you speak Karshuni?'.¹⁴

¹³Mengozzi (2010). Moukarzel (2014a: 125–126) lists seven short texts and marginal notes dating from the 10th to the 12th centuries.

¹⁴del Río Sánchez (2004: 185–186), Mengozzi (2010: 297, n. 1), and Moukarzel (2014a: 108). See McCollum (2014: 225–226) and Moukarzel (2014a: 109) for Garshuni mentioned as a language, distinct from Arabic, in the manuscripts. Moukarzel (2014a: 109–119) offers the reader an impressive overview on the orthography and the venturous etymologies that have been proposed for the terms Garshuni and Karshuni.

The history of Garshuni, especially as far as Syriac Orthodox Garshuni is concerned, is still a largely uncharted territory, which is probably due to the scarce number of scholars well versed in both (Christian) Arabic and Syriac philology. Remarkable exceptions are Father Samir Khalil Samir, SJ – who in an article of 1982 stresses the urgency of describing the historical, geographic, and confessional diffusion of Garshuni – and, more recently, Joseph Moukarzel, who published an extensive study in French in 2014 (2014a) and, in the same year, a slightly revised and reduced English version of it (2014b).

Samir (1982: 43–44) suggests that among the Maronites Arabic was initially written in the Arabic alphabet. Garshuni gained ground only later, from the 15th century on, when Arabic culture in general is considered to be in decline, but it never succeeded in replacing the traditional Arabic writing completely. Up to the 14th century Arabic script was certainly prevalent and it remained so even afterwards, the use of Garshuni being confined to short texts and marginal notes. The oldest manuscripts completely copied in Garshuni he mentions date to the late 14th century.

Moukarzel (2014a: 129–130) confirms the early chronology, as well as the confessional and geographical distribution as sketched by Samir. In their view, dates and number of manuscripts show that the Maronites constitute the community which used Garshuni the most, throughout the Middle Ages and until the 20th century. They are followed by Syriac Orthodox, whereas the East-Syriac Garshuni traditions are later and less productive. Moukarzel (2014a: 130–135) presents then Garshuni inscriptions – that became rather popular in the 17th–18th centuries – and the history and orthographic conventions of Garshuni typography.

According to Samir (1982), during the period of the so-called Arab Renaissance (*النهضة* *al-nahḍah*), initiated by Maronite intellectuals in the 19th century, the Arabic script undermined the position of Garshuni, causing its obsolescence. With the *Nahḍa*, to which Christian Arabs substantially contributed,¹⁵ Modern Standard Arabic and the traditional Arabic alphabet, in handwriting but especially in print, became indeed modern instruments of cultural and intellectual expression for an Arab national or even super-national identity. Throughout the 20th century, the Syriac alphabet continued to be used by Maronites for Classical Syriac, gradually confined as a language for scholarly use and a few church hymns, whereas Garshuni became obsolete as the sign of a specific confessional or communal identity, now re-absorbed in the modern declination of Arabness.

¹⁵See Murre-van den Berg (2020: 21) on the Christian contribution to the *Nahḍa* and its characterization as a secularizing movement.

2.2 A Garshuni literature?

During the Ottoman period, we find also Arabic texts written in Maḏnḥāyā. East-Syriac Garshuni developed thus later than Maronite Garshuni proper and remained quite marginal in southeastern Turkey and northern Iraq. Briquel Chatonnet (2005: 468–469) observes that it is a late, exclusive Chaldean phenomenon, probably due to Roman Catholic influence.¹⁶

The eastward spread of Garshuni probably follows the path and can possibly be understood in the context of the diffusion of manuscript collections of Arabic prose stories that we find in a web of Christian libraries of the Ottoman period that links Damascus to Mosul, passing via Aleppo, Mardin and Diyarbakir, i.e. in the main cultural and political centers of West- and East-Syriac Christians of various denominations.

They are miscellaneous collections, usually written in Arabic script but sometimes in Garshuni, that differ from each other depending on the texts they contain and the order in which they are copied. As a whole, they show a diachronic development in which *adab*-like stories of Islamic origin or transmitted by Islamic intermediaries are inserted in multi-genre collections of Christian religious and hagiographic texts. Liturgical and theological texts are increasingly marginalized in favor of narrative texts that have biblical characters as their protagonists, lives of saints like Alexis, Barbara, Ephrem and Marine, wisdom literature, framework stories and adventurous tales such as *Ḥayqār* (the Old Aramaic Aḥiqār) *the Wise Man*, *The Seven Sleepers of Ephesus*, *The Ten Viziers* and *Sindbād the Sailor*.¹⁷ With the novel-like form of long prose narratives as a catalyst, Chris-

¹⁶Briquel Chatonnet's (2005) assumption that Garshuni was not used in the Church of the East has been proved false in recent fieldwork on East-Syriac collections of manuscripts. McCollum (2014) proposes to challenge Assfalg's (1982) – and others' (see, e.g., Salibi 1959, Samir 1982, Coakley 2001, Briquel Chatonnet 2005) – view of Garshuni as occurring mostly in Maronite and West-Syriac, mainly Syriac Orthodox, manuscripts. However, his overview of Garshuni manuscripts would seem to confirm the relatively low number of East-Syriac Garshuni manuscripts. Among the over eight hundred Garshuni manuscripts catalogued at HMML (<https://hmmml.org/>, Collegeville MN), he mentions and uses some fifteen East-Syriac manuscripts of the Chaldean Cathedral of Mardin and one of the St. Mark's Monastery in Jerusalem, all of them dating from the 17th to the 19th centuries.

¹⁷These stories and possibly some of these very manuscripts played an important role in the shaping of the European editions and translations of the *One Thousand and One Nights*, especially as far as the so-called additional Nights are concerned. These Christian Arabic anthologies, in turn, were possibly influenced by the form that the *Arabian Nights* had taken in the 18th and 19th centuries in Europe and their enormous success. By the end of the 19th century, the appeal of the *Arabian Nights* probably oriented the German Semitist Eduard Sachau to ask his informants and scribes to translate, from this kind of Arabic manuscripts, stories like *Ḥayqār*, *The Ten Viziers* and *Sindbād the Sailor* into Sureth or Şurayt/Turoyo Neo-Aramaic (Bellino & Mengozzi 2016, Mengozzi 2023a).

tian religious and hagiographic contents merge with more secular stories or with Islamic lore to offer a corpus of readings for edification and entertainment to a Christian urban readership of clerics as well as, possibly, learned merchants and artisans.¹⁸

A systematic study of Garshuni texts and manuscripts, their sources, origin and circulation is necessary to establish what Garshuni literature actually was in the various historical and social contexts or, better, to ascertain whether and when we are allowed to speak of the emergence of a Garshuni literature. Texts that have been transmitted exclusively in Garshuni might suggest an incipient process of literarization.

The Garshuni *Life of Saint Moses the Ethiopian*, for instance, tells the adventurous life and deeds of a Syrian martyr of African origin that are completely different from those of the father of the desert known since Palladius' *Lausiac History* and the *Apophthegmata Patrum* in all eastern and western Christian literatures. The Garshuni *Life* or the life of the Garshuni *Saint Moses* is preserved in five Serṭo manuscripts and most probably originated in a Syriac Orthodox monastic milieu. The story probably aims at giving solid textual and historical foundations to a monastery named after a certain Ethiopian monk Moses, put to death by the Chalcedonian emperor Heraclius. This monastery, which in the text is said to be founded on the tomb of the martyr Moses, is to be located in a mountainous region of Syria, near the city of Qāra and al-Nabk, and is easily identifiable with the well-known Dayr Mār Mūsā al-Ḥabašī 'Monastery of Saint Moses the Abyssinian'. This agrees with local traditions that have the son of Ethiopian rulers as the founder of the monastery. The story appears to have been transmitted only by Garshuni manuscripts and oral tradition.¹⁹

2.3 «Pensé en arabe»

Garshuni manuscripts and texts represent a multifaceted phenomenon: functions, language – i.e. more or less dialectal varieties of Arabic, orthographic conventions, genres and text types vary over time and space. As we have seen, the

¹⁸Something comparable to what Leezenberg (2021: 11) describes for Greek and Armenian communities in the Western cosmopolitan cities of the Western Ottoman Empire, namely the emergence of a Christian bourgeoisie (see below), may have happened in Aleppo or Mosul as well.

¹⁹The terminus ante quem of the story must be placed in the 17th century according to the dates of the earliest manuscripts. Dayr Mār Mūsā has certainly been Syriac Orthodox since the 16th century, when the association with the Abyssinian saint appears to be well established. Earlier sources refer to Moses the Prophet. The monastery was abandoned in the 19th century and refounded in 1992 by Father Paolo Dall'Oglio, SJ, under the authority of the Syriac Catholic Church. See Caraglio (2021) on the Garshuni text and Kaufhold (1995) on the history of the monastery.

earliest attestations of Garshuni are short notes written in the margins of Syriac or Arabic manuscripts. Genre and text type are probably relevant for yet another important methodological issue in the linguistic study of Garshuni, namely the kind of Arabic in which texts were written.

Garshuni texts do not always reflect Classical Arabic (العربية الفصحى *al-ṣarabiyya al-fuṣḥā*) norm and indeed contain forms of so called Middle or mixed Arabic, interspersed with dialectal features. Nevertheless, del Río Sánchez (2004: 187–190) points out that many Garshuni scribes and readers appear to be familiar with quite a standard form of Arabic and discusses the position of (Maronite) Garshuni language within Joshua Blau’s theory according to which Middle Arabic is to be found precisely in the Medieval texts written by Jews and Christians, loosely affected by the ideal of a pure *ṣarabiyya* for obvious cultural reasons.²⁰ Most Garshuni texts are later than those studied by Blau. They are often translations from Syriac or Greek and contain Christian and Islamic formulas written in a formal variety of Arabic.²¹

The functions of Garshuni may also have been different in the various social and historical contexts in which the manuscripts were produced and read. External and internal information, manuscript, colophons, and marginal notes suggest or explicitly mention practical reasons for the choice of the Syriac alphabet to write or copy an Arabic text. The most evident practical reason is the fact that Syriac writing is easily available in scriptoria or to scribes trained to copy Classical Syriac texts and is sometimes the only alphabet that certain groups of Christians can read, as is the case for the novices of a monastic community mentioned in a manuscript or young lectors who learned to read Garshuni (and Syriac) in the small schools of the mountains.²²

According to Murre-van den Berg, given the educational and pastoral aims that appear to motivate the use of traditional – she calls them “communal” – scripts among non-Muslim minorities in the Ottoman period,

the primary reason for the use of communal scripts was a pragmatic one: the fact that this was the script that was easiest for people to use.

²⁰See Murre-van den Berg (2020: 1920) for a discussion on the term Middle Arabic, with bibliography.

²¹More precise statistics on Garshuni as a translational language – on source languages, literary genres and Arabic translations exclusively, prevalently or rarely preserved in Garshuni – would help clarify the function and nature of “Garshuni literature” in the various collections, social and historical contexts.

²²Moukarzel (2014a: 122) and McCollum (2014: 226–227) give lists of examples of such information from books and manuscripts.

It was the script authors from an early age had been trained to read and write, and it was the script that its potential readership would have known, if only superficially, since childhood. Every other script would have been more difficult to write and teach. This rootedness in existing educational practices is confirmed by the fact that as soon as general and standardized education took hold in the late nineteenth and early twentieth centuries, the communal scripts in use for Arabic started to disappear. (Murre-van den Berg 2020: 26)

An Arabic text inserted in manuscripts that mostly contain Syriac texts also explains, in certain cases, the choice of Garshuni. Briquel Chatonnet (2015: 71) speaks of an aesthetic choice for liturgical manuscripts in which prayers and hymns are in Syriac, whereas rubrics and liturgical instructions for the ritual are in Garshuni Arabic.

Since Amira's Syriac grammar, which has a section dedicated to Garshuni (1596: 22–24), it has been suggested that Garshuni may have been instrumental in concealing the secrets of Christian faith from the infidels and preventing Muslim authorities from interfering with Christian matters, tracing, and censoring Christian anti-Muslim literature. Moukarzel (2014a: 119–121) mentions a couple of other sources that point to prudence and protection of a discriminated community as main reasons for the use of Garshuni.

However, as we have seen, even among the Maronites Garshuni never replaced the use of the Arabic alphabet for all kinds of text. Moreover, scholars stress that, in quite a number of Garshuni manuscripts, there is evidence that scribes were well versed in Arabic writing and Classical Arabic orthographic conventions. The Arabic alphabet and Garshuni are occasionally used in the same manuscripts, sometimes by the very same scribe. In a Garshuni manuscript quire or page numbers as well as prayers and formulas used in the rubrics at the beginning and at the end of a text can be written in Arabic characters. It is not uncommon to find, for example, an Arabic Islamic or a Trinitarian *basmala* at the beginning or a concluding formula such as “It has been completed with the help of God the Most High” (McCollum 2014: 221).

The power and prestige of Classical Arabic conventions can be further seen in the use on Syriac letters of Arabic vowel signs and diacritics such as *šadda* for gemination – which is left unmarked in Syriac orthography – and the two dots of Arabic *tāʾ marbūʿa* on a Syriac final <h> to indicate the pronunciation [at] in the construct state, i.e., when a genitive modifier follows. Final *-ā* may be written with a Garshuni final *yoḏ* as with Arabic *alif maqṣūra*. *Faḥṭatayn* and final *alif* mark the indefinite accusative (and adverbial) ending of nouns and adjectives

that are not feminine singular. Some scribes imitate the shape of Arabic letters: a dot on Syriac *pē* imitates the shape of Arabic *fāʾ*; a scribe uses the three dots of Arabic *tāʾ* under a Syriac *taw* that stands for interdental /t/.²³

Si la forme des lettres est syriaque, le système est donc bien arabe et pensé en arabe (Briquel Chatonnet 2005: 469)

Inconsistencies in the notation of *tāʾ marbūʿa*, *alif maqṣūra* or the glottal stop (*hamza*) as well as the endemic alternation – possibly due to dialectal pronunciations and/or misuse of the diacritics – of *dāl* ~ *zāy*, *tāʾ* ~ *tāʾ*, *zāʾ* ~ *dād*, and the felt variation of dental or emphatic sounds they represent occur in all kinds of (Middle) Arabic manuscripts, written in Arabic script or in Garshuni, by Muslims and Christians alike. Garshuni should indeed be part of a curriculum of (Post)-Classical Arabic philology, history and historical dialectology of the Arabic language.

Rather than an obvious, practical choice, for people who are not familiar with Arabic writing, or a deliberate attempt to exclude Muslim readers, West- and East-Syriac scribes – and possibly their commissioners – seem to have opted for a combination of the traditional Syriac scripts with Arabic orthography and textual practices for ideological reasons, usually explained by the need to strengthen a communal identity. This idea dates back to Brockelmann in the first half of the 20th or even Lenormant in the second half of the 19th century (see Braida 2012: 187) and has been recently relaunched by del Río Sánchez (2004), Briquel Chatonnet (2005), and Mengozzi (2010).

Briquel Chatonnet (2015: 71) stresses the symbolic value of Garshuni. The choice to write the Arabic in Syriac script has a cultural and communal function as a way to claim a specific religious identity. The Syriac alphabet is the Eastern Christian writing par excellence, whereas the Arabic alphabet represents Islamic culture and power. It has a long history of sacred script, used for the Holy Scriptures and the mysteries, as liturgy and sacraments are called in Syriac. Magic value is attached to the Syriac letters and their numerical value.

The fundamentally cultural and identitarian function of the script probably explains the flourishing of Garshuni during the Ottoman period – when linguistically Arabized Christian minorities may have felt more and more the need to strengthen communal identity against Muslim majority and rule – as well as its obsolescence in the context of the modernization of Arabic culture and contemporary Arabic nationalism, when Christians and especially their leaders and

²³See Kiraz (2012: 294–298), McCollum (2014: 228–234), Erdman (2021) and, more briefly, Mengozzi (2010: 299–300) and Briquel Chatonnet (2015: 68) on how Garshuni actually works.

intellectuals try to cope with a non-confessional approach to nation, state and citizenship.

Practical and ideological motivations for the use of Garshuni may in fact coexist, their relevance may have changed in the various social and historical contexts, and both contribute to explain the rise and fall of Garshuni as a confessional alternative to Arabic writing.

2.4 Acculturation and vernacularization in the Ottoman Empire

All in all, Maronite and Syriac Orthodox Garshuni share most features and development patterns with other cases of allography, as described by Xavier Luffin (2001) in a comparative study of the Ottoman Empire and the Arab world. The Greek Orthodox Anatolian community of the Karamanlis wrote and printed their Turkish language in Greek characters. The Turkic Tatar language was written and printed in Greek characters by the Greek Orthodox Urums in Mariupol. Turkish-speaking Armenians wrote and printed Turkish in Armenian characters, that were also used for Kurdish in Anatolia and the Turkic Kipchak dialect written and printed from the 16th century by Christian communities belonging to the Armenian Apostolic Church and living in Crimea, Ukraine, Moldavia and Poland. Turkish or Turkic dialects were written in Georgian as well as in Syriac scripts.²⁴ Jews too wrote and printed their dialects and languages in Hebrew characters: it is the case of the Tatar written by Krimchaks and Karaites in Crimea and the diverse constellation of languages and literary traditions called Judeo-Arabic. Besides Garshuni, Arabic varieties were and are written by Christians in the Coptic alphabet in Egypt and in Latin characters in Malta.

Leezenberg (2021: 5–15) addresses the question why so many vernaculars found their way to a written, often literary form in the Ottoman Empire and suggests as possible explanations mutual influence (a contact areal phenomenon), economic liberalization, political decentralization in the 17th–18th centuries, and the emergence of an urban (Christian) mercantile bourgeoisie in contact with Europe.²⁵ The latter explanation, however, risks to overstate

²⁴On Turkish among non-Muslim minorities see also Murre-van den Berg (2020: 14–18), with case studies and bibliography only partly overlapping with Luffin (2001).

²⁵Gürbüzel & Shapir (2023) also present “new methodologies for studying Ottoman languages as the products of social and political processes in the early modern era” in reaction to the traditional European approach to non-Muslim millets as “ethnic, proto-national” minorities (my terms), viewed as “living in discrete and compartmentalized communities, having no meaningful relationship with each other”, and to their literary production and use of scripts as exoticized curiosities.

... Western European influence and downplays local Ottoman dynamics. These vernacularising processes, after all, took place not only among the European-oriented mercantile bourgeoisie in the Empire's urban centres, but also among different population groups in its more remote and isolated rural peripheries. (Leezenberg 2021: 11)

Religious minorities spoke varieties of the languages of the state and/or the majority of the population – Turkish and Arabic in the Ottoman Empire, Farsi in Iran – but when they wrote and printed, they normally used the script traditionally associated with their communal and confessional identity, that Luffin calls reference culture. This script assured a symbolic link with a literary and spiritual tradition that is generally old and rich and distinguished the community from other communities and especially from the dominant culture.

Script as a sign of cultural and communal identity is strictly associated with religion. The preservation of a traditional script also allows to preserve the sacred and magic values attached to the letters of the inherited alphabet. Accordingly, the use of a traditional script to write a majority language generally starts with religious and liturgical genres and only later may come to cover secular subjects or to be employed for everyday use.²⁶ When this happens, more secular popular genres and stories are generally borrowed from the dominant culture: they are therefore shared with other religious communities and freely circulate across linguistic and confessional borders.

Luffin's (2001: 342) remark on Karamanli literature:

En effet la littérature religieuse est exclusivement chrétienne et essentiellement grecque, comme on pouvait s'y attendre, alors que les ouvrages profanes sont la plupart du temps inspirés de la culture turque.

strongly recalls what has been summarized above on the diffusion of *Arabian Nights*-like prose narratives in a Christian milieu, in Arabic, Garshuni and Neo-Aramaic.

Language, oral tradition, material culture, dress code, customs, and folklore tend to assimilate to the dominant culture, in a process of acculturation that, however, never brings to total assimilation. Local and culture-specific traits are

²⁶See Luffin (2001: 345) on Karamanli juridical and administrative texts and Moukarzel (2014a: 125) on Garshuni account books.

maintained as a reaction against or an adaptation to the dominant culture.²⁷ Religion and, as an external, evident sign, the script traditionally linked with it are the strongest bulwarks of communal identity and cultural heritage.

Luffin (2001) observes that the languages affected by allography are usually closer to vernaculars and colloquial forms of the dominant, imperial languages. Indeed, several minority or regional languages, spoken by Muslims and Christians, in the Ottoman period experience various degrees of a process of “literization and literarization” – creation of a written language and literature – that Murre-van den Berg (2020: 9) calls vernacularization with the term and within the theoretical framework used by Sheldon Pollock for the languages of India and tested on Arabic, Kurdish and other languages of the Ottoman Empire by Leezenberg (2014, 2020, 2021).

Quite a few of these earlier vernacularization processes, while mostly starting as religious innovations, became wedded to fully-fledged nationalist movements, which in turn resulted in the creation of separate states with separate languages in the nineteenth and twentieth centuries. This is true for the modern forms of Greek, Romanian, Serbian, Bulgarian and Armenian, all of which have their origins in the seventeenth to early nineteenth centuries. (Murre-van den Berg 2020: 10)

Two other vernacularization processes – Kurdish and Neo-Aramaic – started more or less in the same period in the Ottoman Empire, later developed into nationalist movements, but did not result in the creation of fully-fledged states, unless we consider the Rojava Administration and the autonomous region of Iraqi Kurdistan as state-like institutions. This can be arguably maintained – including the existence of statal policies on minorities and the use of languages in public life and education, both in Syria and Iraq – but clearly falls beyond the focus of the present investigation.

3 Neo-Aramaic in Syriac script

3.1 Nongaršūnographic adaptations

Garshuni has been variously defined as a case of allography or heterography. George Kiraz, a Syriac Orthodox speaker of Arabic and Syriac scholar, points out

²⁷See Mengozzi (2023b) on the impact of the dominant Islamic languages and culture on languages, culture and folklore of Neo-Aramaic-speaking communities.

that both these terms have other technical meanings in English linguistics and – since Syriac culture appears to be the only one that has a special term indicating the use of the traditional script for a language that has a well-established writing system of its own – proposes *garšūnography* as a universal term to describe

the writing of one language (called the source language) in the script of another (called the target script) in specific sociolinguistic settings: 1. when the source language is already associated with a script that is perceived to be its own, and 2. there exists a readership which is either unfamiliar with the script of the source language or prefers, for whatever reason, to use the target script over the script of the source language. (Kiraz 2012: 291)

The use of Chinese characters to write Japanese is not considered *garšūnography* because the language did not have its own script before contacts with the Chinese culture. On the other hand, most Jewish languages, when the Hebrew alphabet is used to write Germanic or Romance languages, are cases of *garšūnography*.

With the help of specialists, Kiraz (2012: 291–351) lists and describes an impressive amount of cases of Arabic, Armenian, Greek, Hebrew, Kurdish, Latin, Malayalam, Sogdian, Persian, and Turkish texts written in Syriac script, as well as the reverse cases of Syriac texts written in Arabic, Armenian, Greek, Latin (including romanization systems of libraries and electronic devices), Malayalam, and Turkic scripts.

Probably Kiraz considers all Christian Aramaic varieties as representatives of one language at some cultural, historical or sociolinguistic levels, and therefore states that there is not the dichotomy between language and script that is typical of *garšūnography* in the cases in which the Syriac alphabet or, better, varieties of it are employed to write other Aramaic languages spoken by Christians. Christian Palestinian Aramaic (Syro-Palestinian and Melkite scripts), Christian North-Eastern Neo-Aramaic (i.e., Sureth generally written in Maḏnḥāyā) and Šurayt/Ṭuroyo (generally written in Serṭo) are “nongaršūnographic adaptations” of the Syriac script (Kiraz 2012: 353–358).

Kiraz’ concept of *garšūnography* and its potentially universal applications may be useful as a descriptive and analytic tool, but may raise methodological problems in dealing with the sociolinguistic and historical implications of vernacularization. To what extent, for instance, can we say that the German dialect of Worms had its own writing tradition – associated with a script perceived as its

own – when it came into use as the basis of what is known as Yiddish, “garšūnographically” written in Hebrew character?²⁸

Similar considerations are in order regarding the Kurdish dialects that Syriac prelates and poets used in the 18th and 19th centuries to write poems that Kiraz describes as Syro-Kurdish garšūnographic texts.²⁹ Have we evidence to say that Kurdish varieties were sociolinguistically associated with Arabic or Persian scripts as well-established scribal traditions? Leezenberg (2014, 2020) describes Kurdish vernacularization as a non-linear process, in which local varieties were put in written form, in Arabo-Persian script, at different times. The process started with learned and popular poetry, that is the typical cultural expression of oral – hence vernacular – literatures, and remained mainly focused on religious culture and education until the 20th century.

To sum up, all cases of Kiraz’ *garšūnography* occur when religious minorities aim at preserving their distinct identity through the choice of their traditional scripts to write varieties of the language associated with the dominant majority culture.

3.2 Neo-Aramaic vernacularization

Neo-Aramaic dialects and languages represent what remains today of a linguistic group whose history – as we have seen – dates to the beginning of the first millennium BC. They do not derive from earlier attested varieties of Aramaic and can be thus considered as sister languages of prestigious literary languages such as Classical Syriac or Jewish Babylonian Aramaic. From a cultural and sociolinguistic point of view, Aramaic-speaking communities represent isolated pockets of resistance of non-Muslim minorities, dispersed in a geographically discontinuous dialect continuum (Kim 2008, Khan 2018). In the case of Neo-Aramaic, not only script, but language itself is sign and bulwark of communal identity.

In an Arabic-speaking surrounding, Western Neo-Aramaic – i.e., the dialects spoken by Melkite Christians in the Syrian town of Maaloula and in a couple of other villages on the Syrian Anti-Lebanon mountains³⁰ – never developed a written literary tradition.

²⁸See den Heijer et al. (2014) for a sophisticated analysis of the theoretical and methodological problems that are at stake when dealing with allography.

²⁹On Kurdish in Syriac script, Christian Kurdish literature, and the relationship of Sureth (rather than Syriac) and Kurdish literature, see now Kaplan (2023), with bibliography.

³⁰The small population of one of these villages converted to Islam in the 18th century and the few surviving descendants are therefore the only Aramaic-speaking Muslims. See Contini & Nicosia (2020) for a tentative sociolinguistic description of Western Neo-Aramaic.

On the southeasternmost fringes of the Neo-Aramaic continuum, we find traces of modern Mandaic in manuscripts preserving Classical Mandaic texts. Mandaeanism is a Mesopotamian community, practicing Mandaeanism, which is a monotheistic religion distinct from both Christianity and Islam. Some of their texts date from Late Antiquity, although they are preserved in rather late manuscripts, from the 16th century, in a specific Eastern Aramaic alphabet called Mandaic. Matthew Morgenstern published a couple of texts written by Mandaean scribes in a mixed language, “in which classicizing elements appear alongside numerous Neo-Mandaic grammatical forms, words and phrases”.³¹ They can hardly be considered as signs of an incipient vernacularization of the language of a small minority that is today dispersed in a worldwide diaspora.

From a cultural rather than a linguistic point of view, scholars generally distinguish Central Neo-Aramaic – the Şurayt/Ṭuroyo cluster of dialects spoken by Syriac Orthodox Christians in Ṭur ‘Abdin (southeastern Turkey) – and North-Eastern Neo-Aramaic (NENA), that includes some 150 varieties.

A traditionalist approach to Classical Syriac of the Syriac Orthodox clergy and the wide-spread use of Arabic and Garshuni in Syriac Orthodox communities – who nevertheless experimented, as we have seen, isolated attempts to write Turkish and Kurdish in Serṭo script – probably explain why the creation of a written Şurayt/Ṭuroyo was a “timid affair” in comparison with the more or less successful processes of vernacularization that Jewish and Christian NENA varieties underwent (Heinrichs 1990: 185).³²

A Şurayt/Ṭuroyo translation of the Gospel of St. John was prepared by Isaiah of Qyllith, a teacher at the American school in Mardin. The text is preserved in an 1877 Serṭo manuscript that ended up in a Harvard library and, in Serṭo with a facing Roman transliteration with diacritics, in an 1889–1890 manuscript of the London Sachau collection (British Library Or. 9327). Eduard Sachau asked Isaiah of Qyllith to translate into Şurayt/Ṭuroyo a selection of Biblical texts, from Classical Syriac,³³ and prose texts from Arabic, including pieces of wisdom and

³¹See Morgenstern (2023: 120) with further bibliography. Häberl (2021) publishes an Arabic letter in Mandaic characters (first half of the 20th century?), with Mandaic formulas at the beginning.

³²The same is true for the southwesternmost NENA varieties spoken by Christians of West-Syriac tradition in northern Iraq. The Syriac Catholic and Syriac Orthodox Christians of Baghdad/Qaraqosh and nearby villages never developed a written tradition comparable to what happened in Alqosh or Urmia (see below). According to Khan (2002: 8), vernacular texts (songs, popular dramas) and hymns borrowed from the more prestigious Alqosh tradition are occasionally written down in Arabic script. Nevertheless, Sony (1998: 38–40) mentions a few examples of words and sentences in Qaraqosh Neo-Aramaic, written in Serṭo, and private collections of Qaraqosh and Bartella recently digitized at HMML (<https://hmml.org/>, Collegeville, MN) include Neo-Aramaic manuscripts in Serṭo script.

³³See Atas (2018) on the Şurayt/Ṭuroyo translation of Genesis 1–10.

entertainment literature that apparently were very popular and circulated among Arabic-speaking Christians, Jews and Muslims alike: Islamic versions of the *Story of Salomon*, *Story and Proverbs of Aḥiqar* and the beginning of the story of *Sindbād the Sailor* (Bellino & Mengozzi 2016: 425).

As far as methods are concerned, Neo-Aramaic texts were usually copied for Sachau in Syriac script, Serṭo for Turoyo and East-Syriac script for NENA, and provided with an Arabic translation *en face* or in a separate manuscript. The choice of the Syriac script possibly derives from Sachau's awareness of the existence of an indigenous tradition of writing vernacular texts in the Classical Syriac alphabet (the earliest manuscripts including Neo-Aramaic texts date from the 18th century) and was certainly well-accepted among copyists faithful to their scribal habit and cultural tradition. (Bellino & Mengozzi 2016: 424)

NENA dialects were – and to a far lesser extent are still today – spoken as minority languages by Christians of various denominations and Jews in the vast territory that includes southeastern Turkey, northern Iraq and northwestern Iran, where varieties of Arabic, Turkish, but mostly Kurdish dialects are spoken by the Sunni majority of the population. Since the 1950s all Aramaic-speaking Jews have migrated from Kurdistan to Israel.

When NENA varieties were put in written form, the traditional scripts used for Hebrew and Classical Syriac – the “Latin” of Syriac Churches – were the most obvious choices for native speakers, as Latin script was for Christian languages and Hebrew for Jewish languages in western Europe.

During the Ottoman period, Aramaic-speaking Christians had as main cultural centers the Syriac Orthodox monasteries of Ṭur ʿAbdin, in southeastern Turkey, the village of Alqosh in the Mosul plain and the city of Urmia in northwestern Iran. Active since the end of the 16th century in the preservation and revitalization of Classical Syriac culture, Alqosh is also the birthplace of the first religious poems composed in the vernacular, in a literary variety of Neo-Aramaic. The production of Neo-Aramaic texts and manuscripts, nevertheless, remained a marginal phenomenon compared to production and massive copying of Classical Syriac, mostly in Maḏnḥāyā script, and Arabic texts by Alqoshian dynasties of priests who practiced scribal activities as family business.³⁴

³⁴See Murre-van den Berg (2015) for a historico-anthropological description of this phenomenon and, more in general, on the history and literary activities of (East-)Syriac Christians in the eastern provinces of the Ottoman Empire.

The Neo-Aramaic literary space of East-Syriac Christians remained essentially oral (Mengozi 2012). Early written texts are religious poems that were copied in manuscripts containing Classical Syriac texts, among hymns of similar forms and contents, and in later dedicated anthologies. Iraqi Sureth literature seems therefore to parallel, albeit in different places and slightly different times, the sparse, non-linear patterns of Kurdish vernacularization (Murre-van den Berg 2020: 11).

The prevalently phonetic, largely inconsistent orthography used in Iraqi Neo-Aramaic manuscripts contrasts with the classicizing conventions and norms that were elaborated in Urmia, especially in missionary milieu for Bible translations (Murre-van den Berg 1999) and were perhaps instrumental for the success of this literary variety as a Christian koine in Iraq as well as in the diaspora.³⁵ Under the influence of American and British missions among East-Syriac Christians, during the 19th century, the Assyrians of Urmia in particular adopted ideas, institutions, and practices of Western modernity, including hospitals, schools, the Western system of education, press,³⁶ journalism, a positive attitude towards science and technology, and finally a virulent form of Assyrian nationalism (Becker 2015). Only in 19th-century Urmia and to a far lesser extent Mosul, where the French Dominicans had installed schools and a Catholic printing press, the process of Neo-Aramaic vernacularization grew rapidly so as to cover secular literary genres such as dramas, novels, short stories, journal articles and essays, and support through them, as well as through school books, intellectual and political debates.

Urmia literary Aramaic is the basis of the Assyrian language, of course written in the Maḏnhāyā script, which is part and parcel, in the homeland and in the diaspora where most Assyrians today live,³⁷ of Assyrian identity and Assyrianism as a cultural and political movement, i.e.:

...the view of virtually all of modern Assyrians, both educated and uneducated, initiated and spearheaded by the traditional scholars – or *Rabis* for more accuracy – of what I identify as the modern Assyrian Reawakening extending from the middle of the nineteenth

³⁵See, e.g., Braida (2014: 18–20) on the prevalently phonetic spelling of Iraqi manuscripts in contrast with the classicizing form and orthography of the literary language of Urmia. As expected, East-Syriac Chaldeans and Assyrians, in today Iraq and Iran, use exclusively the Maḏnhāyā variety of the Syriac alphabet (see above).

³⁶Leezenberg (2021: 12–14) correctly stresses the importance of printing and the development of “vernacular philologies” – production and circulation of grammars and lexica – in the processes of vernacularization of the Ottoman Empire.

³⁷See Mengozzi (2003) on the development of the Assyrian national language and active policies for its preservation and revitalization in the American diaspora.

century up to the 1960s. All modern Assyrians emotionally espouse the connection [with the ancient Assyrian culture] as a pillar and extension of their national and historical identity in the form of a nationalistic movement known today as *Aturayuta* (Assyrianism). (Odisho 2001: 139)

3.3 Attempts at Romanization

German Orientalists of the 19th century such as Eugen Prym and Albert Socin preferred – as contemporary dialectologists do for that matter – transcribe and publish Neo-Aramaic (and Kurdish) oral texts in Latin characters. Latin-based transliteration systems, with diacritics and special conventions, are considered more reliable than traditional scripts to reproduce the phonology and preserve written records of languages and dialects to be documented and studied.

Planned projects of Romanization of Neo-Aramaic varieties have been launched by the Soviet Union in the 1930s and Sweden in the 1980s in the context of governmental policies to grant minorities and immigrants the right to learn their native languages at school, and thus preserve and develop what are today called heritage languages.

From 1929 to 1938, books and newspapers were published in the Christian literary Aramaic of Urmia in Moscow and Tbilisi for the benefit of the Assyrians who lived in the Soviet Union. In the first three years texts were printed using the Cyrillic script with the addition of some Latin letters called *Novyj Alfavit* (Новый алфавит ‘New alphabet’). Afterwards a Latin-based version of the alphabet was used, probably to prevent the impression that the whole project was an attempt to Russify or Slavicize minority cultures (Pennacchietti & Tosco 1991: 16). Assyrian *Novyj Alfavit* was thus one of the many Latin-based scripts by which Soviet authorities intended to support mass literacy campaigns and Soviet propaganda.

After 1938 the publication of Assyrian books and the newspaper in NA [*Novyj Alfavit*] ceased because most of the authors, editors and translators had been condemned to death by the Stalinist regime. (Lyavdanskyy 2021: 416)

Lyavdanskyy (2021) has included 172 books in the corpus he used for a lexicostatistical study. In 1990–1991 Olga Kapeliuk (1996: 277) consulted the catalogue of the former Lenin Library in Moscow under the heading “Assyrian language” and found some 200 books in *Novyj Alfavit* and 20 or so in Syriac characters,

the latter mainly printed in Tbilisi. The transliteration system was devised by a native linguist and is described by Kapeliuk as scientifically sound and easy to master. Novyj Alfavit literature included school manuals, translations from Russian literature, political pamphlets, and original works.

The German Semitists Hellmut Ritter and Otto Jastrow are credited for a detailed description of Ṣurayt/Ṭuroyo and the creation of an accurate transcription system. Jastrow also published a handbook to learn the language and has been a consultant of a team of Suryoye teachers appointed to devise the Latin-based spelling of primers and workbooks to be used in the Swedish schools (Ishaq 1990): “The result has been a very readable near-phonemic system with a fair, though not excessive, amount of diacritics” (Heinrichs 1990: 183).³⁸

In more recent projects for the preservation and revitalization of the Aramaic language – the Aramaic-Online Project (2014–2017) and the Surayt-Aramaic Online Project (2017–2020), co-funded by the European Union and directed by Dr. Shabo Talay, Professor at Freie Universität Berlin and himself a native speaker of Ṣurayt/Ṭuroyo – words and texts are written both in a Latin transliteration and in Serṭo, with regular use of the traditional West-Syriac Greek vowel signs where they are necessary. The handbook *Šlomo Surayt* is freely available in six languages (English, German, Swedish, French, Dutch, and Arabic) and one can learn the language with multimedia materials online or on a smartphone app (see www.surayt.com).

The use of Latin characters to write Neo-Aramaic appears to be problematic for native speakers. Romanization projects of traditional scripts probably tend to fail because they are perceived as unapt, “colonial” and patronizing by the Aramaic-speaking communities: they may be used as an analytic academic tool, but they are not practical for everyday use and do not reflect communal identity.

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³⁸See Tezel (2021) on Ṣurayt/Ṭuroyo in Sweden.

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Chapter 8

Me'am Lo'ez of *Pirqey 'Avot* by Itzhak Magriso (Istanbul 1753): Scripts, language and identity

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Me'am Lo'ez was an influential 18th-century literary project initiated by Yaakov Huli in the Ottoman Empire, aiming to provide a comprehensive Bible commentary in Judeo-Spanish, the language of Ottoman Jews. Huli began with Exodus but passed away before completing it. Itzhak Magriso continued, completing commentaries on Exodus, Leviticus, and Numbers. Magriso also included a commentary on *Pirqey 'Avot*, a Mishnaic tractate integral to the Jewish diaspora's synagogue readings.

Written in Judeo-Spanish with features of orality, such as repetitions, direct speech, and frequent code-switching between Hebrew, Judeo-Spanish, Ladino (calque Judeo-Spanish), and Turkish, the text uses both Rashi (Sephardic) and Hebrew square scripts, reflecting complex identity questions. A Latin transcription required critical decisions linked to these identity dynamics.

This article explores these identity issues, code-switching, and linguistic borrowing, focusing on how these elements support the author's goal of educating readers with accessible religious and conceptual tools. While Hebrew is deeply embedded – through loanwords, calques, and rabbinical concepts – Magriso's commentary, compared to Huli's, is occasionally less clear pedagogically, as it demands a higher degree of Hebrew literacy.

The work demonstrates Hebrew's prominence within the text, balancing educational objectives with identity affirmation. The author often translates Hebrew terms into Judeo-Spanish for clarity, but when untranslated, context aids comprehension. The unchanged morphology of Hebrew loanwords highlights a strong identity marker, aligning with the text's serious tone and its dual purpose of education and cultural preservation.



Javier Leibiusky. 2026. *Me'am Lo'ez* of *Pirqey 'Avot* by Itzhak Magriso (Istanbul 1753): Scripts, language and identity. In Saloumeh Gholami & Ulrich Mehlum (eds.), *Identity formation, language and migration dynamics: Minorities in the MENA region and the German diaspora*, 167–200. Berlin: Language Science Press. DOI: 10.5281/zenodo.18845608 

1 Introduction

Me'am Lo'ez was a very important literary project initiated by Yaakov Huli at the beginning of the 18th century in the Ottoman Empire. The aim of this project was to make a linear commentary of the Bible in Judeo-Spanish, using all Jewish literature available at that time, thus allowing the Jewish community in the Ottoman empire to have access to all this literature, which was in Hebrew, and therefore inaccessible for most Ottoman Jews.

For some scholars, namely Aldina Quintana (2006) or Rosa Asenjo (2003), the project was one of several attempts to repair the damage caused by the Sabbetai Zevi affair during the 17th century and the resulting great crisis of Jewish communities. Other scholars, such as Mathias Lehmann (2014) or Avigdor Levy (1992), insist that Zevi's affair did not have such an impact on Jewish education, and that the reason for Huli's project was rather a part of a movement that intended to decentralize Jewish education, allowing community members to study by themselves without depending on rabbinical authorities, and this, influenced by Lurianic kabbalistic ideas concerning the importance of individual work for the group.

Huli aimed to produce an educational tool, an extensive commentary of the Bible in the language of Ottoman Jews, Judeo-Spanish. Huli himself was only able to begin the project, he died while working on the commentary on Exodus. Itzhak Magriso took his place and finished the commentary on Exodus, Leviticus, and Numbers. Into the commentary of Leviticus he embedded a commentary on *PIRQEY 'AVOT*, a tractate from the *Mishna* (oral tradition) that had become part of the yearly reading cycle in synagogues throughout the Jewish diaspora. This commentary was first published in 1753 in Constantinople. Further editions were printed in Livorno – 1822, Salonica – 1802 and 1866 and Izmir – 1866.

The first edition is accessible online through the website of the National Library of Israel (system number 990012377230205171). The commentary of *Pirqey 'Avot* starts at page 98 and spreads through 55 double pages until page 153 (Magriso 1753).

Me'am Lo'ez is written in Judeo-Spanish as it was spoken in the community (Quintana 2004) where the text was written, and it presents different features of orality, such as errors, repetitions, direct speech, and of course, many cases of code-switching between Hebrew, Judeo-Spanish, Ladino (a calque language, Sephiha 1973), and some Turkish.

Generally speaking, Jews in different geographical areas have always chosen to write their Judeo languages in Hebrew characters. This was the case for European Jews in the Middle Ages, as well as in the Iberian Peninsula.

8 Me'am Lo'ez of Pirqey 'Avot by Itzhak Magriso (Istanbul 1753)

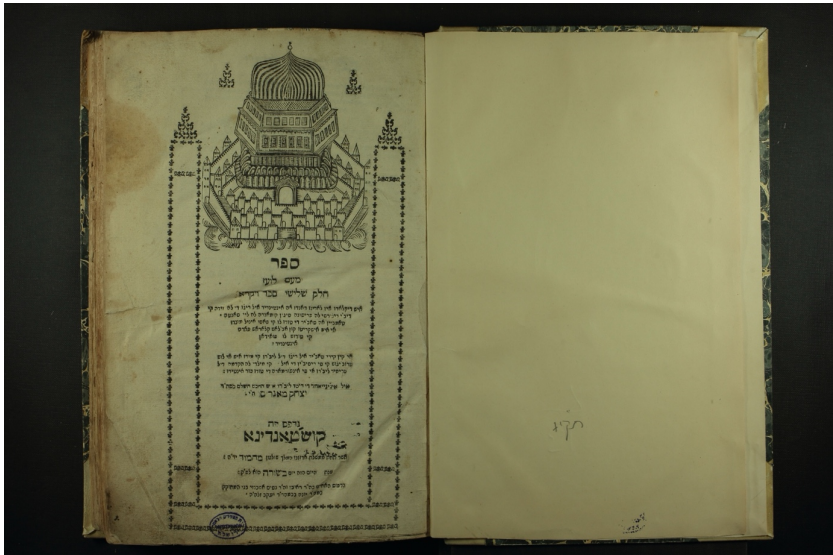


Figure 1: First edition cover (Constantinople, 1753)

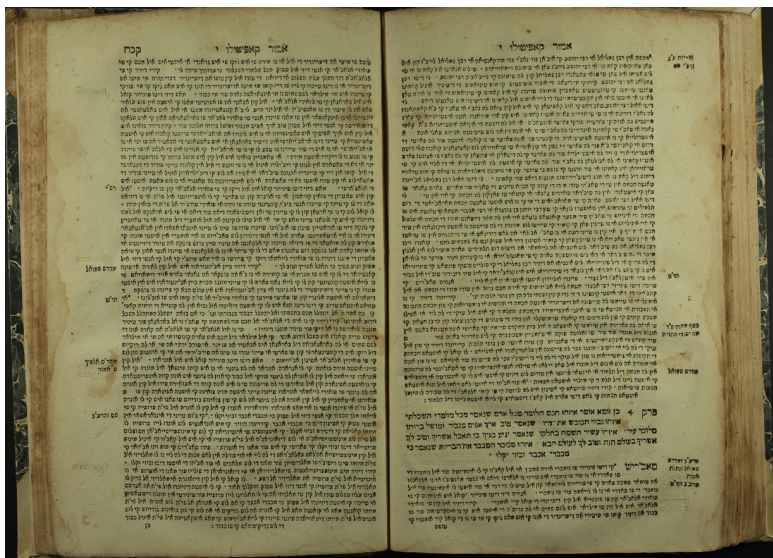


Figure 2: Internal double-page

According to Robert L. Cooper (1989: 128–129), in social linguistics, we recognize that the written form of a language has great social and symbolic importance. Even if, theoretically, a group of speakers can choose any writing system, provided it enables them to represent their phonological system sparingly and clearly (Bunis 2004: 112), the written signs chosen also function as elements of identity.

The Jews of medieval Spain had adopted new Romance languages, but they rejected the Latin alphabet, which for them symbolized the Catholic religion. For this reason, until the beginning of the 20th century, Judeo-Spanish speakers kept the Hebrew alphabet to write their language.

What is interesting is that after their expulsion from Spain in 1492, the Jews took their vernacular Romance languages with them and, following a process of koinéisation (Minervini 2006: 23), not only preserved the language but also gave it the status of a Jewish affective language, the language of the intimacy of the home and the family (Bornes-Varol 2011: 83).

The fact that they continued to write their language in Hebrew characters certainly stems from the mystical character given in Jewish tradition to these letters, as we can see, for example, in the Talmud (Berakhot 55:1):

Rav Yehuda said that Rav said: Bezalel knew how to join the letters with which heaven and earth were created. From where do we derive this? It is written here in praise of Bezalel: “And I have filled him with the spirit of God, in wisdom, and in understanding, and in knowledge, and in all manner of workmanship” (Exodus 31:3).

Or in *Sefer Yetzirah* 2:2:

Twenty-two letters: He engraves them, carves them, weighs and transmutes them, combines them and forms with them the soul of all created, and the soul of all He has yet to form.

According to Bornes-Varol (2011: 80), the fact that Judeo-Spanish people were the only ones to speak the Judeo-Spanish language in the Ottoman Empire is also an element of identity construction.

On the other hand, speakers of Judeo-Spanish have a lost identity language, the Hebrew of religious texts, and this, as we shall see later, is a very important identity feature of the text we are analyzing, materializing in the form of the many code-switching cases, borrowings and calques, which go far beyond the presence of these elements in the spoken vernacular.

And while we are dealing with the links between writing and identity, a word should be said about the choices I made in transcribing Judeo-Spanish and Hebrew.

I have adopted a transcription standard for Judeo-Spanish, called *akí yerushalayim*. The *akí yerushalayim* spelling was developed in an effort to homogenize the spellings used for Judeo-Spanish, with two important criteria (Shaul 1984):

- To reflect the phonological system of Judeo-Spanish as faithfully as possible, and in particular the many phonemes that do not exist in modern Spanish; and
- That the system adopted is easy to learn and assimilate for readers all over the world.

This system is easy to reproduce and requires no diacritical or special signs. At the same time, it is the closest to the actual pronunciation of Judeo-Spanish. This is important, as pronunciation is a key element of identity for Judeo-Spanish people, one of the features that differentiates their language from that of the Spanish.

For the Hebrew, I have followed the system proposed by the *Revue des études juives* in France. Again, this is a practical approach whose aim is to make the text as accessible as possible, while maintaining scientific rigor. One of the great advantages of this system is that it uses very few diacritical marks, making reading much simpler and more accessible.

Non-integrated Hebrew loanwords are shown here in italics and small capital letters, while integrated terms are shown only in italics.

Each example given, which is obviously taken from the corpus, is accompanied by the reference where it appears, so “1:7” refers to the commentary on the first chapter, seventh article (*mišna^h*) in Magriso’s work.

The article will start by presenting the two different Hebrew alphabets used in the text, that will establish the base for reflecting on the relationship between script and identity, a question that will be treated later.

The main part of this article follows, which deals with the important presence of Hebrew in the text. I will show that Hebrew is present not only in loanwords and code-switching cases, but also in a deeper layer, the calque language known also as *Ladino*. The particularity in this case is that Hebrew was not really a contact language for Judeo-Spanish speakers of the Ottoman Empire, since they neither used the language in everyday life, nor really were able to read the traditional texts, except for the rabbis, of course. In this case, we are dealing with a

contact language which is only literary, and which is seen as a “sacred language”, a referential language used to justify and give more prestige to the author’s commentaries. One of the best proofs of this is the fact that the author never integrates Hebrew loanwords morphologically, contrary to Turkish or Greek loanwords which are completely integrated.

Finally, I will present my conclusions on all the topics treated in this article.

2 One text, two alphabets

PIRQEY ’AVOT’s commentary in the *ME’AM LO’EZ* has the peculiarity of using two different Hebrew alphabets. The original text of *PIRQEY ’AVOT* is in the square Hebrew alphabet. This not only enhances the text, but also gives the square characters the status of a “sacred language”.

The commentary, written in Judeo-Spanish, is in Hebrew Rashi script, a form of Sephardic cursive.

According to Bunis (2004: 129–130), up until the time the text was written and published, in the 18th century, Judeo-Spanish texts intended for the popular classes were generally written in square Hebrew characters, while texts intended for the more learned classes were written in non-vocalized Rashi characters. And it was precisely at this time that the Rashi alphabet became the main alphabet for Judeo-Spanish texts, which helps us to understand why it is used in a text like the *ME’AM LO’EZ*, aimed at the popular classes.

In Figure 3 we can see a close-up view of the text with a clear representation of the structure of the text and of both scripts used by the author:

1. Hebrew printed or square script for the original Hebrew *Pirqey ’Avot* articles.
2. Hebrew Rashi script, for the references that the author mentions, in Hebrew.
3. Hebrew Rashi script for the commentary itself which is mostly in Judeo-Spanish.

Judeo-Spanish speakers throughout the Ottoman Empire were a multi-referenced community in all that concerns identity issues. Beyond the fact of being Jewish – and the use of the Hebrew script for writing their language was a clear sign of identity, which we also can find in Judeo-Arabic-speaking communities in Northern Africa or in the Yiddish-speaking communities in Central and Eastern-Europe – there was also *Sefarad*, Middle-Age Spain. It is very interesting to note

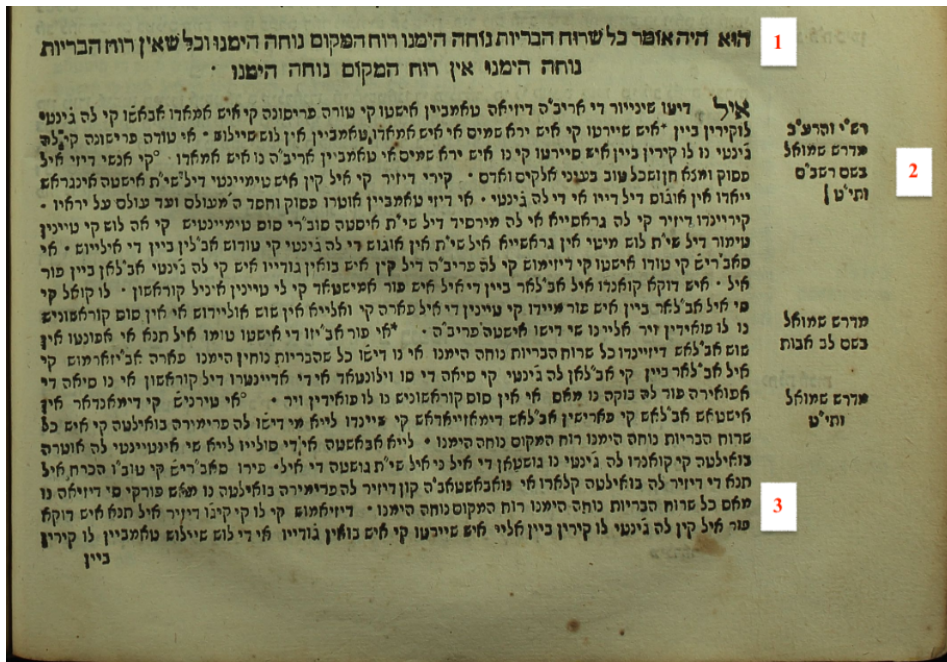


Figure 3: Structure of the text and example of the two scripts

that during the *koinéisation* process, which took place between 16th and 17th centuries, variants of the language depended on the origin of the congregation which held power over the community at the time (Minervini 2006: 20). At the beginning, Jews expelled from Spain remained loyal to their cities of origin, but with the time, they mingled and mixed, creating a new Judeo-Ottoman identity, which was profoundly anchored in their language and the use of the Hebrew alphabet. But there was another identity element in the use of the Hebrew alphabet: it helped Ottoman Jews to distinguish themselves from this same Spain they yearned for. Since the basis of their language was Medieval Castilian, the Judeo-Spanish of the Ottoman Empire distinguished themselves from Spain and Spanish through the Hebrew script, and in so doing, preserved some archaic words and innovations.

It is also interesting to note that almost a century after the commentary of Magriso was published, the Judeo-Spanish language went through a new revolution, due to the influence of French, through the network of schools implanted by the *Alliance Israélite Universelle* throughout the Ottoman Empire. This revolution ended by the adoption of the Latin alphabet at the beginning of the 20th century.

3 The presence of Hebrew

Hebrew is present everywhere and at every level in this work. On the one hand we have, of course, the commented text, *PIRQEY 'AVOT*, in which we find Biblical Hebrew in the many references and quotations, and then the text itself, which is written in Mishnaic Hebrew. The references Magriso gives in the margins of the text are also in Hebrew.

Biblical Hebrew is also present in Magriso's commentary, in the numerous biblical references he gives to support his remarks, a common approach in rabbinic prose.

But Hebrew is present far beyond that. In this section, I will analyze borrowings, cases of code-switching and the use of *Ladino*, i.e., expressions and phrases taken from this liturgical calque language designed to help medieval Jewish students understand Hebrew syntax while using a Hispanic lexicon (Bossong 1990: 71, Sephiha 1973: 48–49).

Before we enter the analysis of loanwords, code-switching, and calque translations, let us take a look at how it is graphically presented in the corpus.

- (1) es ke eskapa de 'isur de **GEZEL** porke puede ser ke se venga a yerar enel din i es **M^EHAYEV** a el **ZAKAY** i se yama ke le rova de re'uven i le da a šim'on.

'In other words, he escapes the prohibition on theft, because it is possible that he could be mistaken in his judgement and accuse the innocent, and this is called stealing from Reuben to give to Simon.'

In (1), we can see how integrated Hebrew loanwords and code-switching are intertwined with the rest of the text in Judeo-Spanish. The words in lowercase are integrated loanwords. The three code-switching cases (in uppercase bold letters) are terms from Jewish law that the author does not explain here, but he does explain them in other parts of the corpus. In this case, the repetition of unknown Hebrew terms functions as a pedagogical tool.

3.1 Borrowings from Hebrew

When we speak of borrowing in Judeo-Spanish, we need to distinguish between borrowings from contact languages in the Ottoman Empire, such as Turkish or Greek, relatively few of which are present in our text, and borrowings that can be characterized by various sociolinguistic factors, such as cultural pressure and intensity of contact, among others (Winford 2003: 37–39). In the case of Hebrew, these are not borrowings that are due to contact between two languages. Rather,

it was a traditional, social, and cultural relationship with a language whose texts Judeo-Spanish speakers studied, even if not always at a sufficiently high level to allow direct access to the literature. For them, it was a language that was quoted and partially understood but not used in everyday life (Schwarzwald Rodrigue 1981: 63).

Furthermore, Marie-Christine Bornes-Varol (2003: 125) points out that cases of borrowing in Judeo-Spanish can often be traced back to forms that already existed in medieval Spain. According to her, these borrowings are linked to ancient forms that have been abandoned and to certain potentialities of the language that speakers come to reactivate or update.

The first difficult question is, therefore, how to differentiate borrowings from code-switching. If we consider what Sankoff et al. (1990: 73) and Poplack & Sankoff (1988: 1177–1178) say, the vast majority of borrowings eventually become morphologically and syntactically integrated into the host language. These words will occupy the same syntactic positions as the corresponding words in the host language.

A second main and difficult question is to decide which loans are integrated and which are not.

One of the tools I used to establish which terms were known and used in Judeo-Spanish was Joseph Nehama's dictionary (1997). Although this is Salonica Judeo-Spanish from the 20th century, whereas Magriso wrote his commentary in Constantinople in the 18th, we find numerous entries in the dictionary that correspond to Hebrew terms integrated into Judeo-Spanish that I also found in the corpus.

I cross-referenced all the terms I found with David Bunis's (1993) lexicon of Hebrew and Aramaic elements in Judeo-Spanish. In this work I was able to find many elements. The presence of a term in the latter work does not necessarily mean that it is integrated, but rather that it is attested in Judeo-Spanish literature. I have concluded that if a term is attested, and appears in Nehama's dictionary, there is a good chance that it was also commonly used in Magriso's time, at least for religious purposes.

Another useful work is Aharon Maman's (2019) *Synoptic dictionary of the Hebrew component in Jewish languages*.

These terms were also cross-referenced with the glossary in Angel Berenguer Amador's (2016) thesis on David M. Atias's *La güerta de oro* (1778), a work slightly later than Magriso's *ME'AM LO'EZ* but of a secular nature. We can be sure that the terms that appear in this work were familiar to readers of the *ME'AM LO'EZ* at the time.

This methodology has its limits. It is quite impossible to be sure if a Hebrew term was known by Judeo-Spanish speakers in the Ottoman Empire in the 18th century. The only thing we can be sure of is that if a term appears in all the above-mentioned sources, we know it was attested in Judeo-Spanish literature. We can also be sure that rabbis were probably familiar with these terms, especially the religious ones, since they knew Hebrew. But the common reader of *ME'AMLO'EZ* was probably familiar with a much smaller number of Hebrew terms, probably only the most common ones related to simple religious practices.

In most cases, nouns are the most borrowed elements. Next come verbs and adjectives, then adverbs. This is a common phenomenon in language contact in general (Sankoff et al. 1990: 77), and is also true for Jewish languages, as Bar-Asher (1978: 178–180) points out regarding Moroccan Jewish Arabic.

Among the nouns (in which I also include constructed states that function as a single term), we have terms such as: *ḥorban* 'destruction', *ḥol hamo'ed* 'intermediate days between the first and last day of Sukkot or Pesach', *hefquer* 'lawless', *haqdama^h* 'introduction', *haknasat 'orḥim* 'hospitality'.

As for verbs, we have for *mavṭiaḥ* 'to promise', *mavḥin* 'to observe'. Often the verbs are part of an expression, as in *maḥṭi' 'et harabim* 'induces others to sin', *megale^h panim batora^h* 'interprets the Torah'. Since the Hebrew present participle¹ can also be a noun, we need to analyze case-by-case to know whether it is, in the text, a verb or not. Later on, I will talk about Hebrew verbs morphologically integrated into Judeo-Spanish.

Adjectives: *m^eforaš* 'explicit', *'asur* 'forbidden', *ḥarif* 'intelligent' (common in Judeo-Spanish).

Adverbs: *'afilu* 'same' (common in Judeo-Spanish), *bif^rraṭ* 'particularly' (often appears preceded by the Hebrew conjunction *ubif^rraṭ*), *biklal* 'among others', *dawqa* 'only, justly'.

Certain terms of a liturgical nature are frequent and well-known, especially in the Judeo-Spanish world (Schwarzwald Rodrigue 1988: 36), which leads us to focus on the more pointed terms, where Magriso's rabbinic prose seems to take precedence over his concern for the reading clarity of his public.

Among these integrated terms we will find in abundance *'aseret yemey tešuva^h* 'ten days of repentance',² *sefer* 'book', *kohen gadol* 'high priest', the names of the various prayers of the day, and many other terms which are therefore part of the synagogal liturgical world.

¹*beynoni* בֵּינוֹנִי in Hebrew, which can be translated as 'intermediary'.

²The ten days between New Year's Day (Rosh Hashana) and the Day of Repentance (Yom Kippur). Appears in the introduction and 5:3.

The term *sefer* appears in the corpus sometimes as an integrated loanword in Magriso's Judeo-Spanish commentary, sometimes as a code-switching case, in quotations made directly in Hebrew. Although in Judeo-Spanish the term *sefer* alludes to the Bible, in my corpus Magriso systematically uses the construct state *sefer torah* 'book of Torah' (in the introduction, 1:1, 1:15, 4:8, 6:5) except in 6:8 where he writes *sefer tehilim* 'the book of Psalms'.

Let us look at the examples: first, the occurrences of *sefer* as a code switching in biblical quotations in Hebrew:

- (2) “AZ NIDB^eRU YR'EY H' 'IŠ 'EL RE'EHU WAYAQŠEV H' WAYIŠMA[‘]
WAYIKATEV B^eSEFER ZIKARON L^eFANAW L^eYR'EY H UL^eHOŠ^eVEY
Š^eMO”

'However, the worshippers of the Lord exhorted one another; the Lord listened and heard, and a record of remembrance was set up before him in favor of those who fear the Lord and respect his name.' (3:3, Malachi 3:16)

- (3) [...] *eskriven sus palavras enel* “SEFER HAZIKARON” *asigún dize el pasuq ayí:* “AZ NIDB^eRU YIR'EY H' 'IŠ 'EL RE'EHU WAYIKATEV B^eSEFER
ZIKARON L^eFANAW”

'[...] They write their words in the register of remembrance according to what the verse says: 'Nevertheless the worshippers of the Lord exhorted one another; the Lord listened and heard, and a register of remembrance was set up before him.' (3:7, Malachi 3:16)

In example (3) we see that Magriso uses the expression *sefer hazikaron* 'register of remembrance', in reference to the verse he quoted above in the first example (3:3) and then repeats.

In the following examples, Magriso uses the term *sefer* to refer to the Bible, but adds the term *torah* or *tehilim* when referring to the Psalms. Perhaps this is because Magriso knew Hebrew, so for him *sefer* was a common noun, a 'book', requiring him to specify which book he was referring to each time.

- (4) [...] *wēken al ze^h haderek es en todas las mitswot dela Ley ke enel sefer tora^h se eskrivyeron en korto i en sifras [...]*

'[...] in the same way it was the case in all the commandments of the Law which appear in the book of Torah in a brief and encoded manner [...]

(1:1)

- (5) *3 es de katar kavod a el sefer tora^h de azerle heykal apropiado en lugar alto i no eskupir delante de él [...]*
 3 'It is to respect the book of Torah, to build a special cabinet for it in a high place and not to spit before it [...]' (4:8)
- (6) *I ansí topamos en dawid hamelek ke disho en su sefer tehilim "ṬOV LI TORAT PIKA ME'ALFEY ZAHAV WAKASEF"*
 'Thus we find in [the words of] King David who said in the book of Psalms, 'More precious to me is the teaching of your mouth than heaps of gold and silver coins'. (6:8)

As far as morphologically integrated borrowings are concerned, some Hebrew verbs appear in the text with a Judeo-Spanish verbal ending:

kafrar 'to blaspheme, to transgress', from the Hebrew root *k-p-r* כפ"ר, appears in the infinitive form, but also conjugated in the imperfect subjunctive mood *kafrara* and the simple future tense *kafraré*:

- (7) *kafraré ḥas w^ešalom enel 'iqar*
 'I will transgress, God forbid, in that which is most important' (4:11)

Interestingly, in this sentence, only the preposition *en* and the definite article *el* are in Judeo-Spanish. The simple future verb, *kafraré*, has a Hebrew root, with a Judeo-Spanish simple future suffix *é*, and then the common expression, *ḥas w^ešalom*, and the noun *'iqar*, are in Hebrew.

darsar 'to preach', from the Hebrew root *d-r-š* דר"ש, appears in the infinitive form, as well as in the subjunctive *darse* and the present tense *darsas*. This term appears in the corpus with an [s] rather than a [ʃ] which could mean that the borrowing comes rather from Arabic where the root is *d-r-s* درس.

badkar 'to examine, to explore', from the Hebrew root *b-d-q* בד"ק, a single occurrence in the infinitive form.

harvar 'to destroy, to beat', from the Hebrew/Arabic root *ḥ-r-b* חר"ב, appears in the infinitive form once with prosthetic *a*, *aharvarlo*, once without *harvar*, as well as in the gerund, *harvando*, *harvándoles*.

On the other hand, we have integrated and attested terms for which the author meticulously respects Hebrew spelling, even if these terms have been morphologically adapted to Judeo-Spanish.

The most striking examples are the terms *ba'al habayit*³ 'master of the house' or 'father of the family', which in Judeo-Spanish is found in the form of *balabay* (Nehama) but in the corpus appears exclusively in its Hebrew form.

This is also the case for the term *tša'ar*⁴ 'grief', which in Judeo-Spanish is found in the form of *sar* (Nehama).

Other examples:⁵

*'arba' w'ešrim*⁶ 'twenty-four', the 24 books of the Bible, in Judeo-Spanish *ar-baáveestrim* or *arbavestrím*;

*'ayin hara*⁷ 'the evil eye', in Judeo-Spanish *aynará*;

*bat qol*⁸ 'divine voice', in Judeo-Spanish *badkól*;

*behema*⁹ 'animal, beast', in Judeo-Spanish *beemá* or *bemá*;

*tarbut ra'a*¹⁰ 'deviation' in Judeo-Spanish *taburrá*.

Other terms, which the author uses with their Hebrew form rather than the Judeo-Spanish form, show less significant morphological changes, either only the unification of two terms of a construct-state, as in:

*ben 'adam*¹¹ 'human being', in Judeo-Spanish *benadám*, or pronunciation questions, as in:

*derek 'erets*¹² 'civility', in Judeo-Spanish *dereh eres*;

*hakana*¹³ 'preparation, aptitude', in Judeo-Spanish *ahaná*;

*hatslaḥa*¹⁴ 'success', in Judeo-Spanish *aslahá*.

The reason for this is undoubtedly identity issues. Throughout the corpus, the author shows a concern for precision in everything concerning the spelling of words of Hebrew origin, certainly because of the sacred nature of this language. And while we have seen that some verbs are morphologically integrated, and that there are also gender deviations when the author uses a Judeo-Spanish article with a Hebrew noun, as far as spelling is concerned, there are no visible fluctuations. This is certainly due to what we said in the introduction about the sacred status of the letters of the Hebrew alphabet.

³ בעל הבית

⁴ צער

⁵The Judeo-Spanish forms in these examples are given according to Nehama's dictionary.

3.2 Code-switching

Since our corpus is a commentary on a text that is part of the Mishna, Magriso's writing is of a rabbinic style, where Hebrew terms, whether integrated or not, are an essential part of the discourse.

I mentioned that the *ME'AM LO'EZ* had an educational purpose. Harris (1999: 435–438) gives several categories of code-switching levels (between Judeo-Spanish and English or Judeo-Spanish and Hebrew) in contemporary Judeo-Spanish in the United States and Israel, such as dates, numbers, occupations, places, countries, adjectives, nouns, expressions, etc. We find the same categories in our text, but unlike what Harris (1999: 441) asserts, namely that the code-switching cases of her informants were due to their insufficient knowledge of Judeo-Spanish, in our case it is due to the strong presence of Hebrew, the religious and therefore identity-related character of the text, as well as its pedagogical character.

3.2.1 Expressions of rabbinic language and Jewish life

The most frequent cases of code switching in our text are the insertions of religious expressions.

*‘alaw hašalom*¹⁵ The expression *‘alaw hašalom* ‘peace be upon him’, appears 15 times in the text, always in relation to an important figure in Jewish tradition, such as Kings David or Solomon, Abraham or Moses. It also appears once in the plural, *‘alehem hašalom*, concerning the Sages.

- (8) sigún disho dawid hamelek *‘alaw hašalom*
‘In the words of King David, peace be upon him’

*be‘ezrat ha’el*¹⁶ This expression, which can be translated as ‘with God’s help’ or ‘if God wills’, appears seven times in the corpus, often following a reference to a subject Magriso intends to deal with in the future:

- (9) asigún se avizará *be‘ezrat ha’el* más adelante
‘as it will be taught, with God’s help, below’

In *mišna*^h 6:9 this expression appears with another expression, less common in the text:

- (10) *Keryendo dizir ke B^eEZRAT HA'EL LA'ATID LAVO' se tyene de arankar la SITRA' 'OHRA' del mundo*

'Meaning that, with God's help in the future to come, we will have to tear out the Other Side [the dark side] of the world'

*DIN W^eHEŠBON*¹⁷ This expression, which can be translated as 'report, account', appears 6 times in our corpus.

In the following example we have a Hebrew expression with the Hebrew coordinating conjunction, *w^e*, so it can be considered a code switching case:

- (11) [...] lo arebiven para dar din weḥšbon de todos los ma'asim ke izo en este 'olam [...]
'[...] He is resurrected to give an account of all the deeds he has done in this world [...]' (4:27)

This expression appears again in the very text of *PIRQEY 'AVOT*, in *mišna*^h 3:1:

- (12) *HISTAKEL BIŠ^eLOŠA^H D^eVARIM W^eEYN 'ATA' BA' LIYDEY 'AVERA^H, DA' ME'AYN BA'TA MIṬIPA^H S^eRUḤA^H UL^e'AN 'ATA'H HOLEK LIM^eQOM 'AFAR RIMA^H W^eTOLA'A^H W^eLIFNEY MI 'ATA'^H 'ATID LITEN DIN W^eHEŠBON W^eGO*.¹⁸

'Observe these three things, and you will not fall into transgression: know where you come from, where you are going, and before whom you will one day have to give account. From whence thou comest: from a putrid drop; whither thou goest: in place of dust, decay and worms; and before whom thou shalt one day be accountable.'

Here we must take the complete quotation as a case of flagged code-switching case, since Magriso always anticipates his quotations with a discourse marker, as we will see in the next section.

In addition, this expression appears with the Judeo-Spanish conjunction *i*: *din i ḥešbon*. This may be a borrowing of the terms *din* and *ḥešbon*, morphologically integrated by the coordinating conjunction *i*.

- (13) dar din i ḥešbon delante de él
'Reporting to Him [God]'

¹⁸ הסתכל בשלשה דברים ואי אתה בא לידי עברה. דע מאין באת, ולאן אתה הולך, ולפני מי אתה עתיד לתן דין וחשבון. מאין באת, מטפה סרוחה, ולאן אתה הולך, למקום עפר רמה ותולעה. ולפני מי אתה עתיד לתן דין וחשבון

3.2.2 Quotes

Magriso's commentary contains an enormous number of quotations. These include biblical and Talmudic quotations, as well as repetitions of the *PIRQEY 'AVOT* text.

Following Poplack & Sankoff (1988: 1176) definition, most of the quotations in the corpus can be treated as flagged code-switching cases since Magriso almost always introduces them with the discourse markers *asigún dize el pasuq* 'as says the verse' or *ainsí dize el pasuq* 'so says the verse'.

- (14) [...] ansí dize el pasuq en mal'aki capítulo 3: "AZ NIDB^eRU YER'EY H' 'IŠ 'EL RE'EHU WAYAQŠEV H' WAYIŠMA' WAYIKATEV B^eSEFER ZIKARON L^eFANAW L^eYER'EY H' UL^eḤOŠ^eVEY Š^eMO" [...] ¹⁹
'[...] so says the verse in Malachi chapter 3: 'Nevertheless the worshippers of the LORD exhorted one another; the LORD heard and listened, and a record of remembrance was set up before him for those who fear the LORD and respect his name [...]' (3:3)
- (15) [...] asigún dize el pasuq "PALGEY MAYIM LEV MELEK^e B^eYAD H' 'EL KOL 'AŠER YAḤPOTS YAṬENU" [...] ²⁰
'[...] Thus says the verse 'The king's heart is like a stream in the hand of the Lord; he directs it wherever he will [...]' (2:3)

When it is not a biblical quotation, Magriso uses other introductory formulas, for example in his commentary on *mišna*^b 2:16 Magriso brings a quotation from a poem by Rabbi Menahem di Lonzano, an Italian kabbalist of the 16th–17th century:

- (16) I sovre esto izo un ŠIR el rav rabi menaḥem di lonzano, ke esta es su nota: "ENOŠ KI TA'AMIN BA'EL W^eTAKIR, HAKI BIR^eKAT H' HI' TA'AŠIR. HABIR^eKATO TAVO'EKA B^eHAḤASIR 'AVODATO UV^eHEYOT 'ATS L^eHA'AŠIR" ²¹
'And on this Rabbi Menahem di Lonzano made a poem, which goes like this: 'humans believe in God and acknowledge Him, for God's blessing enriches. Will His blessing come to you if you fail in His work and rush to enrich yourself?'

¹⁹ אָז נִדְבְּרוּ יְרָאִי יְהוָה, אִישׁ אֶל-רֵעֵהוּ; וַיִּקְשֹׁב יְהוָה, וַיִּשְׁמָע, וַיִּכְתֹּב סֵפֶר זִכְרוֹן לְפָנָיו לְיִרְאֵי יְהוָה, וּלְחֹשְׁבֵי שְׁמוֹ.

²⁰ פִּלְגֵי-מַיִם לִב-מֶלֶךְ, בְּיַד-יְהוָה עַל-כָּל-אֲשֶׁר יַחֲפֹץ יָטֹנּוּ.

²¹ אנוש כי תאמין באל ותכיר, הכי ברכת ה' היא תעשיר. הברכתו תבואך בהחסיר עבודתו ובהיות אן להעשיר

If it is a passage from the *Gemara* or *Mishna* the formula is *dize la mišna^h* 'the *Mishna* says' or *dize la gemara^h* 'the *Gemara* says', for example in 1:6 where Magriso quotes tractate *ta'anit* 7a:

- (17) I esto es lo ke dize la gemara^h "HARBE^H TORA^H LAMAD^eTI
MERABOTAY UMIH^hAVERAY YOTER UMITALMIDAY YOTER
MIKULAM"²²
'And that's what the *Gemara* says: 'I learned a lot of Torah from my
teachers and from my friends even more and from my students more
than anything else.'

In other cases, especially when Magriso repeats extracts from the text he is commenting on, i.e., *PIRQEY 'AVOT*, the code-switching cases are direct, without any introduction:

- (18) Pero te aviso yo ke aun ke tu lo syerves por amistad i no 'AL M^eNAT
L^eQABEL P^eRAS²³ pero es ne'eman el ŠYt de pagarte tu ŠAKAR [...]
(lit.) 'But I warn you that even if you serve Him out of friendship and not
to obtain a reward, the Holy One Blessed be He is faithful to give you
your reward [...]' (2:18)

The expression 'AL M^eNAT L^eQABEL P^eRAS comes from a *mišna^h* commented on earlier. Magriso repeats it here without translation or explanation.

The following example presents the expression MIDA^H K^eNEGED MIDA^H 'measure for measure', which has become proverbial in Judeo-Spanish:

- (19) Por ke todo pagan de los syelos MIDA^H K^eNEGED MIDA^H²⁴, 'afilu enel
echar de la mar después de matado.
'For everything is paid for by Heaven measure for measure, even
throwing into the sea after [being] killed.' (2:7).

3.2.3 Prepositions and adverbs

Another example is the use of Hebrew prepositions and adverbs, which Magriso makes extensive use of in his commentary.

Several prepositions and adverbs are used systematically by the author. This is due to the style of rabbinic prose, and it also lends a more prestigious character to the text, one of Winford's (2003: 38) hypotheses regarding borrowings. Let us look at three examples:

²² הרבה למדתי מרבותי, ומחבירי יותר מרבותי, ומתלמידי יותר מכולן.

²³ על מנת לקבל פרס

²⁴ מידה כנגד מידה

k^eneged] כנגד (PREP. ‘in opposition to, in relation to’, 18 occurrences outside quotations)

- (20) [...] ya se avizó en otro lugar ke el ḥešbon de las mitswot de la Ley son K^eNEGED de los myembros i los nyervos de la presona, onde son dozyentos i kuarenta i ocho myembros K^eNEGED de los 248 mitswot ‘aše^h i 365 mitswot lo’ ta‘aše^h son K^eNEGED de 365 nyervos ke tyene la presona [...]
 ‘[...] we have already said elsewhere that the total of the commandments of the Law is in relation to the limbs and nerves of the person, it is 248 limbs in relation to the 248 positive commandments and 365 negative commandments in relation to the 365 nerves that the person has [...]’ (2:1)

‘*adraba*’ אדרבא (ADV. ‘on the contrary’, 7 occurrences), common in Judeo-Spanish and *bif^erat* בפרט (ADV. ‘particularly’, 4 occurrences), common in Judeo-Spanish

- (21) [...] su pasyón fue grande BIF^eRAT^h asu vejez ke asperava de endjentrar algún ijo i ‘ADRABA’ kalía azer algunos esforsos i en lugar de esto se kortó las karnes de modo ke se le aflakó las fuersas.
 ‘[...] his passion was great, especially at the time of his old age, for he expected to beget a child, but instead he had to exert himself and instead he cut his flesh and his strength was reduced.’ (5:3)

3.2.4 The Hebrew present participle

The formula including an inflected form of the Spanish verb *ser* ‘to be’ and a Hebrew present participle is very common in the text.

- (22) pasa sovre alguna mitswa^h es POGEM i gasta un myembro o nyervo suyo.
 ‘he transgresses a commandment, he damages and wears out a limb or a nerve.’ (2:1)

Another example combines the verb *ser* ‘to be’ in the past tense followed by a non-integrated Hebrew present participle, the Judeo-Spanish article *las* and an integrated Hebrew noun:

- (23) rabenu haqadoš ke fue M^eSADER las mišnayot
 ‘our holy master who compiled the articles’ (2:10)

In example (23) *fue M^eSADER las mišnayot* ‘compiled the articles’, is a calque of Hebrew, lacking the preposition *de* before the definite article *las*.

3.2.5 The Hebrew past participle

With less frequency than the present participle, Magriso also uses the Hebrew past participle. As with the present participle, the past participle is always preceded by the verb *ser*:

- (24) 'AHUV²⁵ 'loved' (5 occurrences):
es "‘AHUV" kere dizir ke sea amado i kerensyado de la djente
"‘AHUV' means let him be loved and pampered by people' (6:5)
- (25) TALUY²⁶ 'depends on' (2 occurrences):
La tresera ke es "šalom" está TALUY en los ba'aley dinim
'The third, 'šalom', depends on the litigants.'

3.3 The subtle presence of Hebrew through *Ladino* or calque language

In addition to the numerous code-switching cases and Hebrew terms integrated into Judeo-Spanish that are very frequent in Magriso's writing, Hebrew is also very present in *Ladino*, in the sense of a calque language (Sephiha 1973: 45, 49). This is due to the Judeo-Spanish tradition of translating Hebrew works into calque language, and in particular the Tractate of Avot, which counts some 50 different translations since the first in Ferrara in 1552 (Schwarzwald Rodrigue 1985: 139).

This calque translation tradition comes from medieval Jewish education in Spain, where rabbis calqued Hebrew texts with a Spanish lexicon in order to teach children Hebrew. With time, it became a tradition in itself, and even had an influence on the vernacular language, as we will see in the following pages.

3.3.1 Total or partial calque translations

Some of the expressions used by Magriso are calques in whole or in part of Hebrew expressions. Here I will separate these calques into semantic expressions on the one hand, and verbs + prepositions on the other:

²⁵ אהוב

²⁶ תלוי

3.3.1.1 Semantic expressions

The author uses several Hebrew expressions in his commentary. First, we have several terms that exist in Hebrew only in the plural form and that in Judeo-Spanish are used in the same way, creating what Sephiha (1973: 66) calls “syntactic distortions”:

Expressions with *vidas* ‘lives’: The Hebrew term *ḥayim*²⁷ ‘life’ or ‘lives’, exists only in the plural form. The author uses the calque term *vidas* ‘lives’, 27 times in the corpus, most of them in relation to life in the Future World or ‘*olam haba*’.²⁸ Otherwise, when referring to a person’s life or other matters of current life, the author uses the singular Judeo-Spanish *vida* (43 occurrences).

- (26) *komprar las vidas de ‘olam haba kon eyos*
 ‘buy the lives of the future world with them’ (2:8)

Expressions with *fases* ‘faces’: In Hebrew, the term *panim*²⁹ ‘face’, exists only in the plural form. Magriso uses the calque translation *fases* on five occasions:

- (27) *averguensa fases de su ḥaver delante de los munchos*
 ‘he humiliates his companion in front of others. (Introduction)’

Magriso copies the Hebrew expression ‘*az panim*³⁰ ‘shameless’, which appears in *mišna*^h 5:19 – ‘*az panim lagehinom*³¹ ‘the shameless will go to Gehenna’.

The other expression is also found in *mišna*^h 5:19:

- (28) *verguenzozo de fases*
 ‘(somone who is) reserved’

Expressions with *aguas* ‘waters’: In Hebrew *mayim*³² ‘water’, is always plural. In his commentary on *mišna*^h 2:3 Magriso quotes a verse from the book of Proverbs 21:1: *PALGEY MAYIM LEV MELEK B^eYAD H[’] ’EL KOL ’AŠER YAḤPOTS YAṬENU*³³ ‘The heart of the king is like a stream in the hand of the Lord; he directs it wherever he wills.’ In his explanation of this verse, he uses the following expression:

²⁷ חיים

²⁸ עולם הבא

²⁹ פנים

³⁰ עז פנים

³¹ עז פנים לגיהנם

³² מים

³³ פלגי-מים לב-מלך, ביד-יהוה על-כל-אשר יחפץ יטנו.

- (29) los pelagos de las aguas
'torrents of water'

Interestingly, in addition to the calque *aguas* 'waters', he uses the term *pelagos* 'torrents', which sounds very close to the Hebrew term in the verse quoted *palgey*.

Expressions with *syelos* 'heavens': In Hebrew, *šamayim*³⁴ is another term that exists only in the plural form. It is translated to Judeo-Spanish with the plural, *syelos*, when it functions as a synonym for God. When the author speaks of the sky, he uses the singular term, *syelo*.

- (30) para azer voluntad de tu padre ke en los syelos
'to do [the] will of your father who in the skies' (3:15)

The term *syelos* is translated from the Hebrew plural *šamayim* and in the expression *ke en los syelos* 'who [is] in the skies', *ke* is a calque of the Hebrew junctor *še*. In Hebrew we would say *'avika šebašamayim*. Schwarzwald Rodrigue (1989: 447–448) notes this calque as well as the entire expression we have here *ke en los syelos* as being a calque of the Hebrew expression *šebašamayim*³⁵ 'who is in Heaven'. This expression also features an elision of the verb "to be", *estar*.

Then we have calque expressions, composed with a verb and/or an adjective:

Afirmar mitswot 'to fulfill the commandments', from Hebrew *l^e qayem mitswot*:³⁶

- (31) afirmar las mitswot 'aše^h
'fulfill the positive commandments' (1:2)

The Judeo-Spanish verb *afirmar* translates the Hebrew verb *l^e qayem* 'to fulfill' (Schwarzwald Rodrigue 1989: 426). This same calque also appears when translating the Hebrew term *mitswot* 'commandments', into Judeo-Spanish *komandos*.

- (32) trabajar en la Ley i afirmar los komandos del ŠYt
'study the Law and fulfill the commandments of the Holy One Blessed be He.'

Ayegar al lugar 'to be in the place of', translated from Hebrew *l^e hagi'a lim^e qom* (lit. 'to arrive in the place'):³⁷

³⁴ שמים

³⁵ שבשמים

³⁶ לקיים מצוות

³⁷ להגיע למקום

In *mišna*^h 2:5 Magriso makes a calque translation of part of the original Hebrew text he is commenting on:

- (33) no lo djuzges a tu ḥaver lekaf ḥovah si no ayegas a su lugar
‘don’t judge your neighbor negatively until you are in his place.’

Magriso explains *mišna*^h 2:5 by copying it as it appears in the Hebrew version of the text – ‘*al tadin ’et ḥaverka ’ad šetagi’a lim’qomo*,³⁸ ‘Do not judge your neighbor until you are in his place.’

Generally speaking, the verb *ayegar* appears in the corpus with the meaning attested by Nehama, namely that of ‘approaching’, ‘coming close’, ‘arriving’, ‘reaching’, ‘touching the goal’. Here Magriso directly translates the Hebrew verb used in the *mišna*^h – *l’ḥagi’a* – which means ‘to arrive’ by the corresponding verb *ayegar* and thus creates this calque expression.

He once again uses this verb as a calque in *mišna*^h 1:4 :

- (34) komo si ayegara T^eMIDIN³⁹
‘as if offering the Perpetual Sacrifice’

Here, this verb translates Hebrew verb meaning ‘to sacrifice’, *l’ḥagriv*,⁴⁰ whose root, *q-r-b* קר"ב, also carries the meaning ‘to bring near’, ‘to be close’. According to Schwarzwald Rodrigue (1989: 429) it is a Ladinism which also means “to make an offering.”

God’s attributes In *mišna*^h 4:10 we have another calque translated formula that involves the use of God’s name and attributes:

- (35) *Pero lo derecho es ke no te metas a djuzgar sólo porke no djuzga sólo si no el ken es uno, i su nombre uno ke es el ŠYt bendicho él i bendicho su nombre*
‘But what is correct is that you do not set out to judge alone, for [he] does not judge alone but he who is one and his name one, who is the Holy One Blessed be He, blessed be he and blessed be his name.’

The form *lo derecho* ‘the right’, translates Hebrew *hayašar*⁴¹ which is used to indicate what is correct.

³⁸ אל תדין את חברך עד שתגיע למקומו

³⁹ תמידין

⁴⁰ להקריב

⁴¹ הישר

Next, the formula *no djuzga sólo si no el ken es uno, i su nombre uno*. The oppositional preposition *si no* (otherwise) translates the Hebrew joncteur 'ela'.⁴²

Finally, the entire formula *el ken es uno i su nombre uno el ŠYt bendicho él i bendicho su nombre* is a calque of a similar formula in Hebrew.⁴³

- (36) *el ken es uno i su nombre uno el ŠYt bendicho él i bendicho su nombre*
'He who is one and his name is one, the HOBH, may he be blessed and his name blessed.'

3.3.1.2 Translation of prepositions and particles

Another way of copying Hebrew is to calque Hebrew prepositions.

Calques of the Hebrew preposition 'al⁴⁴ 'on, above'

Let us look at some uses of the Hebrew preposition 'al regularly used by Magriso:

- (37) *pasar sovre una de las mitswot*
'to break one of the commandments'

Calques *la'avor* 'al⁴⁵ 'to transgress', (lit.) 'to pass over/above'.

We find this usage, with this same meaning also in 3:16:

- (38) *no pasar sovre su neder*
'don't stifle his vow'

Magriso also uses this preposition in the following sentence:

- (39) *eres ovligado de azerte grande sovre eyos*
'you have an obligation to lead them' (2:6)

Here *grande sovre eyos* 'great over them', in the sense of taking responsibility for others, calques Hebrew *gadol* 'al.⁴⁶ Another expression modeled on the preposition 'al is found in 2:7:

⁴² אֵלָא

⁴³ YHWH 'eḥad ušmo 'eḥad from Zechariah 14:9: "The Lord will be king over all the earth; in that day the Lord will be one and unique will be his name."

יְהוָה יְהוָה לְמַלְכָּה, עַל-כָּל-הָאָרֶץ בַּיּוֹם הַהוּא, יְהוָה יְהוָה אֶחָד וּשְׁמוֹ אֶחָד

The rest of the formula is modeled on the traditional response we utter when we hear God's name: *baruk hu' uvaruk šmo*, ברוך הוא וברוך שמו 'blessed be He and blessed be His Name'.

⁴⁵ לעבור על

⁴⁶ גדול על

- (40) ise alevantó sovre él ke era más forsudo ke su ḥaver i lo ató pyes i manos para degoyarlo
 ‘he got up on him, for he was stronger than his friend, and bound him hand and foot to slit his throat’

Magriso translates here the Hebrew expression *laqum* ‘*al*⁴⁷ ‘to stand up against’, (lit.) ‘to stand on’, used to introduce violent action.

- (41) i se alevantó sovre él
 ‘he stood up to him’

The preposition ‘*al* and the adverb ‘*eyn* ‘there isn’t’ or ‘no’:

In *mišna*^h 5:16 we have a religious concept in Hebrew *M^eZAKEH*^H ‘*ET HARABIM*⁴⁸ ‘one who acquits the public’, in the sense of ‘obtaining privileges for the public’.

- (42) *Todo el ken es “M^eZAKEH ‘ET HARABIM” ke los aze azer mitswot i ma‘asim ṭovim i los aze tornar en tešuva^h i los enkamina en kamino derecho no pekado vyene por su mano.*
 ‘Whoever obtains privileges for the public, that he makes them fulfill commandments and do good deeds and he urges them to repent and puts them on the right path, no sin comes from his hand.’

This explanation of *mišna*^h 5:16 imitates the Hebrew formula ‘*eyn ḥeṭ’ ba’ ‘al yado*⁴⁹:

- (43) no pekado vyene por su mano
 (Heb.) ‘*eyn ḥeṭ’ ba’ ‘al yado*
 ‘he commits no sin’

It is interesting to see how Magriso places the negation *no* before the noun in place of the indefinite determiner *ningún* ‘none’.

Here Magriso translates the preposition ‘*al* rather by the preposition *por*, to give the sense that no sin passes through the hands of one who works for others.

⁴⁷ לקום על

⁴⁸ מזכה את הרבים

⁴⁹ אין חטא בא על ידו

3.3.2 Apocopated present participles

Sephiha (1973: 51–53) speaks of apocopated present participles as a way of translating the Hebrew present participle into *Ladino*. It is especially in the singular form, according to him, that “verbs suffer from final wear with tonic accentuation to distinguish them from other homograph verb forms”. The fact that this form existed in Aragonese enabled *Ladino* translators to adopt it freely.

- (44) Más da de konsejo dito sinyor “no seas menospresyán a ningún ombre [...]”
 ‘This gentleman also advises us: ‘Despise no one’ (4:3).

The form *menospresyán* is an apocopated form of *menospresyante*. In this example we see very clearly how this form translates the Hebrew verb *baz*, which is a so-called “monosyllabic” form (י"ב/י"ב in Hebrew) of the verbal pattern *qal*. In Hebrew it is written *'al t'hi baz l'kol 'adam*.⁵⁰

In *mišna*^h 4:25 we have two more examples of this phenomenon. The apocopated present participles are *komyén* from *komyente* ‘he who eats’ and *bevyén* from *bevyente* ‘he who drinks.’

- (45) I el ken depende Ley de los vyejos si es en koza de p^ešať asemeja a komyén uvas dulces i si es koza de sekretos dela Ley asemeja a bevyén vino vyejo [...]
 ‘And he who learns the Law from the old, if he learns the literal meaning of the text then he resembles the one who eats raisins, and if he learns the hidden meaning of the Law then he resembles the one who drinks old wine [...]

3.3.3 *Ladino* plurals and singular collective nouns

Sephiha (1973: 65–66) and Bornes-Varol (2008: 210) speak of *Ladino* plurals, which have an archaic form and would express an intensive form of prestige. Here are a few examples:

- (46) kada maka i maka
 ‘all the strokes’ (5:18)
- (47) kada tsadiq i tsadiq
 ‘all righteous men’ (4:12)

⁵⁰ אל תהי בו לכל אדם

- (48) kada ora i ora
'every hour' (4:27)

Bornes-Varol (2008: 210), referring to Sephiha (*passim*), says that "this form represents a sophisticated way of speaking".

3.3.4 Ellipses of the verb "to be"

In *mišna*^h 3:15 we find the following sentence where in addition to the verb "to be" the definite article *la* is missing:

- (49) para azer veluntad de tu padre ke en los syelos
'to do the will of your father in Heaven.'

In *mišna*^h 3:21 Magriso directly copies part of the Hebrew text, which he comments on:

- (50) I la butika avyerta i el butikaryi fyán
'And the store is open and the merchant gives credit.'

Directly translating the Hebrew text, *haḥanut p^etuḥah wehaḥenwani meqif*⁵¹ Magriso omits the verb 'to be' before the adjective *avyerta* as well as before the apocopated present participle *fyán*.

3.3.5 Values of the infinitive form

We also find infinitive forms with the following values:

3.3.5.1 The absolute infinitive

The absolute infinitive is a form used in Biblical Hebrew, often with a sense of imperative (Donnez-Guez 2013: 213), but also this paronomastic infinitive serves to accentuate the meaning of the verb in question Bornes-Varol (2008: 241).

Solà-Solé (1983: 250) points out that one of the most remarkable features of the influence of Semitic languages on medieval Spanish is the repetition of the verbal concept to mark different nuances, and above all conceptual intensity. Among the various forms he notes are constructions of Hebrew origin where the abstract infinitive form is followed by a personal verbal form of the same root.

In my corpus, I have not found any clear examples of calqued absolute infinitive forms, but the following examples could be forms derived from this infinitive.

⁵¹ החנות פתוחה והחנוני מקיף

- (51) [...] *si no el ovligo ke tyenes es de estar meldando toda tu vida i lo ke puedes alkansar de meldar alkansa* [...] ' [...] otherwise the obligation you have is to study all your life, and what you can achieve by studying, achieve it [...]' (2:18)

This example depends on how we read the sentence. If we read it as in my proposed translation, with the second *alkansa* as an imperative, then we could be looking at a construction reminiscent of the absolute infinitive form *alkansar alkansa*, which is a common form in Judeo-Spanish. But it is also possible to read this second *alkansa* as the present tense of the verb *alkansar*. In that case, we would not be dealing with a form reminiscent of the absolute infinitive.

- (52) Dito sinyor vino a akavidar ke se akavide la persona enel meldar [...] 'This gentleman came to recommend that the person be careful in studying [...]' (4:16)

The repetition of the verb *akavidar* in example (52) can be seen as a desire on Magriso's part to give greater intensity to his statement, which warns readers as they set out to study.

There are examples with the verb *azer* 'to do':

- (53) I todo el ken aze azer pekar alos muchos [...] 'he who leads others into sin [...]' (5:16)
- (54) se esforsava el yetser hara^c kuantto más podía para ver si lo azía azer aver QERI [...] 'The evil inclination strove to cause him night pollution' (5:4)

In examples (53) and (54), repetition of the verb *azer* is not necessary to give the factitive value: *aze pekar* 'he pushes to sin', or *azía aver* 'pushes to have', would be sufficient. The addition of the infinitive *azer* reinforces the intensity of the author's words.

There are also constructions that combine gerund and personal verb form, a construction which, according to Solà-Solé (1983: 252), is also used to express the absolute infinitive from translations of the Vulgate and Masoretic text into medieval Spanish:

- (55) [...] en anbezándose a meldar se anbezará el derek^k 'erets [...] ' [...] by learning to study he will learn respect [...]' (3:22)

- (56) [...] *ke en avyendo da‘at ay todo bueno – i en mankando el da‘at le manka todo [...]*
 ‘in having knowledge there is only good, but in lacking knowledge he lacks everything’ (2:11)

3.3.5.2 Nominalized infinitive forms

Nominalized infinitive forms exist in Romance languages (Berenguer Amador 2016: 244).

According to Bornes-Varol (2008: 243) when infinitive forms are nominalized, they are used in the singular form:

- (57) [...] *“ké z^e kut tyenen a mereser regmidos?” te respondo ke en tu sakar el puevlo de MITSRAYIM tyenen de resivir la Ley i este zekut ya les abasta para regmirlos.*
 ‘[...] what right do they have to deserve to be delivered? I answer you that due to your bringing them out of Egypt they must receive the Law and this right is sufficient to deliver them.’ (5:6)

Let us look at the infinitive *sakar* ‘to take’:

- (58) *en tu sakar el puevlo de MITSRAYIM*
 ‘the fact that you took us out of Egypt’
- (59) [...] *kere dizir ke tu ojo no pare myentes en otra koza si no todo tu mirar de tus ojos sea eneya.*
 ‘[...] it means that your eye should not focus on another thing, but that your gaze should be fixed on it.’ (5:21)
- (60) *todo tu mirar de tus ojos sea eneya*
 ‘the whole gaze of your eyes should be put in her’
- (61) a. *Kere dizir ke sea akavidado muncho en el servimyento de los ḥakamim ke no se menee de su lado de eyos en su echar i en su alevantar [...]*
 ‘This means that he must be attentive to the service of the Sages, not straying from them either at their going to bed or at their rising [...]
 (6:5)
- b. *en su echar i en su alevantar*
 in his setting and in his rising

Examples (59) and (61a) are clearly calque Hebrew constructions. The nominal form *sakar* 'the taking out', appears to be a calque of the abbreviated Hebrew form *tse't*⁵² 'exiting'. The wording of example (61a) recalls part of the first paragraph of the prayer *šema' yišra'el: w^e šinan^e tam l^e vanek^a w^e dibarta bam b^e šivt^e ka b^e veyteka uv^e lekt^e ka vaderek uv^e šokb^e ka uv^e qumeka* 'thou shalt inculcate them [these words] in thy children, thou shalt speak of them (constantly), in thy house or on thy journey, when thou liest down and when thou risest up'.⁵³

Example (61a) is in line with the custom in Romance languages of nominalizing infinitives, as in Spanish and French.

This nominalization of the infinitive form is very frequent, and we find *el meldar* 'study', *el gastar* 'waste' or 'expense', *el olvidar* 'forgetfulness', *el pezar* 'sorrow', *el servir* 'service'.

3.3.5.3 The homological infinitive

Bornes-Varol (2008: 245) identifies pleonastic constructions that associate a conjugated verb with its corresponding noun. According to Solà-Solé (1983: 250), paronomasia is of Arabic and Hebrew influence.

This construction is very frequent in my corpus:

- (62) *I syendo así guádrate de no avlar tales avlas ael 'ani si no eres ovligado de darle tsedaqa^h.*

avlar tales avlas

'to talk such talkings

Given this, beware of uttering such words in front of the poor, you are rather obliged to give him charity.' (5:12)

- (63) *11 es ke no podía ninguno kavalyar sovre su kavayo ni asentarse en su siya ni servirse kon su vara ni kon su korona ni kon ninguna koza suya.*

kavalyar sovre su kavayo

'riding on your horse

The eleventh was that no one could ride on his horse or sit on his chair or use his staff or crown or anything else of his.' (6:5)

We find other similar constructions, such as: *kaminar en kamino* 'to walk on a path' (6:5), *demandar en esto una demanda* 'to ask about it a request' (2:7), *deklarar algún deklaró* 'to declare a declaration' (3:16), *depedrér ke depyedre el raša* 'the loss that the wicked loses' (5:1).

⁵² צאת

⁵³ וְשִׁנְתָּם לְבָנֶיךָ וְדַבַּרְתָּ בָּם בְּשִׁבְתְּךָ בְּבֵיתְךָ וּבְלִכְתְּךָ בְּדֶרֶךְ וּבְשֹׁכְבְּךָ וּבְקוּמְךָ

3.3.5.4 Factitive infinitive forms

Many Judeo-Spanish infinitives are built with the prefix *a-*. According to Lapesa (1991: 148), this prefix comes from Arabic and gives a factitive value to Castilian verbs. Hanssen (1966: 27), referring to the prosthetic *a-*, also makes reference to this: “Here we note the influence of word separation errors, the analogical propagation of the preposition *a* and Arabic models”.

In my opinion, to this can be added the fact that Magriso sometimes confuses this prosthetic *a-* with the Judeo-Spanish preposition *a* ‘to’, and that constructed infinitive forms in Hebrew begin with the preposition *ל*, which is attached to the verb and can be translated, among other things, by the preposition *a* in Judeo-Spanish.

It seems highly likely to me that these elements may have contributed to the appearance of *Ladino* calques with factitive values, as in the following verbs: *akayar* ‘to be silent’ and ‘to silence’, *abashar* ‘to go down’ but also ‘to make someone or something to go down’, *aboltar* ‘to return’, *apezgar* ‘to make heavy’, *asaventar* ‘to make known or become learned’, *ayegar* ‘to arrive’ but also ‘to sacrifice’.

The verbs *abashar* and *ayegar* (which we have seen earlier as a calque form) deserve particular attention. In the corpus, we find the expression *abashar luvya* (lit.) ‘to bring down rain’, calqued on the Hebrew *לְהוֹרִיד גֶּשֶׁם*.⁵⁴ The Hebrew verb *לְהוֹרִיד* is a factitive *hif'il* form which can be translated as ‘to bring down’. According to Nehama (1997: 333) there is a verb equivalent to ‘to rain down’ in Judeo-Spanish which is the verb *luyar* (a rare verb) or *fazer luvya*.

To sum up, the presence of prosthetic *a-* in medieval Spanish, which, according to Hanssen (1966: 27), combined with the fact that Magriso confuses this *a-* with the Judeo-Spanish preposition *a* and the fact that Hebrew constructed infinitive forms begin with the preposition *le* which – as stated earlier – is equivalent to the preposition *a* in Judeo-Spanish, may not only have facilitated the creation of the calques mentioned above, but also contribute to the instability of the position of the preposition *a*, with or without crasis, as we see in the cases of *adizir* versus *a dizir*, *ameldar* versus *a meldar*, *akortar* versus *a kortar* and so on.

3.3.6 Reduplication

3.3.6.1 Homological reduplication

Bornes-Varol (2008: 245) indicates that reduplication without a copula can be attributed jointly to the influence of Hebrew and Turkish, where this formula-

⁵⁴ להוריד גשם

tion can be used to mark multitude, when a noun is reduplicated, or to give a superlative or an intensive value if an adjective is reduplicated.

- (64) I por avizo de esto disho el TANA' "M^e'OD M^e'OD HEWE Š^eFAL RUAḤ ŠETIQWAT 'ENOŠ RIMA^H". Keryendo dizir muncho muncho debes de ser basho de esprito [...]
'And on this subject the Sage said 'M^e'OD M^e'OD HEWE Š^eFAL RUAḤ ŠETIQWAT 'ENOŠ RIMAH'. Meaning, many many you must be low in spirit [...]' (4:4)

Here the adverb *muncho* is reduplicated to copy the formula "M^e'OD M^e'OD" from the *mišna*^b Magriso is explaining. Magriso is deliberately showing his calque of the Hebrew form.

- (65) [...] *i le avryeron la tripa i fueron kortando pedasos pedasos de akea enshundya* [...]
'[...] and they cut open his guts and cut off bits and bits of that fat [...]' (5:4)
- (66) [...] *fulano i fulano resivyeron de fulano* [...]
'[...] so-and-so received from so-and-so [...]' (ML1)

3.3.6.2 Synonymic reduplication

This is the intensive repetition of synonymous nouns, a frequent phenomenon in *Ladino* Bible translations (Bornes-Varol 2008: 246). Bornes-Varol (2008: 246–247), echoing Sephiha (1977), distinguishes between homosynonymic and heterosynonymic reduplication.

In my corpus there are abundant examples of both.

3.3.6.3 Homosynonymic reduplication

These are cases where the synonyms come from the same language. They may be nouns or adjectives.

There are so many instances of this phenomenon, I will just give a few examples from the introduction and the first chapter of the corpus.

- *repozo i olgansa* 'rest and relaxation'
- *santos i temerosos* 'saints and fearsome'

- *kastigeryos i dotrinos* ‘lessons and teachings’
- *a las guertas i a los verdjeles* ‘vegetable gardens and orchards’
- *sangrías i beverages i melezinas* ‘bloodletting, beverages and medicines’
- *el savyo i el entendido* ‘the wise and the knowledgeable’
- *mitswot i ma‘sim ʔovim* ‘commandments and good deeds’
- *raša‘ i BA‘AL ‘AVEROT* ‘the wicked and (the) sinner’

3.3.6.4 Heterosynonymic reduplication

These are combinations of nouns that associate languages to which Judeo-Spanish may or may not belong (Bornes-Varol 2008: 247). Sometimes they are not synonyms, but terms that are related:

- *kastigerios i dotrinos i MIDOT buenas* ‘lessons and teachings and good attributes’ (1:1) (JS + JS + HEB)
- *ḥaver i amigo* ‘companion and friend’ (1:6) (HEB + JS)
- *los pashas i el reynado* ‘kings and royalty’ (TURK + JS)
- *temeles i fuersas* ‘bases and strengths’ or ‘essentials and strength’ (TURK + JS)
- *los dasyos i las pechas* ‘taxes and capitation fees’ (JS + TURK)

3.3.7 Using the article to highlight the adjective

As in Hebrew, where the adjective following a definite noun is also preceded by a definite article (Bornes-Varol 2008: 252), we find similar constructions in Judeo-Spanish through *Ladino*. However, in my corpus I found only three cases:

- *tu ermano el dezeozo* ‘your brother the eager’ (5:12)
- *tu dezeo el malo* ‘your desire the evil’ (2:4)
- *su mano la ancha* ‘his hand the wide one’ (3:16)

4 Conclusion

PIRQEY 'AVOT's commentary in the *ME'AM LO'EZ* has a very important heritage value for the Judeo-Spanish community. The community used to study the text of *PIRQEY 'AVOT* during the seven weeks between Passover and the Feast of Weeks (Shavuot), as a kind of means for spiritual elevation.

As a result, Magriso's commentary in Judeo-Spanish makes the text, as well as *PIRQEY 'AVOT*'s commentaries in the vast Jewish literature, accessible in a simple way to all strata of Judeo-Spanish society, including women, which was not a given at the time.

As we have seen, the use of two Hebrew alphabets, the square for the original Hebrew text of *PIRQEY 'AVOT* and the Rashi for the commentary in Judeo-Spanish defines – beyond the fact that it was the norm at the time for this kind of work – a hierarchy in the structure of the text: the sacred language in square characters and the vernacular language in the “popular” alphabet.

Within the commentary, Magriso introduces Hebrew far beyond the presence of Hebrew in the vernacular, and even in other similar works of the period. For instance, there are 822 different Hebrew terms in the text, some of which appear very frequently, not counting the numerous biblical quotations that the author integrates into his commentary. Of these 822 terms, some 345 are not integrated into vernacular Judeo-Spanish.

By way of comparison, in the book *La güerta de oro* published in 1778 in Livorno, we have around 130 Hebrew terms.

In the *ME'AM LO'EZ* of Exodus, written partly by Yaakov Huli and partly by Magriso, Spanish researcher Aitor García Moreno has identified 567 Hebrew terms, in a significantly longer text.

The high presence of Hebrew through a lexicon and calqued structures might raise the question of the pedagogical approach of the author. If he writes a commentary in Judeo-Spanish because people do not understand Hebrew, then why use so much Hebrew in it? The answer to that is a mixture of identity and rabbinical prose.

Hebrew loanwords and code-switching are part of any Jewish language. Hebrew has the status of a “sacred language”, it is the language of the Bible and of the rabbinical literature and is present in the vernacular Jewish languages not only through religious life but also through people's Jewish identity.

If we add to this the fact that rabbinical prose is always made of Hebrew terms and references to the Bible, we can explain why a popular commentary as *ME'AM LO'EZ* has so much Hebrew in it. Possibly the authors thought that in this way people will learn some new Hebrew concepts and, above all, the commentary is

accessible enough through Judeo-Spanish, while keeping its traditional “Jewish style” as in all Jewish literature.

We can add to this that probably because of the ethical content of the *PIRQEY ’AVOT*, combined with the pedagogical character of the *ME’AM LO’EZ*, and probably some personal considerations about the status of the Hebrew language, Magriso makes much wider use of Hebrew in this commentary.

But, at the same time, Magriso’s commentary is less “reader friendly” than his predecessor’s commentary. Huli’s style was also lighter and more moderate. Since Magriso took over Huli’s work after the latter passed away, and since they were both disciples of the same rabbi, Judah Rosanès, I can conclude that the difference is due to the different personal styles of the two rabbis, and maybe to the character of the text Magriso commented on; as mentioned above, *PIRQEY ’AVOT* is not a biblical text, but rather a post-biblical source which deals with ethics. This can also be the reason for Magriso’s more moralistic style.

In this sense, we can presume that using more Hebrew words and more rabbinical concepts, sometimes even if there is a risk for readers not to understand it clearly, is part of Magriso’s severe commentary style. In addition to that, the fact that he never changes the morphology of integrated loanwords means that Hebrew has a special status for him and should have a special place in his commentary.

This attitude is reflected in Magriso’s words, for example, in his commentary for the first article:

- (67) *Ke syendo las palavras de la Ley son muy seradas ke ninguno las entiende, por esto tenemos ovligo de rejirmos asigún loke mos komandan los hakamim pork eyos tyenen resivido el deklaró de kada mitswa^h i mitswa^h de la Ley.*
‘The words of the Law [the Bible] are so hermetic that no one can understand them. This is why we are obliged to conduct ourselves according to Wise men’s [or rabbis] orders since they have received the meaning of each commandment of the Law.’

This is the reason for the many borrowings and code-switching cases. We have seen that Hebrew is present not only on the lexical level, but also in the morphology of certain verbs, notably apocopated present participles.

Hebrew is also present in semantics, in the many expressions that the author calques, as well as syntactically speaking, in the use of infinitives, prepositions and reduplications.

At the same time, a question arises which needs further reflection: if, as most of the Jewish languages scholars think, Hebrew is an inherent element of every

Jewish language, could we consider the fact that Magriso chooses not to integrate morphologically Hebrew terms, thus giving Hebrew a special place of “sacred language”, to what extent we might speak then of Hebrew as a part of the Jewish language? Isn't it, at some point, a disintegration of Hebrew from the vernacular language?

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Chapter 9

Script and identity: Alphabets, amulets, and anchors

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The paper, “Script and identity: Alphabets, amulets, and anchors”, examines the central role of the Georgian alphabet in constructing and preserving identity within isolated Georgian linguistic enclaves, focusing on the Fereydani Georgian community in Iran. The study argues that the Georgian script transcends its function as a linguistic medium and serves as a cultural and religious symbol that anchors collective identity in the midst of geographical and cultural isolation. Separated from the Georgian heartland during the Ottoman-Persian conflicts, the Fereydani Georgians experienced centuries of isolation that fostered the independent development of their language and culture. The Georgian script emerged as a counterpoint to the dominant Arabic script, symbolizing resistance to assimilation and the preservation of ethnic and spiritual heritage. Beyond textual communication, religious texts, amulets and artefacts bearing the Georgian script serve as tangible links to the ancestral homeland, reinforcing cultural memory and solidarity. The article places this phenomenon in a broader historical context, showing how forced relocations fragmented Georgian communities, creating linguistic and cultural islands. Women played a crucial role in preserving written traditions, particularly through the clandestine Dedabruli script developed under Ottoman rule to covertly maintain Orthodox beliefs and cultural practices. Ultimately, the paper argues that the Georgian alphabet is central to the cultural identity of these isolated communities. It transcends practical communication to become a ritual and sacred element that embodies and perpetuates their identity. The Georgian script, the study shows, is not just a linguistic tool, but a lived experience that is integral to the preservation of collective memory and cultural uniqueness.



1 Introduction

Script, language, and cultural identity are often closely intertwined and play a crucial role in the demarcation and self-definition of linguistic communities, especially in isolated linguistic islands. This study examines how the Georgian alphabet has manifested itself as a central element in identity formation within the Georgian language enclave in Iran (Fereydani Georgian) and in the context of crypto-religiosity (Crypto-Orthodoxy, Pourtskhvanidze et al. 2023) in the former Ottoman area of Western Georgia. It addresses several key research questions. On the one hand, it examines how the Georgian script is used in these isolated communities to preserve and strengthen cultural and ethnic identity, and the role that isolation from the core Georgian culture plays in this. It also analyses how this isolation affects the practice of writing. Another focus is on the influence of political and geographical isolation. The thesis sheds light on the historical development of the Georgian language island and analyses the extent to which this isolation has contributed to the formation of an independent written and linguistic identity. The study examines how the Dedabruli script, a variant of the Georgian alphabet, is used not only as a means of communication, but also as a symbol of cultural and religious identity, particularly in contexts where Georgian communities were under Islamic influence. Finally, it discusses how writing and written traditions function as carriers of cultural memory and thus contribute to the formation of collective identity within the Georgian language island in Iran. Specific written artefacts and their cultural significance will also be discussed. The study of these aspects will illustrate the interrelationship between writing, identity and linguistic isolation, highlighting the Georgian alphabet as a central identity-forming element in the Fereydani Georgian.

1.1 How does script shape identity?

The identity construction of a group is based on a shared characteristic of the majority of this group, depending on the specific case (Phinney 2000: 2–3). Such a characteristic is contrastive to a shared characteristic of another group and thus fulfills the function of distinguishing or emphasizing the boundaries between the groups. We therefore refer to such shared characteristics as *differentia specifica identitatis*. They motivate and enable the delimitation of a group from the inside and justify the corresponding perception from the outside. The *differentia specifica identitatis* is a constitutive phenomenon of a group that regulates or balances the tension between isolation and integration with the help of these specific characteristics.

Which specific characteristic or combination of characteristics can be shared within a group to define identity? The list can be compiled with different rankings from such phenomena as language, religion, cultural memory, geography, customs and everyday traditions (Segerstedt 1942: 5). The dominance of a shared characteristic justifies the description of the group as a “linguistic community”, “religious community”, “cultural community”, or “geographical community” (Zabrocki 1970: 4).

The comparative analysis does not reveal a one-to-one correspondence between these “communities”: a “religious community” may encompass multiple “linguistic communities”, and, conversely, within a single linguistic community, diverse religious communities can emerge, establishing themselves as self-defining identity groups through shared religious affiliation. A similar constellation also applies to the “scriptual community”.¹ This term is analogous to the term “communicative community” used by Zabrocki (1970) and goes back to the tradition of Rasmus Rask: “[...] Language is based on human nature [...], writing is an accidental invention” (Rask 1826). Glück (1987: 111–151) writes “[s]uch ‘arrangements’ have taken very different historical forms and functions, and the respective writing communities were by no means necessarily congruent with the language communities that existed at the same time, as the examples of Latin in the Middle Ages and early modern period or of English in the world of the former Commonwealth show”.

There is a type of multiple assignment between language and scriptual communities (Figure 1).

This captures the observation that one and the same language community can use different script systems (e.g., Turkic languages that utilize different script systems in various Turkic-speaking countries), as well as the fact that the same script system can be used across different language communities (e.g., different languages from various language families represented in the Latin script system).

In the following article, a *writing community* is defined somewhat more broadly than the term “writing” is traditionally used. Here, the term refers to a community that defines itself as a community through the use of a unified and closed system of signs to reproduce linguistic content. The focus here is on

¹We deliberately make no distinction here between *writing* and *script*. The two phenomena merge in the given context and delimit the area in which the *written image* (as a system and as an activity) is in the foreground. Consequently, this means equating handwriting (scriptography), book writing (typography), or even the use of letters for the purpose of counting.

Language communities	Language community A	1	1	0	0
	Language community B	0	1	1	0
	Language community C	1	0	1	1
	Language community D	1	1	0	1
		Scriptual community 1	Scriptual community 2	Scriptual community 3	Scriptual community 4
		Scriptual communities			

Figure 1: Matrix of the multiple assignment between *language community* and *scriptual community*

the “Georgian language community” and the “Georgian writing community” as one and the same projection area for both terms.²

²The Georgian language belongs to the Kartvelian languages, which as a genetically closed language family (Georgian, Zan and Svan) shows structural and typological similarities with other Caucasian languages. The general linguistic characteristics of the Kartvelian languages mainly concern the nominal and verbal morphology. Georgian, for example, distinguishes between declination types of final-vowel-stem and final-consonant-stem. A special feature is the syntactic function of case. In the Kartvelian languages nominative, ergative and dative are regarded as subject cases. Ergative is the subject case in the transitive verbs and yet there are cases within the transitive verbs where the agent is not in the ergative but in the nominative. This typological peculiarity is called split-ergativity. Besides the complex nominal morphology, Georgian has a very rich verbal morphology. Up to fifteen verb categories are listed. An important characteristic is the polypersonality. In the verb body, morphological markers mark not only the subject but also the direct and/or indirect object. An important role is played by the preverbs, whose function is not only the marking of the direction but also the formation of aspects and derivation. The grammatical tempus of the verb in Georgian is a complex system of TAM categories and constructs three series. The sixteen dialects of Georgian can initially be classified geographically into West Georgian and East Georgian dialects.

Traditionally, writing systems have been viewed in the context of identity formation in relation to religion (Haarmann 1990). Writing systems are seen primarily as a means of expressing religious identity. This includes the religiously determined choice of alphabet, i.e. membership of a “writing community” reflected membership of a “religious community”. “Jews wrote partly in Arabic, but with Hebrew letters. The first example is *More Newuchim*, the major work of the Jewish scholar Moses ben Maimon, which was written in Arabic but with Hebrew letters” (Oppenheimer 1971: 524).³ However, religion, language, and script are heterogeneous. The Arabic script is used not only to reproduce the Arabic language, but also for other languages from other language families, such as Persian, Kurdish (in Iraq, Iran, and Syria), historically for Turkish and Tatar, Malay (Jawi), Indonesian, Pashto, Urdu, Uighur, Somali, Swahili, and Hausa.⁴ In most instances, scripts are associated with the spread of Islam, particularly when non-indigenous writing systems are adopted for local languages.

However, the case discussed in this article is unusual: here, the Georgian script is employed solely for the Georgian language, rather than for writing other languages, as is more common in multilingual contexts influenced by religious or cultural exchange.⁵ Thus, in this case, there is indeed a one-to-one relationship between the *linguistic* and *written* communities (Figure 2). This fact makes it possible to see the Georgian script in the context of other identity-forming factors such as religion, cultural memory, architecture or traditional costume, although it should be noted that the order of emergence of identity-forming communities tends to favor the “linguistic community” before the others.⁶

³Moreover, it is not only Jews but also Christians who underscore their religious identity through their choice of alphabet: The Egyptians retained their language after Christianization in the first post-Christian centuries, but later adopted the Greek alphabet (Metzger 1966: 79). Atatürk had the Latin script introduced in 1928 as part of the Turkish national reform, replacing the Arabic script. In this case, too, the writing system has the function of expressing one’s identity – only it is not a matter of religious identity, but of national identity.

⁴Such uses of the Arabic alphabet for other languages are known as Ajami scripts.

⁵There are some minor exceptions, for example, in relation to the North Caucasian language Avar, which was written in the 14th century using the Georgian alphabet (Chikobava 1940: 321–327, Gudava 1954: 185–196). The inscription (tombstone) found in Khundzakhi in 1950 is a sentence in Avar (*timala tacobeg* ‘[God] have mercy on the children’) and is a mixture of two Mrglovani (round script) and Nuskhuri (angular script) variants of the Georgian alphabet. The word nushuri is connected to the Georgian word ნუსხა *nuskh* ‘list, catalog’, which in turn comes from the Arabic word نسخ *nash* ‘copying’.

⁶This assumption has historical roots in the Georgian context. *The Georgian Chronicles* (ქართლის ცხოვრება *kartlis cxovreba*) (ch. 42.2) defines the Kingdom of Georgia (ქართლის სამეფო *kartlis samepo*) through the linguistic practices that explain the idea of the identity of the kingdom in terms of religion:

The following article seeks to identify and describe those cases in which writing is appropriated not simply as a technological tool for graphically reproducing linguistic content, but rather as a medium for projecting beliefs and cultural or historical constructs – analogous to expressions found in architecture, cuisine, or rites associated with marriage, baptism, and burial.

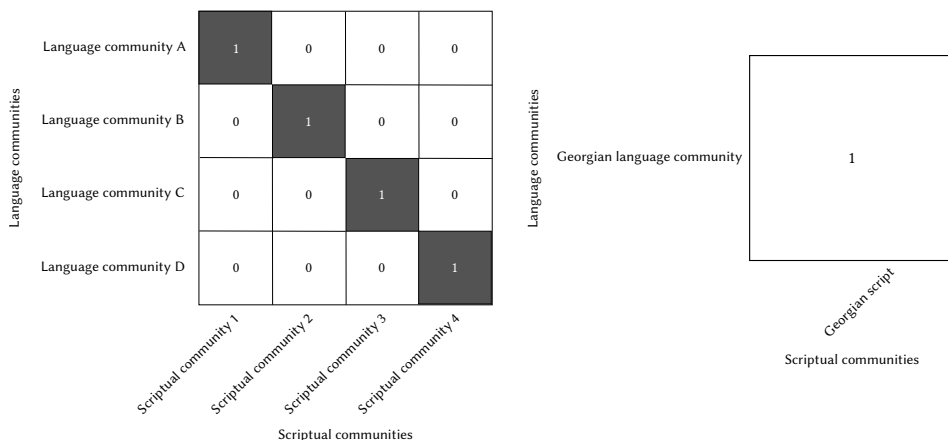


Figure 2: A one-to-one relationship between the *linguistic* and *writing* communities

A further distinction to be made at this point lies in the phenomenology of writing, which, unlike language, is the result of visual thinking. The connection between the phonetic image of language and the visibility of writing can be imagined on two levels: on the first primary level, the linguistic content is graphically visualized, while on the second level, based on this, writing represents the identity of the linguistic community and thus fulfills its secondary function (*diferencia artificis itentitatis*). A further sub-level of visibility is represented by the written testimonies that represent the writing system itself: inscriptions, manuscripts, writing tools, writing practices, the scribes themselves, and related social networks. It should be noted that in the cases described below, the primary practice of using Georgian script for the purpose of reproducing linguistic content has taken a back seat, and the primary meaning has taken on a secondary

- (i) ქართლად ფრიადი ქუეყანად აღირაცხების, რომელსაცა შინა ქართულითა ენითა ჟამი შეინირვის და ლოცვად ყოველი აღესრულების
kartlad priadi kueqanay agiracxebis, romelsaca šina kartulita enita žami šeicirvis da locvay qovelis agesrulebis
 ‘Georgia is the country within which the service is celebrated in Georgian and every prayer is requested’

function: the condition and anchoring of the identity of a linguistic community that represents a special form – a language island.

The following article deals with the cases of establishing (triggering) and representing identity through the Georgian script and related writing practices in the context of the Georgian language islands.

1.2 Georgian language islands and their origin: Brief overview

The term *language island* originates from German linguistics, specifically dialectology, and was primarily employed in the early study of minority languages and dialects (Ficker 1869, Kuhn 1934). Accordingly, language was initially the most important criterion for defining and describing the object of research. Of particular importance was the branch of research on language islands, which also included historical, cultural, and ethnic characteristics, and was thus located between linguistics, folklore studies/European ethnology, and history. A language island is defined as a segregated community of speakers that resists linguistic and cultural assimilation (Berend & Mattheier 1994).

Three Georgian language islands, which exist outside present-day Georgia in Iran, Azerbaijan and Turkey, emerged as part of a historical continuum.⁷ The armed conflict between the Ottoman and Persian Empires at the beginning and the Russian Empire in the later phase resulted in significant numbers of people from eastern Georgian regions being deported to Iran (Fereydani Georgian).⁸

⁷Georgia has experienced massive demographic change over the past approximately four hundred years. Historical processes covered by the term migration can be classified in various forms from prisoner-of-war migration to state-imposed “demographic annexation”. The wars of conquest of the Persian Shah Abbas the First in the first two decades of the 17th century, as well as the permanent invasions from the Ottoman Empire turned large parts of the Georgian Kingdom into deserted places. Shah Abbas continued his war policy with the means of demographic restructuring of Georgia: he resettled about 80 thousand families from mainly Kakheti (East Georgia) in the different locations of Iran and colonized the land thus freed by North Caucasian tribes of Muslim faith in the hope of achieving more loyalty to the Persian Empire. In the course of this conflict, Georgian language islands have emerged outside of Georgian national territory: Fereydani Georgian in the Islamic Republic of Iran, Ingilo Georgian in Azerbaijan and the three variants spoken in Turkey: Taoish, Shavshish and Klarjian (on the fringes, the variants of the Georgian Mujahir). The last of these is associated with the written form Dedabruli described in this article.

⁸Depending on the source, the following places of origin can be identified: Kakhetia and Kiziqi (100,000 war slaves) (Rakhmani 1957); or Djavakhetia and Kartli (30,000 war slaves who were transferred to the villages north of Isfahan near Armenian villages). According to Arakel Davrizhetsi (1669: 16–46, 95–100, 102–104, 103–105) (Առաքել Դավրիժեցի ‘Arakel of Tabriz’), the merchants from Tbilisi were also resettled in a suburb of Isfahan. From Tianetia (30,000 war slaves) and from Heretia (Saingilo) the Georgians were resettled to Mazandaran in Farahabad. After the conquest of the castle of Erevan, the shah’s soldiers also reached Meskhetia and, according to Iskander Munsh, brought countless war slaves to Iran. According to Pierre Oberling (1963), the Armenians and Georgians were resettled west of Isfahan almost simultaneously in the years 1603–5.

The resulting demographic annexation of East Georgia changed the linguistic landscape and formed a language island in the border region (Ingilo Georgian). Russian interests in the South Caucasus and the wars with the Ottoman Empire, which lasted until the beginning of the 20th century, separated the historical Georgian cultural area in the southwest from the heartland and brought it within the newly founded Turkish Republic. “Our Georgian” (also “Turkey Georgian”) is an archipelago of different Georgian islands with unclear borders in Turkey. All three language islands emerged from the Georgian cultural area as part of the same political event that lasted over a century. All three islands emerged from different ethnicities and cultures but were in a similar Islamic-religious environment and were subject to different fates.



Figure 3: Mass forced resettlement under Shah Abbas the First. Illustration by the author.

There are two different possibilities or scenarios for the emergence of language islands:⁹ mass resettlement (see Figure 3) and reduction of national territory. A distinction can be made between these two groups.

The other sub-forms of the emergence of language islands are:

1. Forced resettlement during the war
2. Voluntary labor migration

⁹This classification refers to the phenomena of the formation of Georgian language islands, although language island phenomena outside the Georgian language area (e.g. German language islands) are also conceivable.

3. Forced labor migration (planned economy)

4. Ecological catastrophes

The reduction of national territory is rarely a peaceful process. It is usually the result of military confrontation with neighbors. An example of a mass forced resettlement is the Fereydani Georgian. The second main scenario of the creation of language islands, the reduction of national territory, concerns Ingilo Georgian – a Georgian language island in Azerbaijan.

1.3 The case of Fereydani Georgian

The linguistic isolation that occurred in the early 17th century led to the formation of Fereydani Georgian (Bakuradze et al. 2020). This is the Middle Georgian phase in the development of the Georgian language. Middle Georgian begins in the late 12th century and ends in the 18th century. One hundred years after the forced resettlement of Eastern Georgians to Isfahan, the Georgian language in Georgia has developed even further – the new Georgian language has begun to standardize its language through newly published newspapers, books and works in Georgian, as well as the establishment of the National Theatre, state schools and the Literacy Society. The Georgians who were deported to Iran a century ago had no idea of the cultural development in their homeland. In the 19th century, Georgia made its way to Europe and all this was reflected in the “new” Georgian language. The language of the Georgians in Fereydan differs from Georgian by at least one stage of linguistic development. Shah Abbas I separated a part of the population from the main Georgian nation, and consequently their language developed in a different way. The paths diverged for the next four hundred years, and only recently have they converged again (Bakuradze et al. 2020: 494).

The language island, based on Fereydani Georgian, can be defined as a geographically limited area where a language is used that differs from the same language or dialect of the motherland by at least one historical stage of language development.

The Fereydani-Georgians are at least bilingual (Persian/Fereydani-Georgian), and in villages where there is linguistic contact with South Luri, they speak three languages. In remote villages, there are many mixed families where parents teach their children both languages. When contact was re-established between Georgia and Fereydan, the Fereydani Georgians were very interested in learning the language and especially the alphabet. Georgian sources of the 17th and 18th centuries contain little information about the forced resettlement from Georgia to

Iran. The first lasting contacts between the Georgians of Fereydan and Georgian society began with the travelers from Fereydan. In the seventies of the 19th century, from time to time, Georgian newspapers published news about Iranian Georgians visiting the country. The first famous visitor from Fereydan was Atam Onikashvili, who published information about the life of Georgian Fereydans in newspapers. In 1922, Seipola Ioseliani visited Georgia. He was the first language assistant who helped to describe Fereydani Georgian.

2 Writing, identity and language islands

In some cases, typographic signs can constitute meaning by integrating contextual elements of meaning into the overall text through the activation of culture-specific knowledge that need not be verbalized.

When the text element “Others do it too” in the advertisement (Figure 4) for the 1994 Austrian parliamentary elections changes the font to Fraktur, the message is clear to every Austrian and German with reference to the culturally specific relationship between broken fonts and Nazi ideology: “The right-wing extremists are going to vote”. However, this shift in meaning is not understood in many parts of the world, where blackletter continues to bear the characteristic “typically German”.

Especially in the context of language islands, the possibility of expressing an alphabet is discussed not only from the perspective of the island language, but also in relation to the specific identity. The Transylvanian philologist Budai-Deleanu presents a comprehensive argument (Mitu 2003). His point is that the Cyrillic alphabet, which is used in the surrounding Slavic languages, represents a foreign form for German, which does not correspond at all to the internal structure of the language. There must be a close correspondence between alphabet and language. Budai-Deleanu believes, in accordance with the linguistic theories of the time:

I could prove that the letters we call Church Slavonic are just as compatible with the inner essence and form of the Romanian language as the Turkish ones. Because if we want to do violence to it, we can write it with Turkish letters as well as with Slavic ones. But the question is: how will it deal with the other characteristics of the language? Because every language has its own. (Budai-Deleanu 1970: 111)



Figure 4: Advertisement for the Austrian parliamentary elections, published in the *Der Standard* newspaper on June 9, 1994 (Schopp 2008: Figure 3)

The author goes on to argue that this mismatch between language and alphabet can lead to a serious problem of distortion of national identity: the Cyrillic alphabet alienates one's Latinity, both from the eyes of foreigners and from one's own, and it alienates "us" from "our" own real condition. According to the author, only the reconstruction of the original orthographic garb can restore the "transparency of identity".

The activation of writing and literacy in the context of identity formation happens in different ways when it comes to language islands. One of the decisive

factors is the spatial and institutional relationship to the heartland. For example, Volga Germans who emigrated from the Russian Empire to Pennsylvania in the 19th century received German newspapers from Germany immediately after their resettlement (Mattheier 1994).

Another factor is the social structures within the language island. At the time of the creation of the Georgian language islands under consideration, it can be safely assumed that the idea, if not the active mastery and use of the Georgian language, existed and was firmly established among the first generation of forced settlers. At present, as well as in the first travel accounts of the 19th century, there is no solid evidence of the active use of the Georgian script or whether it played a significant role at all.¹⁰

2.1 When script is intended to form identity: Fereydani Georgian

What can be assumed, however, is the perception of the very different phonetic character of the Georgian language, which partly exists as a language of memory, for example in some villages of the Fereydan. In the interviews with the language assistants in the village of Afus, the pharyngeal consonants of Georgian were pointed out, and at the same time Persian was set up as a contrastive background. It is likely that the perception of such differences in the active language communities creates a need for corresponding graphic representations. This would explain why in the last century there were at least three documented attempts by Georgian Fereydans to create an alphabet for Georgian and introduce it into the life of the language island, without realizing that the Georgian language has a writing tradition of almost two thousand years. Three hundred years of isolation from the mainland completely erased the idea of the writing tradition that was originally brought to the island. In an interview with one of the language assistants behind the last of the aforementioned attempts, it is reported that the goal of the new alphabet creation was not primarily phonetic-phonological, but its integration into the everyday life of the Fereydani Georgians. The linguistic community created a special place for the phenomenon of writing in order to complement the *differentia artificis identitatis*.

At the end of the 19th century, after three hundred years of isolation, the reintegration of Fereydani Georgian into the core Georgian cultural area began. A

¹⁰In the travelogues of Agniashvili and Tchelidze from the 19th century, it is clear that there are questions about the possible practice of writing and written evidence. The assumption about the existence of hidden written artifacts was constantly verified and it was concluded that the Fereydani Georgians did not reveal them either out of fear or lack of trust towards the foreigners.

geographically separate linguistic community began to become a scriptural community. The first travelers from Fereydan to the heartland indicate a clear mission: to travel to Georgia, learn to read and write in Georgian, and then bring this knowledge back to Fereydan. The fact that there was no active or passive knowledge or memory of the writing tradition on the linguistic island itself at that time can be deduced indirectly from the records. In the transcripts of Agniashvili's dialogues (Agniashvili 1896) with the Fereydani Georgians, they ask and talk about everything that concerns the heartland, but not a word about writing or literacy: "[...] do you (in Georgia) have walnuts? Do you have plums? What do your chickens look like?"

Of course, there was no political or social opportunity to integrate the Georgian script into the life of the language island through the school system. Therefore, there was a deliberate search for and contact with Georgians who were sent from the Soviet Union near Fereydan (Najaf Abad, Isfahan) on various industrial projects (construction of a dam or a steel plant in Iran).¹¹

There are letters of the Georgian alphabet carved on the parquet from this period, along with words that have the corresponding phonemes as initial letters (for example, /p/ in *პეპელა* *pepela* 'butterfly'). One artifact that came to light during fieldwork in Fereydan in 2018 is a 1918 invoice (Figure 5), perhaps camouflaged by Georgian script (for whatever reason) and thus accessible only to certain readers.

The decisive step in the reintegration of Fereydani Georgian into the core Georgian cultural area is the formation of the written community from the heartland and the language island.

In this process, two different phases can be distinguished: (1) personal contact with compatriots on business trips, which revives the cultural memory of the language island; (2) the state-organized distribution of Georgian books in Fereydan on the part of the Soviet state.

Another example from the field research of writing practices on the language island is the writing of one's own name (see Figure 6).¹²

The Georgian ethnicity of Joseph Stalin also served to revitalize identity in Fereydan and created a certain openness to Soviet policy, which aimed to bring Fereydani Georgians closer ideologically to the Soviet Union. The success of this policy required the active practice of literacy in the Georgian language, i.e. the promotion of literacy using the Georgian alphabet. The archival material from

¹¹For help in interpreting the content, thanks are due to Prof. Giorgi Lobzhanidze and Dr. Tamar Lekveishvili.

¹²For help in interpreting the content, thanks are due to Abolghasem Ahmadi.

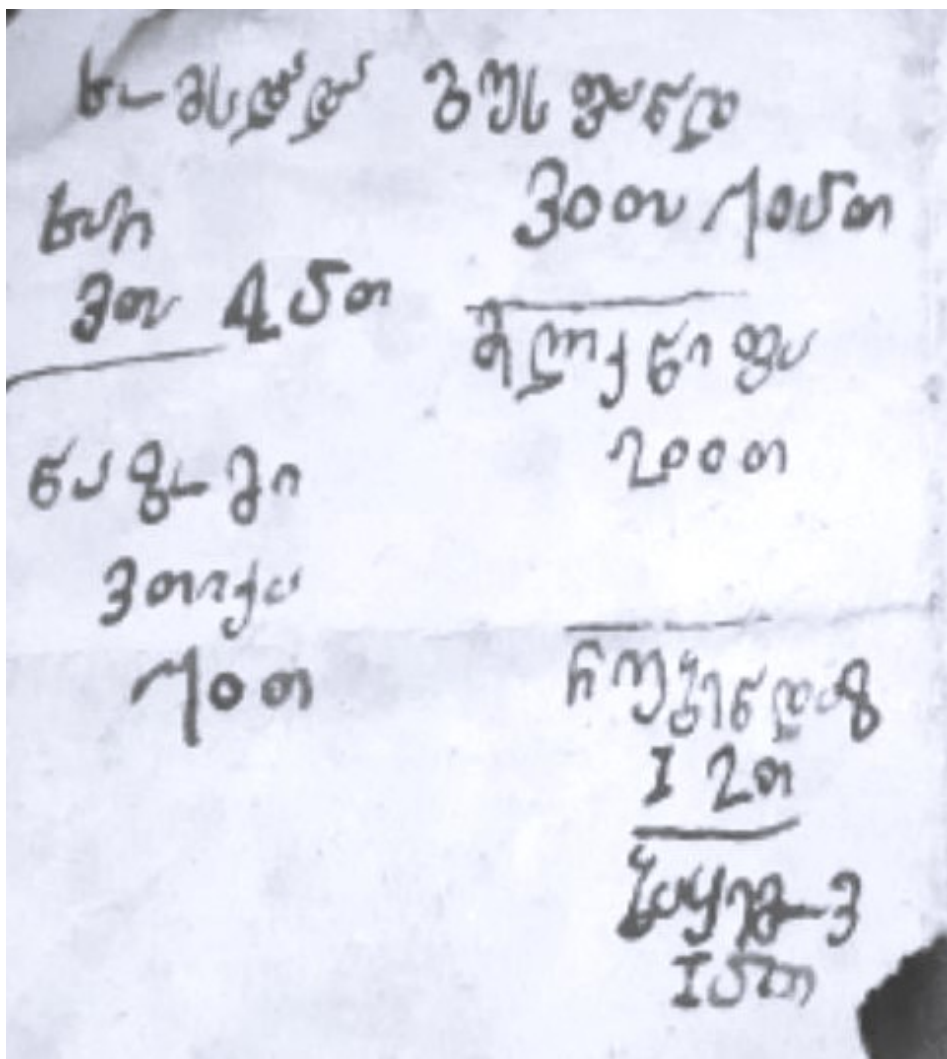


Figure 5: Persian words written in Georgian script. /xomsdada/ ev. 'to'/from' Xoms (/Xomsar); /guspan/ (Pers) 'sharp'; /xar/ (Pres) 'donkey'; /nazomi/ (Fer Geo) 'place'/'plot'; /rubendaz/ (Pers) 'adiere (to it)'; /baqie/ (Pers) 'remainder.' After the numerals, letter /t/ probably stands for 'toman.' Photograph by the author.

this period documents extensive lists of party literature in the Georgian language that were systematically sent to Fereydan. The motivation of the Fereydani Georgians for this policy was also due to the fact that they saw the policy of rapprochement as an opportunity to leave the island and return to their historical

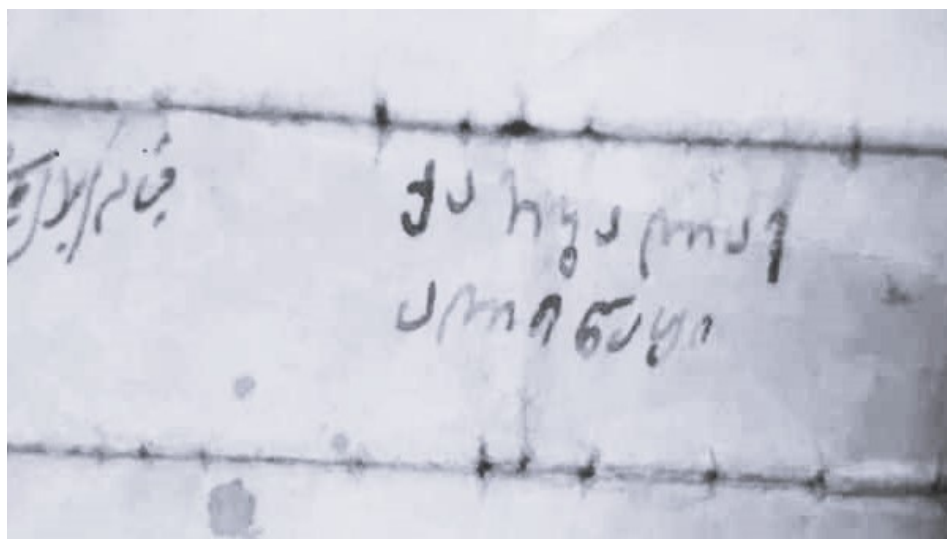


Figure 6: Proper name *karbalai alinaqi*. Photograph by the author.

homeland, which in some cases actually happened. The letter allegedly written by Fereydani Georgians¹³ to Stalin on April 30, 1944, which was found in the archives, is evidence of such sentiments (see Figure 7).

In the houses and public places of Fereydan you can find a special tablecloth, which, in addition to the typical oriental ornaments, is bordered with a table (5 columns and 6 rows) containing the modern Georgian alphabet (Figure 8).

The last three boxes in the last row are connected and marked with the following sentence: “Alphabet to be cut out”. When this sentence is applied to the tablecloth alphabet, it seems illogical and even nonsensical, because if you follow the recommendation and cut out the individual letters from the tablecloth, the tablecloth will be destroyed (tablecloth cut up), and that cannot be the meaning of the sentence. Research at the manufacturer of this tablecloth in Fereydan revealed a story about the true event from the 1960s, which was embellished as a legend. The first Georgians from Fereydan who were officially invited to Soviet Georgia asked their hosts to take a Georgian typewriter with them to Fereydan. Since all typewriters were registered in the Soviet Union and their ownership was excluded as private property, the Georgian hosts could not possibly fulfill the wish of the guests from Fereydan. However, an employee of a printing house

¹³Linguistically, the letter does not conform to the grammatical characteristics of Fereydani Georgian. It can be assumed that the letter was written according to a model that did not originate with Fereydan.

გემარჯო ბაქ ქანო ვლუბო
ივოცხელი ღიღხანს
გემარჯები თნად
ნაგონი ნაგონი
ბათნი სტლინი

სოფელი გონისი
მედიანი
ვაჩაშვილი
30-ეტი
1997

Figure 7: Archive of the Georgian Ministry of the Internal Affairs. Photograph by the author.



Figure 8: Letter to Stalin. Archives: Tablecloth with the alphabet cut out. Photograph by the author.

in Tbilisi procured a form of a table with the Georgian alphabet, which was used in Georgia for school beginners, so that they could receive duplicate sheets with the table, cut out the letters and thus acquire the Georgian alphabet. Now the form, which was apparently smuggled into Iran, was used to decorate a tablecloth.¹⁴

Another story documented in the field research tells of a plastic bottle of mineral water from Georgia that was thrown into a garbage can by a field researcher at the Tehran airport. The collector, a Fereydani Georgian, took the empty bottle from the trash can and carefully stored it. At home, the bottle was filled with ordinary table water and placed under the medicine cabinet – there was a deep conviction that the name of the mineral water on the bottle label, inscribed with letters of the Georgian alphabet, would transform an ordinary table water into a remedy with healing powers through its divine effect. The liquid from the bottle was given to the sick and children in the hope of recovery or strengthening.

In the context of language islands, the identity-forming function of the writing system can be supplemented by an additional aspect: the language of the language island, with its phonetic and grammatical characteristics, stands in maximum contrast to the language or languages of the surrounding area and constructs a projection surface for the foundation of identity. The writing system or the Georgian alphabet appears in the same light, which, like Fereydani Georgian, stands in maximum contrast to the Arabic writing system used in the surrounding Persian language. The writing system takes on a sacred meaning for the maintenance and preservation of identity. This meaning is expressed in everyday rituals and objects. The sacred meaning of the Georgian alphabet is even interpreted into existing facts that did not originally play a role in the context of the language's insular identity. An example of this is the bridge in Isfahan, which was built in the 17th century and is still an architectural feature of the city and the era. The bridge was built by the Fereydani Georgian Alaverdi Khan Undiladze (Pers **الله وردی خان**) and is known as Siosepol (Pers **سیوسپل**) 'the bridge with thirty-three vaults'. In the Fereydani Georgian narrative, this bridge is the symbol of the Georgian alphabet, as each individual arch of the bridge symbolizes one of the thirty-three letters of the Georgian alphabet. The Fereydani Georgians firmly believe that their famous compatriot built the bridge according to this principle. The reason why this is not true is the fact that the Georgian alphabet in the 17th century demonstrably contained 38 letters, not 33.

¹⁴In the story, the language assistant expressed the belief that this tablecloth means that the table is already set with spiritual food.

2.2 Crypto-Orthodox crypto-alphabet: Dedabruli manuscripts

Museums and archives in southwestern Georgia house numerous original 18th-century manuscripts known as “dedabruli xeli” (Khakhutaishvili 2017). Translated as “the old woman’s hand”, this term refers to the distinctive handwriting or calligraphy used by elderly women for clandestine communication among Orthodox minorities in “Osmalo, Georgia”. The earliest fragment of the *Kobuletian-Adjarian Dedabruli Manuscripts* was discovered by D. Baqradze in 1873 (before the conflict between Russia and Turkey). In 1908, a letter from a Muhajir woman accompanied the Book of Amulets. In addition, private correspondence of Ruqie Romanadze (1900–1988), manuscripts with Arabic incantations in the State Museum of Batumi, and the manuscript of Rukhset Surmanidze (died 1920) all date from the same year.

These manuscripts stand out because they were written by women. Linguists observe how mothers and grandmothers, who knew the script, used it and passed on their knowledge to subsequent generations. Scholars of the Georgian language try to draw parallels to this phenomenon in Western traditions (Javakhiashvili 1949: 11).

They refer to the so-called “nun alphabets” (/monazvnuri/ from (Geo) /monazoni/ ‘nun’) and note that the “dedabruli xeli” is also referred to as the “monazvnuri” script. What is fascinating about this story is the intersection between the activities of the nuns and the secret communication facilitated by an invented alphabet.

The script found in these manuscripts is a fusion of two Georgian alphabets, deliberately distorted graphically to render them unreadable without a deep understanding of specific graphic conventions (see Figure 9).

Some letters are graphically similar to the original letters and have recognizable references to each other (examples: /z/, /w/). Some letters have been adopted unchanged from the modern Georgian alphabet (examples: /č/, /ć/, /w/). In /p/ and /ž/, for example, the handwritten versions have been changed in such a way that the graphic reference is no longer recognizable. Especially noteworthy is /ž/. Another difficulty is that some letters have a different phonetic value, known only to the correspondents, in order to increase the degree of ciphering. The Georgian version of the language game¹⁵ is also used in spelling, where an additional vowel or syllable is consistently inserted between the syllables of a word. Word division was not observed, and punctuation marks were dropped in all manuscripts.

¹⁵Known in German as *Löffelsprache*.

	ა/a/		ბ/m/		გ/ḡ/
	ბ/b/		ნ/n/		ყ/q̇/
	გ/g/		ო/o/		შ/š/
	დ/d/		პ/ṗ/		ჩ/č/
	ე/e/		ჟ/ž/		ც/c/
	ვ/w/		რ/r/		ძ/z/
	ზ/z/		ს/s/		წ/ç/
	თ/t/		ტ/t/		ჭ/č̇/
	ი/i/		უ/u/		ხ/x/
	კ/k/		პ/p/		ჯ/ž̇/
	ლ/l/		კ/k/		ჰ/h/

Figure 9: The Dedabruli alphabet with the equivalents of the Georgian alphabet and transcription. Illustration by the author.

Lexically, there are some so-called “abracadabra” words, where the knowledge of their meaning is no longer used in treatises and which are written after remembering the sound: /prayer against freezing: ^(?)ila ^(?)ilma ^(?)napal ^(?)mana gadebian žinikma/.

Khakhutaishvili (Khakhutaishvili & Tsetskhladze 2019: 553) claim that this writing tradition emerged in Orthodox monasteries in the late Middle Ages and later took on a secret communication function during the Ottoman Empire. The term “old woman’s hand” probably developed later to refer to a form of calligraphy that was considered crude because of its inconsistent graphic representation. This interpretation is supported by the words of one scribe: “I scribbled it in the manner of old women”. Scholars use the term /dedabruli xeli/ “old women’s hand” to describe these manuscripts, suggesting a tradition that predates the Ottoman conquest of Christian areas in Georgia. Nevertheless, this style of writing took on a new role in shaping and preserving identity during this historical period. Written by women and passed down through generations, these manuscripts served different purposes. Some were in the form of long strips that could be folded and concealed in amulets or talismans, containing prayers and gospel texts. Others contained private information about relocated family members.

Overall, the aim of the *dedabruli xeli* manuscripts was to strengthen the cultural identity of the Orthodox minority under Ottoman rule and to preserve the memory of the scriptural and literary traditions of Georgian Orthodoxy. It is worth noting that some of these manuscripts are incomplete or completely illegible (see Figure 10).

The Dedabruli alphabet can be seen in the context of the preservation of religious identity. The forcibly Islamised population preserves its ethnic identity as a linguistic community, but sees its religious identity threatened and practices a so-called Crypto-Orthodox Christianity. They use a writing system derived from the traditional Georgian alphabet, which is only accessible to certain people (usually women). The Dedabruli alphabet is of great cultural and linguistic importance for the Georgian language island in Turkey. The areas influenced by Turkey were larger in the 18th and 19th centuries than the present-day area of ჩვენებურები *Chveneburebi* ‘Turkey Georgians’ lit. ‘of us’. The area of the spread of the Dedabruli writing was included. This community, which lived under Islamic rule, used the Dedabruli script as an instrument to preserve their religious (Crypto-Orthodox), ethnic and linguistic identity. The script offered them the opportunity to maintain a sense of cultural continuity despite the overwhelming influence of Islam. The *Chveneburebi* relied on the Dedabruli alphabet not only as a practical writing system, but also as a symbol of their Georgian

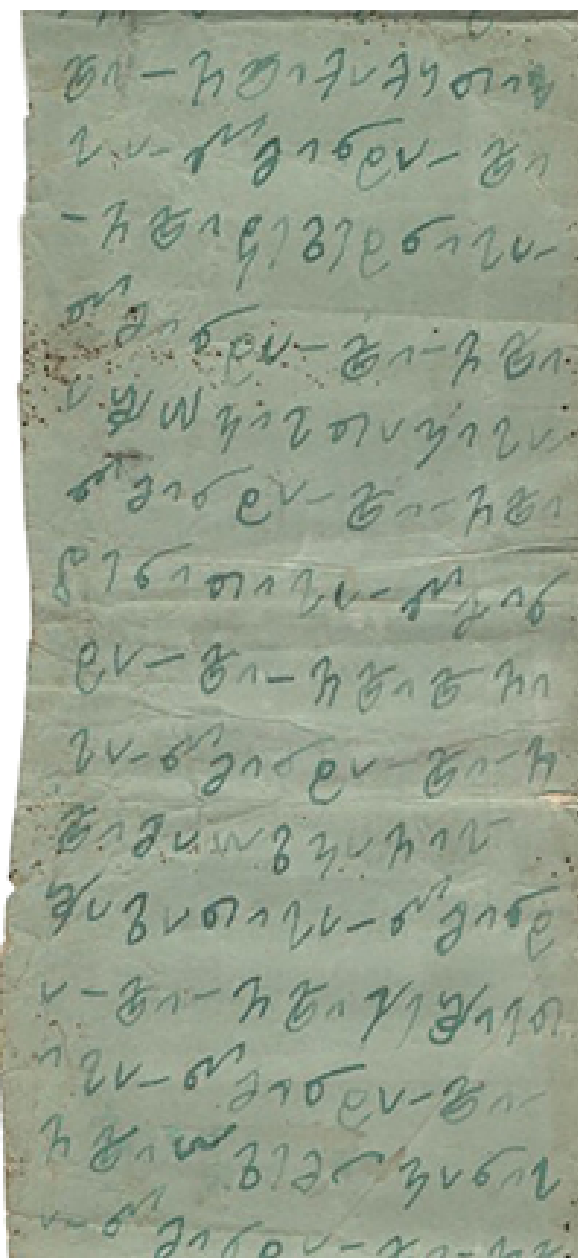


Figure 10: Examples of scrolls with Dedabruli script for the amulets or talismans from the Kobuleti Manuscript Museum (Georgia). The long strips of paper hidden in the talismans list the churches and holy places bearing the name of St. George, the patron saint of Georgia. Photograph by the author.

heritage. The alphabet became a sacred representation of their cultural memory and identity, and strengthened their distinctiveness from Turkish culture.

3 Conclusion

In the Georgian linguistic community, writing plays a much larger role than simply representing the language – it becomes a central feature of cultural identity. But what does it mean when a writing system not only serves to communicate, but also contributes to the formation of identity? Particularly in isolated linguistic communities, such as the Georgian communities in Iran, Turkey and Azerbaijan, the Georgian script is used as a “secondary function” to strengthen cultural cohesion. Here it plays a crucial role in differentiating from foreign cultures and assisting the community in its cultural self-assertion. But why is the “secondary function” so important for the survival of cultural identity?

The primary function of a writing system is to represent language visually – it is the means by which phonetic elements are recorded graphically. But in these Georgian language islands, writing has taken on a completely different role: it serves as a symbol, an anchor to preserve and strengthen cultural memory and ethnic consciousness in a foreign cultural environment. But why is this necessary? Why resort to a system of writing in an alien environment that is alien to the inhabitants of that environment and apparently has no practical function? This “secondary function” describes the ability of writing to do much more than convey information. It embodies the cultural heritage of the community and provides Fereydani Georgians with a link to their roots. The script becomes a conscious marker of identity, distinct from the dominant Persian culture and its Arabic script. By cultivating and preserving the Georgian script, even when there is no practical reason to do so, Fereydani Georgians express a strong sense of their cultural origins. The script becomes a symbol of belonging to the Georgian nation and maintains a distinction from their surroundings.

This symbolic use of the script goes beyond mere writing. It is integrated into everyday life, into rituals and even into everyday objects such as talismans or religious texts. Georgian writing thus becomes a vehicle for meanings that represent not only the word but an entire cultural consciousness. These rituals show that this is not a writing that is only read – it is experienced, celebrated, revered. The writing itself acquires a quasi-sacred status and is charged with meanings that are deeply embedded in cultural identity. It creates a cultural space that exists independently of practical communication. By incorporating these signs of the Georgian script into everyday objects and symbolic artifacts, the Fereydani

Georgians make the writing a living symbol of their identity. The Fereydani-Georgians see the Georgian script as a cultural bond that connects them to their homeland and distinguishes them from the Persian-speaking environment. Thus, in these isolated language communities, writing becomes a unifying element that strengthens the community's identity and builds a cultural bridge. But why do the Fereydani-Georgians continue to cling to a writing system that is not necessary for communication in their environment? It allows them to preserve their identity; for the language island, Georgian writing becomes a means of resisting assimilation and the loss of their own identity.

The dominance of the secondary function described here justifies the use of the term *differentia specifica identitatis* in relation to the script. In writing, certain aesthetic, cultural and religious ideas are interpreted or acted out. On this level, writing behaves similarly to all other surfaces onto which cultural, ethnic and religious identity is projected. In the case of a language island, a particular intensity of the secondary function of language can be assumed. The common language connects the language island, and the common writing system strengthens this connection.

Abbreviations

TAM	Tense-Aspect-Mood	Pers	Persian
Geo	Georgian		

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Identity formation, language and migration dynamics

The volume examines migration from the Middle East and North Africa (MENA) region to the German diaspora, offering a multifaceted perspective that combines historical and contemporary insights. It moves beyond viewing migration as a momentary event, instead situating it within a broader narrative that considers the impact of origin countries. By studying communities such as Georgians, Jews, Aramaic speakers, Kurds, Afghans and Berbers, the book explores how linguistic, social, and cultural factors shape their experiences both in their homelands and as migrants in Germany.

A key focus is the interplay between spoken vernaculars (such as Judeo-Spanish, Kurmanji Kurdish, Pashto and Tarifit Berber) and prestigious written languages (such as Hebrew, Syriac, Arabic, and Persian). It delves into how language choices, including scripts and writing systems, reflect deeper identity struggles within communities and across borders. In offering or restricting legal, pedagogical and communicative conditions for language acquisition, intercultural exchange and identity formation, Germany, like other European host societies, contributes significantly to these developments.

The book also shifts the lens of migration studies to explore not just the challenges in host countries but also the conditions in the migrants' places of origin, from linguistic diversity to social stratification and historical conflicts. It offers unique insights into how these factors shape the identities of minority groups and influence their lives as migrants.

This book is a resource for anyone interested in the complex intersections of migration, identity, language, and culture. It sheds light on the experiences of often-marginalised communities, offering valuable perspectives for scholars, policymakers, and anyone seeking a deeper understanding of the realities of migration and minority life.